Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

50 East Washington Avenue
Pearl River, NY 10965
(845) 735-4054
Fax No. (845) 735-4570

August 6, 2025

Dear Elli NY Design Corp,

Re: 25-049 - JFK - NTO - Korean Air Lounge

We would like to congratulate Elli NY Design Corp on the award of the attached contract for work at the 25-049 - JFK - NTO - Korean Air Lounge project located in Jamaica, New York 11430 (the "Project"). In order to keep the flow of information moving and ultimately provide timely payments to you, please note the requisite items listed below are extremely important in achieving those goals.

Enclosed you will find our subcontract agreement (the "Subcontract Agreement"). This agreement contains project specific terms and conditions. **Kindly return your Certificate of Insurance complying with all the requirements stated in Exhibit E to insurance@holtcc.com. Once we receive notification you have executed your contract via DocuSign, we will countersign, and you will receive an electronic copy for your files.** Your initiation of work shall be deemed to constitute acceptance by you of the terms and conditions of this contract with no exceptions.

If you are not in total agreement with our Subcontract Agreement, contract amount, completion date or any other item herein, you will not perform any work for the above-mentioned project without first notifying our office at contracts@holtcc.com in writing. If we do not receive anything in writing within two (2) days, it will be deemed that all parties are of the understanding that we have an agreement as per the subcontract agreement enclosed with no exceptions.

The signature page of the Subcontract must include the following:

- The typed name and title of the representative signing the document; and
- Execution of the Subcontract Agreement must be by an officer of your company.

Please submit your Schedule of Values as approved by the Project Manager on this project within fifteen (15) days so that your AIA submission will be expedited.

Your AIA Progress Payment Applications must be submitted no later than the twentieth (20) day of each month for work performed up to and including the last day of the month. Only Change orders which have been signed by Holt, may be billed to Holt. If Change Orders are incorrectly billed against your Application for Payment, those Change Orders will be sent back and you will be required to submit an adjusted Application for Payment.

Unless and until our office is provided with the approved schedule of values, unmodified executed Subcontract Agreement, current insurance certificate(s), current and previous month's executed Waiver of Lien forms, approved Change Orders (if applicable), approved Payment Application, and Site-Specific Safety Plan, your payment may be delayed.

We look forward to working with your company on this project.

Sincerely,

HOLT CONSTRUCTION CORP.

Subcontract Information

Contractor:	Holt Construction Corp.	Project:	25-049 - JFK - NTO - Korean Air Lounge
Subcontractor:	Elli NY Design Corp 50-01 Metropolitan Avenue 1st Floor Ridgewood, New York 11385	Contract Date:	8/7/2025
		Amount:	$1,400,000.00
		Subcontract #:	25-049.011
Telephone:	(718) 418-4629	Work Description:	Banquette Millwork
Fax:			

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Holt Construction Corp.
New York Subcontract

ARTICLE 1

AGREEMENT

This Agreement ("Subcontract Agreement") made by and between Holt Construction Corp., 133-33 Brookville Blvd. Suite 323, Rosedale, New York 11422, hereinafter called the "Contractor", and Elli NY Design Corp, 50-01 Metropolitan Avenue 1st Floor, Ridgewood, New York 11385, hereinafter called the "Subcontractor," to perform part of the Work on the following Project:

PROJECT: 25-049 - JFK - NTO - Korean Air Lounge

OWNER:

ARTICLE 2

CONTRACT PRICE

2.1 The Contractor agrees to pay to the Subcontractor for the satisfactory performance of the Work, as defined below, the sum of **$1,400,000.00** (the "Subcontract Price") in accordance with the terms and conditions set forth herein and in the MSA. The Contractor shall, at its sole discretion, have the option to utilize Textura for issuance of Subcontractor payments. If Contractor elects to utilize Textura, Subcontractor shall be responsible for compliance with any requirements of Textura, including but not limited to registration, and fees associated therewith.

ARTICLE 3

SCOPE OF WORK

3.1 Contract Documents. The Contract Documents include this Agreement and all referenced Exhibits, the contract between the Owner and the Contractor (the "Prime Contract"), including any modifications Drawings, Specifications, Addenda issued prior to the execution of this Subcontract Agreement, all of which form the Contract, and are as fully a part of the Contract as if attached to this Agreement or repeated herein. The Contract represents the entire and integrated agreement between the parties hereto and supersedes prior negotiations, representations, or agreements, either written or oral (collectively, the "Contract Documents"). Subcontractor acknowledges and agrees that it has access to, has examined, is familiar with, understands, and has obtained all clarification it deems necessary and appropriate respecting all of Contract Documents described herein. Subcontractor shall notify Contractor in writing not later than three (3) business days after any Subcontractor employee with access to Contractor's Procore system leaves the employ of Subcontractor. All notifications shall be sent via email to procoresupport@holtcc.com.

3.2 Subcontractor's Work. The Contractor engages the Subcontractor as an independent contractor, to perform the entire scope of work applicable to its trade and as described in the Contract Documents (the "Work"). The Subcontractor shall perform the Work under the general direction of the Contractor and in accordance with this Agreement and the Contract Documents. The Subcontractor shall perform the Work in accordance with the highest industry standards except where modified by the Contract Documents.

3.3 If Subcontractor is a certified diversity contractor at the time of award of this Subcontract, it must maintain that status during the term of this Agreement, unless this requirement is waived in writing by Contractor. In the event, Subcontractor fails to maintain such certification, Holt reserves the right to default the Subcontractor and to terminate this Subcontract for cause.

3.4 Subcontractor agrees to furnish and pay for all labor, materials, equipment, services and every other thing necessary for completion of the Work in accordance with the Contract Documents, or if they are necessary to produce the intended results and to assure a complete and functional Project. The Work shall include all obligations of the Subcontractor to comply with the provisions of this Subcontract and with the provisions of all other Contract Documents. It is further understood that incidental or minor modifications may be required due to actual job conditions, field coordination with other trades or substitution of equal products due to availability, etc. In that event no request for extras or change orders will be granted for such minor or incidental modifications required unless a material change occurs and it is recognized as such by the Architect and Owner of the Project. Subcontractor represents that it has carefully examined the Contract Documents and the site and based on such has satisfied itself that the Work can be performed and completed in accordance with this Subcontract Agreement and the Contract Documents. Subcontractor acknowledges and agrees that this Agreement is effective when signed by Subcontractor and, provided the Agreement is signed by Subcontractor, applies retroactively to work performed and services provided by Subcontractor in furtherance of the Work prior to such effective date of this Agreement.

ARTICLE 4

PERFORMANCE BOND; LABOR & MATERIAL PAYMENT BOND; SUBCONTRACTOR DEFAULT INSURANCE

4.1If requested by Contractor, the Subcontractor shall furnish to the Contractor, as named Obligee (with others as additional named Obligees, at Contractor 's option), surety bonds to secure the faithful performance of the Work and to satisfy all Subcontractor payment obligations related to the Work. If bonds are required, they shall be furnished by a surety acceptable to the Contractor, in the full amount of the Subcontract Price, and on forms acceptable to Contractor.

4.2 At Contractor's option, Subcontractor shall be enrolled in Contractor's Subcontractor Default Insurance Program (SDI). Subcontractor must complete Contractor's prequalification to be enrolled. If SDI is implemented for this Project, and Subcontractor does not qualify, it will need to provide the Performance and Labor and Material Payment Bonds set forth in § 4.1, above, unless specifically exempted, in writing, by Contractor. If Subcontractor is unable to provide a bond, Contractor may, at its option, terminate this Subcontract.

ARTICLE 5

CHANGE IN VALUE OF WORK/ CLAIM FOR ADDITIONAL COMPENSATION

5.1 Unless otherwise set forth in Contractor's agreement with the Owner, in the event of a claim for additional compensation by the Subcontractor, it is agreed that additional materials and labor shall be submitted at the Subcontractor's cost, which shall include (10%) mark-up for overhead and profit on labor, a (10%) markup for overhead and profit on material and a (5%) mark-up on any sub tier contractor, a (0%) mark-up for overhead and profit on other, a (0%) markup for rented equipment, and a (0%) markup for owned equipment.

ARTICLE 6

SCHEDULE OF EXHIBITS

6.1 The following exhibits are incorporated by this reference as Contract Documents:

Exhibits		Exhibits	
Exhibit A-1	Contract Authority and Scope of Work	Exhibit D	Sample Lien Releases
Exhibit A-2	List of Sub-Subcontractors and Suppliers	Exhibit E	Insurance Requirements
Exhibit A-3	Drawing Log	Exhibit F	Scope of Work and Clarifications, Exclusions, Allowances, Alternates, and Amendments
Exhibit B-1	Milestones and Schedule of Work	Exhibit G	Sample Payment Application Form
Exhibit B-2	Absolute Schedule of Work	Exhibit H	Sample Change Order Request Form
Exhibit B-3	Schedule of Man-Hours	Exhibit I	Sample Change Order
Exhibit C-1	Schedule of Values	Exhibit J	Prime Agreement
Exhibit C-2	Unit Pricing	Additional Exhibits	Will be added through DocuSign and shall be binding on the Subcontractor

ARTICLE 7

FORM OF AGREEMENT

7.1 This Agreement shall be binding upon and inure to the benefit of Contractor and Subcontractor, and their respective successors, assigns and related entities (subject to any restrictions set forth in the Contract Documents, if any), and may be executed in multiple counterparts each of which shall be treated as an original of this Agreement for all purposes, and all of which together shall constitute one (1) agreement binding upon all of the parties hereto, notwithstanding that all of the parties may not be signatory to the original or the same counterpart.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement the day and year first above written.

HOLT CONSTRUCTION CORP.

BY: DocuSigned by: 53C72AB40BF2474...

Chris Asaro

PRINT NAME

President

TITLE

ELLI NY DESIGN CORP

BY: Signed by: C6BB4923BCAB400...

Lissette Olivo

PRINT OFFICER'S NAME

Chief Executive Officer

TITLE

Elli NY Design Corp Federal Tax ID# 13-3617169

Elli NY Design Corp's authorized representative on site is:

Sebastian Woskolej

PRINT NAME

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT A-1

CONTRACT AUTHORITY AND SCOPE OF WORK

Identification of Subcontractor

Name of Subcontractor: Elli NY Design Corp
Address: 50-01 Metropolitan Avenue 1st Floor
Ridgewood, New York 11385
Telephone: (718) 418-4629
Fax:

Persons authorized on behalf of Subcontractor to make binding commitments:

Name Tomasz Bartosiak Title Chief Operating Officer

Name Sebastian Woskolej Title Project Manager

Identification of General Contractor

HOLT CONSTRUCTION CORP.
133-33 Brookville Blvd. Suite 323
Rosedale, New York 11422
Tel. +18457354054
Fax

The persons authorized on behalf of the General Contractor to make binding commitments are:

Christopher Asaro Niki Marcano Patricia Zugibe Catherine Ziegler

The Project Manager(s) is/are: Madelyne Grabowski

Subcontractor agrees to furnish and pay for all labor, materials, equipment, services, and every other thing necessary for completion of all Banquette Millwork work in accordance with the Contract Documents, or if they are necessary to produce the intended results and to assure a complete and functional Project. In addition, the Subcontractor shall be responsible for examination of actual conditions at the site. The Subcontractor affirms that from its own investigation(s), it has satisfied itself as to the nature of the work, the character of the equipment and other facilities needed for the performance of the work, the general and local conditions at the site and all other matters, which may affect the work or its performance and, further, that the conditions at the site are such that the work to be performed under this Subcontract Agreement can be carried on and completed in accordance with the Contract Documents. It is the intention of the Contract Documents to include provisions for all labor, material and applicable sales & use tax and related services to fully complete and protect the work of the Subcontractor's trade all as set forth in the Contract Documents, no matter where it appears. Any limitations or exclusions contained in the bidding documents shall not be effective to limit or alter the Scope of Work, unless specifically set forth herein.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT A-2

LIST OF SUB-SUBCONTRACTORS AND SUPPLIERS

For each subcontractor and supplier on the job please list the company name, address, phone number, contact, Federal Tax ID, and Type of Work. Indicate whether they are an S/M/W/DBE and if they are a sub or supplier.

If you don’t have any sub or suppliers on the job, check this box:

Long Island Metro Builders Corp. - Installer Sub 11-3456141

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Holt Construction Corp.

Printed on Thu Aug 7, 2025 at 04:45 pm EDT

Job #: 25-049 25-049 - JFK - NTO - Korean Air Lounge
JFK Airport - New Terminal One (NTO)
Jamaica, New York 11430

2025-05-29 IFC (05/29/25)

Drawing No.	Drawing Title	Revision	Drawing Date	Received Date	Set
General					
000	COVER PAGE-KOREAN AIR LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-000.00	PROJECT DATA / INDEX OF DRAWINGS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-005.00	SYMBOLS, ABBREVIATIONS, CLEARANCES & MOUNTING HEIGHTS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-006.00	SYMBOLS, ABBREVIATIONS, CLEARANCES & MOUNTING HEIGHTS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-010.00	GENERAL NOTES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-011.00	SUSTAINABLE DESIGN GUIDELINES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-012.00	FLOOD ZONE MAPS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-015.00	FIRE RESISTANCE DETAILS AND DIAGRAMS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-016.00	FIRE RATED PARTITION HEAD DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-017.00	PENETRATION DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-103.00	CODE COMPLIANCE PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
G-113.00	ACCESSIBILITY PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Architectural					
A-103.00	OVERALL FLOOR PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-113.00	PARTITION PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-123.00	REFLECTED CEILING PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-133.00	FINISH PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-143.00	FURNITURE PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-153.00	POWER AND COMMUNICATION PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-163.00	SIGNAGE LOCATION PLAN LEVEL 03	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-173.00	CEILING DEVICE / LIGHTING REFLECTED CEILING PLAN LEVEL 03	2	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-193.00	CORE PLAN LEVEL 03	1	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-200.00	BUILDING SECTIONS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-410.00	ENLARGED PLANS & ELEVATIONS - LOUNGE LOBBY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-420.00	ENLARGED PLANS & ELEVATIONS - FIRST CLASS LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-421.00	ENLARGED PLANS & ELEVATIONS - FIRST CLASS LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-430.00	ENLARGED PLANS & ELEVATIONS - MILER LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-440.00	ENLARGED PLANS & ELEVATIONS - PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-441.00	ENLARGED PLANS & ELEVATIONS - PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-442.00	ENLARGED PLANS & ELEVATIONS - PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-450.00	ENLARGED PLANS & ELEVATIONS - GUEST WASHROOM	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-451.00	ENLARGED PLANS & ELEVATIONS - GUEST WASHROOM	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-460.00	ENLARGED PLANS & ELEVATIONS - HALLWAY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Holt Construction Corp.

Printed on Thu Aug 7, 2025 at 04:45 pm EDT

Job #: 25-049 25-049 - JFK - NTO - Korean Air Lounge
JFK Airport - New Terminal One (NTO)
Jamaica, New York 11430

Drawing No.	Drawing Title	Revision	Drawing Date	Received Date	Set
A-461.00	ENLARGED PLANS & ELEVATIONS - HALLWAY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-470.00	ENLARGED PLANS & ELEVATIONS - FIRST CLASS PANTRY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-471.00	ENLARGED PLANS & ELEVATIONS - FIRST CLASS PANTRY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-480.00	ENLARGED PLANS & ELEVATIONS - KITCHEN	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-500.00	MILLWORK PLANS & ELEVATIONS - LOUNGE LOBBY & FIRST CLASS LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-501.00	MILLWORK PLANS & ELEVATIONS - MILER LOUNGE & PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-502.00	MILLWORK PLANS & ELEVATIONS - PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-503.00	MILLWORK PLANS & ELEVATIONS - PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-504.00	MILLWORK PLANS & ELEVATIONS - GUEST WASHROOM / HALLWAY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-505.00	MILLWORK DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-506.00	MILLWORK DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-507.00	MILLWORK DETAILS	2	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-508.00	MILLWORK DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-509.00	MILLWORK DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-510.00	CEILING DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-511.00	CEILING DETAILS	2	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-512.00	MILLWORK DETAILS	2	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-513.00	MILLWORK DETAILS	2	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-514.00	MILLWORK DETAILS	2	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-515.00	FLOOR DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-520.00	INTERIOR DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-521.00	INTERIOR DETAILS	2	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-522.00	INTERIOR DETAILS	1	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-523.00	INTERIOR DETAILS	1	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-525.00	INTERIOR DETAILS	2	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-530.00	EXPANSION JOINT PLAN AND SECTION DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-540.00	MILLWORK DETAILS	1	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-541.00	MILLWORK DETAILS	1	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-542.00	MILLWORK DETAILS	1	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-610.00	PARTITION TYPE CHARTS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-615.00	PARTITION DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-620.00	DOOR SCHEDULE, LEGEND & DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-621.00	DOOR DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-622.00	DOOR DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-630.00	SIGNAGE SCHEDULE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-631.00	SIGNAGE SCHEDULE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-640.00	KEYNOTE SCHEDULE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
A-641.00	KEYNOTE SCHEDULE	1	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Holt Construction Corp.

Printed on Thu Aug 7, 2025 at 04:45 pm EDT

Job #: 25-049 25-049 - JFK - NTO - Korean Air Lounge
JFK Airport - New Terminal One (NTO)
Jamaica, New York 11430

Drawing No.	Drawing Title	Revision	Drawing Date	Received Date	Set
Fire Protection					
SP-000.00	FIRE PROTECTION COVER SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
SP-113.00	TEMPORARY SPRINKLER PLAN - LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
SP-213.00	FIRE PROTECTION FLOOR PLAN LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
SP-400.00	FIRE PROTECTION RISER DIAGRAM	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
SP-600.00	FIRE PROTECTION DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Structural					
S-001	STRUCTURAL GENERAL NOTES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
S-100	STRUCTURAL CEILING FRAMING PLANS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
S-500	STRUCTURAL CEILING FRAMING DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Mechanical					
M-000.00	MECHANICAL COVER SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-113.00	MECHANICAL FLOOR PLAN - DUCTWORK LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-114.00	MECHANICAL ROOF PLAN - DUCTWORK	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-123.00	MECHANICAL FLOOR PLAN - PIPING LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-300.00	MECHANICAL CONTROLS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-301.00	MECHANICAL CONTROLS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-302.00	MECHANICAL CONTROLS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-303.00	MECHANICAL CONTROLS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-304.00	MECHANICAL CONTROLS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-500.00	MECHANICAL SECTIONS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-600.00	MECHANICAL SCHEDULES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-601.00	MECHANICAL SCHEDULES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-610.00	MECHANICAL DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-611.00	MECHANICAL DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-612.00	MECHANICAL DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
M-613.00	MECHANICAL DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Electrical					
E-000.00	ELECTRICAL COVER SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-123.00	ELECTRICAL FLOOR PLAN - LIGHTING LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-132.00	PLAN - LIGHTING CONTROLS LEVEL 1	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-133.00	PLAN - LIGHTING CONTROLS LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-153.00	ELECTRICAL FLOOR PLAN - POWER LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-154.00	ELECTRICAL FLOOR PLAN - HVAC POWER LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-155.00	ELECTRICAL FLOOR PLAN - ROOF	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-400.00	ELECTRICAL SINGLE LINE DIAGRAM	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-401.00	ELECTRICAL LIGHTING CONTROLS DIAGRAMS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-510.00	ELECTRICAL PART PLANS - LIGHTING	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Holt Construction Corp.

Printed on Thu Aug 7, 2025 at 04:45 pm EDT

Job #: 25-049 25-049 - JFK - NTO - Korean Air Lounge
JFK Airport - New Terminal One (NTO)
Jamaica, New York 11430

Drawing No.	Drawing Title	Revision	Drawing Date	Received Date	Set
E-511.00	ELECTRICAL PART PLANS - LIGHTING	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-512.00	ELECTRICAL PART PLANS - LIGHTING	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-513.00	ELECTRICAL PART PLANS - POWER	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-514.00	ELECTRICAL PART PLANS - POWER	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-515.00	ELECTRICAL PART PLANS - POWER	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-600.00	ELECTRICAL SCHEDULES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
E-610.00	ELECTRICAL DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Fire Alarm					
FA-000.00	FIRE ALARM COVER SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
FA-113.00	FIRE ALARM FLOOR PLAN LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Plumbing					
P-000.00	PLUMBING COVER SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
P-112.00	PLUMBING FLOOR PLAN LEVEL 2	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
P-113.00	PLUMBING FLOOR PLAN LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
P-400.00	PLUMBING RISER DIAGRAMS - SANITARY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
P-401.00	PLUMBING RISER DIAGRAMS - WATER	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
P-402.00	PLUMBING RISER DIAGRAMS GAS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
P-600.00	PLUMBING SCHEDULES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
P-610.00	PLUMBING DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
P-611.00	PLUMBING DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Equipment					
QF-401.00	ENLARGED PLANS & ELEVATIONS - FIRST CLASS LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
QF-402.00	ENLARGED PLANS & ELEVATIONS - MILER LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
QF-403.00	ENLARGED PLANS & ELEVATIONS - PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
QF-404.00	ENLARGED PLANS & ELEVATIONS - PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
QF-405.00	ENLARGED PLANS & ELEVATIONS - PRESTIGE LOUNGE	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
QF-406.00	ENLARGED PLANS & ELEVATIONS - HALLWAY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
QF-407.00	ENLARGED PLANS & ELEVATIONS - FIRST CLASS PANTRY	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
QF-408.00	ENLARGED PLANS & ELEVATIONS - KITCHEN	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
QF-409.00	EQUIPMENT LIST	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Telecommunications					
IT-000.00	COMMUNICATIONS COVER SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
IT-113.00	COMMUNICATIONS FLOOR PLAN LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
IT-123.00	COMMUNICATIONS REFLECTED CEILING PLAN - LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
IT-400.00	COMMUNICATIONS SINGLE LINE DIAGRAM	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
IT-500.00	COMMUNICATIONS PART PLAN & ELEVATIONS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
IT-600.00	COMMUNICATIONS DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Audio Visual					

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Holt Construction Corp.

Printed on Thu Aug 7, 2025 at 04:45 pm EDT

Job #: 25-049 25-049 - JFK - NTO - Korean Air Lounge
JFK Airport - New Terminal One (NTO)
Jamaica, New York 11430

Drawing No.	Drawing Title	Revision	Drawing Date	Received Date	Set
TA-001.00	AUDIOVISUAL GENERAL NOTES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
TA-110.00	AUDIOVISUAL LEVEL 3 - OVERALL FLOOR PLAN	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
TA-120.00	AUDIOVISUAL LEVEL 3 OVERALL RCP PAGING/BGM ZONES	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
TA-121.00	AUDIOVISUAL LEVEL 3 - RCP	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
TA-410.00	AUDIOVISUAL LEVEL 3 ENLARGED PLANS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
TA-610.00	AUDIOVISUAL DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
TA-611.00	AUDIOVISUAL DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
TA-910.00	AUDIOVISUAL FUNCTIONAL DIAGRAM	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
TA-911.00	AUDIOVISUAL FUNCTIONAL DIAGRAM	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Security					
SC-000.00	SECURITY COVER SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
SC-113.00	SECURITY FLOOR PLAN LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
SC-123.00	SECURITY REFLECTED CEILING PLAN-LEVEL 3	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
SC-400.00	SECURITY SINGLE LINE DIAGRAM	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
SC-600.00	SECURITY DETAILS	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
Energy					
EN-100.00	ENERGY CODE COMPLIANCE SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
EN-101.00	ENERGY CODE COMPLIANCE SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)
EN-102.00	ENERGY CODE COMPLIANCE SHEET	3	05/29/2025	06/09/2025	2025-05-29 IFC (05/29/25)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT B-1

MILESTONE AND SCHEDULE OF WORK

The Trade Contractor shall commence the Work as of the date of the "Notice to Proceed" or on the occurrence of a specified Milestone. The Subcontractor shall complete the Work in accordance with the Schedule appearing below. In the case of a Notice to Proceed it will be given at least five (5) days in advance of the date specified therein. This milestone schedule is based upon the best information at hand at the time that it was prepared and may be changed to a schedule of specific dates provided in Exhibit B-2 as the work progresses. Unless otherwise specifically provided for herein, allreferences to "days" shall be understood to be consecutive workdays.

Milestone Number	Milestone Item or Phase of Work	Event that Initiates the Milestone	Items to Be Completed By or Within Unless Noted all Days Shall Be Consecutive
1	Submittals/Shop Drawings	One (1) working day following Notice to Proceed	Thirty (30) working days following the start of Milestone #1
2	Fabrication	One (1) working day following Milestone #1	Sixty-Five (65) working days following the start of Milestone #2
3	Material Procurement	One (1) working day following the start of Milestone #2	Thirty (30) working days following the start of Milestone #3
4	Delivery	One (1) working day following the start of Milestone #3	Five (5) working days following the start of Milestone #4
5	Install	One (1) working day following Milestone #4	Twenty (20) working days following the start of Milestone #5
6	Punch list	One (1) working day following Milestone #5	Ten (10) working days following the start of Milestone #6
7	Close out	One (1) working day following Milestone #6	Five (5) working days following the start of Milestone #7

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT B-2

ABSOLUTE SCHEDULE OF WORK

See Exhibit F

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT B-3

SCHEDULE OF MAN-HOURS

N/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT C-1

SCHEDULE OF VALUES

#	Budget Code	Description	Amount
1	06--22-01.____..Sub Millwork Banquette.Subcontractor	Internal-Add Elli Contract	$1,400,000.00
		Grand Total:	$1,400,000.00

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT C-2

UNIT PRICING

N/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT D

SAMPLE PARTIAL WAIVER OF LIEN AND INDEMNIFICATION

To be used unless State Law where project is located requires different lien waiver forms or Prime Agreement requires a different form of lien of waiver.

[Subcontractor] _____, with an address at _____("Releasor"), has been engaged by Holt Construction, pursuant to that certain subcontract dated _____("Subcontract"), to furnish labor and/or materials for the premises located at _____, and the improvements thereon (the "Project").

In consideration of good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and upon receipt of payment equal to _____% of contract value thru requisition # _____, Releasor hereby waives and releases any and all claims, liens and claims of liens on the Project, including, but not limited to, construction liens, mechanic's liens or claims of right of lien, whether pursuant to state or federal statute or common law or otherwise, and on any monies or other consideration due or to become due from the lender, the owner, Holt Construction, the construction manager, if any, and/or the general contractor of the Project(if different than Holt Construction), on account of labor performed and/or materials furnished for the Project by or on behalf of Releasor up to and including the date hereof.

Releasor hereby agrees to indemnify and hold harmless the owner, Holt Construction, the construction manager, if any, and the general contractor of the Project (if different than Holt Construction) from and against any and all loss, cost, expense, fees, bond premiums, and damages, including, but not limited to, litigation attorneys' fees, expenses and disbursements, that may arise from or relate to any claims by any subcontractors, suppliers or agents of Releasor, or their officers, directors, shareholders, employees, agents, partners, members, managers, affiliates, heirs, executors, administrators, successors and assigns, in connection with any amounts owed or claimed to be owed for which Releasor has been paid to date, or relating to labor performed and/or materials furnished for the Project by or on behalf of Releasor up to and including the date hereof, including without limitation, any claims for extras or change orders. Releasor does hereby acknowledge, certify and warrant that all charges and amounts now due to Releasor and all charges and costs heretofore incurred by or for Releasor for labor and materials in connection with the Project have been paid in full (less retainage).

This agreement may not be changed orally.

(SUBCONTRACTOR)

_____

By: _____

Name: _____

Title: _____

Date: _____

Sworn to before me this _____ day of _____202____

_____

Notary Public

(seal)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT D

SAMPLE PARTIAL WAIVER OF LIEN AND INDEMNIFICATION

To be used unless State Law where project is located requires different lien waiver forms or Prime Agreement requires a different form of lien of waiver.

[Subcontractor] _____, with an address at _____("Releasor"), has been engaged by Holt Construction, pursuant to that certain subcontract dated _____("Subcontract"), to furnish labor and/or materials for the premises located at _____(Project name & Address), and the improvements thereon (the "Project").

In consideration of good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and upon receipt of the sum set forth below, Releasor hereby waives and releases any and all claims, liens and claims of liens on the Project, including, but not limited to, construction liens, mechanic's liens or claims of right of lien, whether pursuant to state or federal statute or common law or otherwise, and on any monies or other consideration due or to become due from the lender, the owner, Holt Construction, the construction manager, if any, and/or the general contractor of the Project(if different than Holt Construction), on account of labor performed and/or materials furnished for the Project by or on behalf of Releasor up to and including the date hereof.

Releasor hereby agrees to indemnify and hold harmless the owner, Holt Construction, the construction manager, if any, and the general contractor of the Project (if different than Holt Construction) from and against any and all loss, cost, expense, fees, bond premiums, and damages, including, but not limited to, litigation attorneys' fees, expenses and disbursements, that may arise from or relate to any claims by any subcontractors, suppliers or agents of Releasor, or their officers, directors, shareholders, employees, agents, partners, members, managers, affiliates, heirs, executors, administrators, successors and assigns, in connection with any amounts owed or claimed to be owed for which Releasor has been paid to date, or relating to labor performed and/or materials furnished for the Project by or on behalf of Releasor up to and including the date hereof, including without limitation, any claims for extras or change orders. Releasor does hereby acknowledge, certify and warrant that all charges and amounts now due to Releasor and all charges and costs heretofore incurred by or for Releasor for labor and materials in connection with the Project have been paid in full (less retainage).

Releasor acknowledges that upon receipt of $_____ it will have been paid a total of $_____ to date under the Subcontract through requisition #_____ .

This agreement may not be changed orally.

(SUBCONTRACTOR)

_____

By: _____

Name: _____

Title: _____

Date: _____

Sworn to before me this _____ day of _____202____

_____

Notary Public

(seal)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT D

SAMPLE FINAL WAIVER OF LIEN; INDEMNIFICATION; GENERAL RELEASE

To be used unless State Law where project is located requires different lien waiver forms or Prime Agreement requires a different form of lien of waiver.

[Subcontractor] _____, with an address at _____("Releasor"), has been engaged by Holt Construction, pursuant to that certain subcontract dated _____("Subcontract"), to furnish labor and/or materials for the premises located at _____, and the improvements thereon (the "Project").

In consideration of good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, being receipt of payment in full (100%) of contract value.

Releasor hereby waives and releases any and all liens and claims of liens on the Project, including, but not limited to, construction liens, mechanic's liens or claims of right of lien, whether pursuant to state or federal statute or common law or otherwise, and on any monies or other consideration due or to become due from the lender, the owner, the construction manager, if any, and/or the general contractor of the Project, on account of labor performed and/or materials furnished for the Project by or on behalf of Releasor, including without limitation, any claims for extras or change orders.

Releasor hereby agrees to indemnify and hold harmless the fee owner, the beneficial owner, Holt Construction, the construction manager, if any, and the general contractor (if different than Holt Construction) of the Project from and against any and all loss, cost, expense, fees, bond premiums, and damages, including, but not limited to, litigation attorneys' fees, expenses and disbursements, that may arise from or relate to any claims by any subcontractors, suppliers or agents of Releasor, or their officers, directors, shareholders, employees, agents, partners, members, managers, affiliates, heirs, executors, administrators, successors and assigns, in connection with any amounts owed or claimed to be owed relating to labor performed and/or materials furnished for the Project by or on behalf of Releasor, including without limitation, any claims for extras or change orders. Releasor does hereby acknowledge, certify and warrant that all charges and amounts now due to Releasor and all charges and costs heretofore incurred by or on behalf of Releasor for labor and materials in connection with the Project have been paid in full.

Releasor, on behalf of itself and its present and former officers, directors, shareholders, members, employees, agents, managers, representatives, principals, attorneys, parent companies, subsidiaries, affiliates, predecessors, successors and assigns (collectively, "Releasors"), hereby releases and discharges the fee owner, the beneficial owner, the construction manager, if any, and the general contractor of the Project and their present and former members, managers, officers, directors, shareholders, employees, agents, insurers, lenders, representatives, principals, attorneys, parent companies, subsidiaries, affiliates, predecessors, successors and assigns (collectively, "Releasees"), from all actions, causes of action, claims, suits, debts, dues, sums of money, accounts, reckonings, bonds, bills, specialties, covenants, contracts, controversies, agreements, promises, variances, liabilities, trespasses, damages, judgments, extents, executions and demands whatsoever, in law or equity, arising under common law or statute, known or unknown, contingent or noncontingent, which against Releasees, Releasors ever had, now have or hereafter can, shall or may have, from the beginning of the world to the date hereof.

This agreement may not be changed orally.

(SUBCONTRACTOR)

_____

By: _____

Name: _____

Title: _____

Date: _____

This instrument was executed and acknowledged before me on this_____day of _____, 20_____, by _____, known to me as the person whose name is subscribed above, as_____ [title] of _____[company], on behalf of and as the authorized act of said entity.

_____

Notary Public in and for the State of _____

My Commission Expires:_____

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Exhibit D

SAMPLE FINAL WAIVER OF LIEN; INDEMNIFICATION; GENERAL RELEASE

To be used unless State Law where project is located requires different lien waiver forms or Prime Agreement requires a different form of lien of waiver.

(Subcontractor) _____, with an address _____("Releasor"), has been engaged by Holt Construction, pursuant to that certain subcontract _____("Subcontract"), to furnish labor and/or materials for the premises located at _____, and the improvements thereon (the "Project").

In consideration of good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and upon receipt of the sum of _____.

Releasor hereby waives and releases any and all liens and claims of liens on the Project, including, but not limited to, construction liens, mechanic's liens or claims of right of lien, whether pursuant to state or federal statute or common law or otherwise, and on any monies or other consideration due or to become due from the lender, the owner, the construction manager, if any, and/or the general contractor of the Project, on account of labor performed and/or materials furnished for the Project by or on behalf of Releasor, including without limitation, any claims for extras or change orders.

Releasor hereby agrees to indemnify and hold harmless the fee owner, the beneficial owner, Holt Construction, the construction manager, if any, and the general contractor (if different than Holt Construction) of the Project from and against any and all loss, cost, expense, fees, bond premiums, and damages, including, but not limited to, litigation attorneys' fees, expenses and disbursements, that may arise from or relate to any claims by any subcontractors, suppliers or agents of Releasor, or their officers, directors, shareholders, employees, agents, partners, members, managers, affiliates, heirs, executors, administrators, successors and assigns, in connection with any amounts owed or claimed to be owed relating to labor performed and/or materials furnished for the Project by or on behalf of Releasor, including without limitation, any claims for extras or change orders. Releasor does hereby acknowledge, certify and warrant that all charges and amounts now due to Releasor and all charges and costs heretofore incurred by or on behalf of Releasor for labor and materials in connection with the Project have been paid in full.

Releasor, on behalf of itself and its present and former officers, directors, shareholders, members, employees, agents, managers, representatives, principals, attorneys, parent companies, subsidiaries, affiliates, predecessors, successors and assigns (collectively, "Releasors"), hereby releases and discharges the fee owner, the beneficial owner, the construction manager, if any, and the general contractor of the Project and their present and former members, managers, officers, directors, shareholders, employees, agents, insurers, lenders, representatives, principals, attorneys, parent companies, subsidiaries, affiliates, predecessors, successors and assigns (collectively, "Releasees"), from all actions, causes of action, claims, suits, debts, dues, sums of money, accounts, reckonings, bonds, bills, specialties, covenants, contracts, controversies, agreements, promises, variances, liabilities, trespasses, damages, judgments, extents, executions and demands whatsoever, in law or equity, arising under common law or statute, known or unknown, contingent or noncontingent, which against Releasees, Releasors ever had, now have or hereafter can, shall or may have, from the beginning of the world to the date hereof

This agreement may not be changed orally

This instrument was executed and acknowledged before me on this_____day of _____, 20_____, by _____, known to me as the person whose name is subscribed above, as_____ [title] of _____[company], on behalf of and as the authorized act of said entity.

_____
Notary Public in and for the State of _____

(SUBCONTRACTOR)

_____

By: _____
Name: _____
Title: _____
Date: _____

This instrument was executed and acknowledged before me on this_____day of _____, 20_____, by _____, known to me as the person whose name is subscribed above, as_____ [title] of _____[company], on behalf of and as the authorized act of said entity.

_____
Notary Public in and for the State of _____

My Commission Expires:_____

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT E

INSURANCE REQUIREMENTS

I. Insurance Requirements. Prior to the commencement of the Work, Subcontractor shall purchase and maintain, and ensure that all sub-subcontractors of every tier purchase and maintain, insurance of the following types of coverage and limits of liability, to be maintained until completion of the Work or its final acceptance, and for such longer period of time as specified herein.

A. Workers' Compensation and Employer's Liability.

1. Subcontractor shall purchase and maintain workers' compensation insurance or coverage as required by statute in the state(s) in which the Work will take place.
   i. If the Work will involve, in whole or in part, work or operations on the navigable waters of the United States or on a flagged vessel, then Subcontractor shall obtain coverage pursuant to the Jones Act and/or the Longshoremen's and Harbor Worker's Compensation Act as applicable.
   ii. If Subcontractor leases one or more employees through use of a payroll, employee management, or other similar company, then Subcontractor must procure worker's compensation insurance written on an "if any" policy form, including an endorsement providing coverage for alternate employer/leased employee liability. Such insurance shall be in addition to the workers' compensation coverage provided to the leased employee by the payroll, employee management, or other similar company.

2. Subcontractor shall purchase and maintain employer's liability insurance coverage with limits of at least $1,000,000, or in accordance with the laws of the state in which the work is being performed, for each bodily injury by accident, bodily injury by disease, and annual aggregate.

B. Automobile Liability insurance, provided on a current ISO form or equivalent, with limits of at least $1,000,000. Coverage shall apply on an "any auto" basis (owned, non-owned, leased, hired, and borrowed) and include uninsured and underinsured motorist coverage; loading and unloading; and medical payment protection. This coverage shall be listed on the Schedule of Underlying Insurance and in compliance with the Chart below with respect to Excess/Umbrella liability limits.

C. Commercial General Liability ("CGL") coverage written on a current ISO "occurrence" form, including coverage for damages because of bodily injury, property damage, personal and advertising injury, and for the products-completed operations hazard.

1. Without limiting the foregoing, coverage shall:
   i. Provide that the General Aggregate limit shall apply separately to each project.
   ii. Contain no professional liability exclusion broader than ISO form 22 79 07 98 or equivalent;
   iii. Include no narrowing modification to or deletion of the standard definition of "insured contract";
   iv. Contain no exclusion applicable to Subcontractor's scope of Work for the Project;
   v. Contain no limitation or exclusion for any additional insured's vicarious liability, strict liability, or statutory liability including, without limitation, liability pursuant to New York's labor laws;
   vi. Contain no limitation for resulting or consequential property damage; and
   vii. Contain no limitation or exclusion based on the existence or applicability of any additional insured's Project-specific insurance.

2. Coverage shall be maintained from commencement of the Work until not less than 10 years after substantial completion and acceptance of the Project, or to the expiration of any applicable Statute of Repose in the jurisdiction where the Project is located, whichever is shorter.

3. Such insurance shall include the applicable limits as set forth in the Schedule of Required Limits below. Limits may be satisfied with a combination of primary, excess and/or umbrella policies of insurance, provided that all such policies comply with all provisions of this Rider, including, without limitation, the scope of coverage and naming of additional insureds on a primary and non-contributory basis, as set forth below.

Schedule of Required Limits				
	Type I – Cranes and Operators (includes any contract that includes this scope of work regardless if subcontracted to a lower-tier subcontractor)		**Type II – Concrete, Excavation, Demolition, Foundation, and Scaffolding**	**Type III – All Subcontractors not defined in Type I or Type II**
	Type A – Cranes Weighing Over 21 tons	**Type B – Cranes Weighing Under 21 tons**		
Each Occurrence Limit	$1,000,000	$1,000,000	$1,000,000	$1,000,000
General Aggregate Limit	$2,000,000	$2,000,000	$2,000,000	$2,000,000
Products-Completed Operations Aggregate Limit	$2,000,000	$2,000,000	$2,000,000	$2,000,000
Umbrella/Excess Limits	$24,000,000	$10,000,000	$10,000,000	$5,000,000

D. Pollution Liability. If the Work involves the removal, treatment, storage, transportation or disposal of hazardous materials, Subcontractor shall provide and maintain Contractors Pollution Liability insurance without any mold exclusion. Limits shall be not less than $5,000,000 per occurrence unless otherwise specified by General Contractor or Owner based on the nature of the Work and the

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

risks involved. Such coverage will specifically schedule the type of work to be performed pursuant to this Subcontract and reflect both on-site and off-site exposures. Coverage must remain in place for a period of not less than 5 years after substantial completion and acceptance of the Project.

E. Professional Liability. All professional service firms must provide professional liability insurance appropriate for their profession. Architect and engineering firms must include insurance covering liability arising out of design errors and omissions with a limit of not less than $5,000,000 per occurrence for prime design contractors. This insurance shall, at a minimum, have a retroactive date which is the same as or predates the commencement of the Subcontractor's Work or performance of Subcontractor's services and must be maintained for at least 10 years following substantial completion and acceptance of the Project, or to the applicable statute of repose, whichever is less. Neither Owner nor General Contractor provides professional liability insurance for the benefit of any contractor or professional.

D. General Insurance Provisions. The following requirements are applicable to all of the insurance coverages required herein, except to the extent otherwise indicated.

E. Insurer Requirements. Except for any state workers' compensation funds, each insurer providing insurance coverage as required herein shall be a licensed, admitted insurer authorized to issue such coverage in the state in which the Project is located, and shall have an A.M. Best rating of "A- VII" or better.

F. Additional Insureds. All insurance required herein, excluding only workers' compensation and professional liability (where required), shall name the following parties as additional insureds: Contractor, Owner, the parties identified in the Prime Agreement, any other parties the Contractor may designate, and their respective members, partners, affiliates, agents, officers, managers, successors and assigns, and employees (collectively, the "Additional Insureds"). With respect to the CGL insurance, additional insured status must be provided using ISO Additional Insured Endorsement CG 20 10 10 01 and CG 20 37 10 01, or an endorsement providing equivalent or broader coverage to the additional insureds. Additional Insured endorsements must afford coverage to the Additional Insureds regardless of contractual privity with the Subcontractor and must not contain any language that constitutes a negligence trigger.

G. Waiver of Subrogation. To the fullest extent permitted by law, all insurance required herein shall contain a waiver of subrogation in favor of the Additional Insureds.

H. Primary and Non-Contributory Coverage. All policies, including primary, excess, and/or umbrella, shall state that the insurance provided to the Additional Insureds is primary and non-contributory to any other insurance maintained by or available to the additional insureds. Follow form excess coverage is insufficient to meet this requirement; excess/umbrella policies must be specifically endorsed to provide primary and non-contributory coverage for the additional insureds and shall include language waiving and/or agreeing to not pursue any horizontal exhaustion rights with respect to the Additional Insureds.

I. Scope of Coverage and Limits of Insurance. The coverage provided to the Additional Insureds must be at least as broad as that provided to the first named insured on each policy, shall include liability for injuries to Subcontractor's employees, and shall name the Additional Insureds for all liability arising out of the Work, to the fullest extent permitted by law. In the event that any policy provided in compliance with this Rider states that the coverage provided to an additional insured shall be no broader than that required by contract, or words of similar meaning, the parties agree that nothing in this Rider is intended to restrict or limit the breadth of such coverage. Furthermore, the limits of insurance provided by Subcontractor shall be the greater of the limits maintained in the normal course of Subcontractor's business or the minimum limits specified in this Rider. The limits of insurance stated above for each type of insurance are minimum limits only. In the event Subcontractor's policy provides greater limits, then the Additional Insureds shall be entitled to, or to share in, the full limits of such policy, and this Rider shall be deemed to require such full limits.

J. Severability of Interests (Cross Liability). No cross-liability exclusions are permitted that apply to the Additional Insureds, and there may not be any restrictions in any policy that limits coverage for a claim brought by an additional insured against a named insured.

K. Notice of Cancellation. All policies required under this Rider shall provide that they shall not be cancelled, not renewed, or materially changed except upon thirty (30) days prior written notice to Owner.

L. Deductibles & Self-Insured Retentions. All deductibles and/or self-insured retentions must be the sole responsibility of Subcontractor and shall not be paid by any Additional Insured.

M. Owner's Right to Procure Insurance. In the event of a failure of Subcontractor to furnish and maintain any of the insurance required under this Rider or to furnish satisfactory evidence thereof, Owner shall have the right, but not the obligation, to procure such insurance on Subcontractor's behalf, and Subcontractor shall furnish all necessary information in connection with Owner's procurement and either pay the costs thereof to Owner immediately upon presentation of a bill therefor, or have the cost thereof deducted from any payment otherwise due to Subcontractor under the Subcontract at Owner's option.

N. No Limitation. The insurance coverages maintained by Subcontractor shall not limit any of Subcontractor's indemnity obligations or other liabilities. Any type of insurance or any increase of its limits of liability not described above which the Subcontractor requires for its own protection or on account of law shall be its own responsibility and at its own expense.

II. Certificates of Insurance and Copies of Policies.

A. Certificates of Insurance. Prior to the commencement of the Work, Subcontractor shall furnish a Certificate of Insurance ("COI") to Owner indicating the Project and evidencing the required limits of insurance.

B. Copies of Insurance Policies.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT E

1. Subcontractor shall, at least 30 days prior to commencing the Work, or as soon as reasonably possible, provide the following documents to Owner:
   i. A COI;
   ii. Full and complete copy of Subcontractor's primary Commercial General Liability policy;
   iii. Full and complete copy of Subcontractor's excess policy or policies, evidencing the limits set forth above;
   iv. Full and complete copy of Subcontractor's Automobile Liability Insurance policy or, at minimum, a copy of the Automobile Liability declarations page and additional insured provision or endorsement;
   v. Evidence of Workers' Compensation and Employer's Liability insurance, in the form of an appropriate certificate of insurance and specifically identifying each Additional Insured for purposes of the required waiver of subrogation.

2. Any renewals, changes in coverage, or replacements in coverage shall be similarly documented and forwarded at least ten (10) days prior to expiration or change.

3. Owner or Owner's insurance consultant will review the above insurance documents. If Subcontractor's insurance is found not to be in compliance with the requirements of this Rider, Subcontractor agrees to cooperate with Owner in order to achieve compliance. Subcontractor acknowledges that this is a material condition of this Contract, and that it will not be permitted to start work unless and until it is deemed compliant. Subcontractor further acknowledges that Owner's obtaining of copies of Subcontractor's insurance policies is not a waiver of any provision of this Rider, or a statement that such insurance complies with the terms of insurance requirements as stated herein.

III. Indemnity. To the fullest extent permitted by law, the Subcontractor agrees to indemnify, defend and hold harmless the Contractor as well as all Additional Insureds (hereafter collectively "Indemnitees") from any and all claims, suits, damages, liabilities, professional fees, including attorneys' fees, costs, court costs, expenses and disbursements related to death, personal injuries or property damage (including loss of use thereof) brought against any of the Indemnitees by any person or entity, arising out of or in connection with or as a result or consequence of the performance of the Work of the Subcontractor, as well as any additional work, extra work or add-on work, whether or not caused in whole or in part by the Subcontractor or any person or entity employed, either directly or indirectly by the Subcontractor including any subcontractors thereof and their employees. The parties expressly agree that this indemnification agreement contemplates 1) full indemnity in the event of liability imposed against the Indemnitees without negligence; and 2) partial indemnity in the event of any actual negligence on the part of the Indemnitees either causing or contributing to the underlying claim which negligence is expressly excepted from the Subcontractor's obligation to indemnify. Attorneys' fees, court costs, expenses and disbursements shall be defined without limit to include those fees, costs, etc. incurred in defending the underlying claim and those fees, costs, etc. incurred in connection with the enforcement of this Subcontract Agreement. Indemnification under this Agreement shall operate whether or not Contractor has placed and maintained the insurance required under this agreement. The indemnity obligations under this Agreement shall survive completion and acceptance of the Work of the Subcontractor, termination of this Agreement and/or final payment to the Subcontractor. The Subcontractor shall cause all subcontract agreements it enters into to include this indemnification clause so as to ensure that Contractor and all Indemnitees hereunder shall have the same protection from sub-subcontractors as is afforded by the Subcontractor.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT F

SCOPE OF WORK AND CLARIFICATIONS, EXCLUSIONS, ALLOWANCES, ALTERNATES, AND AMENDMENTS

Scope of Work and Clarifications:

This contract includes Banquette Millwork scope of work inclusive of the Design drawing set and specifications of TAA#YR-1006-52 IFC set Revision 3 dated 05/29/2025, provided by Perkins & Will Architect, PC (AOR).

This contract includes, but is not limited to, the following scope of work:

- Furnish & Install Interior of Banquettes and individual seating and associated finishes throughout
- Finishes of the inner banquette include wood paneling/veneer, metal trims/base/inlays, Stone, Upholstery, cushions and associated substructure
- Die wall substructure for exterior banquette by others (Swissline)
- Includes structures & framing for seating & tables and blocking.
- Stone tables to be independently floor mounted per VE
- Profile of individual seating as squared corners, no radius as per VE
- Coordination required for associated millwork integrations with other trades and/or vendors (ie the die walls, furniture and integrated electrical)
- Furnish Submittals, shop drawings, samples, LEED documents, Test Reports, O&Ms and Warranties as per specifications
- All required coordination, Foreman & sub meetings weekly with all trades
- Safety class per TCC Guidelines
- All workers to have OSHA and required docs for safety and badging per TCC (SWAC or SIDA)
- Close out Documentation
- Punch List
- Required insurance Capital Improvement
- Teamster drivers
- Union work
- Adhere to project Specific Security Plan
- HASP
- COI
- B2G program
- MUERs program
- LCP Tracker / Certified Payroll
- Subcontractor shall comply with the NTO Tenant Construction Manual dated 11.25.2024, attached as an Exhibit , hereto.

Exclusions:

- The exterior perimeter of banquette seating by Others (Swissline)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT F

SCOPE OF WORK AND CLARIFICATIONS, EXCLUSIONS, ALLOWANCES, ALTERNATES, AND AMENDMENTS

Allowances/Alternates/Amendments:

N/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT G

SAMPLE PAYMENT APPLICATION FORM

AIA Document G702S™ - 2017

Application and Certificate for Payment, Contractor-Subcontractor Version

TO CONTRACTOR:	**PROJECT:**	**APPLICATION NO:**	**Distribution to:**
		PERIOD TO:	OWNER: ☐
		SUBCONTRACT FOR:	ARCHITECT: ☐
		SUBCONTRACT DATE:	CONTRACTOR: ☐
FROM SUBCONTRACTOR:		**PROJECT NOS:**	FIELD: ☐
			OTHER: ☐

SUBCONTRACTOR'S APPLICATION FOR PAYMENT

Application is made for payment, as shown below, in connection with the Subcontract. Continuation Sheet, AIA Document G703, is attached.

1.	**ORIGINAL CONTRACT SUM**		
2.	**NET CHANGE BY CHANGE ORDERS**		
3.	**CONTRACT SUM TO DATE (LINE 1 ± 2)**		
4.	**TOTAL COMPLETED AND STORED TO DATE** (Column G on G703))		
5.	**RETAINAGE:**		
	a. % of completed work (Column D + E on G703)		
	b. % of stored material (Column F on G703)		
	Total retainage (Line 5a + 5b or total in column I of G703)		
6.	**TOTAL EARNED LESS RETAINAGE** (Line 4 less Line 5 Total)		
7.	**LESS PREVIOUS CERTIFICATES FOR PAYMENT** (Line 6 from prior certificate)		
8.	**CURRENT PAYMENT DUE:**		
9.	**BALANCE TO FINISH, INCLUDING RETAINAGE** (Line 3 less Line 6)		

CHANGE ORDER SUMMARY	ADDITIONS	DEDUCTIONS
Total changes approved in previous months by Owner/Client:		
Total approved this month:		
Totals:		
Net change by change orders:		

The undersigned certifies that to the best of the Subcontractor's knowledge, information and belief the Work covered by this Application for Payment has been completed in accordance with the Subcontract Documents, that all amounts have been paid by the Subcontractor for Work which previous Certificates for Payment were issued and payments received from the Contractor, and that current payment shown herein is now due.

SUBCONTRACTOR:

By: _____ Date: _____

State of:

County of:

Subscribed and sworn to before

me this day of

Notary Public:

My commission expires:

AIA Document G702S™ - 2017. Copyright © 2017 by The American Institute of Architects. **All rights reserved.** **WARNING: This AIA® Document is protected by U.S. Copyright Law and International Treaties. Unauthorized reproduction or distribution of this AIA® Document, or any portion of it, may result in severe civil and criminal penalties, and will be prosecuted to the maximum extent possible under the law.**

User Notes: (3B9ADA96)

AIA Document G703S™ - 2017

EXHIBIT G

Continuation Sheet, Contractor-Subcontractor Version

AIA Document G702, APPLICATION AND CERTIFICATE FOR PAYMENT, containing Subcontractor's signed certification is attached.
In tabulations below, amounts are in US dollars.
Use Column I on Contracts where variable retainage for line items may apply.

APPLICATION NUMBER:	001
APPLICATION DATE:	
PERIOD TO:	
ARCHITECT'S PROJECT NO:	25-049.

A	B	C	D	E	F	G		H	I
ITEM NO.	DESCRIPTION OF WORK	SCHEDULED VALUE	WORK COMPLETED		MATERIALS PRESENTLY STORED (NOT IN D OR E)	TOTAL COMPLETED AND STORED TO DATE (D + E + F)	% (G / C)	BALANCE TO FINISH (C - G)	RETAINAGE (IF VARIABLE RATE)
			FROM PREVIOUS APPLICATION (D + E)	THIS PERIOD					
	GRAND TOTAL:								

AIA Document G703S™ - 2017. Copyright © 2017 by The American Institute of Architects. **All rights reserved.** **WARNING: This AIA® Document is protected by U.S. Copyright Law and International Treaties. Unauthorized reproduction or distribution of this AIA® Document, or any portion of it, may result in severe civil and criminal penalties, and will be prosecuted to the maximum extent possible under the law.**

User Notes: (3B9ADA96)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT H

SAMPLE CHANGE ORDER REQUEST FORM

Holt CONSTRUCTION

CHANGE ORDER REQUEST

COR #:
/ /
Page of

Owner: **Contract:**

Description: **Total:**

Details:

PCO Type	Type Description	PCO	PCO Description	Amount

Total:

Approved By: **Submitted By:**

Signed: _____ **Signed:** _____

Date: _____ **Date:** _____

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT I

SAMPLE CHANGE ORDER

CCO #XXX

Project: XXX

Subcontract Change Order #XXX: CE #XXX

CONTRACT COMPANY:	**CONTRACT FOR:**
DATE CREATED:	**CREATED BY:**
CONTRACT STATUS:	**REVISION:**
REQUEST RECEIVED FROM:	**LOCATION:**
DESIGNATED REVIEWER:	**REVIEWED BY:**
DUE DATE:	**REVIEW DATE:**
INVOICED DATE:	**PAID DATE:**
REFERENCE:	**CHANGE REASON:**
PAID IN FULL:	**EXECUTED:**
ACCOUNTING METHOD:	**SCHEDULE IMPACT:**
FIELD CHANGE:	**SIGNED CHANGE ORDER RECEIVED DATE:**
	TOTAL AMOUNT:
DESCRIPTION:	
ATTACHMENTS:	

CHANGE ORDER LINE ITEMS:

#	Budget Code	Description	Amount
1			$
		Grand Total:	$

The original (Contract Sum)

Net change by previously authorized Change Orders

The contract sum prior to this Change Order was

The contract sum will be increased by this Change Order in the amount of

The new contract sum including this Change Order will be

The contract time will not be changed by this Change Order.

Holt Construction Corp.

SIGNATURE **DATE**

SIGNATURE **DATE**

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT J

PRIME AGREEMENT

By signing the Subcontract, Subcontractor acknowledges having been given an opportunity to review the Prime Agreement and hereby agrees to be bound by all requirements of the Prime Agreement attached hereto as Exhibit J (including all Contract Documents included or incorporated therein) to the extent that they pertain to this Subcontract and the Work, including but not limited to, all dispute resolution procedures, indemnification provisions, termination provisions, confidentiality provisions, payment provisions and change order provisions set forth in the Prime Agreement. In the case of any conflict between the terms and conditions of the Subcontract and the Prime Agreement, the Subcontractor shall comply with the more stringent requirements. The Prime Agreement is attached and incorporated into this Subcontract and shall be binding upon Subcontractor such that Contractor is entitled to the same rights and remedies against Subcontractor as Contractor's client has against the Contractor.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT F

PROJECT LABOR AGREEMENT

AND ADR AGREEMENT

(ATTACHED)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

PROJECT LABOR AGREEMENT

FOR

JFK TERMINAL ONE REDEVELOPEMENT PROJECT

with

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY
TISHMAN CONSTRUCTION CORPORATION OF NEW YORK D/B/A
And AECOM|TISHMAN

BCTC EXECUTION COPY 12/18/19

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

TABLE OF CONTENTS

PREAMBLE 4

ARTICLE I - PARTIES TO THE AGREEMENT 5

ARTICLE II - GENERAL CONDITIONS 6

SECTION 1. DEFINITIONS 6
SECTION 2. CONDITIONS FOR AGREEMENT TO BECOME EFFECTIVE 6
SECTION 3. ENTITIES BOUND AND ADMINISTRATION OF AGREEMENT 7
SECTION 4. SUPREMACY CLAUSE 7
SECTION 5. LIABILITY 8
SECTION 6. BID SPECIFICATIONS 8
SECTION 7. AVAILABILITY AND APPLICABILITY TO ALL SUCCESSFUL BIDDERS 9
SECTION 8. WORK PRESERVATION & SUBCONTRACTING 9

ARTICLE III - THE WORK 9

SECTION 1. COVERED WORK 9
SECTION 2. NON-APPLICATION TO CERTAIN ENTITIES 13
SECTION 3. EXCLUDED EMPLOYEES AND EXCLUDED WORK 13
SECTION 4. ARTISANS 15

ARTICLE IV - UNION RECOGNITION AND EMPLOYMENT 16

SECTION 1. PRE-HIRE RECOGNITION 16
SECTION 2. UNION REFERRAL 16
SECTION 3. NON-DISCRIMINATION 20
SECTION 4. UNION DUES 20
SECTION 5. CRAFT FOREPERSONS AND GENERAL FOREPERSONS 21
SECTION 6. APPRENTICES 21

ARTICLE V - UNION REPRESENTATION 21

SECTION 1. LOCAL UNION REPRESENTATIVE 21
SECTION 2. STEWARDS 22
SECTION 3. LAYOFF OF A STEWARD 22

ARTICLE VI - MANAGEMENT'S RIGHTS 22

SECTION 1. RESERVATION OF RIGHTS 22
SECTION 2. MATERIALS, METHODS & EQUIPMENT 23

ARTICLE VII - WORK STOPPAGES AND LOCKOUTS 24

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SECTION 1. NO STRIKES-NO LOCKOUTS 24
SECTION 2. DISCHARGE FOR VIOLATION 24
SECTION 3. NOTIFICATION 25
SECTION 4. EXPEDITED ARBITRATION 25
SECTION 5. ARBITRATION OF DISCHARGES FOR VIOLATION 27

ARTICLE VIII - LABOR MANAGEMENT COMMITTEE AND WORK

ASSIGNMENTS 27

SECTION 1. SUBJECTS 27
SECTION 2. COMPOSITION 28
SECTION 3. PRE-JOB CONFERENCES/JOB ASSIGNMENTS 28

ARTICLE IX - GRIEVANCE AND ARBITRATION PROCEDURE 28

SECTION 1. PROCEDURE FOR RESOLUTION OF GRIEVANCES 28

ARTICLE X - JURISDICTIONAL DISPUTES 31

SECTION 1. NO DISRUPTIONS 31

ARTICLE XI - WAGES AND BENEFITS 32

SECTION 1. CLASSIFICATION AND BASE HOURLY RATE 32
SECTION 2. EMPLOYEE BENEFITS 32
SECTION 3. DELINQUENCY 32

ARTICLE XII - HOURS OF WORK 35

SECTION 1. WORK WEEK AND WORK DAY 35
SECTION 2. OVERTIME 36
SECTION 3. SHIFTS 36
SECTION 4. HOLIDAYS 37
SECTION 5. EMERGENCY SHUT DOWN 38
SECTION 6. ALTERNATIVE DISPUTE RESOLUTION FOR WORKERS COMPENSATION CLAIMS 38

ARTICLE XIII - TEMPORARY SERVICES 39

SECTION 1. SPONSOR'S OPERATION BUILDING SYSTEMS 39

ARTICLE XIV - SAFETY, PROTECTION OF PERSON AND PROPERTY 40

SECTION 1. SAFETY REQUIREMENTS 40
SECTION 2. CONTRACTOR RULES 40
SECTION 3. INSPECTIONS 40

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

ARTICLE XV - NO DISCRIMINATION 40

SECTION 1. COOPERATIVE EFFORTS 40
SECTION 2. LANGUAGE OF AGREEMENT 41

ARTICLE XVI - SAVINGS AND SEPARABILITY 41

SECTION 1. THIS AGREEMENT 41
SECTION 2. NON-WAIVER 41

ARTICLE XVII - DURATION 42

SECTION 1. DURATION 42
SECTION 2. EXTENSION OF AREA CONTRACTS 42

ARTICLE XVIII - HELMETS TO HARDHAT 42

SECTION 1. VETERANS 42
SECTION 2. PROGRAM COORDINATION 43

ARTICLE XIX - MISCELLANEOUS 43

SECTION 1. NEW YORK CITY SICK LEAVE WAIVER 43
SECTION 2. MUTUAL DRAFTING 43
SECTION 3. COUNTERPARTS AND FACSIMILE TRANSMISSION 43

SCHEDULE "A" - CBAs 77

SCHEDULE "B" – TRADE ADDENDA 82

EXHIBIT "1" – LETTER OF ASSENT 156

EXHIBIT "2" – EQUAL EMPLOYMENT OPPORTUNITY STATEMENT 157

EXHIBIT "3" – STANDARD OF EXCELLENCE 159

EXHIBIT "4" – DRUG AND ALCOHOL POLICY 162

EXHIBIT "5" – WORK EXCLUDED FROM DESIGN BUILD AGREEMENT 171

EXHIBIT "6" - JFK TERMINAL ONE LEASE LINES 173

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

PROJECT LABOR AGREEMENT

PREAMBLE

WHEREAS, the Sponsor, JFK Terminal One Co, LLC, has a contract with design-builder Tishman Construction Corporation of New York D/B/A AECOM|TISHMAN (referred to herein as "Construction Manager") to perform design, construction management and construction services related to the JFK Terminal One Redevelopment Project; and

Tishman Construction Coproration of New York D/B/A

WHEREAS, Construction Manager, AECOM|TISHMAN, is engaged in construction and has employed and now employs members of the construction industry represented by the Unions affiliated with the New York City Building and Construction Trades Council; and

WHEREAS, the New York City Building and Construction Trades Council ("BCTC") and Construction Manager have negotiated the terms of this Project Labor Agreement to promote the cost efficient, safe, quality, and timely completion of certain construction work; and

WHEREAS, this Project Labor Agreement will foster the achievement of these goals, inter alia, by:

(1) expediting the construction process and otherwise minimizing disruption to the project;

(2) avoiding the costly delays of labor unrest and promoting labor harmony for the duration of the project;

(3) standardizing certain terms and conditions governing the employment of labor on the project;

(4) providing comprehensive and standardized mechanisms for the settlement of work disputes, including those relating to jurisdiction;

(5) ensuring a reliable source of skilled and experienced labor;

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

(6) maximizing project safety conditions for both workers and others

(7) reducing labor costs by giving contractors flexibility to manage and perform work operations in the most efficient and productive manner consistent with this agreement; and

WHEREAS, the BCTC and its affiliated Unions, together with the contractor's desire to provide for stability, security and work opportunities that are afforded by this Project Labor Agreement; and

NOW, THEREFORE, it is agreed in consideration for the mutual promises and covenants made herein as follows;

ARTICLE I - PARTIES TO THE AGREEMENT

This Project Labor Agreement ("PLA" or "Agreement") is entered into by and among the New York City Building and Constructions Trades Council ("BCTC") and its Affiliated Unions, The Construction Manager, the General Contractors, contractors and subcontractors of all tiers, that are required to execute a Letter of Assent ("LOA") approved by the BCTC in the form attached hereto as Exhibit "1". All such Construction Managers, General Contractors, contractors and subcontractors of all tiers are collectively referred to as "Contractors". It is understood that this Agreement supersedes any existing agreement covering work that is covered by this Agreement. The PLA will govern the relationship among the Construction Manager and Contractors, and the Affiliated Unions, and the BCTC with respect to construction work to be performed in connection with Project Work defined in Article III and for the duration as set forth in Article XVI, Section 1 of this Agreement (the "Project").

The BCTC, its Affiliated Unions, and the Construction Manager and the Contractors each warrant and represent that they have been duly authorized to enter into this Agreement on behalf

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

of, and to bind, their respective organizations.

ARTICLE II - GENERAL CONDITIONS

SECTION 1. DEFINITIONS

1. Throughout this Agreement, the various union parties, including the BCTC, and its Affiliated Unions participating herein, are referred to singularly and collectively as "The Unions"; where specific reference is made to "Local Union" that phrase is sometimes used to denote a particular union affiliated with the BCTC;

Tishman Construction Coprporation of New York D/B/A

2. The term "Construction Manager" shall refer to AECOM|TISHMAN and any of its assigns, and successors in interest that perform Project Work.

3. Sponsor means JFK Terminal One Co, LLC., which is leasing premises from the PORT AUTHORITY OF NEW YORK AND NEW JERSEY ("The Port") at JFK International Airport to redevelop, construct, operate and maintain a new passenger terminal at the Airport.

4. The term "General Contractor" refers to any general contractor engaged by the Construction Manager with respect to the Project but shall not include Construction Manager;

5. The term "Contractor(s)" shall include Construction Manager, General Contractor and any and all general contractors and subcontractors of all tiers, engaged in work within the scope of this Agreement as defined in Articles III and XVI, Section 1 ("Project Work").

6. The term "Owner" shall refer to THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY, ("the Port").

SECTION 2. CONDITIONS FOR AGREEMENT TO BECOME EFFECTIVE

This Agreement shall not become effective unless each of the following conditions are met: (1) the Agreement is approved by the Building and Construction Trades Department; (2) the Agreement is approved and signed by the BCTC, and the Agreement is approved and signed by the participating Affiliated Unions set forth in the addendum for signatory affiliates, (3) the

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Agreement is executed by an executive officer of Construction Manager.

SECTION 3. ENTITIES BOUND AND ADMINISTRATION OF AGREEMENT

This Agreement shall be binding on the BCTC, the participating Affiliated Unions, the Construction Manager and all Contractors performing Project Work, as defined in Article III that are required to be bound to this Agreement.

SECTION 4. SUPREMACY CLAUSE

This Agreement, together with the applicable terms of the Collective Bargaining Agreements of the Affiliated Unions listed in Schedule "A," collectively referred to as Schedule "A" Agreements, as modified by this Agreement, or as modified in the Trade Specific Addenda annexed hereto as Schedule "B", represent the complete understanding of all parties. Schedule "A" Agreements are those collective bargaining agreements in the geographical area served by the BCTC that are for similar work and are generally applicable throughout that geographical area and listed in Schedule "A" annexed hereto and the appropriate Schedule "A" Agreement for the type of work performed (Building, Civil, etc.) shall apply. Where a Contractor is otherwise bound to a Schedule "A" Association Agreement, the Association form of Agreement shall apply. If the Contractor, is not otherwise bound to the Association form of Agreement, the Independent form of Agreement shall apply. Where there are conflicts between and among this Agreement and/or the Schedule "A" Agreements, this Agreement governs. This Agreement supersedes any national agreement, local agreement or other collective bargaining agreement of any type which would otherwise apply to Project Work, in whole or in part. Where this Agreement is silent on a subject the applicable Schedule "A" Agreement shall govern, except for any work performed pursuant to this Agreement that may fall under the NTL Articles of Agreement, the National Stack/Chimney Agreement, the National Cooling Tower Agreement, all instrument calibration work and loop

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

checking which shall be performed under the UA/IBEW Joint National Agreement for Instrument and Control Systems Technicians, and the National Agreement of the International Union of Elevator Constructors, with the exception of the dispute resolution mechanisms and no strike clause contained herein. It is understood that this Agreement, together with the referenced Schedule "A" Agreements constitutes a self-contained, stand-alone agreement and no Contractor will be obligated to sign any local, area, national or other agreement, except as provided herein for a Letter of Assent, as a condition of performing work within the scope of this Agreement. Any disputes concerning this Article shall be resolved under the procedures of Article IX of this Agreement.

SECTION 5. LIABILITY

The liability of any Contractor and the liability of any Local Union under this Agreement shall be several and not joint. Construction Manager or Contractor shall not be liable for any violations of this Agreement by any other Contractor; and the BCTC and Affiliated Unions shall not be liable for any violations of this Agreement by any other union.

SECTION 6. BID SPECIFICATIONS

The Construction Manager shall require in its bid specifications, issued after the execution of this Agreement, for all Project Work, that all Contractors and their subcontractors of whatever tier, awarded or performing Project Work shall become bound by this Agreement, and shall sign a "Letter of Assent" in the form annexed hereto as Exhibit "1" ("LOA") agreeing to be bound to and incorporating the terms of this Agreement by reference, except for (a) excluded work referenced in Article III Section 3 and (b) excluded contractors referenced in Article IV Section 2(e) regarding MWBE contractors.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SECTION 7. AVAILABILITY AND APPLICABILITY TO ALL SUCCESSFUL BIDDERS

The Unions agree that this Agreement will be made available to, and will fully apply to, any successful bidder for (or subcontractor of) Project Work, as defined in Article III of this Agreement, who becomes signatory thereto, without regard to whether that successful bidder (or subcontractor) performs work at other sites on either a union or non-union basis and without regard to whether employees of such successful bidder (or subcontractor) are, or are not, members of any unions. This Agreement shall not apply to the work of any Construction Manager or Contractor that is performed at any location other than the site of the Project Work.

SECTION 8. WORK PRESERVATION & SUBCONTRACTING

Except as provided for herein in Article IV, Section 2(e) with respect to MWBE contractors as set forth in that subparagraph, Contractors and subcontractors subject to this Agreement will not subcontract Project Work except to a person, firm or corporation who is or agrees to become party to this Agreement pursuant to a LOA.

ARTICLE III - THE WORK

SECTION 1. COVERED WORK

(a). Project Work

Subject to the exclusions set forth in Article III and the remainder of this paragraph, this PLA shall apply to "Project Work" defined as all construction work within the scope of work awarded to Construction Manager pursuant to the Design-Build Agreement between Sponsor and Construction Manager to be executed at a future date ("Design-Build Agreement") and any other work added by modification to that Design-Build Agreement for the Project Site ("Project Site"), which is either self-performed by Construction Manager or performed by a Subcontractor pursuant to a contract bid and let by the Construction Manager. With respect to the Construction Manager's

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

self- performed Project Work, the PLA shall apply in its entirety before or after execution.

The Project Work expected to be awarded to the Construction Manager is described generally as follows:

(i) The construction of interim and temporary roadways for JFK International Airport to maintain operations and continuous traffic during roadway demolition and construction including all required utilities and services;

(ii) The design, construction and demolition of temporary facilities to support passenger services during construction operations of the new facilities, including the new terminal and concourses;

(iii) Perform survey, engineering and construction of replacement utilities and new utilities servicing existing facilities and, when constructed, the existing facilities and new facilities. Utility replacement program;

(iv) The construction of the new JFK International roadway network and ramps including the installation of the new Tl exit roadways, departure and entry level elevated roadways;

(v) The decommissioning and demolition of the existing green parking garage and structure;

(vi) The selective demolition, construction and fit out including office equipment, computers & IT for the new JFK Field Offices.

(vii) The demolition, modification, and realignment of the existing hardstands including all required utility and service relocations.

(viii) The construction of the new T4 connector corridor, connecting the new JFK Terminal One with the existing T4 Terminal;

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

(ix) The construction and modifications of existing airport properties for the use of interim parking, staging and laydowns areas to be used during construction operations;

(x) The decommissioning, abatement, and demolition of the existing T2 Terminal;

(xi) The decommissioning, abatement and demolition of the existing T1 Terminal;

(xii) The removal of existing airside pavement and installation of new airside concrete pavement including all airside striping, signage, lighting and utilities;

(xiii) The installation and maintenance of temporary security site fencing during construction operations;

(xiv) The construction of the new JFK Terminal One Processor Building including the East & West Concourses including jet bridges and hard stands;

(xv) Furnish and install temporary protection surrounding the AirTrain adjacent to Terminal One;

(xvi) Barging of materials to and from the work site;

(xvii) On-site concrete batch plants

This Agreement shall not apply to the work of any Contractor that is performed at any location other than the Project Site, as defined in this Article III. This Agreement shall not apply to any work that is, or becomes, outside the scope of the Construction Manager's Design-Build Agreement.

(b). Turnover.

Any phase, portion, section, system or segment of Project Work shall be deemed complete when such phase, portion, section, system or segment has been turned over to Sponsor by Construction Manager and such phase, portion, section, system or segment has been accepted as

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

established by a letter of acceptance from the Sponsor for the beneficial use of that phase, portion, section, system or segment. As areas or systems of the Project are inspected, tested and accepted by the Sponsor, the Agreement shall have no further force or effect on such items, systems or areas, except when the Contractor is directed to engage in repairs or modifications required by the Design-Build Agreement or any subcontract.

(c). Notice.

Written notice of each final acceptance received by Construction Manager will be provided to the Unions with a description of what portion, segment, etc. has been accepted. Final acceptance may be subject to a "punch list", and in such case, the Agreement will continue to apply to each such item on the list until it is completed and accepted. After a letter of acceptance, temporary services previously required shall no longer be required

(d). Owner or Sponsor Discretion

It is understood that nothing in this Agreement shall be construed as limiting the sole discretion of Owner or Sponsor at any time to terminate, delay, suspend, cancel or reduce the Project , in whole or part, provided that such action is not a subterfuge by the Owner, Sponsor, or Construction Manager to avoid the obligations of this Agreement, and if later recommenced by the Construction Manager such work will be governed by this Agreement.

The Parties recognize that the scope of work, which is represented by Developer to include all trade work to be performed as described in the Project Work except for any exclusions expressly stated in this document, is a material inducement to the Council and the Local Unions to enter this Agreement, and in the event that any trade work to be performed at the Project is excluded without reference in this Agreement from Project Work by the Developer, the Construction Manager, any Contractor or any agent, representative, affiliate, arbitrator, or any person, entity or organization

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

at all, the Council and the Local Unions may at their sole and exclusive option, refuse further performance of any of their respective obligations under this Agreement based on the doctrine of "frustration of purpose," and said refusal shall not constitute a breach, job disruption, or strike under the meaning of this Agreement. Work that is currently excluded from the Construction Manager's design build agreement is set forth in EXHBIT "5" and is therefore not included in the scope of this PLA.

SECTION 2. NON-APPLICATION TO CERTAIN ENTITIES

This Agreement shall not apply to the parents, affiliates, subsidiaries, or other joint or sole ventures of the Construction Manager or any of the parties that make up Construction Manager or any Contractor, which do not perform work at this Project. It is agreed that this Agreement does not have the effect of, and will not be claimed by any Union to have the effect of creating any joint employer, single employer or alter-ego status, that does not otherwise exist, between or among Sponsor, or the member companies or parties thereto, the Construction Manager, or the member companies or parties thereto, or any Contractors, the Owner, or any affiliate of any of the foregoing entities.

SECTION 3. EXCLUDED EMPLOYEES AND EXCLUDED WORK

The following persons are not subject to the provisions of this Agreement:

(a) Superintendents, supervisors, professional engineers and/or licensed architects engaged in inspection and testing, quality control/assurance personnel, timekeepers, mail carriers, clerks, office workers, messengers, guards, technicians, non-manual employees, and all professional, engineering, administrative and management persons, unless such persons are specifically and explicitly covered by a craft's Schedule "A" Agreement; for example, where general forepersons, forepersons and field surveyors are included in the bargaining unit under a

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

particular Schedule "A" Agreement, they are covered by this PLA.

(b) Employees and entities engaged in off-site manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of project components, materials, equipment or machinery or involved in deliveries to and from the Project Site , except as may be provided for in Schedule "A" agreements.

(c) Employees of the Owner or Sponsor or employees of their contractors of any tier, provided, however, such excluded employees shall not be used to perform Project Work in place of covered employees for the then scope of Project Work.

(d) Employees of any Contractor who are not engaged in performing Project Work.

(e) Employees engaged in on-site equipment warranty work, unless a current employee of a Contractor is on site and certified by the relevant manufacturer to make warranty repairs on the Contractor's equipment.

(f) Employees engaged in geophysical testing other than boring for core samples.

(g) Employees engaged in environmental testing.

(h) Employees engaged in work, which is ancillary to Project Work and performed by third parties such as utility companies who shall install their work only to a certain demarcation point identified by the Construction Manager at the commencement of the Project.

(i) Employees performing work not covered by this Agreement or excluded from this Agreement in Article III, or Article IV(2)(e).

(j) It is expressly agreed that enabling work performed by employees of Sponsor, Owner or its vendors, in preparation for the Construction Manager to commence Project Work is not included within the scope of Project Work.

(k) Work performed by certain non-union MWBE contractors as more specifically

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

provided for in Article IV(2)(e) below.

(l) Work by employees of a manufacturer or vendor to install the manufacturer's or vendor's products where performance of the work by those employees is expressly stated in the manufacturer's or vendor's written warranty or guarantee to be a condition for the warranty or guarantee for such products; provided the manufacturer or vendor possesses any license required for the performance of the work.

(m) Commissioning, programming, validation, integration and diagnostic work of installed equipment, provided, however, start up and testing shall be performed pursuant to Schedule "A" Agreements.

SECTION 4. ARTISANS

Work performed by Employees of "Artisans." Employees of "Artisans" shall be individuals or entities whom Owner may (or may not) employ directly to create unique, one-of-a-kind decorative elements for incorporation into the building. The design, illustration, and detailing of these one-of-a-kind decorative elements can only be fully completed in the field and can only be performed by that individual or entity. The duties of Artisans shall be to direct trades people, as well as provide assistance in the unloading, assembly, installation, and distribution of unique, one-of-a-kind decorative elements as defined above. Artisans shall perform all design, illustration, and detailing work and final adjustments, finishing touches, and final painting of such one-of-a-kind decorative elements; provided, however, this provision shall not exclude the finish trades from their traditional jurisdiction, including but not limited to painting and tile, marble and terrazzo work.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

ARTICLE IV - UNION RECOGNITION AND EMPLOYMENT

SECTION 1. PRE-HIRE RECOGNITION

The Construction Manager(s), and all Contractors performing Project Work recognize the Unions as the sole and exclusive bargaining representatives of all craft employees who are performing Project Work within their recognized jurisdiction and within the scope of this Agreement as defined in Article III, with respect to that work, except as provided for in Article IV(2)(e). This Agreement is a pre-hire collective bargaining agreement as described at 29 U.S.C. § 158(f) and shall not be deemed to create a Section 9(a) relationship, to require bargaining for a successor agreement, to bind the employer to a successor agreement, or to constitute a delegation of bargaining authority to any association, however, this provision does not eliminate any pre-existing Section 9(a) collective bargaining relationship that may exist between a Contractor and a Union.

SECTION 2. UNION REFERRAL

a. The Contractors agree to employ and hire craft employees for Project Work covered by this Agreement through the job referral systems and hiring halls established in the Unions' area Schedule "A" Agreements and in accordance with the procedures set forth in those agreements, and as provided herein in subsection 2(e) of this Article. In the event that a Union does not have a referral system or hiring hall, the current practice with respect to Construction Manager or Contractor hiring for that Union shall be observed.

b. i. In the event that a Union with a job referral system or hiring hall in its Schedule "A" Agreement, or under current practice, is unable to fill any request for qualified employees within a 48-hour period after such request by Construction Manager or Contractor (Saturdays, Sundays, and holidays excepted), Construction Manager or Contractor may employ qualified applicants from any other available source, upon notification to the affected Union. In the event

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

that the Local Union does not have a job referral system, the Construction Manager or Contractor shall follow the current practice and give the Local Union first preference to refer applicants if any such practice exists.

ii. The Local Unions shall exert their best and utmost efforts to recruit sufficient numbers of skilled craft workers to fulfill the manpower needs and the minority hiring, and priority hiring obligations of Construction Manager and each Contractor as set forth in the Design Build Agreement between the Owner, Sponsor and the Construction Manager. The signatories to this Agreement support the development of increased numbers of skilled construction workers to meet the needs of the Project and the industry generally. Toward that end, the Unions agree to work collaboratively with the Sponsor and/or Construction Manager to attract qualified workers from the project area, as well as ways to assist local residents interested in pursuing careers in the construction industry through pre-apprentice programs and registered apprenticeship programs; and

iii. To the extent permitted by state and federal law, the parties agree to encourage and facilitate the recruitment, referral and utilization of qualified individuals from the communities surrounding the project. The parties further agree that to the extent consistent with applicable law and/or court ordered obligations of such referral systems, and in furtherance of the hiring goals set forth in the Construction Manager's design build agreement, Local Union job referral systems shall give priority to qualified residents from the communities identified by the following zip codes in the following order:

a. First Priority: Queens and Nassau County Zip Codes 11405, 11411, 11412, 11413, 11414, 11416, 11417, 11418, 11419, 11420, 11421, 11422, 11423, 11428, 11429, 11432, 11433, 11434, 11435, 11436,

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

11691,11692, 11693, 11694, 11695, 11697, 11559, 11598, 11096, 11516, 11557, 11003, 11580, 11581, & 11582;

b. Second Priority: Remaining Zip Codes in Queens County;

c. Third Priority: New York City Zip Codes in Kings, Bronx, New York, and Richmond Counties.

The above noted priority hiring shall not preclude any non-residents from working on the project. The Local Unions shall not knowingly refer to Construction Manager or Contractor an employee then employed by another Contractor under this Agreement. Local hiring initiatives may include Local Union job fairs, and apprenticeship program general recruitment, as well as the use of New York State Department of Labor approved direct entry pre-apprentice programs that partner with the Unions' apprentice programs, specifically the Edward J. Malloy Initiative for Construction Skills, NY Helmets to Hardhats, Non-Traditional Employment for Women, and Pathways to Apprenticeship to recruit from traditionally underserved communities including justice involved individuals, women, NYCHA residents, New York City high school students, and veterans.

c. Contractors will employ apprentices, and the unions will provide apprentices in their respective crafts, to perform such work as is within their capabilities and that is customarily performed by the craft in which they are indentured in accordance with the maximum ratios established by and permissible under applicable law.

d. i. In the event that the Local Unions either fail, or are unable, to refer, within forty-eight hours of the request, qualified minority or female applicants in percentages equaling the workforce participation goals set forth in the Construction Manager's design build agreement, Contractors may employ qualified minority or female applicants first from community referral

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

sources followed by any other available source. The Contractor shall inform the Unions of the name of any applicant hired from other sources.

ii. The Local Unions will cooperate with Contractor requests for minority, women or local resident referrals to meet The Construction Manager's and Contractors' commitments and or obligations set forth in of the Design Build Agreement. Unions will make good faith and best efforts to facilitate the Construction Manager meeting of applicable requirements imposed upon the Project Work and as set forth in the Design Build Agreement. These efforts will include recruitment of qualified individuals from the community into pre-apprentice, apprentice or journey-worker status, as may be appropriate in accordance with the individuals' qualifications consistent with program requirements

e. Notwithstanding any other provision of this Agreement, The Port Authority of New York and New Jersey certified MWBE contractors, and other MWBE certifications consistent with NYS Executive Law 15A, for which participation goals are set forth in the Construction Manager's Design Build Agreement, that are not signatory to any Schedule "A" Agreements, or any other collective bargaining agreements, and are awarded a subcontract for Project Work valued at or under five million ($5,000,000) , shall be excluded from coverage under this Agreement, and shall be excluded from the subcontracting restrictions of the Schedule "A" Agreements, provided that the MWBE is qualified, is not otherwise bound to a Schedule "A" Agreement and agrees to meaningfully participate in the Construction Manager's Training Program on "How to Grow into a Union Contractor." Certified MWBE contractors that are signatory to a Schedule "A" Agreement are included in this Agreement. The non-union certified MWBE contractor performing Project Work under this exclusion shall be free to employ its core workforce and the Unions shall not be deemed the NLRA 8(f) or 9(a) representative of those employees, unless the employees

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

affirmatively designate an affiliated union as such and choose to seek membership or representation in accordance with federal or state labor laws. The excluded MWBE work shall be capped at $400,000,000 for the entire project, which is five per cent (5 %) of the anticipated prime contract value excluding any change orders. Once the overall cap of $400,000,000 is achieved, all MWBE work shall be deemed covered by this Agreement. This MWBE exclusion shall be applied equitably across the trades so that no Local Union's trade is disproportionally impacted by the exclusion and the cap shall be applied as an overall cap of $20,000,000 per trade. Once the per trade cap of $20,000,000 is met, all work within that trade shall be deemed covered work. The equitable application of this provision to avoid disproportionate impact on any particular trade is a material term and any allegations by a Local Union of disproportionate impact shall be subject to expedited arbitration under this Agreement. The Construction Manager shall make good faith efforts to solicit bids from Schedule "A" signatory and non-signatory MWBE contractors certified for the scope of work being bid. It is expressly acknowledged that all work performed under this MWBE exclusion is subject to the prevailing wage established for work of the kind performed.

SECTION 3. NON-DISCRIMINATION

The Unions represent that their respective Union hiring halls and referral systems are and will continue to be operated in a non-discriminatory manner and in full compliance with all applicable federal, state and local laws and regulations including, but not limited to, the requirements of The Port Authority of New York and New Jersey, as well as the Construction Manager and Contractor obligations under the Design-Build Agreement which require equal employment opportunities, and as set forth in the EEO Policy annexed to the Design Build Agreement.

SECTION 4. UNION DUES

Except as provided above in this Article IV, Section 2(e), all employees of all

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Contractors performing Project Work shall be subject to the union security provisions contained in the applicable Schedule "A" Agreement, as amended from time to time, but only to the extent permitted by law and only for the period of time during which they are performing on-site Project Work and only to the extent of tendering payment of the applicable union dues and assessments uniformly required for union membership in the Local Union which represents the craft in which the employee is performing Project Work. No employee shall be discriminated against at any Project Work site because of the employee's union membership or lack thereof. In the case of unaffiliated employees, the dues payment will be received by the Local Unions as an agency shop fee to the extent permitted by law.

SECTION 5. CRAFT FOREPERSONS AND GENERAL FOREPERSONS

The selection of craft forepersons and/or general forepersons and the number of forepersons required shall be solely the responsibility of the Contractors. Craft forepersons shall work pursuant to the terms and conditions established under the relevant Schedule "A" Agreement.

SECTION 6. APPRENTICES

Apprentices may be employed at the maximum ratios approved by the New York State Department of Labor for the relevant trade and in conformity with applicable prevailing wage law.

ARTICLE V - UNION REPRESENTATION

SECTION 1. LOCAL UNION REPRESENTATIVE

Each Local Union representing Project employees shall be entitled to designate a representative(s), and/or the Business Manager, who shall be afforded access to the Project but who shall not disrupt or interrupt the work of employees and shall be subject to reasonably applicable site safety rules, security and other reasonable rules set by the Construction Manager.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SECTION 2. STEWARDS

(a) Each Local Union shall have the right to designate a journey person as a Steward and an alternate and shall notify the Contractor that employs said Steward and alternate of the identity of the designated Steward and alternate prior to the assumption of such duties. All Stewards shall be working Stewards.

(b) In addition to their work as an employee, the Steward shall have the right to receive complaints or grievances from the employees working in their respective trade and to discuss and assist in the adjustment of said complaints or grievances with the Contractor's appropriate supervisor, provided there shall be no unreasonable interruption of the Project Work. The Contractor will not discriminate against the Stewards in the proper performance of Union duties.

SECTION 3. LAYOFF OF A STEWARD

Contractors agree to notify the appropriate Local Union 24 hours prior to the layoff of a Steward, except in cases of discipline or discharge for just cause. In any case in which a Steward is discharged or disciplined for just cause, the Local Union involved shall be notified immediately by the Contractor.

ARTICLE VI - MANAGEMENT'S RIGHTS

SECTION 1. RESERVATION OF RIGHTS

Except as expressly limited by a specific provision of the Schedule "A" CBAs and this Agreement, the Construction Manager and the Contractors retain full and exclusive authority for the management of their operations including, but not limited to, the right to direct the Project work force including determination as to the number of employees to be hired and the qualifications therefore; the promotion, transfer, layoff of its employees; the discipline or discharge for just cause of its employees; the assignment and schedule of Project Work (subject to

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

the New York Plan); the promulgation of reasonable work rules that are not inconsistent with this Agreement or rules common in the industry and are reasonably related to the nature of the Project Work; and the requirement, timing and number of employees to be utilized for overtime work. No rules, customs, or practices that limit or restrict productivity or efficiency of the individual shall be permitted.

The Parties hereby adopt and incorporate the BCTC's Standard of Excellence and Safety Code annexed hereto as Exhibit 3, and the mutual obligations set forth therein for the safe, efficient and productive completion of the Project.

SECTION 2. MATERIALS, METHODS & EQUIPMENT

Except as expressly limited by a specific provision of this Agreement and the applicable Schedule "A" Agreement , the Construction Manager and the Unions acknowledge and agree that there shall be no limitation or restriction upon the Contractors' choice of materials, techniques, methods, technology or design, or, regardless of source or location, upon the use and installation of equipment, machinery, package units, pre-cast, pre-fabricated, pre-finished, or pre-assembled materials, tools, or other labor-saving devices. The Contractors may, without restriction, install or use materials, supplies or equipment regardless of their source. The on-site installation or application of such items shall be performed by the craft having jurisdiction over such work; provided, however, it is recognized that other personnel having special qualifications may participate, in a supervisory capacity, in the installation, check-off or testing of specialized or unusual equipment or facilities as designated by the Contractor. There shall be no restrictions as to Project Work which is performed off-site for the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

ARTICLE VII - WORK STOPPAGES AND LOCKOUTS

SECTION 1. NO STRIKES-NO LOCKOUTS

There shall be no strikes, sympathy strikes, picketing, work stoppages, slowdowns, hand billing, bannering, demonstrations or other similar disruptive activity, concerted or otherwise, (referred to collectively herein as "disruptive activity") on Project Work for any reason by any Union or employee against the Owner, Sponsor, Construction Manager and Contractors for the duration of this Agreement, provided that, where a wage or fringe benefit delinquency occurs on this Project, the withholding of labor from a Delinquent Contractor, consistent with Article XI herein, shall not constitute a strike or work stoppage within the meaning of this section. There shall be no disruptive activity, concerted or otherwise, or union employee activity that stops, disrupts or interferes with the Project Work or the free flow of traffic to or in the area of the Project. Failure of any Union or employee to cross any picket line at the Project Site established by any organization is a violation of this Article. This Agreement, including the provisions of this Article, shall apply to all Project Work and any work that is not covered by this Agreement is not considered Project Work and shall not be covered by this provision, provided, however, that work that is excluded and performed pursuant to Article IV, Section 2(e) by certified non-union MWBE contractors as defined in that Section is covered by this no strike/no lockout provision. There shall be no lockout at this Project Work site by the Owner/Sponsor, Construction Manager or any Contractor. Contractors and the Unions shall use their best efforts to ensure compliance with this Section and to ensure uninterrupted construction and the free flow of traffic in the Project area and for the Project Work for the duration of this Agreement.

SECTION 2. DISCHARGE FOR VIOLATION

The Construction Manager or Contractor may discharge any employee violating Section 1, above, and any such employee will not be eligible thereafter for referral for work on the Project

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

for at least 120 days, or as may be determined by an arbitrator. Such discharge shall be subject to the grievance and arbitration clause set forth in Article IX.

SECTION 3. NOTIFICATION

If any Contractor contends that any Local Union has violated this Article, it will notify the Local Union involved advising of such fact, with copies of the notification to the BCTC. The Local Union shall instruct its members and shall otherwise use its best efforts to cause the employees to immediately cease and desist from any violation. The BCTC shall request and otherwise use its best efforts to cause the Local Union to immediately cease and desist from any violation of this Article. The BCTC shall not be liable for the unauthorized acts of a Local Union or its members. Similarly, a Local Union and its members will not be liable for any unauthorized acts of other Affiliated Unions.

SECTION 4. EXPEDITED ARBITRATION

The Construction Manager, any Contractor or Local Union alleging a violation of Section 1 of this Article may utilize the expedited procedure set forth below (in lieu of, or in addition to, any actions at law or equity that may be brought):

(a) A party invoking this procedure shall notify Richard Adelman or Martin Scheinman, who shall alternate (beginning with Arbitrator Adelman) as Arbitrator under this expedited arbitration procedure. If the Arbitrator next on the list is not available to hear the matter within 24 hours of notice, the next Arbitrator on the list shall be called. If either Mr. Adelman or Mr. Scheinman should become incapacitated, the BCTC and Construction Manager shall select an arbitrator pursuant to the rules of the American Arbitration Association unless otherwise agreed to by BCTC and Construction Manager. Copies of such notification will be simultaneously sent to the alleged violator and the BCTC.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

(b) The Arbitrator shall thereupon, after notice as to the time and place to the Contractor, the Local Union involved, the BCTC and the Construction Manager, hold a hearing within 48 hours of receipt of the notice invoking the procedure if it is contended that the violation still exists. The hearing will not, however, be scheduled for less than 24 hours after the notice.

(c) All notices pursuant to this Article may be provided by telephone, hand delivery, or fax, confirmed by overnight delivery, to the Arbitrator, Contractor, Construction Manager and Local Union involved. The hearing may be held on any day including Saturdays or Sundays. The hearing shall be completed in one session, which shall not exceed 8 hours duration (not more than 4 hours being allowed to either side to present their case and conduct their cross-examination) unless otherwise agreed. A failure of any Local Union or Contractor to attend the hearing shall not delay the hearing of evidence by those present or the issuance of an award by the Arbitrator.

(d) The sole issue at the hearing shall be whether a violation of Section 1, above occurred. If a violation is found to have occurred, the Arbitrator shall issue a Cease and Desist Award restraining such violation and serve copies on the Construction Manager, Contractor and Local Union involved. The Arbitrator shall have no authority to consider any matter in justification, explanation or mitigation of such violation or to award damages or modify the disciplinary action taken (any damages issue is reserved solely for court proceedings, if any.) The Award shall be issued in writing within 3 hours after the close of the hearing and may be issued without an Opinion. If any involved party desires an Opinion, one shall be issued within 15 calendar days, but its issuance shall not delay compliance with, or enforcement of, the Award.

(e) An Award issued under this procedure may be enforced by any court of competent jurisdiction upon the filing of this Agreement together with the pertinent LOA, the Award, and a Petition to Confirm. Notice of the filing of such enforcement proceedings shall be given to the

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Local Union, Construction Manager and/or Contractor involved.

(f) Any rights created by statute or law governing arbitration or injunction proceedings related to arbitrations enforcing this Agreement, which are inconsistent with the procedure set forth in this Article, or which interfere with compliance or prohibit enforcement of an Award under this Article thereto, are hereby waived by the Contractors and Local Unions to whom they accrue.

(g) The fees and expenses of the Arbitrator shall be equally divided between the involved Contractor and Affiliated Union. Each party is otherwise responsible for their own legal fees and other expenses.

SECTION 5. ARBITRATION OF DISCHARGES FOR VIOLATION

A Contractor may discharge any employee violating Section 1, above, and any such employee will not be eligible thereafter for referral under this Agreement for at least 120 days, or as determined by an arbitrator.

Procedures contained in Article IX shall not be applicable to any alleged violation of this Article, with the single exception that an employee discharged for violation of Section 1, above, may have recourse to the procedures of Article IX to determine only if the employee did, in fact, violate the provisions of Section 1 of this Article, but not for the purpose of modifying the discipline imposed where a violation is found to have occurred.

ARTICLE VIII - LABOR MANAGEMENT COMMITTEE AND WORK ASSIGNMENTS

SECTION 1. SUBJECTS

The Labor Management Committee ("Committee") will meet on a regular basis to: (1) promote harmonious relations among the Construction Manager, Contractors and Unions; (2) enhance safety awareness, cost effectiveness and productivity of construction operations; (3) discuss matters relating to staffing, scheduling, safety and productivity. The Owner and Sponsor

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

shall have the right to sit in as an observer at Committee meetings.

SECTION 2. COMPOSITION

The Labor Management Committee shall be jointly chaired by a designee from each the Construction Manager(s) and the BCTC. The Committee may include representatives of the Local Unions and Contractors involved in the issues being discussed. The Labor Management Committee may conduct business through mutually agreed upon subcommittees.

SECTION 3. PRE-JOB CONFERENCES/JOB ASSIGNMENTS

All Project Work assignments shall be made by the Construction Manager and Contractors to Affiliated Unions or to unions affiliated with the Building and Construction Trades Department ("Building Trade Unions") participating in this Agreement, pursuant to the Schedule "A" Agreements and the Green Book decisions of the New York Plan. The Construction Manager(s) and Contractors shall make good faith efforts to ensure that such contracts it lets to contractors shall result in the assignment of the work involved to the Union(s) entitled to perform the work under the Schedule "A" Agreements and prior New York Plan decisions. If, however, no Green Book decisions address the assignment of the particular work involved or the respective trades are not in agreement, Construction Manager or Contractor shall assign it in conformance with New York City area practice.

If the affected Local Union disputes a work assignment it must submit the matter to the New York Plan for immediate resolution.

ARTICLE IX - GRIEVANCE AND ARBITRATION PROCEDURE

SECTION 1. PROCEDURE FOR RESOLUTION OF GRIEVANCES

Any question, dispute or claim arising out of, or involving the interpretation or application of this Agreement (other than jurisdictional disputes or alleged violations of Article VII, Section

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

1) shall be considered a grievance and shall be resolved pursuant to the exclusive procedure of the steps described below, provided in all cases that the question, dispute or claim arose during the term of this Agreement.

Step 1:

(a) When any employee covered by this Agreement feels aggrieved by a claimed violation of this Agreement, the employee shall, through the Local Union business representative or job steward, give notice of the claimed violation to the work site representative of the involved Contractor. To be timely, such notice of the grievance must be given within 7 calendar days after the act, occurrence or event giving rise to the grievance, or as soon thereafter as practical. The business representative of the Local Union or the job steward and the work site representative of the Construction Manager or the involved Contractor shall meet and endeavor to adjust the matter within 7 calendar days after timely notice has been given or as soon thereafter as practical. If they fail to resolve the matter within the prescribed period, the grieving party, may, within 7 calendar days thereafter, or as soon thereafter as practical, pursue Step 2 of the grievance procedure by serving the Construction Manager or the involved Contractor with a written copy of the grievance setting forth a description of the claimed violation, the date on which the grievance occurred, and the provisions of the Agreement alleged to have been violated. Grievances and disputes settled at Step 1 are non-precedential except as to the specific Affiliated Union, employee and Contractor directly involved.

(b) Should any party to this Agreement have a dispute (excepting jurisdictional disputes or alleged violations of Article VII, Section 1) with any other party to this Agreement and, if after conferring, a settlement is not reached within 7 calendar days, or as soon thereafter as practical, the dispute shall be reduced to writing and proceed to Step 2 in the same manner as

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

outlined in subparagraph (a) for the adjustment of employee grievances.

Step 2:

The Business Manager or designee of the involved Affiliated Union, together with Redevelopment Project representatives of the Construction Manager or the involved Contractor and BCTC, shall meet in Step 2 within 7 calendar days of service of the written grievance, or as soon thereafter as practical, to arrive at a satisfactory settlement.

Step 3:

In the event Step 2 does not result in a settlement or resolution of the grievance, the matter may be submitted for mediation to a designee of the BCTC and Contractor.

Step 4:

(a) If the grievance shall have been submitted but not resolved in Step 3, any of the participating Step 3 entities may, within 21 calendar days after the initial Step 3 meeting, or as soon thereafter as practical, submit the grievance in writing (with copies to the other participants) to Richard Adelman or Martin Scheinman, who shall act, alternately (beginning with Arbitrator Adelman), as the Arbitrator under this procedure. If either Mr. Adelman or Mr. Scheinman should become incapacitated, the BCTC, the Construction Manager, and the General Contractors shall agree on a replacement Arbitrator. The Labor Arbitration Rules of the American Arbitration Association shall govern the conduct of the arbitration hearing, at which all Step 2 participants shall be parties. The decision of the Arbitrator shall be final and binding on the Construction Manager or the involved Contractor, Local Union and employees and the fees and expenses of such arbitrations shall be borne equally by the Construction Manager or the involved Contractor and Affiliated Union.

(b) Failure of the grieving party to adhere to the time limits set forth in this Article shall

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

render the grievance null and void. These time limits may be extended only by written consent of the Construction Manager, or the involved Contractor and involved Local Union at the particular step where the extension is agreed upon. The Arbitrator shall have authority to make decisions only on the issues presented to him and shall not have the authority to change, add to, delete or modify any provision of this Agreement.

ARTICLE X - JURISDICTIONAL DISPUTES

The New York Plan for the Resolution of Jurisdictional Disputes ("New York Plan") shall apply to the settlement of all jurisdictional disputes involving all Project Work. The New York Plan shall apply to the Construction Manager, Contractors, subcontractors, the Affiliated Unions performing work on the Project, and any and all jurisdictional disputes that may arise on the project. In the event that a Contractor or Union whose members are employed on the Project is not a party to the New York Plan, for the limited purpose of this project and without implications as to any other Project, the New York Plan shall apply to the settlement of jurisdictional disputes in which it is involved.

In no event shall Construction Manager be subject to a claim for lost wages, benefits or other damages as a result of any claim of an incorrect assignment of work by any party.

SECTION 1. NO DISRUPTIONS

There will be no strikes, sympathy strikes, work stoppages, slowdowns, picketing or other disruptive activity of any kind arising out of any jurisdictional dispute. Pending the resolution of the dispute, the work shall continue uninterrupted and as assigned by Construction Manager or the Contractor. Article VII of this Agreement shall continue to apply in the event of any jurisdictional dispute.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

ARTICLE XI - WAGES AND BENEFITS

SECTION 1. CLASSIFICATION AND BASE HOURLY RATE

All employees covered by this Agreement shall be classified in accordance with the work performed and paid the base hourly wage and fringe benefit rates for those classifications as specified in the Schedule "A" Agreements, as amended during the term of this Agreement.

SECTION 2. EMPLOYEE BENEFITS

a. The Construction Manager and the Contractors agree to promptly pay contributions on behalf of all employees covered by this Agreement to those established jointly trusteed employee benefit funds set forth in the applicable Schedule "A" Agreement.

b. To the extent the law under New York City's Earned Sick Time Act (Paid Sick Leave Law) may require paid sick time, the Local Unions waive such statutory rights as the unions have provided for comprehensive employee benefits in the Schedule "A" Agreements.

c. The Construction Manager and the Contractors agree to be bound by the written terms of the legally-established jointly trusteed Trust Agreements specifying the detailed basis on which payments are to be paid into and benefits paid out of such Trust Funds, but only with regard to Project Work done under this Agreement, and only for those Employees to whom this Agreement applies and requires such benefit payments.

d. The Unions may withhold labor from a Contractor that has failed to pay wages and/or benefits as are required pursuant to the Schedule "A" Agreements and Trust Agreements for Project Work, and such withholding of labor shall not be deemed disruptive activity within the meaning of Article VII, provided that the Union or the related Funds comply with the procedure provided in this Article, Section 3 below.

SECTION 3. DELINQUENCY

a. The Local Unions and/or the related Funds shall provide written Notice of Default

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

to a Delinquent Contractor, with a copy to the Construction Manager, within sixty (60) days of the discovery of the delinquency for Project Work, but in no event more than one hundred and twenty (120) days from the date the last delinquency was incurred.

i. Default shall mean that the contractor has exceeded the due date for payment under the applicable Schedule "A" Agreement.

ii. To require Construction Manager to withhold payment to the Delinquent Contractor such Notice of Default must include the name of the Delinquent Contractor, the names of the employees employed on the Project for whom delinquencies have been incurred, the time period of the delinquency, the number of work hours delinquent and total sum of the delinquency attributable to the Project.

iii. All Notices of Default shall be sent certified mail to the Delinquent Contractor and the Construction Manager, with a copy to the BCTC.

b. The Construction Manager, in order to avoid the withholding of labor pursuant to this Article, agrees that it will, within thirty (30) days from the date of written Notice of Default, immediately stop payment on all monies due or that may become due for work performed on the Project to the Delinquent Contractor, up to the amount of wages and/or contributions alleged to be owed for Project Work performed by the Delinquent Contractor, but in no event more than is due to the Delinquent Contractor for Project Work. All such withheld funds shall be paid directly to the complaining Local Union and/or related funds to be applied against the amounts owed by the

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

defaulting Contractor for Project Work.

c. In the event the Delinquent Contractor notifies the Construction Manager that the claim of the union and/or fringe benefit fund is in dispute, and the Delinquent Contractor submits the dispute for dispute resolution pursuant to the Schedule "A" Agreement within twenty (20) days of receipt of the Notice of Default, the Construction Manager shall withhold from amounts then or thereafter becoming due and payable to the Delinquent Contractor, and hold such amounts in escrow pending resolution of the dispute pursuant to the Union's Schedule "A" Agreement, and the amount shall be paid to the party or parties ultimately determined to be entitled thereto, or held until the Delinquent Contractor and union and/or fringe benefit fund shall otherwise agree as to the disposition thereof.

d. In the event arbitration is not requested by the Delinquent Contractor within twenty (20) days of notice of default, the Construction Manager shall, within thirty days of the written notice of default, pay over to the Local Union and/or related Funds all monies withheld from the Delinquent Contractor to the extent necessary to satisfy the amounts owed by the defaulting Contractor for work performed on this Project.

e. If the Union or Fund claiming the delinquency is not paid within thirty (30) days of notice of default, or the Construction Manager fails to act in accordance with the provisions of this Article, the Local Union for which the delinquency is owed may withhold its labor from the Delinquent Contractor until the amounts claimed in the Notice of Default are paid or otherwise satisfied.

f. Payment by the Construction Manager to an employee, union and/or fringe benefit fund under this provision shall not relieve the Delinquent Contractor from responsibility for the work covered by the payment. Except as provided herein, nothing in this Agreement shall create

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

any obligation on the part of the Construction Manager to make wage and/or benefit contributions that does not otherwise exist, nor shall anything provided herein serve to create any relationship in contract or otherwise, implied or expressed, between the union/fund and/or fringe benefit and the Construction Manager that does not otherwise exist. None of the foregoing is to be construed as having created a debt on the part of the Construction Manager to the Local Union or funds for unpaid Contributions by defaulting Contractors. The Construction Manager shall not be responsible for any Contributions due in excess of payments owed by the Project Contractor for Project Work performed by the Contractor.

ARTICLE XII - HOURS OF WORK

SECTION 1. WORK WEEK AND WORKDAY

a. The standard workday shall be eight (8) hours plus a 1/2-hour unpaid lunch. The standard work week shall be Monday through Friday and consist of no more than 40 hours of work at straight time rates. The standard workday is 8 hours per day, plus 1/2-hour unpaid lunch. The intent is to maintain an eight (8) hour workday, and forty-hour work week. In accordance with Project Work needs, Construction Manager and/or Contractor will have discretion in setting the start of the workday for each Local Union for any geography of the Project. The starting times and ending times for each work crew, shift and geography of the Project may range as follows: 1st shift from 6:00 am to 8:00 am; 2nd shift from 2:00 pm to 4:00 pm; 3rd shift from 10:00 pm to 12:00 midnight and all breaks, starting and ending times will be adjusted accordingly for work outside a regular shift. Starting times for work crews among trades by contractor by geography of the Project, may only be staggered with advance approval of the Construction Manager and only where necessary for the scheduling or phasing of the job as determined by the Construction Manager. For example, Subcontractor "A" tradesman in the Green Garage building may start at 6 am. The same Subcontractor "A" tradesmen working in the Processor Building may start at 7 am. Similarly, as an

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

example, the same trades working in the Terminal may be working for Subcontractor A and asked to start at 6 am and the same trades working in the Processor Building working for Subcontractor B may be asked to start at 7 am. There shall be no staggering of starts within a crew. For the purpose of this Section, the term "crew" will be given its ordinary meaning within each trade pursuant to their Schedule "A" Agreements and shall not be applied to individual tradespersons. Notice of shift change must be at least five (5) days in advance of the change.

b. Notice of changes in starting times will be given pursuant to the terms of the Schedule "A" Agreements or, if there is no notice provision upon five days' notice to the affected trade.

c. The workday shall commence at the reporting location designated by the contractor for the commencement of the work day, i.e. the shanty, the work site, the work station, as designated by the Contractor for the trade; the location may be relocated with the progress of the job, i.e. mobile shanties, Project Site (Terminal / Roadways). There will be no parking on site. Parking will be provided at no cost to tradespersons at the Aqueduct Racetrack with shuttle buses to and from the work site.

SECTION 2. OVERTIME

Overtime shall be paid for hours worked in excess of eight (8) hours in a day, as well as in excess of 40 hours in a week respectively, and shall be paid in accordance with the applicable Schedule "A" Agreements, unless modified in a trade specific agreement, referred to herein as a Schedule "B" Agreement. There shall be no pyramiding of overtime.

SECTION 3. SHIFTS

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Shifts may be scheduled for five consecutive workdays. Second and Third shift work Monday through Friday shall be no more

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

than eight (8) hours in length and shall be paid at in accordance with Schedule "A", or as modified in a Schedule "B" Agreement. "Off-shifts" may only be scheduled pursuant to the Schedule "A "Agreements, unless modified by a Schedule "B" Agreement. Any Off Shift shall be paid in accordance with Schedule "A", unless modified in a Schedule "B".

SECTION 4. HOLIDAYS

a. There shall be nine (9) standard holidays as follows ("Holidays"):

New Year's Day

Martin Luther King Jr. Day

Presidents Day

Memorial Day

Independence Day

Labor Day

Veteran's Day

Thanksgiving Day

Christmas Day

b. It is agreed that Christmas Eve and New Year's Eve shall be treated in accordance with the applicable Schedule "A" Agreement.

c. All said holidays shall be observed on the dates designated by New York State Civil Service Law. In the absence of such designation, they shall be observed on the calendar date except those holidays which occur on Saturday or Sunday shall be observed on the following Monday.

d. Holiday pay, if any, shall be paid in accordance with the appropriate Schedule "A" Agreement; i.e. if a holiday is not worked that shall be treated as holidays not worked in the

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

appropriate Schedule "A" Agreement; and PLA holidays worked shall be paid in accordance with the holiday pay provisions, if any, in the appropriate Schedule "A" Agreement, even if not a holiday in the Schedule "A" Agreement . An Employee will receive no greater or lesser benefit than provided for under the applicable Schedule "A" Agreement as a result of the change in observance dates provided under this Agreement.

e. No other holidays will be observed on Project Work.

SECTION 5. EMERGENCY SHUT DOWN

In the event of a Storm Warning by the National Weather Service, weather conditions which in the discretion of the Construction Manager pose a significant risk of harm to the project, or in the event that public official, including the President of the United States, the Governor of the State of New York , or the Mayor of the City of New York, or any other elected officials declare a state of emergency, or declare a project shut down by a government agency, Contractors shall have sole discretion as to manning the job as the contractor sees fit.

SECTION 6. ALTERNATIVE DISPUTE RESOLUTION FOR WORKERS COMPENSATION CLAIMS

Construction Manager is reviewing the possibility of utilizing a Workers Compensation ADR program under Section 24 (2-C) of the New York Workers Compensation Law, to be used in conjunction with its JFK Terminal One Redevelopment Contractor Controlled Insurance Program (CCIP). Construction Manager agrees that it will bargain with The Unions over inclusion of a pilot Workers Compensation ADR program for use starting on a "date to later be determined". The bargaining will include negotiations concerning the pilot program site, the availability of an ADR carrier with the necessary waivers or exemptions under the statute for the particular pilot program site, and other terms and conditions for such an ADR program.

Any Contractor enrolled in the Contractor Controlled Insurance Program must be a

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

signatory to this ADR program before commencing work on the project. The Local unions may opt out of the program at their sole discretion.

ARTICLE XIII - TEMPORARY SERVICES

Temporary services, i.e. all temporary heat, climate control, water, power and light, shall only be required upon the determination of the Construction Manager, and shall only require employees to cover these services upon the specific request of the Construction Manager, and when so requested shall be assigned to the appropriate trade claiming jurisdiction. Temporary services shall be provided by the appropriate Contractors' existing employees during working hours in which a shift is scheduled for employees of this Contractor. When temporary services are requested and no shift is scheduled, temporary services will be paid for at the highest apprentice straight time wage and benefit rate unless the applicable Schedule "A" Agreement provides for a lower temporary service rate in which case such lower service rate shall apply. The Construction Manager may determine the need for temporary services requirements during non-working hours, which may be limited to one person per applicable trade where practical. There shall be no stacking of trades on temporary services. In the event a temporary system component is claimed by multiple trades, the matter shall be resolved through the New York Plan for Jurisdictional Disputes.

SECTION 1. SPONSOR'S OPERATION BUILDING SYSTEMS

The Sponsor may operate building systems without trade support upon written acceptance of each building system by the Sponsor to the Construction Manager. Once an area and supporting equipment/system(s) is accepted and turned over to the Sponsor and no longer under construction, temporary services shall no longer be claimed by Unions and shall not be subject to this Agreement. If the Sponsor so elects to have trade support to operating any building system, trade support may be limited to one person per applicable trade where practical.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

ARTICLE XIV - SAFETY, PROTECTION OF PERSON AND PROPERTY

SECTION 1. SAFETY REQUIREMENTS

Each Contractor will ensure that applicable OSHA and safety requirements are at all times observed and maintained on the Project Work site and the employees and the Unions agree to cooperate fully with these efforts consistent with their rights and obligations under the law. The parties will advocate for strict compliance with applicable safety standards, including but not limited to the annexed Safety Code in Exhibit 3. The parties agree to adopt and incorporate the Drug and Alcohol Testing Policy for JFK Terminal One Redevelopment, Redesign and Build annexed hereto as Exhibit 4.

SECTION 2. CONTRACTOR RULES

Employees covered by this Agreement shall at all times be bound by the reasonable safety, security and visitor rules as established by the Construction Manager, Sponsor or Owner. Such rules will be posted in conspicuous places throughout Project Work sites.

Any and all security measures and access cards as required by the Owner, Sponsor or Construction Manager will be complied with by all Contractors, Union and craft employees. Compliance with this Section shall be subject to arbitration under this Agreement.

SECTION 3. INSPECTIONS

The Construction Manager, Sponsor or Owner shall have the right, exercised in its sole discretion, to inspect incoming and outgoing shipments or deliveries, or any vehicle entering or leaving the Project Site.

ARTICLE XV - NO DISCRIMINATION

SECTION 1. COOPERATIVE EFFORTS

The Construction Manager, the Contractors and Unions agree that they will not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

orientation, national origin, marital status, age or any other status protected by applicable law, in any manner prohibited by applicable law or regulations.

SECTION 2. LANGUAGE OF AGREEMENT

The use of the masculine or feminine gender in this Agreement shall be construed as including both genders.

ARTICLE XVI - SAVINGS AND SEPARABILITY

SECTION 1. THIS AGREEMENT

In the event that the application of any provision of this Agreement is enjoined, on either an interlocutory or permanent basis, or is otherwise determined to be in violation of law, the provision involved (and/or its application to a particular part of the Project, as necessary) shall be rendered, temporarily or permanently, null and void, but where practicable the remainder of the Agreement shall remain in full force and effect to the extent allowed by law. In the event that a court of competent jurisdiction finds any portion of the Agreement to be invalid, the parties will immediately enter into negotiations concerning the substance affected by such decision for the purpose of achieving conformity with the court determination and the intent of the parties hereto for contracts to be let in the future.

SECTION 2. NON-WAIVER

A. Nothing in this Agreement is intended to be or shall be construed as a waiver by any Affiliated Union(s), Construction Manager or Contractor of any prevailing wage determination or schedule that is applicable to their trade for any public work that has been or may be performed in the future on any work outside the scope of this Agreement.

B. Nothing contained in this Agreement is intended to be or shall be construed as a waiver by any signatory Affiliated Union(s), Construction Manager or Contractor of any more

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

favorable term or condition of employment that may be contained in any collective bargaining agreement applicable to work outside the scope of this Agreement.

ARTICLE XVII - DURATION

SECTION 1. DURATION

This PLA shall apply to Project Work commencing after execution of this Agreement, and shall thereafter remain in effect for the duration of the covered work performed or December 31, 2026, whichever date is earlier on the Project until such work is "turned over" as defined, in Article III. It is further understood that this Agreement, together with all of its provisions, shall remain in effect for all Project Work bid and awarded, but not completed, by December 31, 2026. If the Project Work described above is not awarded by December 31, 2026, this Agreement may be extended by mutual agreement of the parties.

SECTION 2. EXTENSION OF AREA CONTRACTS

1. The Schedule "A" Agreements shall continue in full force and effect until the Contractor and/or Union parties to the Schedule "A" Agreements notify the Contractors in writing of the mutually agreed upon changes in provisions of such agreements which are applicable to the Project, and their effective dates.

2. It is agreed that any provisions negotiated into the Schedule "A" Agreements will not apply to work on this Project if such provisions are less favorable to this Project than those uniformly required of contractors for construction work normally covered by those agreements. Any disputes concerning this Section shall be subject exclusively to the Arbitration provisions of this Agreement.

ARTICLE XVIII - HELMETS TO HARDHATS

SECTION 1. VETERANS

The Contractors and the Affiliated Unions recognize a desire to facilitate the entry into the

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

building and construction trades of veterans who are interested in careers in the building and construction industry. Construction Manager, the Contractors and Local Unions agree to utilize the New York City Helmets to Hardhats Program to serve as a resource for preliminary orientation, assessment of construction aptitude, referral to apprenticeship projects or hiring halls, counseling and mentoring, support network, employment opportunities and other needs as identified by the parties.

SECTION 2. PROGRAM COORDINATION

Construction Manager, the Affiliated Unions and Contractors agree to coordinate with the Program to create and maintain an integrated database of veterans interested in working on this Project and of apprenticeship and employment opportunities for this Project. To the extent permitted by law, the Unions will give credit to such veterans for bona fide, provable past-experience.

ARTICLE XIX - MISCELLANEOUS

SECTION 1. NEW YORK CITY SICK LEAVE WAIVER

The Agreement will act as a waiver to paid sick leave and personal leave laws.

SECTION 2. MUTUAL DRAFTING

This Agreement is the mutual product of the parties hereto, and each provision hereof has been subject to the mutual consultation, negotiation and agreement of each of the parties, and shall not be construed for or against any party hereto.

SECTION 3. COUNTERPARTS AND FACSIMILE TRANSMISSION

This Agreement may be executed in any number of counterparts and any party hereto may execute any such counterpart, each of which when executed and delivered shall be deemed to be an original, and all of which counterparts taken together shall constitute but one and the same

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

instrument. Any signatures delivered by a party by facsimile transmission shall be deemed an original signature hereto.

FOR BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY

BY: _____ Date: 1/30/2020
Gary LaBarbera, President

BY: _____ Date: January 27, 2020
Allan M. Paull – Senior Vice President/
Tishman Construction Corporation of New York D/B/A/
AECOM|Tishman

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Joseph Azzopardi, Business Manager - Painters District Council 9

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/18/19
Date

Joseph Azzopardi
Print name

BM/ST - DC9
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Joseph Azzopardi, Business Manager - Painters, Decorators & Wallcoverers District Council 9

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/18/19
Date

Joseph Azzopardi
Print name

BM/ST-DC9
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Joseph Azzopardi, Business Manager - Metal Polishers District Council 9

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/18/19
Date

Joseph Azzopardi
Print name

BM/ST-DC9
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Angelo Angelone, Business Manager - Concrete Workers District Council No. 16

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/20/2019.
Date

Angelo Angelone
Print name

President, Business Manager -
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Joseph Geiger, Executive Secretary Treasurer – N.Y.C. and Vicinity District Council of Carpenters

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

11/24/2020
Date

JOSEPH GEIGER
Print name

E-S-T
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: James P. Mahoney, President - Iron Workers District Council

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

1-27-2020
Date

JAMES P. MAHONEY
Print name

PRESIDENT, NYS IRON WORKERS DISTRICT COUNCIL.
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Jeremiah Sullivan, Business Manager – Bricklayers and Allied Crafts, Local 1

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Developer.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Jeremiah Sullivan
Signature

12/18/19
Date

Jeremiah Sullivan
Print name

President BAC Local 1 NY
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Lenny Legotte, Business Manager – Elevator Constructors No. 1

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

1/21/2020
Date

Lenny Legotte
Print name

Pres/BM
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Michael Apuzzo, Business Manager - Plumbers Local No. 1

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Michael Apuzzo — Signature

1/21/2020 — Date

Michael Apuzzo — Print name

Business Manager Plumbers Local #7 — Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Christopher Erikson, Business Manager – Electrical Workers Local No. 3

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Christopher Erikson
Signature

1/13/2020
Date

CHRISTOPHER ERIKSON
Print name

BUSINESS MANAGER LOCAL 3 IBEW
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

FOR THE LOCAL UNIONS:

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Steve Ludwigson, Business Manager – International Brotherhood of Boilermakers, Iron Ship Builders, Blacksmiths, Forgers and Helpers, AFL-CIO, Local Lodge No. 5

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/23/19
Date

STEVEN LUDWIGSON
Print name

BM/ST BOILERMAKERS LOCAL 5
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: William A. Hill, President - Tile, Marble & Terrazzo B.A.C. Local Union No. 7

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

William Hill — Signature

12/20/19 — Date

William Hill — Print name

President — Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Nick Siciliano, Business Manager - Roofers & Waterproofers Local 8

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

1/2/20
Date

Nick Siciliano
Print name

Business Manager Local 8
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: John Jovic, Business Manager - Heat & Frost Insulators Local Union No. 12

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

1/3/2020
Date

John Jovic
Print name

Business Manager Local 12
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Jaime Soto, Business Manager - Heat & Frost Insulators Local Union No. 12A

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

01/03/20.
Date

Jaime Soto
Print name

Business Manager/Secretary Treasurer Local 12A
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Eric Meslin, President - Sheet Metal Workers Local No. 28

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Eric Meslin
Signature

12/20/19
Date

Eric Meslin
Print name

President and Business Manager Sheet Metal Workers' Local 28
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Edison Severino, Business Manager Laborers Local No. 78
Asbestos & Lead Abatement

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Pawel Gruchacz
Signature

01/10/2020
Date

PAWEL GRUCHACZ
Print name

DEPUTY - SUPERVISOR
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Mike Prohaska, Business Manager – Laborers Local Union No. 79

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Developer.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Michael Prohaska — 12/30/19

Signature — Date

Michael Prohaska

Print name

Business Manager / Local 79.

Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Dante Dano, President - Sheet Metal Workers Local No. 137

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/30/2019
Date

Dante Dano, Jr. "Signs & Graphics"
Print name

President/ Business Manager/ SMART Local 137
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: William Hayes, Business Manager - Derrickmen and Riggers Local Union No. 197

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

William D Hayes
Signature

1/30/20
Date

William Hayes
Print name

TST / Business Manager Local 197
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Dale Alleyn, International Representative - Plasterers Local Union No. 262

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12.18.2019
Date

Dale Alleyne
Print name

Business Manager LU 262
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Thomas Gesualdi, President - Teamsters Local Union No. 282

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

1/2/20
Date

Thomas Gesualdi
Print name

President, Local 282
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Matthew Chartrand, Business Manager - Iron Workers Local No. 361

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

1-28-20
Date

Matthew Chartrand
Print name

BM Local 361
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Peter Myers, Business Manager - Ornamental Iron Workers Local No. 580

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Peter Myers
Signature

1/27/2020
Date

PETER MYERS
Print name

BUSINESS MANAGER/FST – LOCAL 580
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Scott Roche, Business Agent at Large – Steamfitters Local Union No. 638

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature Scott Roche — Date 1/23/2020

Print name SCOTT Roche

Title and Local Business Agent at LARGE

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Joseph D'Amato, Business Manager - Laborers Local No. 731 Excavators

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

1-3-2020
Date

JOSEPH D'AMATO
Print name

B.M. LOCAL 731
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Gino Castignoli, Business Manager - Cement Masons No. 780

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12-18-19
Date

Gino Castignoli
Print name

B.M. Local 780
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Joseph Azzopardi, Business Manager - Painters Structural Steel No. 806

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/18/19
Date

Joseph Azzopardi
Print name

BM/ST-DC9
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Sean Campbell, President - Teamsters Local No. 813 Private Sanitation

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Sean T. Campbell
Signature

12/19/19
Date

Sean T. Campbell
Print name

President Local 813 I.B.T.
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Keith Loscalzo, Business Manager - Laborers Local 1010 Pavers and Road Builders District Council

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Keith Loscalzo
Signature

12/30/19
Date

KEITH J. LOSCALZO
Print name

BUS MGR: LABORERS LOCAL 1010
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Joseph Azzopardi, Business Agent at Large - Glaziers Local Union No. 1087 District Council 9

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/18/19
Date

Joseph Azzopardi
Print name

BM/ST - DC9
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

JFK TERMINAL ONE REDEVELOPMENT PROJECT

BUILDING AND CONSTRUCTION TRADES COUNCIL OF GREATER NEW YORK AND VICINITY AFFILIATE EXECUTION PAGE FOR PROJECT LABOR AGREEMENT

TO: Joseph Azzopardi, Business Manager - Drywall Tapers 1974 District Council 9

FROM: Gary LaBarbera, President – Building and Construction Trades Council of Greater New York and Vicinity.

The Executive Board of the Building and Construction Trades Council of Greater New York has approved the Project Labor Agreement enclosed herewith. Additionally, the Building Trades Department of the AFL-CIO has approved the same. This Project Labor Agreement has also been executed by the Construction Manager/General Contractor/Owner-Sponsor.

Pursuant to the Executive Board and BCTD approval of this PLA, please execute below, which shall constitute your agreement with the PLA and make the PLA valid, binding and enforceable.

Acknowledged and agreed to by:

Signature

12/18/19
Date

Joseph Azzopardi
Print name

BM/ST - DC 9
Title and Local

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "A" - CBAs

Union	Current Agreement w/
Architectural and Ornamental Iron Workers Local Union 580, AFL-CIO	Allied Building Metal Industries, Inc.
Building, Concrete, Excavating & Common Laborers Local 731	Independent
Building, Concrete, Excavating & Common Laborers Local 731	Members of the General Contractors Association of New York, Inc.
Bricklayers Local 1 of the International Union of Bricklayers and Allied Craftworkers	Independent
District Council No. 9, I.U.P.A.T Glaziers Local 1087	Window and Plate Glass Dealers Association
Drywall Tapers and Painters Local 1974, affiliated with International Union of Painters & Allied Trades and Drywall Taping Contractor's Association & Association of Wall-Ceiling & Carpentry Industries NY, Inc.	Independent
Enterprise Association of Steamfitters and Apprentices Local 638	Mechanical Contractors Association of NY, Inc.
Enterprise Association of Steamfitters and Apprentices Local 638	Independent
Elevator Constructors Local 1 of NY and NJ	ThyssenKrupp Elevator Corporation
Elevator Constructors Local 1 of NY and NJ	Independent
Highway Road and Street Laborers Local Union 1010 of the District Council of Pavers and Road Builders of the Laborers' International Union of North America AFL-CIO	Independent
Highway Road and Street Laborers Local Union 1010 of the District Council of Pavers and Road Builders of the Laborers' International Union of North America AFL-CIO	Member of the General Contractors Association of New York, Inc.
International Association of Heat and Frost Insulators and Allied Workers Local No. 12 of New York City	Independent
International Association of Heat and Frost Insulators and Allied Workers Local No. 12 of New York City	The Insulation Contractors Association of New York City, Inc.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

International Association of Heat and Frost Insulators and Allied Workers Local No. 12A of New York City	Independent
International Association of Heat and Frost Insulators and Allied Workers Local No. 12A of New York City	Environmental Contractors Association, Inc.
International Brotherhood of Boilermakers, Iron Ship Builders, Blacksmiths, Forgers and Helpers, AFL-CIO, Local Lodge No. 5	Boilermakers Association of Greater New York
Local Union No. 3 International Brotherhood of Electrical Workers, AFL-CIO	New York Electrical Contractors Association
International Brotherhood of Teamsters, Local 282, High Rise Contract	Building Contractors Association & Independents
Local 46 Metallic Lathers Union and Reinforcing Iron Workers of NY and Vicinity of the International Association of Bridge, Structural, Ornamental and Reinforcing Iron Workers	Cement League
Local 46 Metallic Lathers Union and Reinforcing Iron Workers of NY and Vicinity of the International Association of Bridge, Structural, Ornamental and Reinforcing Iron Workers	Independent
Local 8 Roofers, Waterproofers & Allied Workers	Roofing and Waterproofing Contractors Association of New York and Vicinity
Local Union 1 of the United Association of Journeymen and Apprentices of the Pipe Fitting Industry of the United States and Canada	Association of Contracting Plumbers of the City of New York
Local Union Number 40 & 361 of Bridge, Structural Ornamental and Reinforcing Iron Workers AFL-CIO	Independent
Operative Plasterers' and Cement Masons' International Association Local No. 262	Independent
Painters and Allied Trades AFL-CIO, District Council No. 9 (Painting and Protective Coatings CBA)	Independent
Painters and Allied Trades AFL-CIO, District Council No. 9 (Painting and Protective Coatings CBA)	The Association of Master Painters & Decorators of NY, Inc. and The Association of Wall, Ceiling & Carpentry Industries of NY, Inc. and The Window and Plate Glass Dealers Association
Sheet Metal Workers' International Association, Local 28	Sheet Metal & Air Conditioning Contractors Association of New York City, Inc.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Sheet Metal Workers' International Association, Local 137	The Greater New York Sign Association
Structural Steel and Bridge Painters Local 806, DC 9 International Union of Painters and Allied Trades, AFL-CIO	New York Structural Steel Painting Contractors Association
Teamsters Local 813	Independent
Teamsters Local 813	IESI NY Corporation
The Cement Masons' Union, Local 780	Cement League
The District Council of Cement and Concrete Workers (comprised of Local 6A; Local 18A and Local 20)	Cement League
The District Council of Cement and Concrete Workers (comprised of Local 6A; Local 18A and Local 20)	Independent
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Heavy Carpenters	GCA
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Dockbuilders Local No. 1556	Concrete Contractors of NY
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Dockbuilders Local 1556	Independent
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Millwright Local 740	Independent
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Timbermen Local 1556	Independent
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Timbermen Local 1556	GCA
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Heavy Carpenters	Independent

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Carpenters	Manufacturing Woodworkers Association of Greater New York Incorporated
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America	The Hoisting Trade Association of New York, Inc.
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America	The Test Boring Association
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America	Building Contractors Association
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America	The Association of Wall-Ceiling & Carpentry Industries of New York, Incorporated
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners	The Cement League
The District Council of NYC and Vicinity of the United Brotherhood of Carpenters and Joiners of America	New York City Millwright Association
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners	Greater New York Floor Covering Association
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Carpenters	Association of Architectural Metal & Glass
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Carpenters	Concrete Contractors of NY
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Building Construction Carpenters	Independent
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Local 2287	Independent
The District Council of New York City and Vicinity of the United Brotherhood of Carpenters and Joiners of America for Shop Carpenters	Independent

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

The Tile Setters and Tile Finishers Union of New York and New Jersey, Local 7 of the International Bricklayers and Allied Craftworkers	The Greater New York and New Jersey Contractors Association
United Derrickmen & Riggers Association, Local 197 of NY, LI, Westchester & Vicinity	Contracting Stonesetters Association Inc.
United Derrickmen & Riggers Association Local 197 of NY, LI, Westchester and Vicinity	Building Stone and Pre-cast Contractors Association

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" – TRADE ADDENDA

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" – LIST OF TRADE SPECIFIC PLA TERM SHEETS

Painters District Council 9	3 Pages
Cement and Concrete Workers District Council 16	3 Pages
Mason Tenders District Council Laborers Locals 78 & 79	3 Pages
New York City District Council of Carpenters and Millwrights Local 740	4 Pages
Bricklayers, Stonesetters, and Allied Craft Workers BAC Local 1	3 Pages
Elevator Constructor Local 1	2 Pages
Plumbers Local 1	4 Pages
Electrical Workers IBEW Local 3	5 Pages
Tile, Marble, Terrazzo Workers Local 7	3 Pages
Roofers Local 8	3 Pages
Heat and Frost Insulators Local 12	3 Pages
Asbestos Workers Local 12A	2 Pages
Sheetmetal Workers Local 28	3 Pages
Ironworkers Locals 46, 197, 361, & 580	3 Pages
Sign Manufacturers and Erectors Local 137	2 Pages
Plasterers Local 262	3 Pages
Teamsters Local 282	2 Pages
Steamfitter Local 638	3 Pages
Excavating Laborers Local 731	3 Pages
Cement Masons Local 780	3 Pages
Structural Steel and Bridge Painters Local 806	3 Pages
Pavers and Road Builders Local 1010	3 Pages
Glaziers Local 1087	3 Pages
Tapers Local 1974	3 Pages

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

PAINTERS DISTRICT COUNCIL 9

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

PAINTERS DISTRICT COUNCIL 9

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For District Council No. 9, IUPAT

By: _____ Date: 12/18/19

Print Name: Joe Azzopardi/Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

CONCRETE WORKERS DISTRICT COUNCIL NO. 16

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

CONCRETE WORKERS DISTRICT COUNCIL NO. 16

5. **Saturday Make-up Days**
A straight time make-up day on Saturday may only be scheduled where an entire week day is lost due to weather or Governmental Actions in a calendar week. This provision shall apply to the entire crew and not individuals.

For Tishman Construction Corporation of New York D/B/A AECOM|Tishman

By: _____ Date: January 10, 2020

Print Name: Allan M. Paull/Senior Vice President

For Concrete Workers District Council No. 16

By: _____ Date: January 10, 2020

Print Name: Angelo Angelone/President

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

MASON TENDERS DISTRICT COUNCIL LABORERS LOCAL 78 & 79

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. Off-Site Fabrication
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

MASON TENDERS DISTRICT COUNCIL
LABORERS LOCAL 78 & 79

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. Shift Work

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

MASON TENDERS DISTRICT COUNCIL
LABORERS LOCAL 78 & 79

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled in accordance to the applicable Schedule "A"

For AECOM| Tishman

By: _____ Date: January 10, 2020

Print Name: Allan M. Paull/Senior Vice President

For Mason Tenders District Council

By: _____ Date: 1/10/2020

Print Name: Bobby Bonanza/Business Manager

Tishman Construction Corporation of New York D/B/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR

NEW YORK CITY & VICINITY DISTRICT COUNCIL OF CARPENTERS

The parties to this addendum agree that the terms and conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Local Signatory Manufacturers**
In order to encourage and promote the use of local signatory manufacturers, the Construction Manager shall use commercially reasonable efforts to utilize manufacturers that are either signatory to the New York City District Council of Carpenters or alternative manufacturers that pay generally comparable wages and benefits as set forth in the NYCDCC manufacturer association agreements as adjusted by this PLA. All wage and benefits adjustments and apprenticeship ratios as set forth in the PLA shall be available to local signatory manufacturers. Notwithstanding the above, both NYCDCC and the Construction Manager agree that neither side shall take steps to enforce any CBA or PLA provisions that are in violation of the "Hot Cargo" provisions of the National Labor Relations Act that are in force at the time this agreement is fully signed.

2. **MWBE**
Notwithstanding the terms and provisions of Article IV, Section 2(e) of the PLA, there shall be an overall cap of $20,000,000 and a per subcontract value cap of $5,000,000 for "Carpentry Work" (as defined below) in relation to subcontracted M/WBE firms that shall not be subject to the terms and provisions of the PLA and as more fully set forth in Article IV, Section 2(e) of the PLA. "Carpentry Work" shall mean all the crafts represented by the District Council with the applicable multiemployer or Independent CBAs being referenced in Schedule "A" to the PLA and those crafts are for interior carpentry, heavy carpentry, timbermen, dockbuilders, core drillers, floor coverers, mlllwrights, cabinetry, and furniture installers.

3. **Prevailing Wage**
The parties to this Schedule "B" Trade Appendix acknowledge that all Carpentry Work Employers for the project are required to pay or provide, to their respective workmen, laborers and mechanics at least the NYS prevailing rate of wage and supplements. The Construction Manager will insure that non-affiliated M/WBE Contractors will work under the same economic conditions as the Schedule "A" CBA's.

4. **Smart Construction Equipment and Technologies**
The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

93

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR

5. **Modular Components**

In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment, or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

6. **Off-Site Fabrication**

The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:

a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.

b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.

c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.

d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

94

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR

Notwithstanding any provisions of the PLA, the Schedule "A" CBAs, or this Schedule B, the parties agree that all prefabricated metal framing and drywall components (pre-formed wall, soffits, etc.) shall be fabricated onsite by members of the New York City District Council of Carpenters under the Project Labor Agreement. The parties agree there will be no limitation on the means and methods of onsite fabrication, including use of a PanelMax Machine to prefabricate components onsite.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

7. **Shift Work**

Notwithstanding any provisions of the PLA or the Schedule "A" CBAs, the Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.

In order to attract qualified workers, an employer may pay a higher shift rate premium.

8. **Saturday Make-up Days**

Saturday make-up days will be as per the applicable Schedule A CBA.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR

9. **Local Union 740 Millwrights**

Notwithstanding any provisions of the PLA, the parties to this addendum agree to the following term and condition for Millwrights as set forth herein will apply:

a. No limitation on offsite prefabrication of Baggage Handling and Conveyor Systems. Delivery to site with pre-manufactured sections and some pre-installed parts including conveyors will be allowed.

b. The installation, start-up, commissioning, and testing of all Baggage Handling and Conveyor Systems will be performed by the Millwrights and shall be consistent with industry practice.

c. Parking for Millwrights as per the applicable Schedule A Millwright CBA.

d. Shift work for Millwrights as per the applicable Schedule A Millwright CBA.

For Tishman Construction Corporation of New York D/B/A AECOM|Tishman

By: _____ Date: January 10, 2020

Print Name: Allan M. Paull/Senior Vice President

For New York City & Vicinity District Council of Carpenters

By: _____ Date: 1/10/2020

Print Name: Joseph Geiger/Executive Secretary-Treasurer

96

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

INTERNATIONAL UNION OF BRICKLAYERS AND ALLIED CRAFT WORKERS, LOCAL UNION NO. 1

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

INTERNATIONAL UNION OF BRICKLAYERS AND ALLIED CRAFT WORKERS, LOCAL UNION NO. 1

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For International Union of Bricklayers and Allied Craft Workers, Local Union No. 1

By: _____ Date: 12/9/19

Print Name: Jeremiah Sullivan/President

Tishman Construction Corporation of New York D/B/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

INTERNATIONAL UNION ELEVATOR CONSTRUCTORS LOCAL NO. 1

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
   In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
   The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**
   The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

INTERNATIONAL UNION ELEVATOR CONSTRUCTORS LOCAL NO. 1

For Tishman Construction Corporation of New York D/B/A AECOM|Tishman

By: _____ Date: January 20, 2020

Print Name: Allan M. Paull/Senior Vice President

For International Union Elevator Constructors Local No. 1

By: _____ Date: 1/20/2020

Print Name: Lenny Legotte/President-Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

PLUMBERS LOCAL 1

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Temporary Services**
   a. No standby coverage requirements for wet trades, unless requested by Sponsor, Construction Manager, or Contractor.
   b. Temporary services and manning thereof, shall only be required in accordance with the applicable Schedule "A" Agreement, if requested and used by the Sponsor, Construction Manager, and Contractor. When requested and used, manning shall be provided by the employees represented by the appropriate Local Union subject to the New York Plan. Once an area and supporting equipment/systems(s) is Accepted & Turned Over to the Sponsor or Construction Manager, the paperwork shall be provided to the Union. Thereafter, temporary services shall no longer be claimed by the Union and shall not be subject to this Agreement.

2. **Modular Components**
   In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.
   a. "All-in-one" bathroom prefabricated units consisting of mirror, faucet, sink, and paper tower dispenser combined into a single floor-to-ceiling plug-and-play panel will be acceptable. The unloading and handling, installation of the Units will be done by Local 1. All piping & connections behind the units shall be installed by Local 1.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

PLUMBERS LOCAL 1

3. **Off-Site Fabrication**

The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:

a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project, including all rigging of the toilet rooms into place.

b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.

c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.

d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication. Where combined multi-trade racks or risers are used, both hangers and installation of racks or risers will be performed by a composite crew of the trades, such as Local 1 Plumbers, Local 3 Electricians, Local 28 Sheetmetal Workers, and Local 638 Steamfitters using such combined multi-trade racks or risers, including the rigging of racks or risers.

4. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

PLUMBERS LOCAL 1

5. **Shift Work**
Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift. Shifts shall be a minimum of (5) Five consecutive work days.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.
e. No overlapping of shifts except Off-Shift.

6. **Saturday Make-up Days**
A straight time make-up day on Saturday may only be scheduled where an entire weekday is lost due to weather only on "State of Emergency" or Governmental Actions in a calendar week. This provision shall apply to the entire crew and not individuals..

7. **Utilities**
Installation of water mains, force mains, gas mains, and water hydrants on site inside the project lease lines shall be performed by Local 1 Plumbers. Earthwork for utilities will be performed by other BCTC trades. This also includes every aspect of Jet Fuel Piping which includes all cutting/capping and evacuation of existing lines.

8. **Rainwater Harvesting Systems**
Storage tanks, every aspect of piping valves, pumps and dye tanks.

Tishman Construction Corporation of New York D/B/A
For AECOM|Tishman

By: _____ Date: January 21, 2020

Print Name: Allan M. Paull/Senior Vice President

104

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

For Plumbers Local No. 1

By: Michael Apuzzo Date: 1/21/2020

Print Name: Michael Apuzzo/Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

ELECTRICIANS LOCAL 3

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Temporary Services**
   Temporary services and manning thereof, shall only be required in accordance with the applicable Schedule "A" Agreement, if requested and used by the Construction Manager. When requested and used, manning shall be provided by the employees represented by the appropriate Local Union subject to the New York Plan. Once an area and supporting equipment system(s) (which may or may not be located outside the turnover area footprint) is accepted and turned over to Sponsor, temporary services shall no longer by claimed ty the Unions and shall not be subject to this Agreement.
   a. For Clean-up-operations only on second or third shift or on weekend shifts there shall be no temporary standby coverage for power and/or lighting unless requested by the Construction Manager. The applicable Schedule A shall apply for temporary power and lighting under all other circumstances.
   b. For painting operations only on second or third shift or on weekend shifts with Five (5) or less painters there shall be no temporary standby coverage for power and/or lighting unless requested by the Construction Manager. It is understood that the five (5) painter threshold is per geographical building sub-project. Meaning each building sub-project can have up to five painters with no temporary standby coverage applying (i.e. JFK Terminal Process Building, East & West Concourse, Connection to Terminal T4, Roadways, etc.) The applicable Schedule A shall apply for Temporary power and lighting under all other circumstances.

2. **Telephone and Data**
   All cable and/or fiber installation connecting to tele/data racks and installation of telephone/data racks shall be by Local 3 tradesmen.

3. **Apprentices**
   Electrical trade work crew ratio will be 1 apprentice to every 3 journeyman. Davis Bacon rules shall apply and take precedent.

4. **Airport Specific and Other Specialty Technical Systems**
   There shall be no claim by Local 3 to programming and software integration of Airport Specific and other Specialty Technical Systems being performed by the Manufacture's specialty technicians including but not limited to the following types of systems:
   a. Passenger Boarding Bridges (PBB)
   b. 400Hz power and Pre-Conditioned Air (systems come with PBB)
   c. Visual Guidance Docking System (VGDS)
   d. Airport Operational Data Base (AODB)
   e. Resource Management System (RMS)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

ELECTRICIANS LOCAL 3

f. Enterprise Service Bus (ESB)
g. Electronic Visual Display System (EVIDS)
h. Flight identification Display System (FIDS)
i. Baggage identification System (BIDS)
j. Ramp information Display System (RIDS)
k. Gate Information Display System (GIDS)
l. Common Use Passenger Processing System (CUPPS)
m. Local Departure Control System (LDC)
n. Baggage Management and Reconciliation System (BMRS)
o. Common Use Self Service Kiosks (CUSSK)
p. Distributed Antenna System (DAS) Systems

Commissioning and validation shall be as per the applicable Schedule A.

5. **System Programing and Software Integration**

There shall be no claim by Local 3 to programming and software integration of the following systems. Commissioning and validation shall be as per the applicable Schedule A.

a. Communication Passive Optical Fiber Network (PON).
b. Telephone System (VOIP)
c. Public Sector Life Safety Radio Cabinets including Radio(PSLS/TerminalOperator)/Phone(Cell/VOIP/Ring-down/Emergency)/ Wi-Fi Systems/Public Address System Cabinets and Racks.
d. Airport Management System components and equipment.
e. Baggage Handling and Conveyor Systems.
f. Security Screening system components and equipment, x-ray systems, conveyor systems.
g. Specialized component ticketing kiosks.
h. Media walls, and various theming components.

6. **FAA Systems**

Relocation of existing critical FAA Airport Specific Systems will be supervised by FAA and system specialist technicians. There shall be no claim by Local 3 to programming and software integration of these systems. Commissioning and validation shall be as per the applicable Schedule A.

Systems include but may not be limited to the following:

a. Automatic Dependent Surveillance – Broadcast
b. ASD-B and Airport Surface Detection Equipment, Model X (ASDE-X)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

ELECTRICIANS LOCAL 3

7. **Modular Components**

In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

a. No limitation on offsite prefabrication of Public Sector Life Safety Radio Cabinets including Radio(PSLS/TerminalOperator)/Phone(Cell/VOIP/Ring-down/Emergency)/ Wi-Fi Systems/Public Address System Cabinets and Racks.
b. No limitation on offsite prefabrication of Airport Management System components and equipment.
c. No limitation on offsite prefabrication and prewiring of millwork and casework components and factory installed fixtures and/or catalog cut fixtures.
d. No limitation on offsite prefabrication of and prewiring of FF&E (seating, consoles, podiums, tables, etc.).
e. No limitation on offsite prefabrication and prewiring of baggage Handling and Conveyor Systems. Delivery to site with pre-manufactured sections and some pre-installed parts including conveyors.
f. No limitation on offsite prefabrication of Security Screening system components and equipment, x-ray systems, conveyor systems.
g. No limitation on offsite prefabrication specialized component ticketing kiosks.
h. No limitation on offsite prefabrication media walls, and various theming components.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

ELECTRICIANS LOCAL 3

8. **Off-Site Fabrication**

The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:

a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.

b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.

c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.

d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

f. No restrictions of offsite prefabrication of temporary electrical distribution systems.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

9. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

ELECTRICIANS LOCAL 3

10. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.

b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.

c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.

d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

11. **Saturday Make-up Days**

Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 6, 2020

Print Name: Allan M. Paull/Senior Vice President

For International Brotherhood of Electrical Workers Local 3

By: _____ Date: 1/13/2020*

Print Name: Christopher Erikson/Business Manager

For Saturday Make-up Days: Only to be used for weather or disaster and not for worker sickness.

Tishman Construction Corporation of New York D/B/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

TILE, MARBLE & TERRAZZO WORKERS LOCAL 7

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

TILE, MARBLE & TERRAZZO WORKERS LOCAL 7

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For Tile, Marble & Terrazzo Workers Local No. 7

By: William Hill Date: 12/5/19

Print Name: William Hill/President

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

ROOFERS & WATERPROOFERS LOCAL 8

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

ROOFERS & WATERPROOFERS LOCAL 8

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For Roofers Local No. 8

By: _____ Date: 12/12/2019

Print Name: Nick Siciliano/Business Manager-FST

Tishman Construction Corporation of New York D/B/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

INTERNATIONAL ASSOCIATION OF HEAT & FROST INSULATORS & ALLIED WORKERS LOCAL NO. 12

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City. Any offsite insulation work will be performed by Local 12.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication. Any offsite insulation work will be performed by Local 12.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

INTERNATIONAL ASSOCIATION OF HEAT & FROST INSULATORS & ALLIED WORKERS LOCAL NO. 12

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled due to job shutdown cause by weather or governmental actions provided total hours worked per employee in a calendar week does not exceed 40 hours.

Tishman Construction Corporation of New York D/B/A
For AECOM|Tishman

By: _____ Date: January 07, 2020

Print Name: Allan M. Paull/Senior Vice President

For International Association of Heat & Frost Insulators & Allied Workers Local No. 12

By: _____ Date: 1/7/2020

Print Name: John Jovic/Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

INTERNATIONAL ASSOCIATION OF HEAT & FROST INSULATORS & ALLIED WORKERS LOCAL NO. 12A – ASBESTOS WORKERS

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Smart Construction Equipment and Technologies**
   The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

2. **Shift Work**
   Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.
   a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
   b. Second Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
   c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
   d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

INTERNATIONAL ASSOCIATION OF HEAT & FROST INSULATORS & ALLIED WORKERS LOCAL NO. 12A– ASBESTOS WORKERS

3. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled due to job shutdown cause by weather or governmental actions provided total hours worked per employee in a calendar week does not exceed 40 hours.

Tishman Construction Corporation of New York D/B/A
For AECOM|Tishman

By: _____ Date: JANUARY 07, 2020

Print Name: Allan M. Paull/Senior Vice President

For International Association of Heat & Frost Insulators & Allied Workers Local No. 12A

By: _____ Date: 1/7/2020

Print Name: Jamie Soto/Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

SHEET METAL WORKERS LOCAL 28

Notwithstanding any provisions of the PLA, the parties to this addendum agree that the terms and conditions set forth herein will apply:

1. **Air Handling Units**
Air-handling units In excess of 50,000 C.F.M.'s: Air-handling units up to a maximum of one hundred thousand (100,000) C.F.M.'s shall be permitted on Airside projects and for the rooftop units distributing air in a building up to six (6) stories. Rooftops units In excess of 100,000 C.F.M's must receive Union approval pending consideration of the work.

2. **Temporary Services**
Temporary services and manning thereof, shall only be required in accordance with the applicable Schedule "A" Agreement, if requested and used by the Construction Manager. When requested and used, manning shall be provided by the employees represented by the appropriate Local Union subject to the New York Plan. Once an area and supporting equipment/systems(s) (which may or may not be located outside the turnover area footprint) is accepted and turned over to the Sponsor, temporary services shall no longer be claimed by the Union and shall not be subject to this Agreement.

3. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City. The Construction Manager will meet with Local 28 prior to any modularization of components which must be agreed to in advance by Local 28.
   a. No limitation on offsite prefabrication millwork and casework components. (Note "casework" references wall and/or floor mounted type cabinetry.)
   b. No limitations on offsite prefabrication of FF&E (seating, consoles, podiums, tables, etc.)
   c. No limitation on offsite prefabrication of large MEP equipment – chillers, boilers, etc. (Note: Related equipment exhaust flues and double wall round pipe shall be handled in accordance with the applicable Schedule "A").

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SHEET METAL WORKERS LOCAL 28

d. No limitation on the offsite prefabrication of factory built equipment such as skid mount pump packages and catalog cut equipment assemblies.

4. **Off-Site Fabrication**

The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:

a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.

b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.

c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.

d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis. Any work included under the Schedule "A" Local 28 agreement will be performed by Local 28. A pre-job meeting will be held with the Construction Manager and trades that have work in the multi-trade MEP risers to agree on the composition of a blended rigging crew prior to any field installation work occurring.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

SHEET METAL WORKERS LOCAL 28

5. **Smart Construction Equipment and Technologies**
The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

6. **Shift Work**
Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.
e. Shifts Work must be a minimum of 5 days.

7. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours. Only applies when a work day is lost due to reasons beyond the employees control; i.e. weather and job shutdown.

Tishman Construction Corporation of New York DBA

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For Sheet Metal Workers Local Union No. 28

By: Eric Meslin Date: 12/20/19

Print Name: Eric Meslin/President and Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL REDEVELOPMENT PROJECT LABOR AGREEMENT

IRON WORKERS LOCAL UNIONS 46, 197, 361, AND 580

Notwithstanding any provisions of the PLA, the parties to this addendum agree that the terms and conditions set forth herein will apply:

1. **Ironworker Jurisdiction**
   Any work which is within the Ironworkers recognized trade jurisdiction shall not be excluded by Article III Section 4 - Artisans.

2. **Shop Steward**
   Regarding layoff of a shop steward, Ironworkers – Schedule "A" shall prevail.

3. **ADR**
   Regarding Article XII Section 7 of the PLA, Ironworkers do not intend to participate in any ADR program for Workers Compensation which may be established.

4. **MWBE**
   The Construction Manager shall make good faith efforts to solicit bids from Schedule "A" signatory and non-signatory MWBE contractors certified for the scope of work being bid and shall further make good faith efforts to avoid having any particular trade bear a disproportionate burden of excluded MWBE work.

5. **Prevailing Wage**
   The parties to this Schedule "B" Trade Appendix acknowledge that Employers of Iron Worker recognized trade jurisdiction work for the project are required to pay or provide, to their respective employees at least the NYS prevailing rate of wage and supplements. The Construction Manager will insure that non-affiliated M/WBE Contractors will work under the same economic conditions as the Schedule B CBA's.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

6. **Off-Site Fabrication**

The parties also agree to meet to discuss and may recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:

a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.

b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.

c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.

d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication. All rigging of multi-trade work utilizing cranes will be performed by Iron Workers.

7. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL REDEVELOPMENT PROJECT LABOR AGREEMENT

IRON WORKERS LOCAL UNIONS 46, 197, 361, AND 580

8. **Shift Work**

Construction Manager will meet with the Locals. The Locals may or may not consider shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: To be discussed and mutually agreed upon based on trade and operation.
b. Second Shift: To be discussed and mutually agreed upon based on trade and operation.
c. Third Shift: To be discussed and mutually agreed upon based on trade and operation.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

9. **Saturday Make-up Days**

Straight time make-up day on Saturday may be further discussed with the Locals. To be scheduled where an entire day is lost due to weather or Governmental Actions in a calendar week. This provision shall apply to the entire crew and not individuals. Refusing to work a Saturday Make-up Day shall not be grounds for any disciplinary action. If an employee is called out for Saturday Make-up Day and not put to work, that worker shall be paid four (4) hour straight time show up time.

Tishman Construction Corporation of New York D/B/A
For AECOM|Tishman

By: _____ Date: January 24, 2020

Print Name: Allan M. Paull/Senior Vice President

For Iron Workers Local Union Nos. 46, 197, 361, & 580

By: _____ Date: 1-22-2020

Print Name: James P. Mahoney/~~Business Manager~~
D.C. PRESIDENT

127

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

SIGN MANUFACTURERS AND ERECTOR LOCAL 137

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the jurisdiction of Local 137, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally within the jurisdiction of Local 137.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies:**
The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

For AECOM|Tishman

By: _____ Date: January 10, 2020

Print Name: Allan M. Paull/Senior Vice President

For Sign Manufacturers and Erectors Local No. 137

By: _____ Date: 1-10-2020

Print Name: Dante Dano Jr/President & Business Manager

Tishman Construction Corporation of New York D/B/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

PLASTERERS LOCAL 262

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

PLASTERERS LOCAL 262

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

PLASTERERS LOCAL 262

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For Plasterers Local No. 262

By: _____ Date: 12 · 9 · 2019.

Print Name: Dale Alleyne /Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

TEAMSTER LOCAL 282

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Site Coordinator**
   One (1) On-Site Coordinator shall be employed for duration not to exceed Two Hundred Sixty (260) weeks (5 Years) from start of Foundation Work unless the project is completed in lessor duration.

2. **Delivery Drivers**
   The no-strike provision to the FLA shall apply to all Local 282 members making deliveries to or pick-ups from the project. However, the no-strike provision to the PLA shall not preclude Local 282 members from refusing to enter upon any property away from the PLA site that is involved in a primary labor dispute, or refusing to go through or work behind any primary picket line away from the PLA site, including the primary picket line of Unions party to this Agreement.

3. **Smart Construction Equipment and Technologies**
   The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**
   Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fnnges, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.
   a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
   b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
   c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
   d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

TEAMSTER LOCAL 282

5. **Saturday Make-up Days**
The following shall become effective only on the condition that all applicable union-members of the Building and Construction Trades Council of Greater New York agree to the same term: Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 10, 2020

Print Name: Allan M. Paull/Senior Vice President

For Teamster Local No. 282

By: _____ Date: 1/10/2020

Print Name: Tom Gesualdi /President

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

STEAMFITTERS LOCAL 638

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Work in Lifts and Aerial Platforms**
   All workers will tie off in all lifts and aerial work platforms (including boom lifts, single man lifts, and other scissor type lifts) per CM Safety Policy using a full body harness and self-retracting lifeline. For scissor lifts all workers will tie-off to scissor lift while in transport and will tie-off to structure or other independent tie-off anchor point when performing work in a scissor lift. Full body harness to be worn in lifts at all times.

2. **Reflective Shirts**
   All workers will wear shirts that have reflective striping consistent with ANSI Class II requirements. (Blue shirt with reflective high visibility striping will be acceptable to be supplied by the employer) ANSI Class III reflectivity requirements must be met when working in traffic and/or at night.

3. **Yellow Label Fabrication**
   Allow for "Yellow Label" fabrication of all piping 5" in diameter or greater from a Local 638 shop.

4. **Modular Components**
   In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.
   a. No limitations on offsite prefabrication of large MEP equipment – chillers, boilers, AHU's, etc. that are purchased as a catalog items provided there are no non-factory applied items.

STEAMFITTERS LOCAL 638

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

b. No limitations on offsite prefabrication factory built equipment such as skid mounted pump packages and catalog cut equipment assemblies provided there are no non-factory applied items.
c. Interconnecting piping is the work of Local 638 Steamfitters.
d. All fabrication will be in accordance with the Local 638 CBA.

5. **Off-Site Fabrication**

The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:

a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the project. Local 638 will have manpower on the rigging and setting of these metal stairs with integral fire standpipe attached to them.
e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication. Where combined multi-trade racks or risers are used, both hangers and installation of racks or risers will be performed by a composite crew of the trades, such as Local 1 Plumbers, Local 3 Electricians, Local 28 Sheetmetal Workers, and Local 638 Steamfitters using such combined multi-trade racks or risers.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

STEAMFITTERS LOCAL 638

6. **Smart Construction Equipment and Technologies**
The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

7. **Shift Work**
Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift. Shifts shall be a minimum of (5) Five consecutive work days.

1a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.

b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.

c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.

d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

e. No overlapping of shifts except Off-Shift.

8. A straight time make-up day on Saturday may only be scheduled where an entire week day is lost due to weather or Governmental Actions in a calendar week. This provision shall apply to the entire crew and not individuals..

Tishman Construction Corporation of New York D/B/A
For AECOM|Tishman

By: _____ Date: January 27, 2020

Print Name: Allan M. Paull/Senior Vice President

For Steamfitters Local No. 638

By: _____ Date: 1/27/2020

Print Name: Scott Roche/Business Agent at Large

137

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

EXCAVATING LABORERS LOCAL 731

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

EXCAVATING LABORERS LOCAL 731

5. **Saturday Make-up Days**
A straight time make-up day on Saturday may only be scheduled where an entire week day is lost due to weather or Governmental Actions in a calendar week. This provision shall apply to the entire crew and not individuals.

For Tishman Construction Corporation of New York D/B/A AECOM|Tishman

By: _____ Date: January 14, 2020

Print Name: Allan M. Paull/Senior Vice President

For Excavating Laborers Local No. 731

By: Joseph D'Amoto Date: 01/14/2020

Print Name: Joseph D'Amoto/Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

CEMENT MASONS LOCAL 780

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

CEMENT MASONS LOCAL 780

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For Cement Masons Local No. 780

By: _____ Date: 12-09-19

Print Name: Gino Castignoli/Financial Secretary & Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

STRUCTURAL STEEL AND BRIDGE PAINTERS LOCAL 806

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

STRUCTURAL STEEL AND BRIDGE PAINTERS LOCAL 806

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For District Council No. 9, IUPAT

By: _____ Date: 12/18/19

Print Name: Joe Azzopardi/Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

PAVERS AND ROAD BUILDERS LOCAL 1010

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

PAVERS AND ROAD BUILDERS LOCAL 1010

5. **Saturday Make-up Days**

Saturday make-up days may only be scheduled where an entire day is lost due to weather emergencies and paid in accordance with the Schedule "A" Collective Bargaining Agreements, or as set forth in the appropriate Schedule "B" Agreement. In the event of a Storm Warning by the National Weather Service, weather conditions which in the discretion of the Owner pose a significant risk of harm to the Project, or in the event that a public official, including the President of the United States, the Governor of the State of New York, or the Mayor of the City of New York, or any other elected official declares a state of emergency, or declare the Project shut down, Contractors may schedule a Saturday make-up day at straight time rates, unless it constitutes actual overtime.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For Pavers and Road Builders Local No. 1010

By: _____ Date: 1/2/20

Print Name: Keith Loscalzo/Business Manager

Tishman Construction Corporation of New York D/B/A

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

GLAZIER LOCAL 1087

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

GLAZIER LOCAL 1087

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For Glazier Local No. 1087

By: _____ Date: 12/18/19

Print Name: Joe Azzopardi/Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

DRYWALL TAPERS LOCAL 1974

The parties to this addendum agree that the terms conditions herein will act as an appendix to the Project Labor Agreement ("PLA") for JFK Terminal One Redevelopment Project (the "Project")

1. **Modular Components**
In addition to all other off-site activities and work permitted under the Schedule "A" CBAs, it is also understood that Sponsor and the Construction Manager may explore additional opportunities to implement off-site method, manufacture, modifications, repair, maintenance, assembly, painting, handling or fabrication of Project components, materials, equipment or machinery ("Modular Components") that will be performed by Local Unions where manufactured or procured locally within the five boroughs of New York City, and incorporated within the Project Work by BCTC affiliated Union members. This may include items that are assembled by a manufacturer incorporating the work of multiple trades (collectively, "Manufacturer's Specific Work Requirements"). Such work would typically be performed at an off-site manufacturing plant, and such items are specified as a modular assembly and part of a manufacturer's catalogue cut and such assembly shall be performed by Local Unions where procured locally in the five boroughs of New York City.

2. **Off-Site Fabrication**
The parties also recognize that the Sponsor and the Construction Manager may seek to utilize prefabrication to perform off-site assembly by BCTC affiliated Union members of items in a local warehouse that are delivered to the Project as a completed assembly thereby minimizing on-site labor. Examples of off-site prefabrication include, but are not limited to the following:
   a. Superloo toilet rooms containing all walls, plumbing, lighting, tiles and related components, which are assembled off-site and thereafter rigged as modules at the Project.
   b. Electric closet equipment including transformers, panels, and fans mounted on kindorf framing systems and wired off site.
   c. Miscellaneous MEP systems and plant, which may include pre-assembled and skid mount components of larger plants. An example includes a chilled water or condenser water pumping plant that is (a) engineered and assembled as skid mounted components (i.e. pumps, controllers, variable frequency and adjustable speed drives (VFDs), etc), (b) built, wired and tested off-site, (c) disassembled by modules, and (d) rigged and re-assembled on-site as a smaller portion of the overall component.
   d. Metal stairs with integral fire standpipe and sprinkler control valve components preassembled off-site and rigged as a complete element with cranes at the Project.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. Combined multi-trade MEP risers as the shafts on concept design documents include work of multiple MEP trades. This may include the assembly of riser lengths off-site combining multiple trades into pre-assembled riser "picks" (i.e. plumbing, HAC, and electrical risers). The multi-floor length riser picks would then be rigged and assembled as opposed to building on a trade-by-trade and floor-by-floor basis.

Prior to utilizing, conducting, installing, purchasing, or engaging in any modular assembly and/or prefabrication, the Sponsor and/or the Construction Manager must call a labor management meeting with the BCTC and the specific trades having jurisdiction over the work at issue. The Sponsor and the Construction Manager shall notify the BCTC and applicable trades of the type of prefabrication it seeks to employ on the project, the quantity or volume of such prefabrication, and the method of such prefabrication.

3. **Smart Construction Equipment and Technologies**

The Construction Manager and the Unions acknowledge and agree that they will work together to discuss and explore the use of Smart Construction Equipment and Technologies that may promote safety of workers on the jobsite.

4. **Shift Work**

Construction Manager or a Contractor may schedule shift work in accordance with project needs, upon at least five days' notice to the appropriate trades. Second, Third, Off Shift work Monday through Friday shall be no more than eight (8) hours in length and shall be paid as follows, unless the applicable Schedule "A" Agreement provides for a lower shift differential, including none, in which case such lower or no differential rate shall apply. The shift differential will be paid on wages and fringes, unless a Schedule "A" Agreement provides for shift differential on wages only. The Parties acknowledge and agree that a first shift does not have to occur in order to have a Second Shift, Third Shift, or Off Shift.

a. Off-Shift: Occur between the hours of 9:00 PM to 5:00 AM or 10:00 PM to 6:00 AM to minimize interference with airport operations: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
b. Second Shift: Paid at Straight Time Rate plus 10% Premium of Straight Time Rate.
c. Third Shift: Paid at Straight Time Rate plus 15% Premium of Straight Time Rate.
d. In order to attract qualified workers, an employer may pay a higher shift rate premium.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

SCHEDULE "B" TRADE APPENDIX TO
JFK TERMINAL ONE REDEVELOPMENT PROJECT LABOR AGREEMENT

DRYWALL TAPERS LOCAL 1974

5. **Saturday Make-up Days**
Straight time make-up day on Saturday may be scheduled provided total hours worked per employee in a calendar week does not exceed 40 hours.

For AECOM|Tishman

By: _____ Date: January 02, 2020

Print Name: Allan M. Paull/Senior Vice President

For Glazier Local No. 1087

By: _____ Date: 12/18/19

Print Name: Joe Azzopardi/Business Manager

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT "1" – LETTER OF ASSENT
Project Labor Agreement - - Letter of Assent

The undersigned party confirms that it agrees to be a party to and be bound by the JFK Terminal One ~~LaGuardia Airport~~ Redevelopment Project Labor Agreement ("Project Labor Agreement") as such Project Labor Agreement may, from time to time, be amended by the parties or interpreted pursuant to its terms. The terms of the Project Labor Agreement, its Schedules, Addenda and Exhibits are hereby incorporated by reference herein.

The undersigned, as a Contractor or Subcontractor (hereinafter Contractor) on the Project as defined in the Project Labor Agreement (hereinafter PROJECT), for and in consideration of the award to it of a contract to perform work on said PROJECT, and in further consideration of the mutual promises made in the Project Labor Agreement, a copy of which was received and is acknowledged, hereby:

(1) Accepts and agrees to be bound by the terms and conditions of the Project Labor Agreement, together with any and all schedules; amendments and supplements now existing or which are later made thereto:

(2) Agrees to be bound by the legally established and applicable collective bargaining agreements and local trust agreements as set forth in the Project Labor Agreement.

(3) Authorizes the parties to such local trust agreements to appoint trustees and successor trustees to administer the trust funds and hereby ratifies and accepts the trustees so appointed as if made by the Contractor;

(4) Certifies that it has no commitments or agreements that would preclude its full and complete compliance with the terms and conditions of the Project Labor Agreement. The Contractor agrees to employ labor that can work in harmony with all other labor on the PROJECT and shall require labor harmony from every lower tier subcontractor it engages to work on the PROJECT. Labor harmony disputes/issues shall be subject to the Labor Management Committee's Pre-Job conference provisions.

(5) Agrees to secure from any Contractor(s) (as defined in the Project Labor Agreement) which is or becomes a Subcontractor (of any tier), to it, a duly executed Agreement to be bound in form identical to this document.

Dated: _____ _____
(Name of Contractor or subcontractor)

Approved:

Building and Construction Trades Council of Greater New York and Vicinity

By:_____ Dated: _____

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT "2" – EQUAL EMPLOYMENT OPPORTUNITY STATEMENT

AECOM|TISHMAN is an equal opportunity employer. In accordance with applicable law, we prohibit discrimination and harassment against employees or applicants for employment, based on their actual or perceived: race, color, religious creed, sex (gender), age, national origin, ancestry, citizenship, physical or mental disability, military or veteran status, familial status, domestic violence or victim status, medical condition, genetic information, sexual orientation association or any other category protected by federal, state or local laws.

For example, the New York City Human Rights law prohibits employers from discriminating in employment due to actual or perceived marital status, partnership status, alienage or citizenship status of an employee or applicant, or of any person with whom the employee or applicant has a known relationship or

Further, AECOM|TISHMAN will not discriminate against a victim of domestic violence who requests to use time off in order to attend to issues pertaining to the domestic violence, such as court appearances, doctor's visits, and seeking other assistance. If you wish to take such leave, please contact the Human Resources Department. All requests for such leave will be treated confidentially on a need-to-know basis and no employee will be retaliated against for requesting or taking leave under these circumstances.

AECOM|TISHMAN will also provide reasonable accommodation to known physical or mental disabilities of an otherwise qualified employee or applicant for employment, unless the accommodation would impose undue hardship on the operation of our business. Our management is dedicated to ensuring the fulfillment of this policy with respect to hiring, placement, promotion, transfer, demotion, layoff, termination, recruitment advertising, pay and other forms of compensation, training and general treatment during employment.

Employment of Persons with Conviction History

In accordance with New York State Corrections Law, AECOM|TISHMAN will not deny employment to, or take adverse employment action against a person who has previously been convicted of one or more criminal offenses in this state or in any other jurisdiction, whose conviction(s) preceded his/her employment or application for employment with the company, except where permitted or mandated by law.

When applicable to determining whether an offer of employment will be made or continued employment is appropriate, the company will weigh all factors set forth by New York Correction Law Article 23-A concerning an applicant's or employee's previous criminal conviction(s). These factors are:

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

- The public policy of New York State to encourage the employment of persons previously convicted of one or more criminal offenses.
- The specific duties and responsibilities necessarily related to the employment sought or held by the person.
- The bearing, if any, the criminal offense(s) for which the person was previously convicted will have on his/her fitness or ability to perform one or more such duties or responsibilities.
- The time which has elapsed since the occurrence of the criminal offense(s).
- The age of the person at the time of the criminal offense(s).
- The seriousness of the offense(s).
- **Any information produced by the person, or produced on his/her behalf, in regard to his/her rehabilitation and good conduct.**
- The legitimate interest of the company in protecting property, and the safety and welfare of specific individuals or the general public.

At the request of any person previously convicted of one or more criminal offenses who has been denied employment by the company, the company shall provide, within thirty (30) days of such request, a written statement setting forth the reasons for such denial.

Political Opinions

The company will not tolerate intimidation, threats or impeding the voting activities of employees to influence them to vote or refrain from voting for a particular candidate or proposition. Further, the company will not threaten or attempt to influence the political opinions of its employees by placing any political material within an employee's pay envelope.

AECOM|TISHMAN will not tolerate discrimination or harassment based upon these characteristics or any other characteristic protected by applicable federal, state or local law.

If you believe you have been subject to any form of discrimination, harassment or retaliation, or if you are aware of an incident of discrimination, harassment or retaliation involving another individual, please provide a written or verbal report to your supervisor, another member of management with whom you feel comfortable, the project EEO Officer, or call the Ethics Hotline 888-299-9602.

It is the policy of AECOM|TISHMAN that employees will not be subject to retaliation or harassment for initiating a complaint. Any employee, who harasses, discriminates or retaliates against another employee for initiating a complaint may be subject to disciplinary action up to and including termination.

_____ _____

Project Manager, Project EEO Officer,

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

EXHIBIT "3" – STANDARD OF EXCELLENCE
NEW YORK CITY BUILDING AND CONSTRUCTION
TRADES COUNCIL

The purpose of this Standard of Excellence is to reinforce the pride of every construction worker and the commitment to be the most skilled, most productive and safest workforce available to construction employers and users in the City of New York. It is the commitment of every affiliated local union to use our training and skills to produce the highest quality work and to exercise safe and productive work practices.

The rank and file members represented by the affiliated local unions acknowledge and adopt the following standards:

- Provide a full day's work for a full day's pay;
- Safely work towards the timely completion of the job;
- Arrive to work on time and work until the contractual quitting time;
- Adhere to contractual lunch and break times;
- Promote a drug and alcohol-free work site;
- Work in accordance with all applicable safety rules and, procedures,
- Allow union representatives to handle job site disputes and grievances without resort to slowdowns, or unlawful job disruptions;
- Respect management directives that are safe, reasonable and legitimate;
- Respect the rights of co-workers;
- Respect the property rights of the owner, management and contractors.

The Unions affiliated with the New York City Building and Construction Trades Council will expect the signatory contractors to safely and efficiently manage their jobs and the unions see this as a corresponding obligation of the contractors under this Standard of Excellence. The affiliated unions will expect the following from its signatory contractors:

- Management adherence to the collective bargaining agreements;
- Communication and cooperation with the trade foremen and stewards;
- Efficient, safe and sanitary management of the job site;
- Efficient job scheduling to mitigate and minimize unproductive time;
- Efficient and adequate staffing by properly trained employees by trade;
- Efficient delivery schedules and availability of equipment and tools to ensure efficient job progress;
- Ensure proper blueprints, specifications and layout instructions and material are available in a timely manner
- Promote job site dispute resolution and leadership skills to mitigate such disputes;
- Treatment of all employees in a respectful and dignified manner acknowledging their contributions to a successful project.

The affiliated unions and their signatory contractors shall ensure that both the rank and file members and the management staff shall be properly trained in the obligations undertaken in the Standard of Excellence.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

BTEA BUILDING TRADES EMPLOYERS' ASSOCIATION INTEGRITY • VALUE • SAFETY

Buildsafe NYC Safety Codes of Conduct

Mission Statement – To ensure the safety of all workers and the public by maintaining high standards of the unionized construction industry on all construction projects under the supervision of contractors affiliated with the Building Trades Employers' Association and Building and Construction Trades Council Union Affiliates.

1. BTEA member companies and BCTC unions and their members shall work together in a professional and respectful manner at all times.

2. The workforce shall adhere to the use of personal protective equipment (PPE) usage in accordance with OSHA Guidelines at all times including:
   a. ANSI compliant Hard Hats (with ratchet suspension) at all times (supplied by employer)
   b. Construction-type Work Boots at all times
   c. Long Pants and shirts with at least short sleeves at all times (no shorts or tank tops)
   d. ANSI compliant Eye Protection shall be worn at all times (supplied by employer)
   e. Adequate Hearing Protection in their possession and used as needed (supplied by employer)
   f. High-vis outer garments to be worn on site pursuant to OSHA Guidelines (supplied by employer)

3. CM and Subcontractor management shall implement a fair and consistent disciplinary policy for all site personnel regarding the adherence to site safety rules and requirements. Likewise, a joint labor/management team will periodically assess project wide implementation of these Codes.

4. CM firms shall maintain clean and functioning workforce restrooms, hygiene facilities and housekeeping, initially and throughout the duration of the project. Management and workforce shall make all efforts to keep the facilities graffiti free.

5. All personal shall adhere to a strict policy against drug and alcohol possession and use on sites and during hours of work.

6. All workers must complete a job specific Project Safety Orientation Class prior to beginning work on every major project. Workers shall present either a valid OSHA 10 or 30 card within 5 years of date of issue in addition to all certifications and proof of safety training for trade specific tasks they will be engaging in on the project. Worker certifications of safety training for specific tasks such as fire watch, flagmen, and safety attendant must be verified. All personnel must have and be able to show a valid OSHA 10 card with them at all times.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

7. Management will create a method for expedited entry procedures to allow access to project sites for general contractors, subcontractors and labor. Labor representatives shall be provided with site access immediately. The Building Trades Employers' Association and the Building and Construction Trades Council Union Affiliates will endeavor to develop a universal job access badge for Union representatives..
8. No unauthorized cell phones, portable media devices, radios, or other devices that limit hearing and attention shall be used while working on sites.
9. Ground Fault Circuit Interrupters (GFCI) will be used on all power tools and extension cords.
10. Union trade representatives shall participate in a regularly scheduled site safety meeting on all projects regardless of size.
11. Extreme effort shall be made to isolate the public from all construction activity. Specifically, systems shall be put in place to control falling materials and pedestrian exposure. This should be a top priority for the entire project workforce.
12. Workers shall honor security access control systems to esteblish entry to sites by authorized personnel only, where applicable.
13. Fall protection management shall be a top project priority. Workers shall maintain and use necessary fall protection systems and procedures where appropriate. Engineering controls and work methods which eliminate, guard, or otherwise control fall hazards shall take priority over personal fall arrest system usage.
14. Where hazardous materials are present, projects shall implement efforts to communicate and control potential exposure to the workforce.
15. No smoking at any time anywhere on the construction site per Department of Buildings rules and regulations.
16. All incidents/accidents, or unsafe working conditions should be immediately reported to supervisors.

Louis J. Coletti
Louis J. Coletti
President & CEO
Building Trades Employers' Association

December 8, 2015
Date

Gary LaBarbera
Gary LaBarbera
President
Building and Construction Trades Council

12/8/15
Date

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

THE NEW TERMINAL ONE
JFK INTERNATIONAL AIRPORT

TENANT CONTRACTOR WORK REQUIREMENTS GUIDE

6/26/2023 , V11
Review Version V5 (2024-02-05 meeting)
Review Version V6 (2024-02-06 meeting + additional edits)
Trial Final Version V18 (2024-03-22)
Trial Final Version V19 (2024-03-28)
Trial Final Version V20 (2024-11-14)



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Version Tracking

VERSION	DATE	DISTRIBUTION
1	2/10/2023	For DB Internal Review
2	2/10/2023	For DB Internal Review Comments
3	4/18/2023	For DB Internal Review – Progress Copy
4	4/20/2023	For DB Internal Review – Progress Copy
5	5/09/2023	For DB Internal Review – Progress Copy
6	5/23/2023	For DB Internal Review – Progress Copy
7	5/26/2023	For DB Internal Review – Progress Copy
8	6/14/2023	For DB Internal Review – Progress Copy
9	6/16/2023	For DB Internal Review – Progress Copy
10	6/20/2023	For DB Internal Review – Progress Copy
11	6/26/2023	Distribution: Developer
12	2/2/2024	Review V5 Updated per 2024-02-02 Joint Review Meeting
13	2/5/2024	Review V6 Updated per 2024/02/06 Joint Review Meeting – NOTE: This version does not yet revert to Non-OCIP Insurance language
14	2/12/2024	NTO Review Edits and Reformat V7
15	2/16/2024	Review V8 Updated per 2024/02/16 Joint Review Meeting
16	3/4/2024	NTO “Clean” version
17	3/6/2024	DB Edits to NTO “Clean”
18	3/22/2024	Trial Final Version per “Clean” + DB Edits to “Clean” + Additional Information
19	3/28/2024	Trial Final V2 – Incl updated Appendix C
20	11/14/2024	Trial Final V3 – Incl updated Appendices D, E, F, G, H, I

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Table of Contents

I. PROJECT INTRODUCTION &SUMMARY **4**

II. DEVELOPER **5**

III. BASE TERMINAL DB **6**

IV. DESIGN BUILDERREQUIREMENTS **7**

A. REQUIREMENTS TO ACCESS THE PROJECT SITE AND PERFORM WORK: 7

B. DESIGN BUILDER DELIVERABLES: 7

C. TENANT DELIVERABLES: 8

V. DESIGN REQUIREMENTS **11**

A. BASE TERMINAL / TENANT DESIGN COORDINATION & SUBMITTALS 11

B. BASE TERMINAL DESIGN INFORMATION AND REVIEW REQUIREMENTS 11

VI. PANYNJ REQUIREMENTS **12**

VII. SAFETY / SECURITY **13**

A. SAFETY REQUIREMENTS 13

B. SECURITY REQUIREMENTS 14

VIII. LOGISTICS **16**

A. WORKER PARKING / TRANSPORTATION TO SITE: 16

B. LOGISTICS PLANS: 16

C. LAYDOWN/STORAGE 16

D. PROJECT SITE ACCESS: 17

IX CONSTRUCTION **19**

A. TENANT/NTO/TCC MOBILIZATION MEETING 19

B. DB PROJECT HASP 19

C. TENANT CONTRACTOR SUPERVISION: 19

D. REQUIRED CONTRACTOR LISTING 19

E. CONSTRUCTION TESTING AND REPORTS 20

F. TIE-IN / SHUTDOWN PROCEDURES: 20

G. MODIFICATIONS / PENETRATIONS TO BASE TERMINAL 20

H. CONSTRUCTION 21

I. DEBRIS REMOVAL 21

J. PROTECTION 22

K. TEMPORARY POWER 22

L. HEATING AND VENTILATION 22

M. PERMANENT POWER 23

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

N. MATERIAL HANDLING & HOIST/ELEVATOR USE 23
O. INSPECTIONS/TESTING 24
P. MISCELLANEOUS ITEMS 24
Q. FEES 24
X. COMPLETION / CLOSEOUT 25
A. PUNCHLIST ITEMS RELATED TO BASE TERMINAL WORK 25
B. COORDINATION AND SCHEDULING OF TENANT'S SYSTEM TESTING AND COMMISSIONING ACTIVITIES 25
C. COORDINATION AND SCHEDULING OF TENANT'S INSPECTIONS 25
D. OPERATIONAL READINESS AND TRANSITION ("ORAT") PERIOD AND ACTIVE TERMINAL OPERATIONS 25

APPENDIX A (SHUT DOWN / TIE-IN REQUEST FORM) 26

APPENDIX B (FEES) 27

APPENDIX C (MEP-FP INFORMATION) 28

APPENDIX D (SECURITY PLAN) 39

APPENDIX E (LOGISTICS PLAN) 51

Appendix f (**ACCESS AND DELIVERY) 55**

APPENDIX G (EARLY SITE ACCESS) 62

APPENDIX H (INSURANCE REQUIREMENTS) 63

APPENDIX I (DOCUMENT SUBMITTAL PROCEDURES) 64

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

I. Project Introduction & Summary

The New Terminal One Development Project ("Project") being developed by New Terminal One (NTO or Developer) has hired Tishman Construction Corporation of NY (TCC) as the Design Builder (DB) for the design and construction of the new terminal ("Base Terminal").

As a part of TCC scope, TCC will deliver to NTO certain "White Box" space which will be fit out under NTO or an NTO contacted entities ("Tenant Spaces"). Tenant Spaces include but are not limited to, the Master Concessionaire (URW) spaces, (i.e., food, beverage, retail, storage, support spaces); back-of-house for vendors (i.e. offices, stores, etc.), spaces, NTO support spaces, and airline lounges and support space tenant (collectively "Tenant") direction.

A White Box space is defined in Exhibit X, attached hereto. The work to bring the spaces to White Box conditions will be performed by the DB and turned over to NTO. The NTO will contract directly with the Tenant(s), to secure Tenant Contractors.

These spaces are herein designated as "Tenant spaces". Tenant spaces require interior fit out construction by "Tenant Contractors" who will not be working under contract to TCC.

Tenant Contractors will have responsibility and control of specified Tenant spaces however these Tenant spaces will be located within the Base Terminal and the Project site which will remain under the management and control of the DB. DB work within the Base Terminal will remain ongoing during the fit-out construction of Tenant spaces work.

This Tenant Contractor Work Requirement Guide ("Guide") provides information to assist Tenant Contractors in planning, scheduling, budgeting and performing work in the new terminal building while the Base Terminal remains under construction and the Project site is under the management, coordination and control of TCC.

The items indicated herein are not to be considered a conclusive or comprehensive list of requirements for performing Tenant space work, but only to serve as a guideline and quick start reference for performing work in the terminal. Coordination and communication with the tenant coordination project managers for TCC, NTO, and NTO Tenant will assist your team in the timely delivery of the Tenant space work.

All Tenant space work shall comply with

- All applicable laws, standards
- Port Authority of New York and New Jersey (PANYNJ) rules, requirements, and guidelines
- The Lease between PANYNJ and NTO and all reference documents ("Lease"), and
- All tenant agreements.
- Project Safety Provisions
- Project Labor Agreement

Where there is a conflict between documents, including this Guide, the order of precedence pursuant to the Lease shall govern.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

II. Developer

Pursuant to the agreement between NTO and its Tenants, a number of Tenant spaces will be fit-out and constructed. The Tenants will be responsible for overall management of their space, with oversight by the NTO and integration with TCC. The Tenants will need to oblige by the Project site protocols, safety rules and plans, and other procedures and processes.

Developer will have control of the Project site at the point of turnover from the Base Terminal DB to Developer. This is approximately 3 months prior to the date of Terminal operations, or the "GO LIVE" date.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

III. Base Terminal DB

TCC will deliver "white box" spaces as well as shared open areas as spaces for further fit out construction by Tenants.

The start of construction by any Tenant Contractor is contingent upon:

- The approval, delivery and acceptance of white box spaces by NTO.
- The approval of the space will include documentation by TCC which clearly defines the condition of the space turned over; any outstanding base building works, outstanding inspections and photos of the turn over condition of the space.
- NTO release of the space to the Tenant
- The approval, delivery and acceptance by the Tenant of the Space
- PANYNJ approval of the start of work in the white box space. Where required, this includes the PANYNJ permit to build. If permit required, a copy of the permit is to be provided to TCC prior to turn over of space. Note below.
- Tenant Contractor provision to TCC of certain documents, further defined in this document
- Tenant/NTO/TCC Mobilization Meeting

TCC began construction work on the Project in 2022 and will maintain control of the site until the turnover to Developer. The turnover will be approximately 3 months prior to the date of Terminal operations, or "GO LIVE" date.

For spaces turned over without a Permit to Occupy; TCC will request when access is needed to enter into space turned over to the Tenant to and will coordinate with the Tenant any remaining work within a Tenant space with the Tenant Contractor. Both, TCC and Tenant Contractor are expected to cooperate with to permit TCC to complete any remaining work.

The terminal is planned with [120] Tenant spaces; advance planning by all parties will support timely completion of the work in any given space while in the middle of a large amount of concurrent work.

Remaining sections of this Guide include details of working on the Project while under TCC control.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

IV. Design Builder Requirements

a. Requirements to Access the Project Site and Perform Work (Early Access as per **Appendix G**):

The following are the conditions which must be satisfied before Tenant and the Tenant designers, contractors, subconsultants, subcontractors, and suppliers (collectively "Tenant Contractors"), will be permitted to deliver equipment or materials to, enter upon, or perform work in, the new terminal one project jobsite:

Prior to work being performed on the Project premises

- Confirmation will be provided to DB that Tenant Contractor has met the PANYNJ and NTO requirements to start work onsite
- Provide to TCC COIs, and where applicable, naming DB, as Tishman Construction Corp. Of New York, its respective parent companies, affiliates, subsidiaries and related entities, and their respective agents, consultants, principals, partners, servants, officers, stockholders, directors and employees ("Design Builder Entities") as "Additional Insureds" as well as an indemnitee in each fitout contract that is issued to contractors outside of DB control on the Project.
- All workers anticipated to go on the Project shall have SWAC cards prior to scheduling safety and security orientation attendance. For further information on SWAC cards, see the Secure Worker Access website https://www.secureworker.com
- Completion of TCC safety & security orientation by all personnel employed or subcontracted by Tenant, its designers and contractors, requiring access to the Project premises. The safety and security orientation is an on-site program that can only be completed on site during regularly scheduled orientation sessions.

The TCC site badging trailer is located at or near a main entry to the project site, and a badge can only be obtained in person at the TCC site badging trailer. The time required to obtain a TCC project ID is dependent upon the number of people queuing for badging, and is influenced by the extent that each individual comes to the badging office fully prepared with documents needed to obtain a badge:

- SWAC card
- NYC DOB Site Safety Training Card (SST-40 Hour) or SST Supervisor (SST-62 Hour for Competent Persons)
- OSHA 10/30 for non-workers
- Additional Certifications as required per NYC DOB requirements and FDNY Certificates of Fitness requirements
- Site safety and security orientation provided on site daily at 0630.

Scheduling of badging appointments will be considered should queue lines become extensive.

b. Design Builder Deliverables:

i. Communication & Procedures

1. Tenant RFI Process. Tenant RFI's to the DB are to be submitted through the designated NTO Project Management Information System (PMIS) and in accordance to the RFI submission process established by NTO.
2. Daily Site Communication Alerts. The contact information for each Tenant Contractor's foreman, superintendent or temporary on-site lead (whether a change to the lead, a temporary lead) is to be provided to the TCC tenant superintendent field team at the start of the work day, at the latest, in order to facilitate daily on-site communication and alerts.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

3. Any changes to the Base Terminal design requested by a Tenant shall be submitted to NTO for review and approval; only upon NTO's approval is the request then permitted to be designed and submitted to the PANYNJ for overall approval. Except for utility connections to Base Building modifications to the overall base building design and/or work in place shall not be permitted.

   a) Changes to the Base Terminal design are subject to review by the NTO for evaluation and approval. Depending on the change request, the NTO, may choose to review with the Base Terminal Architect or Engineer of Record (A/EOR), for evaluation and feedback to assist in making a determination.

   b) If the proposed change(s) to Base Terminal work are located outside of the envelope of the Tenant space, the work will need to be reviewed by NTO for approval. With few exceptions, changes outside of the envelope of the tenant space, prior to completion of the Base Terminal, may need to be incorporated into the DB work, including both design (modifications to the design documents) and construction. Any change in the Base Terminal work will be evaluated through the Design Change Notice (DCN) process and to the extent that TCC is to perform the work, such direction will be made through the System Portal Change Management Process. (See **Appendix I**)

4. Weekly Tenant Coordination Meeting (DAY – TIME to be established)

   A weekly meeting with TCC, NTO, Tenant and Tenant Contractors representatives will be conducted to review:

   - Tenant schedule coordination – Daily Reports, 3 Week Schedule Look-aheads, Extended Hours / overtime (OT)
   - Coordinate interface work between Base Terminal & Tenant Construction
   - Logistics, deliveries, waste management
   - Protection of work concerns – both Base Terminal & Tenant Construction
   - Review open issues and RFIs
   - Coordinate inspections
   - Safety & Security Concerns

   The Tenant Contractor's lead onsite foreman / superintendent / safety / manager must attend the weekly coordination meeting in the week prior to start of Tenant Contractor's work.

ii. NTO / TCC Project Directory / Project Contacts:

   TCC will provide the contact information for the TCC team members, and updates, whether temporary or long term, during the weekly tenant coordination meeting.

c. Tenant Deliverables:

In accordance with procedures for the submittal of documents to NTO and the DB, Tenant Contractor will provide the following for forwarding to NTO and TCC:

i. Tenant Contact List. Tenant Contractor to provide a listing of its key personnel and vendors/contractors and design professionals assigned to the project (s)

ii. Schedule

- Provide overall schedule of work activities prior to the start of construction.
- Provide copy of 1 week look ahead weekly when sent to PANYNJ Resident Engineer Office

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

(REO)

- Provide 3 week look ahead on a weekly basis upon commencement of fitout construction
- Provide tenant project monthly schedule update

iii. Work plan(s)

- Proposed method for the execution of the work including work hours, crew size, trades employed, deliveries, schedule, logistics and job hazard analysis for any hazardous work/operations including hot work.
- Required connections/shut downs to Base Terminal utilities (MEP, FA, BMS, etc.)
- Required modifications to Base Terminal (penetrations, openings, etc.) upon approval for such work by NTO.

iv. TAA documents

- TCC will review the Tenant's design drawings for coordination issues with the Base Terminal work. This DB review will be concurrent with the submission of the design to the PANYNJ. The DB review will occur at xx duration and ensure that this review does not impact Tenant overall project schedule including design and construction dates.
- Note: the TCC/DB review referenced here is not a code compliance review or review of the Tenant's Tenant Alteration Application ("TAA") for conformance to the base terminal design restrictions, it is for the orientation of the coordination team to the tenant's work.

v. Tenant Submittals

- Base Terminal work. For Base Terminal construction that is in conflict with future Tenant space work, must be submitted to NTO by TCC who will work with NTO to coordinate the request
- Early Site Access to construction site (as per **Appendix G**). Early access is defined as access to the project site for investigative work, or activities such as on-site coordination prior to the approval of the Tenant Sub-leaseholder Tenant Alteration Application (or "TAA"), and a successful PANYNJ Pre-construction meeting and receipt of permit to construct.

vi. Tenant Issues /Changes

- NTO will track tenant design issues that contemplate changes to Base Terminal work.
- NTO and DB will meet regularly to review tenant issues in order to resolve those tenant issues in a timely manner as not to impact Tenant scheudule. These meetings are anticipated to be weekly, anticipated to begin approximately at the time of the first Tenant's 60% design development drawing set, reduce to bi-weekly at the point where approximately 50% of the Tenant Space TCAP are submitted to PANYNJ, and reduce in frequency to "as/if needed" upon submission of the last Tenant TCAPs. COR procedures (between NTO and TCC) will be utilized for direction or resolution of these issues requiring changes or additions to TCC work.
- A weekly report that tracks the issues will be provided by NTO to TCC via Aconex.
- If there are cost changes to TCC that are necessitated by Tenant space work will follow the NTO change management process in the DBA.

vii. Services

- From the start of Tenant Space work to the date of Substantial Completion of the Base

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Terminal work, the availability of active MEP services may be delayed and/or intermittent due to Base Terminal work, and are subject to jurisdictional signoffs, system acceptances and availability of permanent power, delivery of which is under the control of PANYNJ.

- NOTE: Tenants utilizing natural gas service are urged to timely contact National Grid to establish the billing account and establish lines of communication for requirements for gas meter installation and service activation.
- NTO and TCC has developed a program to help facilitate the Tenant Contractor work of tie-ins, activation and testing, however this is dependent upon close coordination and scheduling between Tenant Contractors and TCC. Tenant Contractors should anticipate that tie-ins, activation and testing, where they involve TCC
- Requests for tie-ins of electrical, plumbing, fire protection, or HVAC must be planned and requested in advance, in writing, with both the MEP Director and the TCC Tenant Superintendent. The coordination of Tenant Contractor tie-in requests is by NTO Tenant Construction Coordinator with notice to TCC a minimum of 72 hrs (3 weekday working days) in advance of a requested tie-in date. The availability of tie-ins is as coordinated between NTO Tenant Construction Coordinator and TCC Tenant and Base Terminal work. During the weekly Tenant Construction Coordination meeting, TCC will provide the current schedule for tie-ins over the coming 2 weeks. The NTO Tenant Construction Coordinator and Tenant Contractors will advise of any other tie-in requests anticipated in that timeframe.
- Refer to Section VIII – Construction for further details of services delivery, schedule and fees.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

V. Design Requirements

a. Base Terminal / Tenant Design Coordination & Submittals:

i. Any changes to the Base Terminal design requested by the tenant shall be submitted to NTO for review and approval prior to proceeding with any submissions to the PA for approval or commencing any work.
ii. Base Terminal design files will be made available to each Tenant AOR and/or EOR through NTO. By xxx Date.
iii. Changes to Base Terminal design will be issued to NTO as part of the Base Terminal AFD process. Distribution of any revised Base Terminal drawings that affect Tenant Design and Construction teams will be by NTO.
iv. Tenant will follow equipment and device naming conventions that meet NTO and Port Authority requirements.

b. Base Terminal Design Information and Review Requirements:

i. Details of the Base Terminal design related to the Tenant designs include,

1. Structural Design

a) Structure to support Storefront Rolling Grill
b) Structure for Sign Band
c) Slab depression design and edge locations
d) All structural loads imposed by the Tenant construction design are required to be reviewed and approved by the Base Terminal EOR.

2. Utility Matrix

a) The Tenant space A/EOR must refer to the Utility Matrix for the types of utilities provided to each Tenant space. The locations of the Points of Entry is reflected in Exhibit X into each Tenant space are shown in documents separate from this Guide, and should be referred to in the development of the Tenant space design.
b) See **Appendix C** for additional MEP-FP information on Tenant space services.

3. General

a) Questions from Tenants regarding the Base Terminal design are to be submitted as a "TRFI" (Tenant RFI) in accordance with the procedures for RFI submittals (see **Appendix I**).

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

VI. PANYNJ Requirements

The Tenant Contractor is referred to the PANYNJ Tenant Construction and Alteration Process ("TCAP") manual for detailed requirements of the PANYNJ's TCAP process, and requirements provided by NTO in separate documents. Two key features of this process, in relation to TCC, are:

a. A Port Authority Pre-Construction Meeting (the "Precon") is required prior to the start of work. If the Precon Meeting is successful, the PANYNJ issues a Construction Permit to commencer the work.
b. A predecessor to the Pre-Construction is submission of a PANYNJ approved insurance certificate.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

VII. Safety / Security

a. Safety Requirements:

i. TCC Safety Orientation Requirements

1. Minimum Personal Protective Equipment (PPE) – hard hat, company named hi-visibility vest, construction safety footwear, long pants, short sleeve shirt, protective eyewear, gloves and additional PPE as required.
2. OSHA 30 Hour certification, 40 hr. SST / 62-hour Supervisor SST card Certificates of Fitness, licenses and/or certifications SWAC card

ii. Adhere to the following safety documents:

- TCC New Terminal One HASP
- Port Authority Facility Rules & Regulations (panynj.gov) ***
- NYC Department of Buildings Safety (nyc.gov) ***
- NYC FDNY Fire Code: Construction Demolition and Alteration (nyc.gov)
- FDNY permits (nyc.gov)
- Construction Industry | Occupational Safety and Health Administration (osha.gov)

iii. Tenant Contractor HASP

1. Tenant Contractor to provide its HASP to NTO/TCC one (1) month prior to the start of its work. NOTE: The NTO requirements of the Tenant Contractor HASP will be provided by NTO under separate cover.
2. Tenant Contractor to provide a copy of the onsite Safety Manager resume for review. by NTO Safety Director and will be full-time and have no other duties. When work is occurring in the space, safety manager will be present. Provide name and contact information of alternates.

iv. Safety Reporting

- Tenant Contractor to submit Job Hazard Analysis for all work occurring on the entire construction site, including all load in and load out activities.
- Tenant contractor to provide all documents per NYC DOB/FDNY requirements including daily pre-shift safety meetings, weekly toolbox talks, stand downs, inspections of equipment, training certifications, certificates of fitness (COFs), etc.
- Tenant contractor will conduct additional safety meetings/toolbox talks/stand downs as required by the project.
- Tenant contractor will utilize 3rd party safety application (i.e., safety reports) as required.
- Tenant Contractor to immediately notify the TCC Safety Manager/Coordinator of all safety incidents and injuries. A written investigation report shall be submitted no later than 24 hours after the occurrence, and within 8 hours of a severe incident. Reports are to be provided to TCC Safety Manager. Any serious injury/fatality (SIF) will require an executive incident review (EIR) with Tenant Contractor.
- Please note that NTO may have additional protocols for managing first aid and additional reporting requirements. These requirements are outside of this Guide.

v. Emergencies

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

- Note that all accidents and/or injuries are to be reported to the PANYNJ JFK Port Authority Police. This reporting will be done in accordance with NTO and PANYNJ procedures for reporting of emergency accidents and injuries.
- In case of an emergency call Port Authority Police (JFK) at 718-244-4335.

Do NOT call 911 – doing so will delay emergency response.

- Emergencies are to be coordinated between Tenant Contractor and TCC Safety Manager in order to facilitate rapid emergency response. The emergency protocol will be reviewed in the weekly Tenant Construction Coordination meetings.

vi. Safety Takes Flight Recognition and Reward Program

- All tenant contractors required to enroll in NTO Program Safety Takes Flight

vii. Violation Policy

Tradespersons on this Project are to have extensive preparatory safety training including OSHA 30 Hour Construction Safety Training; NYCDOB Site Safety Training; and Project specific Site Safety Orientation Training, all personnel shall be expected to work safety in accordance with applicable safety standards. A progressive discipline policy will be enforced to ensure safe work procedures are followed.

- First offense: The tradesperson shall be sent home for an appropriate amount of time based on the offense. And can return only after the tradesperson completes retraining.
- Second offense: The tradesperson will be suspended from the Project site. The trade supervising foreman will be sent home.
- TCC may accelerate disciplinary action of the violation based on seriousness of the violation.

b. Security Requirements:

1. Site access requirements

Either a SWAC or SIDA card is required to apply for a TCC project ID.

- All persons requiring access to the Project site are to have SWAC credentials and are to present it to the TCC Project ID office at the time of applying for the project ID.
- If a person requiring access to the project site has a current JFK SIDA badge with the appropriate security level, a SWAC card is not required.

TCC project ID is required to access the Project. See below details about the TCC ID process.

2. TCC ID

1. All personnel applying for a site badge must possess a valid OSHA 30 Hour Construction Safety Training Card, valid NYCDOB SST (for all trades and job titles required by Local Law 196), Valid licenses and certificates of fitness for the work to be performed.
2. Badges will be issued by TCC upon successful completion of the project safety and security orientation
3. The TCC Project Badging Office is located in the TCC project trailers.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

4. Office Hours are from 0700 – 1530, Monday – Friday, except project holidays.
5. Visitors will require a temporary badge and receive Project Safety Orientation. Visitors must be escorted at all times by Tenant Contractor representative ("Escort") who has been issued a permanent site badge. Visitors may not leave the sight or earshot of the Escort. Requests for temporary badges must be made to the TCC project badging office a minimum of 24 hours in advance of the site visit. Temporary visitor badge(s) will be issued to the Escort and must be returned to TCC Project ID office the same day as the site visit, to the TCC badging office, or TCC's designated representative, if the return is planned for after the badging office closure for the day.
6. Should a worker, who has been issued a TCC project ID, neglect to bring the badge to the site, a one time, one day temporary badge will be issued when the worker has proper identification, for any given individual, and the TCC badging office will issue such badges when the scheduled badging work permits. A second temporary badge will not be issued to any individual.

3. Daily Reports

   In accordance with the procedures for the submittal of documents, Tenant Contractor shall submit to NTO copying TCC a daily report no later than noon the day following the report day.

4. Security and Project Stages

   1. The Project has three stages with different security status and requirements.
   2. Security Access Procedures – Construction

      a) The initial Project stage is when the Project is under major construction and under the management, coordination and control of TCC.

         For this period, see the TCC Construction Security Plan – **Appendix D**

   3. Security Access Procedures – During ORAT

      a) At the point that TCC turns over the new terminal to NTO, the terminal project is under the control of NTO. This period is during the "ORAT" period (Operational Readiness and Transition) and is Pre-GO LIVE.

      b) For this period, Security Access Procedures will be provided by the NTO.

   4. Security Access Procedures – Post GO SECURE

      a) During the ORAT period, NTO will activate final security protocols , prior to terminal activation (pre-GO LIVE). This is a period of increased Security Access Procedures – and is Post GO SECURE.

      b) For this period, the timing of GO SECURE and the Security Access Procedures will be provided by the NTO.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

VIII. Logistics

a. Worker Parking / Transportation to site:

i. Worker parking will be available on a first come first serve basis at the Aqueduct Race Track parking Area as noted on the Overall Logistics Plan (see **Appendix E**). This parking is without charge, but the parking is available solely at each worker's risk. Parking is limited and is only available on a first come/first serve basis. All workers are encouraged to use mass transportation.

ii. Transportation to the terminal from the Aqueduct Racetrack is available by busses through TCC. The bussing is available to workers on the Project on the Project site for Base Terminal and Tenant Contractor elements of the Project, on a first-come first served basis. TCC will provide a regular bus schedule for the purpose of planning travel times between Aqueduct and the project; notwithstanding, TCC does not make any promise / assertion as to the availability or timing of busses between Aqueduct and the project, and is not liable for any reduction in work day, real or notional, due to use of the bussing transportation option. Fees for the use of required construction worker transportation as per (**Appendix B**).

iii. NOTE: The base project is scheduled in a tiered start time program and it is highly recommended that Tenant Contractors consider a staggered start time, coordinated with TCC.

iv. NOTE: Public transportation options for the Project include JFK AirTrain – Station at Terminal One, serving the existing Terminal One and is near to the New Terminal One construction site. Trains come from

1. Howard Beach – from MTA's subway station Howard Beach (A line),
2. Lefferts Blvd – from MTA's bus stops for Q3, Q10, Q10 LTD, B15,
3. Jamaica – from MTA's subway station Sutphin Blvd. (E, J, Z lines),
4. Jamaica - from Long Island Railroad (Jamaica-Sutphin Blvd station).

b. Logistics Plans:

See Overall Logistics Plan (see **Appendix E**)

c. Laydown/Storage

i. Tenant Contractors are advised that at the anticipated time of Tenant Contractor work there will be little or no exterior laydown/storage available and little interior laydown/storage area available on the project site. In all cases, the Tenant Contractor is expected to perform its work within the bounds of the leased space. Should a Tenant Contractor want to propose the use of space outside the tenant's lease line, for logistics of installation or laydown, Tenant Contractor to submit a proposed work plan showing the location, limits, method of securing the space and durations. TCC will consider the request in connection with the overall project requirements. At the time of construction, it is recommended that Tenant Contractors coordinate with the TCC Logistics Manager at least a month prior to the anticipated start date, for any available temporary laydown areas.

ii. For all storage areas, the Tenant Contractor is responsible to secure and maintain their allotted storage space and associated equipment and materials. Materials are to be organized and secured using purpose made systems to prevent the materials from tipping, shifting, falling, or being displaced, including during times of severe weather. Materials shall be organized and maintained to prevent "caught between" hazards.

iii. Tenant Contractor is responsible for transportation of their equipment and material to the project site. Materials shall only be transported to the site using DOT and PANYNJ licensed, insured and safety/security marked vehicles, that have been inspected and maintained to ensure

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

all safety features are working.

iv. All loads will remain secured / strapped with purpose made systems to prevent load shifting, tipping, collapse or dropping during transit. Ground control / spotter personnel must be present when operating vehicles onsite.

v. Tenant Contractor to plan on storing all materials within the confines of their lease line space. Unapproved storage outside of the Tenant lease line space or approved storage areas is subject to removal.

vi. Tenant Contractor shall be responsible for the protection of spaces and terminal features outside the Tenant lease space. The method and maintenance of protection to be approved by TCC.

d. Project Site Access:

Tenant personnel can access the Project site through designated personnel entrances as noted on the site logistics plan. All persons requiring access will only be allowed access with a TCC issued project ID.

i. Work Week and Work Day Regular hours:

- Monday through Friday 0600 to 1800
- Project safety orientation will start at 0630
- Notice of changes in starting times will be given with two (2) days' notice
- If Tenant Contractor wants to schedule work to include deliveries outside of a regular shift, Tenant Contractor will notify TCC three (3) days in advance. Tenant Contractor work outside of regular hours may require TCC staff, standby trades and security personnel in the event that TCC trades are not otherwise working concurrently. Tenant Contractor will be required to reimburse TCC for these services, on a pro rata basis on any given day when more than one Tenant Contractor works outside of regular hours in the event that TCC trades are not otherwise working concurrently.

ii. Weekend Work

Saturday 0600-1600. All work on Saturdays, Sundays and Holidays will be considered with three (3) days' notice. Tenant Contractor will be required to reimburse TCC for TCC staff, standby trades (electrician, supervision, laborer, operator, etc.) and security services for such non- regular time or any additional TCC staff, standby trades (electrician, supervision, laborer, operator, etc.) and security services for this non regular time, which costs will be pro-rated among the Tenant and Base Terminal contractors working during each non-standard time period in the event that TCC trades are not otherwise working concurrently.

iii. Emergency Work Stoppage

1. In the event of a storm warning by the National Weather Service, weather conditions which in the discretion of TCC pose a significant risk of harm to the Project, or in the event that a public official, including the President of the United States, the Governor of the State of New York, or the Mayor of the City of New York, the General Manager of JFK International Airport or any other official declares a state of emergency, or declares a work stoppage by a government agency, TCC shall have sole discretion as to manning the Project site as it sees fit. If the decision is to shut the Project site down, all Tenant Contractors and their employees must comply and vacate the Project site in the timeframe stated at that time.

2. In preparation for an emergency work stoppage, Tenant Contractors shall ensure their work area and laydown / storage areas are secured to not create or leave a hazard.

iv. Deliveries:

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

1. All deliveries are to be scheduled via Voyage Control (see **Appendix F**) in coordination with the TCC Logistics Manager or his designee a minimum of 24 hours prior to arrival onsite.

2. The Tenant Contractors are required to provide delivery information including (but not limited to) truck make/model, driver name and ID information, brief description of contents, Tenant leasehold location ID.

3. Landside Deliveries: All deliveries are anticipated to be landside. Should an opportunity present itself for airside delivery, access information will be provided to the Developer's Tenant Coordinator for dissemination to Tenant Contractors.

4. Material Handling (Delivery support/Unloading) as per Section IX.n. (see **Appendix F**)

5. Movement to Tenant work areas will be through designated routes through the terminal building as determined by the TCC Logistics Manager and Tenant Superintendent.

v. Utility Closet Access:

1. Utility Closets are defined as janitor's closets.

2. Tenant contractors will not be given open door access to utility closets. Access to utility closets is to be coordinated and scheduled with the TCC Tenant Superintendent with a minimum of 48 hours advance notice (timing excludes weekends and holidays).

vi. Low Voltage Electrical Closet Access:

1. Low Voltage Closets are defined as all rooms, such as IDFs and MDFs with concentrated low voltage equipment, racks, punchdown blocks, etc.

2. Access to Low Voltage Electrical Closets is to be coordinated and scheduled with the TCC Tenant Superintendent with a minimum of 48 hours advance notice (timing excludes weekends and holidays).

vii. Electrical Closet and Electrical Equipment Access:

Electrical Closets are defined as distribution closets. Electrical Equipment is equipment such as switchgear rooms, generators. There is no access to these rooms. Any connections that must be made must be arranged and paid for by the Tenant Contractors with the Base Terminal electrician.

viii. Toilets:

TCC will provide temporary toilets for use by Tenant Contactors at locations to be determined by TCC. Permanent toilets built for the Base Terminal are not to be used by Tenant Contractors unless explicitly directed by TCC and only in the specific location(s) directed.

ix. Temporary Office / Shanty:

Any temporary office or shanty required by the Tenant contractor is the sole responsibility of the Tenant Contractor including any and all utility hookups. Tenant Contractor to coordinate with the TCC Logistics Manager a minimum of four (4) weeks prior to desired date of mobilization on the project site. Tenant Contractor to submit its work plan showing the proposed size, location, duration of use, and date of removal of any proposed temporary office / shanty for review and approval by TCC.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

IX Construction

a. Tenant/NTO/TCC Mobilization Meeting

i. Tenant Contractor to schedule a pre-construction coordination and mobilization meeting with NTO and TCC to review the Tenant project logistics, the Tenant Contractor's leasehold access and other details prior to the start of its work.

ii. NTO and Tenant acceptance of each Tenant space precedes the use of the space by the Tenant Contractor.

b. DB Project HASP

i. Tenant Contractor to follow the Design Builder's Project HASP.

ii. A Tenant Contractor Superintendent or assigned personnel must attend TCC morning logistics meeting, weekly health and safety meeting, and other meetings as required, held at the TCC designated meeting location.

c. Tenant Contractor Supervision:

i. Tenant Contractor is responsible for all supervision of their project(s) at all times that work is being done for the Tenant construction work package.

i. The Tenant leasehold project must be supervised at all times that work is taking place until the Tenant has an approved Certificate of Occupancy by the PANYNJ. Failure to comply will result in the Tenant's construction personnel being refused access to its project site until a supervisor is on site.

ii. Should one company be responsible for the build-out of more than one Tenant space, a Tenant Contractor Superintendent may be responsible for more than one space as long as the spaces are in reasonable proximity to one another, providing credible supervision of each.

d. Required Contractor Listing

The following contractors, doing Base Terminal work, are to be utilized for the cited scope of work as required in each Tenant space. For any work necessary outside of the tenant space, must be reviewed and approved by NTO, and work to be review and coordinate by TCC to identify who is responsible party to perform the work.

For any work that is covered under the project warranty, such work must be performed by the Base Building Tenant Subcontractors, as identified below. All work must be coordinated with NTO and TCC.

Electrician

ADCO Electric	Headhouse
B & G Electric	East Concourse

Fire Alarm

Corporate Electric Group

BMS

Schneider Electric Buildings Americas, Inc.

Fire Protection (Sprinkler)

Pace Plumbing	Headhouse

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

RAEL Fire Protection East Concourse

Roofing
Wolkow Braker Roofing Corp.

e. Construction Testing and Reports

i. Where Base Terminal systems are brought to the Tenant space, whether in a temporary termination (such as duct feed) or permanent termination (such as an electrical disconnect switch), continuity reports will be provided by TCC. Tenant Contractor's work on each system will signify the acceptance of each system.

ii. Examples of Base Terminal services tests and product information to be provided by TCC are as follows:

- Electrical Megger Report – for electrical disconnect turnover
- Sprinkler – Pressure Test (if shut off valve is provided for each tenant, test will be at that valve. If lines have not been charged, testing will be performed after system is charged)
- Mechanical – Volume Testing (if Base Terminal connections are not complete, testing to tenant connection will be performed upon completing connections)
- Fire rating certificate on fire rated materials (i.e., sheetrock, wood, caulking, dampers etc.)
- Fire dampers and/or fire smoke damper installation sheets.

f. Tie-in / Shutdown Procedures:

i. Any and all shut down of a Base Terminal utility must be coordinated well in advance of the shut-down. The shut-down request is to be submitted to the NTO Tenant Project Manager who will forward and coordinate with TCC.

1. Shut down requests are to be submitted to TCC one (1) week prior to the requested date by way of a Shut down Request Form (See **Appendix A**) to be provided by Tenant Contractor to NTO's Tenant Coordinator, who will coordinate with TCC's Tenant Superintendent.

2. Testing of systems, such as fire alarm testing, are considered to be shut downs as this testing precludes other work on the system. Where testing requires three steps:

a) contractor pre-testing,

b) contractor pretesting with AOR/EOR witnessing for certification,

c) PANYNJ test & demonstration,

- The schedule of the series of tests is to be provided to TCC a minimum of 2 weeks in advance of the first test of the series so that appropriate planning can be done.
- TCC will review a 3-week look-ahead of the pre-coordinated tie-in/shut-down requests from NTO's Tenant Coordinator during the weekly Tenant Construction coordination meeting.

g. Modifications / Penetrations to Base Terminal

i. Any modifications/penetrations required by the Tenant to the Base Terminal are to be submitted to the NTO Tenant Project Manager in accordance with the DCN Process (see

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Appendix I). for review and approval of work. For any structural modification or penetration, the Tenant Contractor is responsible for the engineering evaluation of the change, and the submission of that change to the base terminal structural engineer of record. The proposed structural modification/penetration, including the engineering evaluationfor review

ii. NTO will initiate a meeting to review, define, and document the requested modification/penetration and determine the timing and method of implementation.

iii. Any penetration of the Base Terminal will require the Tenant Contractor to use the Base Terminal contractor to perform the related work, e.g. – roof patching. The Tenant Contractor is to contract for the work directly with the Base Terminal contractor, and the work must be approved by TCC prior to being done. See Section IX.d for list of those Base Terminal contractors that must be used by Tenant Contractors.

h. Construction

Each Tenant Contractor is to adhere to the following while performing its work:

i. Perform safe work within the limits of the tenant's leasehold. A written request for exception must be provided to NTO and TCC in advance of performing any work outside of the tenant's leased space. Any required work outside of the tenant space shall be coordinated and treated as per the tie-in / shutdown procedure as identified in section IX.f.

ii. Provide required documentation to TCC as noted in Section IV.c.

iii. Provide copies of all PA issued permits to TCC, each day prior to the start of the work, including but not limited to the following:

- Confined Space, Electrical Outage / Lockout / Tagout
- hot work, or cutting/welding, certifications

i. Debris Removal

i. The Tenant Contractor is responsible for debris removal and disposal, offsite of all debris generated by its work on the project site.

ii. However, Iin order to manage the debris on the entire Project site, the debris removal will be managed by TCC and the cost of this is included in the fee schedule in **Appendix Bi**.

iii. The requirements related to debris management and preparation for removal are as follows:

1. The Tenant Contractor is responsible to maintain a clean, safe and orderly work site.
2. The Tenant Contractor is responsible for placing debris in containers by the end of the work day, on a daily basis.
3. Containers will be provided by TCC and the quantity needed on a daily basis is to be coordinated with the TCC on a daily basis; provided, however, that [xxx] containers shall be provided daily.
4. TCC will bring containers for debris from the Tenant leasehold to the loading dock, for removal of rubbish, by TCC, on a daily basis, and empties brought to the Tenant Contractor work area each day at a time to be determined.
5. Tenant Contractor to coordinate the location of its debris containers with TCC Logistics Manager.
6. Rubbish and other combustible waste susceptible to spontaneous ignition, such as oily rags, shall be stored in a listed disposal container (provided by the Tenant Contractor). Contents of such containers shall be made readily available for TCC removal on a daily

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

basis.

j. Protection

i. Tenant Contractor is responsible for protection of its work within its tenant workspace. Protection materials shall meet NFPA 701 fire retardant standards. Combustible materials will not be used for protection.

ii. Tenant Contractor shall provide protection at the perimeter of its workspace and submit to NTO/TCC for concurrence. The plan is to include details of support of the perimeter; these details shall not include any anchoring to finished surfaces. Protection is to be installed, maintained and removed by Tenant Contractor.

iii. Floor protection beyond the areas noted above will be provided by TCC. Locations of floor protection required by the Tenant Contractor are to be coordinated with TCC. Repair of any damages caused by the Tenant Contractor to Base Terminal finishes will be the sole responsibility of the Tenant Contractor, and Tenant Contractor will be responsible to compensate TCC for the cost of required repair work. Repair of damages shall be performed by TCC at Tenant Contractor's sole cost.

k. Temporary Power

i. Temporary power will be provided by TCC until permanent power within the Tenant Space is available and transferred as per Section IX.m. Temporary power will consist of a single point of connection within the tenant's work area. Temporary power will be limited to small tools and lift charging.

ii. The cost of temporary power as described here, and the cost of power usage, is included in the fees listed in **Appendix B**.

iii. If a Tenant Contractor is in need of additional (higher amp) temporary power, it will be at additional cost to the fees described in **Appendix B**. A request for additional power will be reviewed for whether it is possible, timing and cost. It is highly recommended that any request for additional power be made a minimum of one (1) week prior to the need for the additional power.

iv. Note that all outlets on the site will be considered temporary power through TCC Substantial Completion. All Tenant Contractors must provide GFCI protection and industrial extension cords.

v. Interim Construction Power for Retail, Storage, and Food and Beverage spaces will be available upon start of construction at the location of the designated electrical closet for each tenant space. Tenant may utilize available construction power via tenant installed feeders in base building provided conduits to bring power back to tenant space.

l. Heating and Ventilation

i. Each Tenant Space that has one or more points of entry for the heating and ventilation system, where the Point of Entry is by way of a Fire Smoke Damper ("FSD") is provided under the Base Terminal scope of work, will have a signed-off and accepted FSD as part of the turnover process. The Tenant Contractor will be responsible to maintain the integrity of the FSD, both the damper itself in its physical installation, and the connection to the Fire Alarm system, as part of the approval of the space.

ii. Should a confirming test of the FSD be required (such as by PANYNJ), that requires TCC participation, Tenant Contractor should anticipate (3) tests:

1. contractor level testing,

2. contractor + EOR level testing,

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

3. contractor + EOR + PANYNJ testing. There will be an additional fee to TCC for this testing, above and beyond that included in **Appendix B**.

m. Permanent Power

i. Each tenant space is prepared with empty conduit between the assigned power closet and the tenant space. This conduit includes drags, no wire. The Tenant Architect/Engineer of Record is responsible for the design (sizing) of the power feed to the tenant space, from the assigned size/location of breaker in the Base Terminal electrical closet.

ii. Due to electrical jurisdiction and system ownership sequences, the installation of the breaker, wiring and electrical disconnect within or external to the Tenant space must be installed by the Base Terminal electrician. This work is to be arranged and paid for by each Tenant Contractor with the Base Terminal electrician. This is in addition to the fees shown in **Appendix B**.

iii. The activation of permanent power to the terminal is dependent on activation of feeder substations to the Project. We need to add a date as to when permanent power will be activated.

iv. The activation of permanent power to individual Tenant spaces and loads will be coordinated during the construction process between Tenant Contractor, NTO and TCC.

n. Material Handling & Hoist/Elevator Use

i. Material handling, including off-loading, is the sole responsibility of the Tenant Contractor. This includes all work for scheduling deliveries, manpower and equipment for off-loading appropriate to the loading dock and path to the hoist/elevator, manpower and equipment for all material movements on site. Tenant Contractors are to expect to bring and remove all equipment for materials handling such as fork lifts, A-frames, dollies, rubbermaid containers, etc. with each delivery, unless the equipment can be stored within the Tenant Space or approved storage area.

ii. Deliveries to the loading dock area(s) are to be coordinated with the TCC Logistics Manager through a reservation request on the Project's web-based delivery management system Voyager (see **Appendix F**). The reservation system will provide available delivery time slots to the loading dock.

iii. Deliveries to the frontage roads, not requiring the hoist or loading dock, are to be coordinated with the TCC Logistics Manager through a reservation request on the Project's web-based delivery management system (see **Appendix F**). The reservation system will provide available time slots and curb locations.

iv. NOTE: All delivery reservation requests are reviewed and confirmed or deferred by the TCC Logistics Manager and NTO. Deferred requests will be reviewed with the Tenant Contractor for an alternate time.

v. It is the responsibility of the Tenant Contractor to arrive at the time and location selected, and to unload within the time slot selected.

vi. For hoist/elevator use, the Tenant Contractor is to coordinate and schedule all materials movements with the TCC Logistics Manager via Voyager 48 hours in advance (see **Appendix F**).

vii. Each Tenant Contractor is to confirm with the TCC Logistics Manager all deliveries no later than 24 hours prior to delivery arrival on site.

viii. Installations that require rigging, or use of equipment, supports or temporary works such as bracing, chain falls, etc, will require submission of a rigging plan. This will include at a minimum the loads imposed on the structure, equipment to be used, loading path,

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

equipment placement and other features of the installation plan. This is to be submitted to, and approved by, the terminal and civil Structural Engineers of Record (EOR), as applicable. The approval(s) shall be secured prior to scheduling the rigging activity.

ix. Any delivery of hoisting and/or rigging equipment to the Tenant space is to be scheduled with the TCC Logistics Manager and Safety Manager/Coordinator.

o. Inspections/Testing

i. Tenant Contractor is responsible for identifying and conducting all required 3rd party and special inspections for the certification of the work.

ii. Tenant Contractor is to notify NTO and TCC of any testing / inspections no later than 48 hours prior to the testing / inspection that may require TCC involvement or shut down/disruption to Base Terminal utility or system.

iii. For fire alarm testing, Tenant Contractor is to notify NTO and TCC no later than 3 working days in advance of the testing. TCC will endeavor to make the Fire Alarm system available for the testing date desired by each Tenant Contractor. Note that Base Terminal fire alarm installation and testing take precedence and Tenant Contractor fire alarm testing may need to be scheduled on 2nd or 3rd shift to meet Tenant Contractor's schedule needs. Also Note that scheduling PA resources for both day and night time testing should be anticipated to require advance notice, likely more than the 3 working days mentioned above.

p. Miscellaneous Items

The Tenant Contractor must provide its own 2a-20bc fire extinguisher(s), in numbers suitable to the size and configuration of the Tenant space and work zone.

q. Fees

Fees paid to NTO / TCC by Tenant Contractor are established to cover the following items through TCC Substantial Completion, and are included in **Appendix B**:

i. Vertical transportation whether by hoist or elevator

ii. Coordination and execution of rubbish removal

iii. Delivery coordination and scheduling,

iv. Temporary toilet provisions

v. Project Badging, Safety Training, Security

vi. Base Terminal technical participants in Fire Alarm Testing (Maximum 3 Tests per space)

vii. Coordination with NTO's Tenant Coordinator, who will prioritize Tenant conflicts that require further coordination

viii. Parking at Aqueduct and Transportation for Construction Workers via NTO Dedicated Buses

Other items of cost **not** included in **Appendix B,** are dependent upon individual Tenant conditions, and are at an additional fee. This includes, but is not limited to:

i. Power usage fees,

ii. Review of structural loads imposed by EOR,

iii. Review of proposed work outside of a Tenant's leasehold by applicable AOR/EOR

iv. Review of Tenant design for compliance with Base Terminal design, e.g. - changes or

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

new connections to building systems, or evaluating whether a design alters atrium space or smoke evacuation design.

v. Airside deliveries, if they become available (e.g. - airside gate, security – by TCC, or vehicle / personnel escorts -- by Tenant Contractor)

The fees to NTO and TCC shall be paid prior to start of the Tenant Contractor work.

X. Completion / Closeout

a. Punchlist Items Related to Base Terminal Work

Any punchlist item related to Base Terminal work that are caused by Tenant Contractor are:

i. the responsibility of the Tenant Contractor

ii. to be corrected by TCC

iii. cost of correction shall be at the Tenant Contractor's sole cost and paid to TCC through NTO payment process

b. Coordination and Scheduling of Tenant's System Testing and Commissioning Activities

All testing and commissioning activities that involve the Base Terminal systems must be coordinated through the TCC Tenant Superintendent. The work must be planned in advance and the timing of the work approved by TCC. TCC may require testing and commissioning activities that interrupt the Base Terminal work to be performed on second or third shift.

c. Coordination and Scheduling of Tenant's Inspections

Scheduling of inspections is the responsibility of the Tenant Contractor through NTO. Some of these require schedule coordination with TCC.

There are several levels of inspections:

i. PANYNJ Progress inspections – at the request of the Tenant Contractor, not requiring TCC involvement

ii. PANYNJ Partial Inspection -- including testing of tie-in to Base Terminal system requires TCC involvement

iii. PANYNJ Final Inspection – may require TCC involvement

d. Operational Readiness and Transition ("ORAT") Period and Active Terminal Operations

At the point where TCC achieves Substantial Completion, TCC will no longer be in control of the Project site. At that point, NTO will have control of the building and the NTO rules of working in the building are to be followed.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX A

T1 SHUT-DOWN / TIE-IN REQUEST FORM

DATE: _____

TENANT CONTRACTOR: _____

TENANT SPACE DESCRIPTION: _____

SERVICE REQUEST

- [ ] Electrical, power
- [ ] Fire Alarm
- [ ] Water
- [ ] Sprinkler
- [ ] Gas
- [ ] H&V {such as for FSD re-testing, area balancing requiring air}

DESCRIPTION OF REQUEST: (include work contemplated, date and shift requested)

_____

_____

_____

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX B
DESIGN BUILDER FEES

1. Trash Removal: **$8.00 / SF**
   Discounts: Storage Areas 50%, ATO / Office 60%
2. Hoisting: **$7.00 / SF**
   Level 1 and 3 (deliveries via departures roadway) $0
   Discounts: Retail 70%, Storage Areas 50%, ATO / Office 60%
3. Badging: **$2,000** per tenant space
4. Temp Power: **$1.50 / SF**
5. Security/Toilets/Safety: **$1.15 / SF**
6. Delivery and site coordination, scheduling
7. Contractor Busing **$6.00 / SFC**
   Parking at Aqueduct and Transportation via NTO Dedicated Busing

Other Cost Items: dependent upon individual Tenant conditions: includes, but is not limited to:

- TCC Fee 5%
- Utility Consumption: Electric, NG, DW, CW, MTHW (actual cost as per utility provider)
- AOR / EOR Fees: Review of structural loads imposed by work, proposed work outside of a Tenant's leasehold, review of Tenant design for compliance with Base Terminal design
- Union Trades as per current Trade Union Collective Bargaining Agreement Rates
- Airside deliveries: (e.g. - airside gate, security – by TCC, or vehicle / personnel escorts -- by Tenant Contractor)
- Fire Alarm Testing (Maximum 3 Tests per space)
- OCIP Insurance Enrollment

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX C
ADDITIONAL MEP-FP BASE TERMINAL INFORMATION

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

The New Terminal One
New York, NY
Project No. 25406.E.001

March 25, 2024
Revised April 3, 2024

MEMORANDUM

From: Michelle M. DeCarlo

Re: MEP White Box Delivery Services for Retailers

The purpose of this memorandum is to provide an outline of the MEP/FP services provided to the retailers.

GENERAL

1. Refer to additional retail provisions on provided Retail Provisions Matrix and Retail Tenant Connection Details on Drawings 30-A-M09.201 and 30-A-M09.202, 30-A-E07.604, 30-A-P09.200, 30-A-FP07.110 and 30-A-FP06.102.

HVAC

1. Outside Air
   a. Filtration: MERV 8 pre-filter, MERV 14 filter, carbon final filter.
   b. Temperature.
      1) Winter: 55°F.
      2) Summer: Ambient conditions.
   c. Volume
      1) Dry Retail (non-KX spaces)
         a) Outside air tap with ALD (or FSD as required), for code-required ventilation based on occupancy, provided by the Landlord. Downstream VAVs provided by the Tenant and connected to Landlord BMS.
      2) Kitchen Exhaust Space
         a) Outside air tap with ALD (or FSD as required), for 90% of the total kitchen exhaust (or occupancy ventilation, whichever is greater),

80 PINE STREET | NEW YORK, NY 10005 | T 212.530.9300
2 LIBERTY SQUARE, 3RD FLOOR | BOSTON, MA 02109 | T 617.982.1731
50 SOUTH 16TH STREET, SUITE 1700 | PHILADELPHIA, PA 19102 | T 267.521.0424
WWW.JBB.COM

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

provided by the Landlord. Downstream VAVs provided by the Tenant and connected to Landlord BMS.

d. Occupancy Ventilation

1) Dry Retail: Fifteen (15) people/1,000 sq.ft. at 7.5 cfm per person + 0.12 cfm/sq.ft. (code for Sales).

2) Kiosk F&B: Fifteen (15) people/1,000 sq.ft. at 7.5 cfm per person + 0.12 cfm/sq.ft. (code for Sales).

3) Food Court F&B*: 100 people/1,000 sq.ft. at 7.5 cfm per person + 0.18 cfm/sq.ft. (code for Cafeteria, Fast Food).

4) F&B*: Assumed 65% seating at 70 people/1,000 sq.ft. (code for Dining Rooms) and 35% BOH for fifteen (15) people/1,000 sq.ft. for a blended value of 50.75 people/1,000 sq.ft. at 7.5 cfm per person + 0.18 cfm/sq.ft.

5) Concession Storage: Five (5) people/1,000 sq.ft. at 7.5 cfm per person + 0.18 cfm/sq.ft. (outside air assumptions allow for some occupancy).

* Kitchen makeup air is the overall outside air driver.

2. General Exhaust/Post-Fire Smoke Purge

a. General exhaust air tap with ALD (or FSD as required), for 1.25 the occupancy ventilation CFM or the URW requested value (whichever is greater), provided by the Landlord. Downstream VAV provided by the Tenant and connected to Landlord BMS.

b. ALD (or FSD, if walls require) at tap provided by the Landlord for post-fire smoke purge, where required.

3. Kitchen Exhaust

a. Ductwork pathways from the Tenant demised space to the roof in the quantities/sizes identified by URW.

1) Food Court F&B: One (1) 4,000 cfm duct.

2) Small F&B: Two (2) 4,000 cfm ducts.

3) Medium F&B: Three (3) 4,000 cfm ducts.

4) Large F&B: Three (3) 5,000 cfm ducts.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

b. Kitchen exhaust equipment, including KX hood, exhaust fan, electrostatic precipitator, and associated VFDs are by Tenant. Precipitator and fan VFD to be located within Tenant demised area. Kitchen exhaust fan(s) to be located on Landlord-provided roof curb(s).

4. Low-Temperature Chilled Water

   a. Temperature: 42 - 57°F.

   b. Sized based on URW wattage densities + occupant outside air cooling (code-minimum ventilation per above) + facade load if applicable.

5. Hot Water

   a. Temperature: 105 - 85°F.

   b. Sized based on URW wattage densities + facade load if applicable.

6. Non-Lid Retailers

   a. Spaces are served from common building HVAC systems.

   b. Spaces served along North facade are served by central terminal airside systems.

   c. Temperature based on loads determined in sections above.

      1) Winter: 70°F d.b. (no humidity control).

      2) Summer: 75°F d.b, 50% RH +/- 5% (space temperatures may vary based on exact equipment and layout provided by retailer).

7. Condenser Water: None

8. Toilet Exhaust: None

9. Dishwasher Exhaust: None

ELECTRICAL

1. Normal Power

   a. Empty raceways provided from closest electrical closet (via a dedicated OCP device) by the Landlord. Raceway size and quantity are determined by the respective size and type of each retail space.

      1) Extension of feeders from electrical closet by Tenant.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

2) Tenant shall be responsible for extension of empty raceway from the demarcation point to an electrical closet/equipment being provided as part of their fit-out.

3) Tenant shall provide all required electrical equipment (e.g., panelboards, disconnects, transformers, etc.) as required for their fit-out.

4) For closets that are not within 100 ft. of Tenants Space, the raceway has been oversized to accommodate voltage drop.

b. Submetering shall be provided by Landlord at the electrical closet via digital submeter system. Current transformers (CTs) associated with each feeder shall be provided by the Tenant as well as any re-programming needed for this system.

2. Emergency/Legally Required Power

a. Emergency circuit (raceway and wire) shall be provided by the Landlord for emergency lighting and exit signs terminated via junction box at Tenant premises.

1) Emergency lighting and exit signs within retail spaces are by the Tenant. Submeters are not provided for this emergency distribution and the cost for this shall be based on calculated consumption.

b. Empty raceway(s) for power shall be provided by the Landlord from a legally required source for Tenant-provided roof-mounted kitchen exhaust fan(s) for Tenants with cooking. Raceway size and quantity are determined by the respective size of the Tenant exhaust fan capacity identified by URW.

c. Empty raceway(s) for power shall be provided by the Landlord from a legally required source for Tenant-provided kitchen precipitator for Tenants with cooking.

d. All conduits required for controls shall be provided by the Tenant.

3. Fire Alarm

a. Code-minimum notification coverage provided by Landlord for white box space.

b. A Fire Alarm Terminal Cabinet (FATC) shall be provided for each Tenant demised area. The raceway from the base building DGP to each FATC shall be grouped for each set of islanded Retail Tenants. The FATC shall allow the Tenant to connect to the base building Fire Alarm System.

c. A separate raceway shall be provided for all of the islanded Retail Tenant spaces for notification appliances.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

d. Additional devices, wiring, subpanels, reprogramming, testing, commissioning of fire alarm system, etc., shall be by Tenant and connected back to fire alarm system via raceway/FATC mentioned above.

PLUMBING

1. Grease Waste

a. Tenant with grease waste shall provide local grease interceptor prior to the connection to the grease waste capped connection provided.

b. Grease waste capped connection size based on anticipated grease DFU requirement with a minimum size of 4-inch connection.

c. A 4-inch grease waste capped outlet to central automatic grease interceptor in Grease and Ejector Rooms provided for:

1) Kiosk (Food and Beverage) – KFB.

2) Food Court-Style Food and Beverage (Cooking) – FCFB-G.

3) Food Court-Style Food and Beverage (No Cooking) – FCFB-NG.

4) Restaurant-Style F&B (Small Cooking) – FBR-S-G.

5) Restaurant-Style F&B (Small No Kitchen Exhaust) – FBR-S-NKX.

6) Restaurant-Style F&B (Small No Kitchen Exhaust No Lid) – FBR-S-NKX-NL.

d. A 6-inch grease waste capped outlet to central automatic grease interceptor in Grease and Ejector Rooms provided for:

1) Restaurant-Style F&B (Medium Cooking) – FBR-M-G.

2) Restaurant-Style F&B (Medium No Kitchen Exhaust) – FBR-M-NKX.

3) Restaurant-Style F&B (Medium No Kitchen Exhaust No Lid) – FBR-M-NKX-NL.

4) Restaurant-Style F&B (Large) – FBR-L.

5) Ghost Kitchen – GK.

6) Lounges.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

e. For Tenant-provided kitchen exhaust precipitator, Tenant is responsible for providing grease waste receptor and tie-ins to local grease interceptor for precipitator discharge. Grease interceptor for precipitator to be sized for maximum water consumption load.

2. Sanitary/Vent

a. Sanitary drainage shall not connect to grease waste capped connection.

b. Sanitary capped connection size based on anticipated DFU requirement with a minimum size of 4-inch connection.

c. Vent capped connection size matches sanitary capped connection size for each retail space.

3. Domestic Water

a. Submeter provided for each retail space requiring domestic water supply.

b. Domestic cold water provided with capped ball valve connection; size based on anticipated WSFU requirement.

c. Hot water is not provided for any retail space.

d. For Tenants with kitchen exhaust, Tenant is responsible for the production and distribution of domestic hot water for kitchen exhaust precipitator washdown.

4. Gas

a. Gas provided with a dedicated meter and regulator within Gas Meter Room.

b. Gas pressure to be determined pending gas equipment selection.

c. Tenant shall contract directly with National Grid to obtain and set their gas meter as part of Tenant fit-out scope.

d. Capped valve gas connection and associated anticipated gas load provided for:

1) Food Court-Style Food and Beverage (Cooking) – FCFB-G (1,000 CFH).

2) Restaurant-Style F&B (Small Cooking) – FBR-S-G (1,500 CFH).

3) Restaurant-Style F&B (Medium Cooking) – FBR-M-G (1,500 CFH).

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

4) Restaurant-Style F&B (Large) – FBR-L (2,500 CFH).

5) Ghost Kitchen – GK (2,500 CFH).

6) Lounges (5,000 CFH).

e. Tenant spaces with kitchen exhaust hoods shall provide Ansul gas valves for emergency gas shut-off as required for their KX hood.

5. Bathroom

a. Tenant Bathroom shall be fit out by Tenant unless otherwise noted.

FIRE PROTECTION

1. Sprinkler Coverage

a. Retail spaces provided with concealed pendent sprinkler heads for spaces with finished ceiling. Otherwise, upright sprinkler heads provided for white box retail spaces.

b. Retail spaces with no lids, or retail spaces with lids provided with 70% opening or greater, shall be provided with sprinkler coverage from base building sprinklers from higher ceiling elevations.

c. Sprinkler design density is Ordinary Hazard Group 1.

d. Retail spaces with Commercial Kitchen classified as Group F-2 without separation from adjoining dining spaces shall be provided with draft curtain and sprinkler heads protecting the opening between the cooking facilities and the dining spaces.

2. Retail Isolation Valves

a. Isolation valve provided to each retail space to separate from base building system.

b. Isolation valve allows for disconnection and renovation for retail Day 2 turnovers and design changes for modifications to lids and openings.

3. Alternative Automatic Fire-Extinguishing System

a. Tenant spaces with kitchen exhaust hoods shall provide all code-required Ansul and fire protection systems as required for their KX hood and KX precipitator.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

BATC

1. Point of Connection

   a. A point-of-connection (POC) panel will be provided by the Landlord in the general vicinity of Enclosed retailers for monitoring of equipment alarms and controls provided with BACnet MSTP communication interfaces.

   b. All equipment controls provided with BACnet IP communication interfaces shall be connected directly to the converged network. All IP connections for equipment controls shall be coordinated with NTO during fit-out design.

2. Low-Temperature Chilled Water

   a. Btu meter shall be furnished and installed by the Enclosed retailers and interfaced to NTO BAS via point-of-connection panels.

3. Hot Water

   a. Btu meter shall be furnished and installed by the Enclosed retailers and interfaced to NTO BAS via point-of-connection panels.

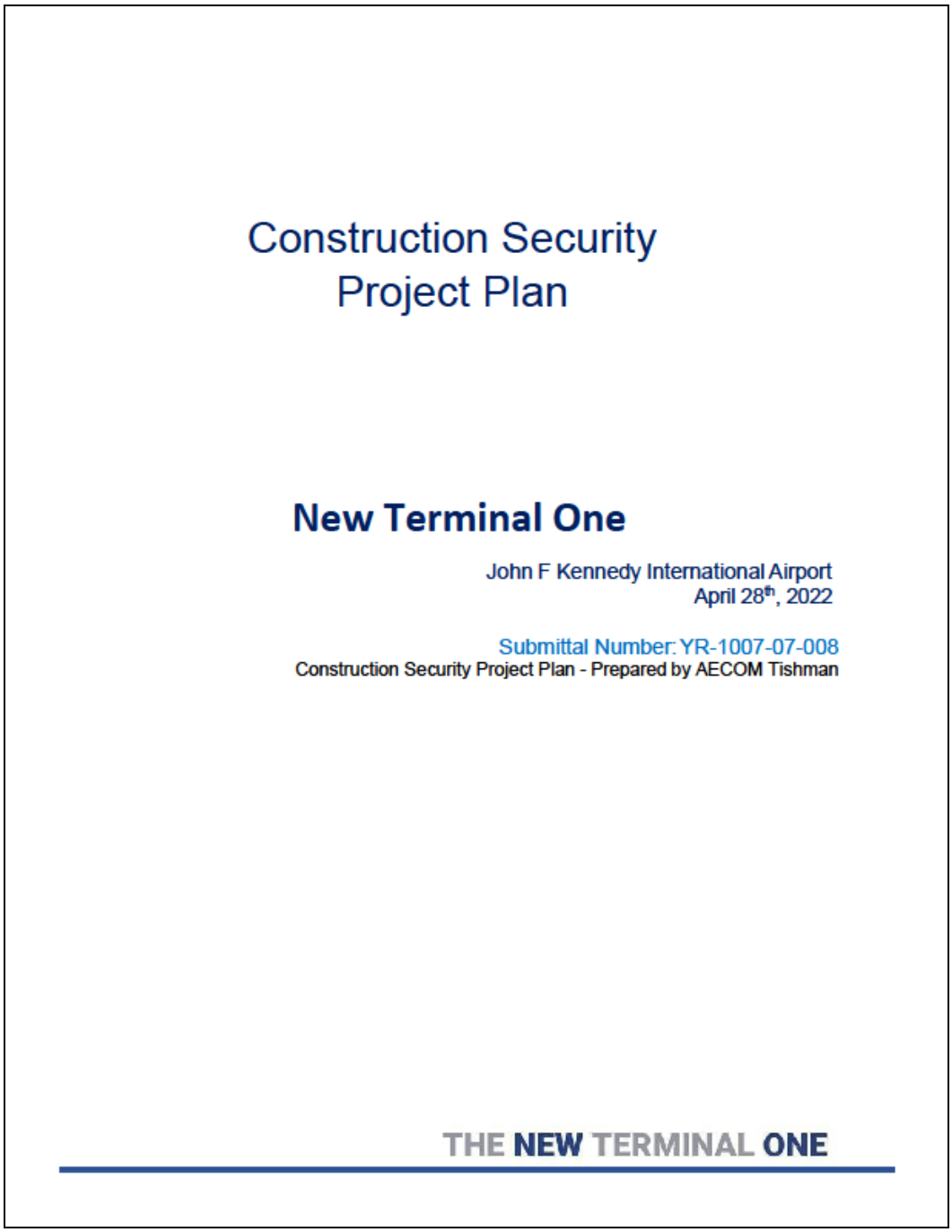
4. Domestic Water

   a. Flow meter shall be furnished and installed by the Enclosed retailers and interfaced to NTO BAS via point-of-connection panels.

v:\projects\25406.c.001-jt1\wp\memos\2024-04-03_mep white box delivery services for retailers_rev1_mmd-jz.docx

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX D
CONSTRUCTION SECURITY PLAN



Construction Security
Project Plan

New Terminal One

John F Kennedy International Airport
April 28th, 2022

Submittal Number: YR-1007-07-008
Construction Security Project Plan - Prepared by AECOM Tishman

THE NEW TERMINAL ONE

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

THE NEW TERMINAL ONE
JFK INTERNATIONAL AIRPORT

30 Broad Street, 24th Floor
New York, NY 1000

Document Number: YR-1007-07-008

Rev.	Date (mm-dd-yyyy)	Page(s) and/or section(s) revised	Description	Prepared by	Verified by	Approved by
01	03-26-2020		Revisions made to document in response to formal PANYNJ Comments	M. Zagalis	E. Milazzo	
02	05-12-2020	Sections 2, 3, and 5	Revisions made to document in response to formal PANYNJ Comments	M. Zagalis	E. Milazzo	
03	06-09-2020	Sections 3 and 5	Revisions made to document in response to formal PANYNJ Comments	M. Zagalis	E. Milazzo	
04	07-17-2020	Sections 3.h and 5	Revisions made to document in response to formal PANYNJ Comments	M. Zagalis	E. Milazzo	
05	12-12-2022	Section 1, 2, and 5	Project overview, Project Phasing, Security Personnel, Map of affected area, Addressed PA comments	E. Milazzo	M. McGivney	
06	04-05-2022	Section 3 and 5	Revisions made to document in response to formal PANYNJ Comments	E. Milazzo	M. McGivney	
07	04-25-2022	Section 2.2	Revisions made to document in response to formal PANYNJ Comments	E. Milazzo	M. McGivney	

Review and Authorization

Lessee	JFKTerminalOneCo, LLC
Project Name	JFK International Airport – New Terminal One
PMO Lead	Andy Marshall, JFKTerminalOneCo, LLC
Project Manager (PM)	Ed Milazzo, AECOM Tishman
Design Builder	AECOM Tishman

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	3 of 11

Contents

1 Project Overview 4
2 Roles and Responsibilities 4
3 Security Control Procedures 7
4 Special Procedures 9
5 Maps of Affected Areas (Phase 1) 10
6 Modification of Approved Construction Projection Security Plan 11

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	4 of 11

1 Project Overview

The JFK Re-Development New Terminal One Project construction work falls under a Design Build setting. The project consists of the construction of a new Terminal One, new Frontage Road structure for High Occupancy Vehicles (HOV), Departures and Arrivals, and reconstructed taxi aprons, new utility trunk line installation containing power, water, storm drain, sanitary and communications.

AECOM Tishman will complete the Phase A portion of the project and will maintain airport operations during construction. The phasing developed by AECOM Tishman delivers the project in a linear fashion for the new terminal sweeping from east to west, while the existing utility and roadway network supports the schedule for the new work while maintaining existing airport operations and traffic.

While there will be some work that takes place in the Secured AOA, most of the work for this project will be done in Restricted/Public Construction Areas.

This Construction Project Security Plan is for all scopes of works associated with the construction activities for the New JFK Terminal One Redevelopment Project. The information set forth within this document shall apply to all phases of construction and is to be amended as needed. Each amendment to this document will be tracked and submitted for review via E-Builder.

1.1 Project Duration

The anticipated project start date is in 2nd Quarter of 2022 with an anticipated completion date of May 01, 2026.

1.2 Project Phasing

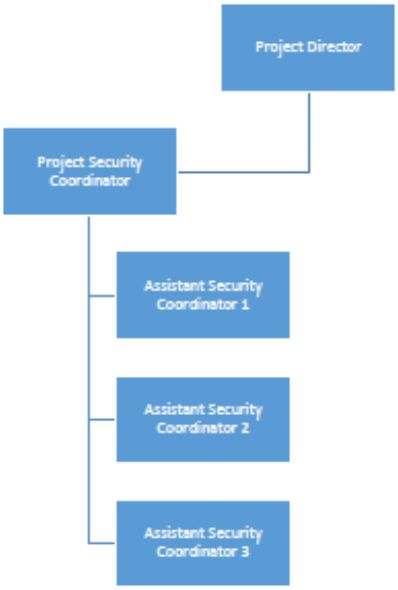
In order to deliver the Phase A portion of the project to meet the RPW and Lessee requirements there will be micro phasing associated with each phase. As part of this micro phasing capture areas and turned over areas of the project will continue to change as the project progress. Within each capture and turnover the security procedures outlined herein will be adhered to maintain a secure construction area at all times. As part of each micro phase this document will be updated in submitted to the Port Authority to correctly portray section 5 "Maps of Affected Areas" modifications to "Maps of Affected Areas" will be submitted for review within 180 days prior to start of work.

2 Roles and Responsibilities

JFK Terminal One Redevelopment Construction Management team has been established to effectively execute project contractual requirements such as; Design, Schedule, Construction, Inspection, Testing, and Closeout. Senior management shall staff the Construction Management team as determined to effectively accomplish the security requirements of the project set-forth.
The organizational chart for the project security personnel can be found below.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	5 of 11



Project Security Personnel Org Chart

2.1 Responsibilities of the Project Director:

The Project Director shall provide a leadership role to assure a commitment to security are implemented adequately throughout all phases of the project. The Project Director shall assure the Security Coordinator and Assistant Security Coordinators are adhering to all security procedures, guidelines, and processes set in place.

2.2 Responsibilities of the Security Coordinator:

The Project Security Coordinator , who's contact information will be provided to the Port Authority once available, will be responsible for maintaining the secure access to the site. This includes, ensuring badging eligibility of all project personnel, maintaining records of project personnel and their clearance expirations, and maintenance and record keeping of this Construction Security Plan and associated documents. They will be the site-specific project security coordinator and shall serve as the primary site-specific contact for security related activities and communications. All site related security directives from the Port Authority and/or the site wide project security officer shall be implemented and enforced by the Project Security Coordinator and/or approved site-specific project security designees. The responsibilities of the security coordinator is as follows:

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	6 of 11

a. Maintain list of all current project personnel and their SWAC ID expiration and provide to the Resident Engineer's Office.

b. Maintain list of all current project personnel with SIDA ID badges and their expiration dates and provide to the Resident Engineer's Office.

c. Maintain list of all current and expired project photo ID badge holders and provide to the Resident Engineer's Office.

d. Maintain list of all construction site vehicles performing work in the AOA Secured Areas and provide to the Resident Engineer's Office.

e. Maintain list of all staff authorized to work within designated AOA Secured Areas and provide to the Resident Engineer's Office.

f. Maintain list of all staff with escort privileges and provide to the Resident Engineer's Office.

g. Summary of incidents resulting in a security response and revocation of Airport ID, Project Specific Site Badge, and/or SWAC ID.

h. Maintain list and identification of personnel escorted on to the construction site and provide to the Resident Engineer's Office.

i. Provide immediate reporting of security related incidents and suspicious activities to the necessary parties including but not limited to: Executive Staff, Ownership, Port Authority Security, and the Port Authority Police Department.

j. Provide constant communication with Port Authority Resident Engineers Office and Port Authority on security related items including but not limited to: gate access control systems, vehicle access procedures, and fence modifications and/or relocations.

k. Provide site orientation security information either to the associated site orientation presenter with all necessary information regarding the project's latest security procedures.

2.3 Responsibilities of the Assistant Security Coordinator:

Assistant Security Coordinators will be responsible for assisting the Security Coordinator with the above noted tasks. They will report to the security coordinator and or executive management when required. In the event the Security Coordinator cannot be contacted relating to any security questions they will act as the secondary point of contact.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	7 of 11

Title	Name	Phone	Email
Project Security Coordinator	Michael Tomechko	(917)-299-3841	Michael.Tomechko@aecom.com
Assistant Security Coordinator 1			
Assistant Security Coordinator 2			
Assistant Security Coordinator 3			

3 Security Control Procedures

a. A security badging office will be established on-site for project personnel to obtain a JFK Redevelopment Project Photo ID.

b. In accordance with RPW sections 20.16-20.25, all project personnel scheduled to remain onsite for a duration of 3 or more days shall require SWAC Identification Card in order to be eligible for a Project ID granting access to the site.

c. All temporary personnel arriving onsite shall provide photo identification for verification and will be escorted to the specific area of interest by onsite personnel possessing proper credentials for the area being visited.

d. Temporary site access will be granted to personnel whose SWAC application is under review. This temporary access will not extend beyond ten days without renewal, unless prior approval has been granted by the Port Authority.

e. A computerized site access control system will be utilized to monitor entry into the site.

f. A guard or other approved individual shall be required to maintain ingress/egress proceeding through the personnel entrance gates, to verify personnel and prevent unauthorized entry into the site by passengers or the public-at-large.

g. A guard or other approved individual shall be required at each vehicle gate that is being utilized for the construction efforts to verify personnel and prevent unauthorized entry into the site by passengers or the public-at-large. If a gate is not manned it shall be locked at all times. Guard should be required to be present anytime construction work is being performed on site (including 2nd and 3rd shifts).

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	8 of 11

h. Jersey barriers with chain link fence covered with mesh material and/or graphic barrier shall be installed along the public facing perimeter of the site to protect against vehicular collision and sight intrusion. Perimeter fencing that separates that work area from the AOA Secure Area and will meet PANYNJ standards and will be maintained by AECOM Tishman throughout the project. This fencing will comprise of Jersey barrier, 8ft of mesh, and 3 strand barbed wire and 30" concertina on top of barbed wire. The project will maintain a 10' clear area from the AOA fence ensuring no materials, vehicles, shanties, trailers, or other objects will be stored within this 10' clear zone. As fencing is relocated to accommodate changes in the stages of work the condition of the wire, fence, and barrier will be assessed by TCC and components will be replaced as needed to ensure security. Newly installed AOA fencing will be inspected by PA Security and TSA prior to the removal of any existing fencing and the conversion of an area from Airside to Landside.

i. Temporary lighting shall be installed by TCC at access points and various locations throughout the site as deemed necessary. Lights in areas with CCTV systems will be adequate to ensure proper functionality.

j. Site Security Cameras shall be installed by TCC at all ingress/egress access points and shall be recorded and maintained for a minimum of 30 days. If for any reason the video is needed TCC will share the video with the PAPD, PA OIG, and PA Integrity Monitor.

k. Personal vehicles shall not be stationed on site.

l. A minimum 48-hour notification shall be provided for major deliveries affecting adjacent areas surrounding the outside perimeter of the project site.

m. All airside operations shall require proper badge requirements and shall be monitored by the appropriate designated escort for the location of work

n. All airside deliveries and actives will be coordinated with the Resident Engineer's Office. Information provided will include but not be limited to any relevant delivery times, truck information, and driver information.

o. All airside gates as noted in the "Map of Affected Area" shall contain PANYNJ locks. All access through these gates will be coordinated with the Resident Engineer's Office.

p. Any impacts to existing Perimeter Intrusion Detection System (PIDS) shall be evaluated in advance of impact being advanced and will be reviewed with the PA and applicable security consultants. In the event PIDS are to be relocated and/or modified in anyway proper notification will be provided to the PA and work will be coordinated with the Resident Engineers office.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	9 of 11

q. As part of the site orientation required by anyone receiving a Project Site ID Badge security requirements, procedures, and access guidelines will be presented to project staff prior to receipt of Project Site ID Badge either temporary or permanent.

r. At all staging and laydown areas the above noted security procedures will be adhered to including but not limited to AOA fence where applicable, landside construction fencing, manned security access gates, and manned guard booths. Access to staging and laydown areas will require the use of construction site badging and will be tied into the site wide security software utilized on the site.

s. Any "High Security Areas" and "Protected Areas" that require work will be coordinated with the Resident Engineers office. Access requests will be submitted 48 hours in advance of access request. All access requirements include use of escorts, performing work under the applicable qualified parties, and appropriate identification badges will be utilized and adhered to.

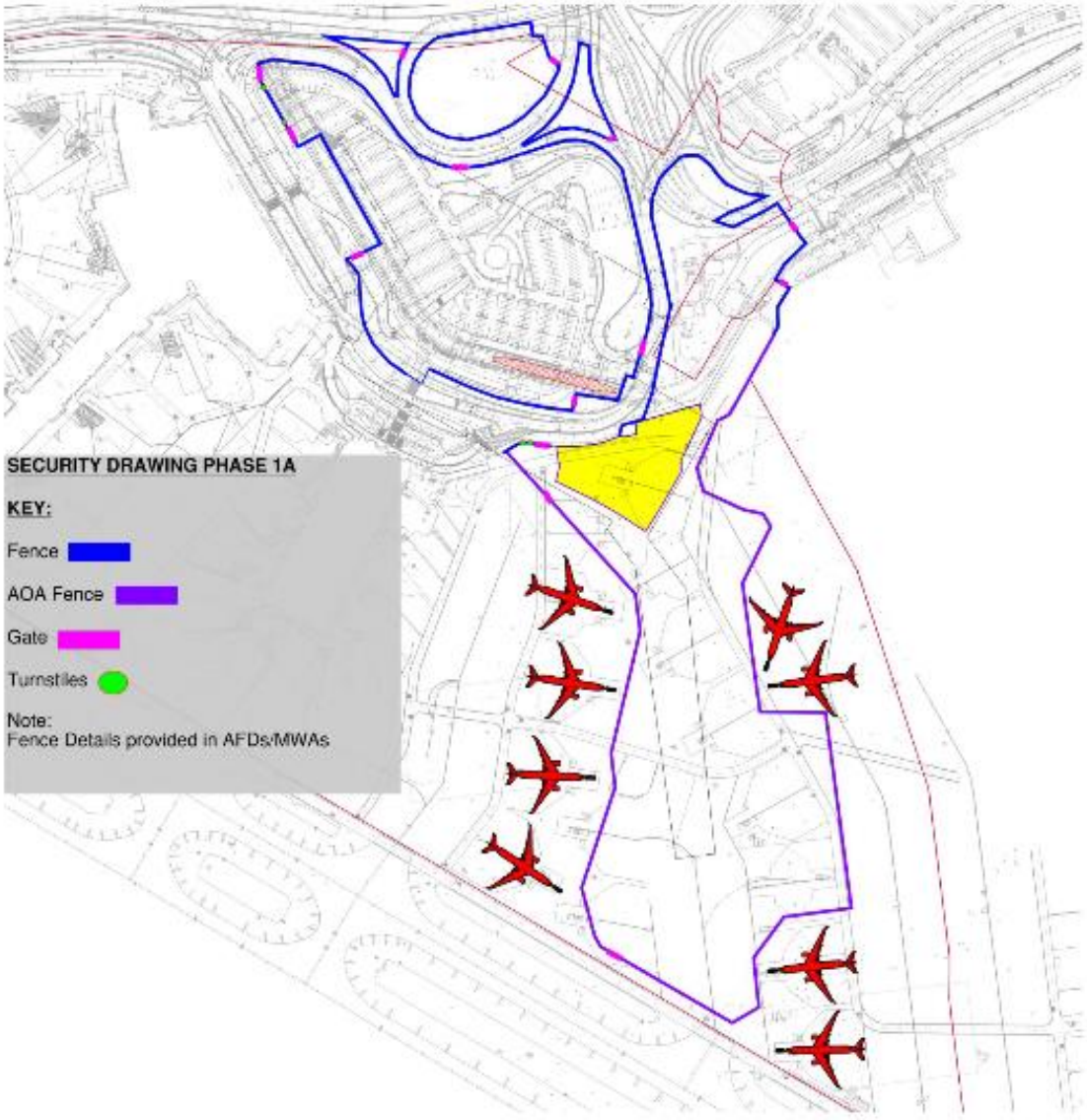
4 Special Procedures

All special procedures for incidents, accidents and elevated threats shall be contained within general site security provisions and details. The designated site-specific project security coordinator shall be responsible for conforming and enforcing said procedures and notifying the proper party regarding operational and life safety incidents.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	10 of 11

5 Maps of Affected Areas (Phase 1)



AECOM TISHMAN

THE NEW TERMINAL ONE
JFK INTERNATIONAL AIRPORT

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Title	Document Number	Rev.	Page
Construction Security Management Plan	YR-1007-07-008	06	11 of 11

6 Modification of Approved Construction Projection Security Plan

Operations that would require a temporary modification to the plan, layout of physical structure of any area under the control of the airport or terminal operators used to provide access or movement control functions as described in the plan shall be submitted to the Terminal Security Coordinator 72 hours in advance (excluding weekends and holidays) of any work requiring a modification to an approved security measure. Impacts to the existing Perimeter Intrusion Detection System (PIDS) shall be evaluated in advance and reviewed with the Resident Engineer to determine an optimal solution. The PIDS should remain active during construction and times when it will need to be removed from service will be coordinated with the Resident Engineer's office.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

AECOM TISHMAN

Required Safety Documents

Project: JFK NTO

Contractor Name: _____

Project Contact Person: _____

Contractor Safety Contact: _____

Safety Documents Submission Status:

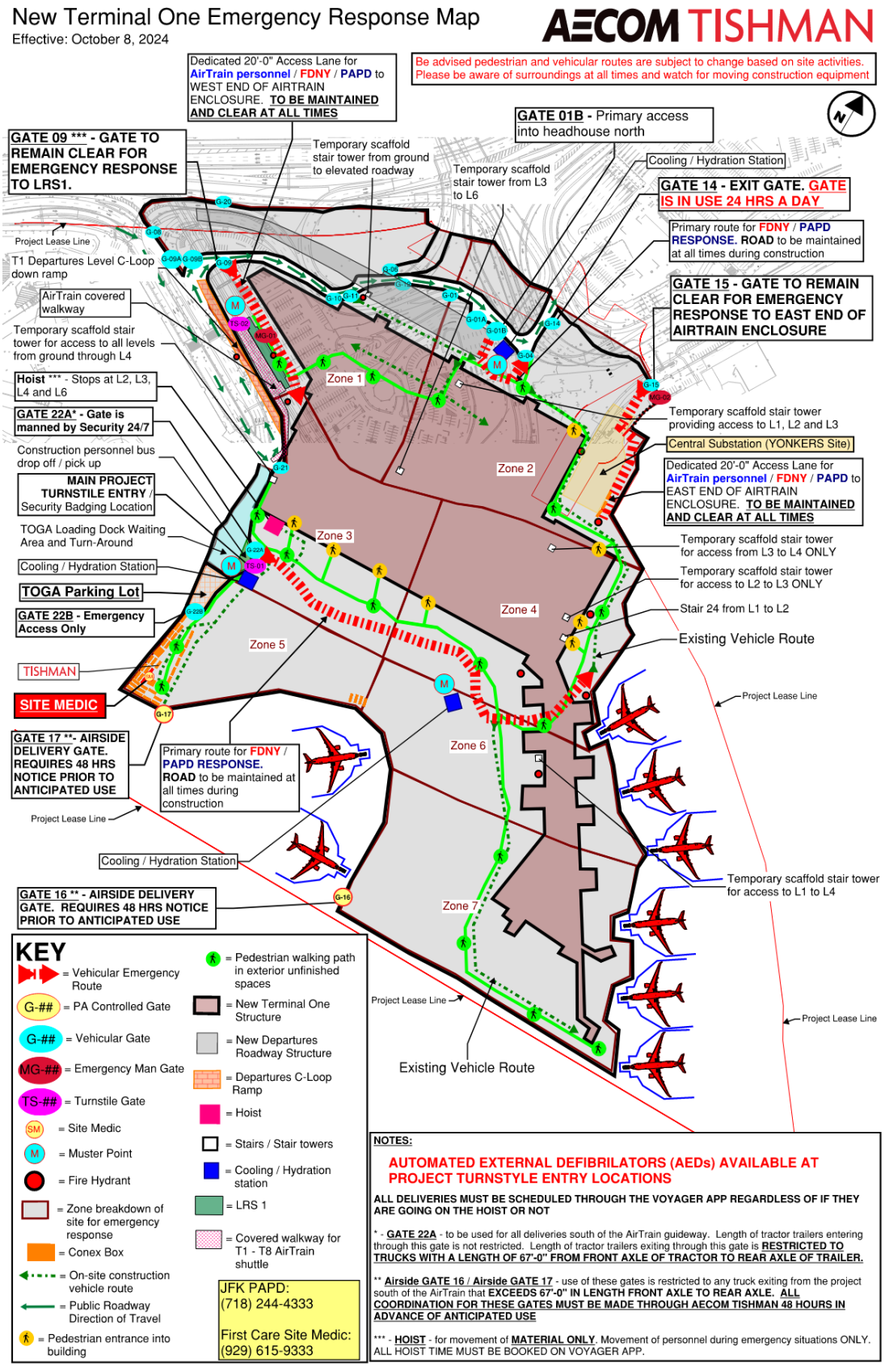
The following safety documents are required prior to subcontractor starting.
Plan:

Documentation	Received	Not Received
Health & Safety Plan (HASP)		
Competent Person's Letter (Designating a minimum of two persons)		
Toolbox Talk (Samples)		
Job Hazard Analysis (JHA)		
Daily Pre-Task Plans (Sample)		
Safety Data Sheets		
Safety Kick Off Meeting before work starts		
SWAC or SIDA is needed to work onsite		
Orientation takes place 7:15 AM on the jobsite daily		
During the course of the project, the contractor may be required to modify their safety documentation & plan to implement other measures to satisfy safety concerns in identified areas.		

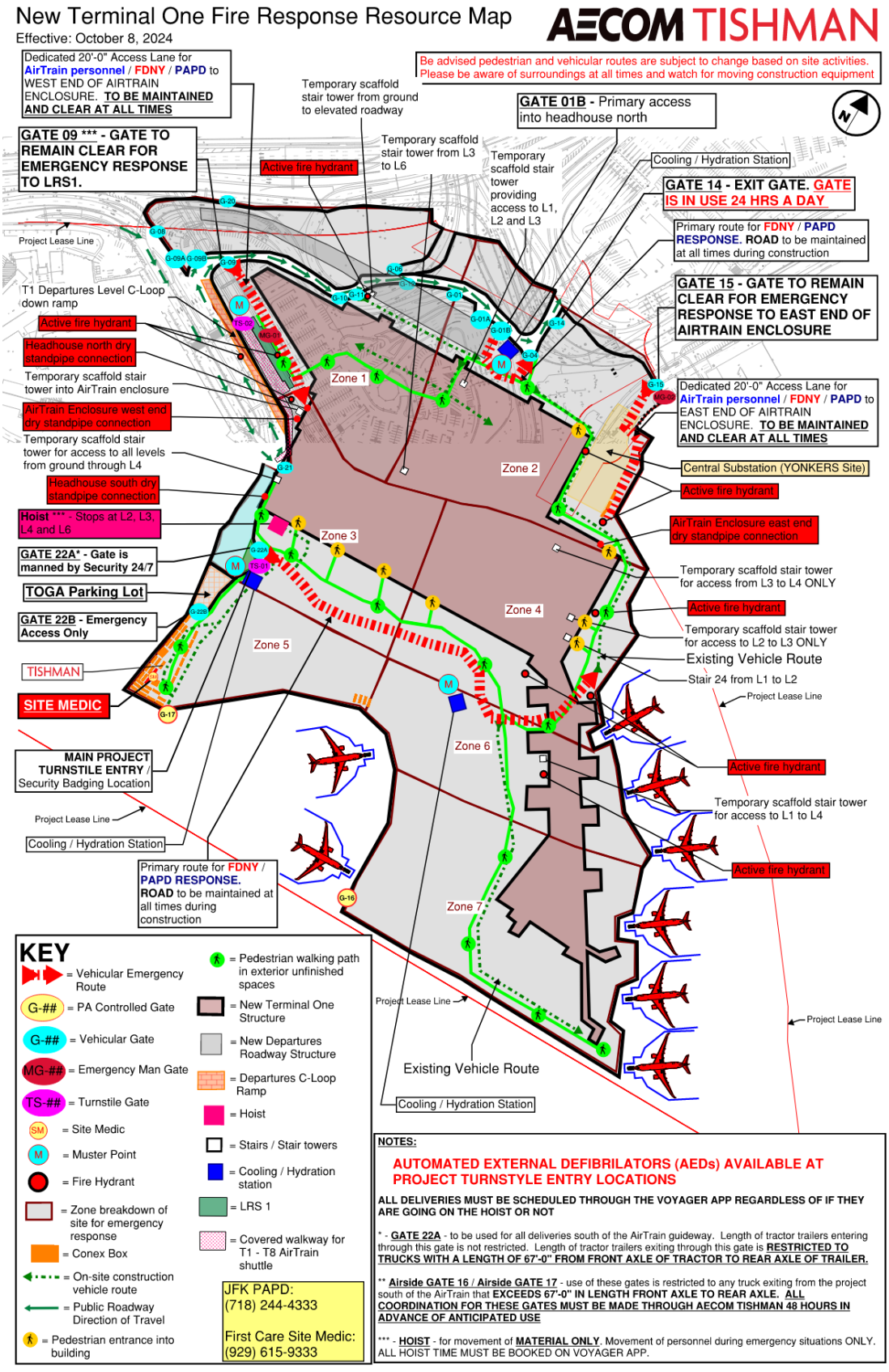
Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX E
OVERALL PROJECT LOGISTICS PLAN

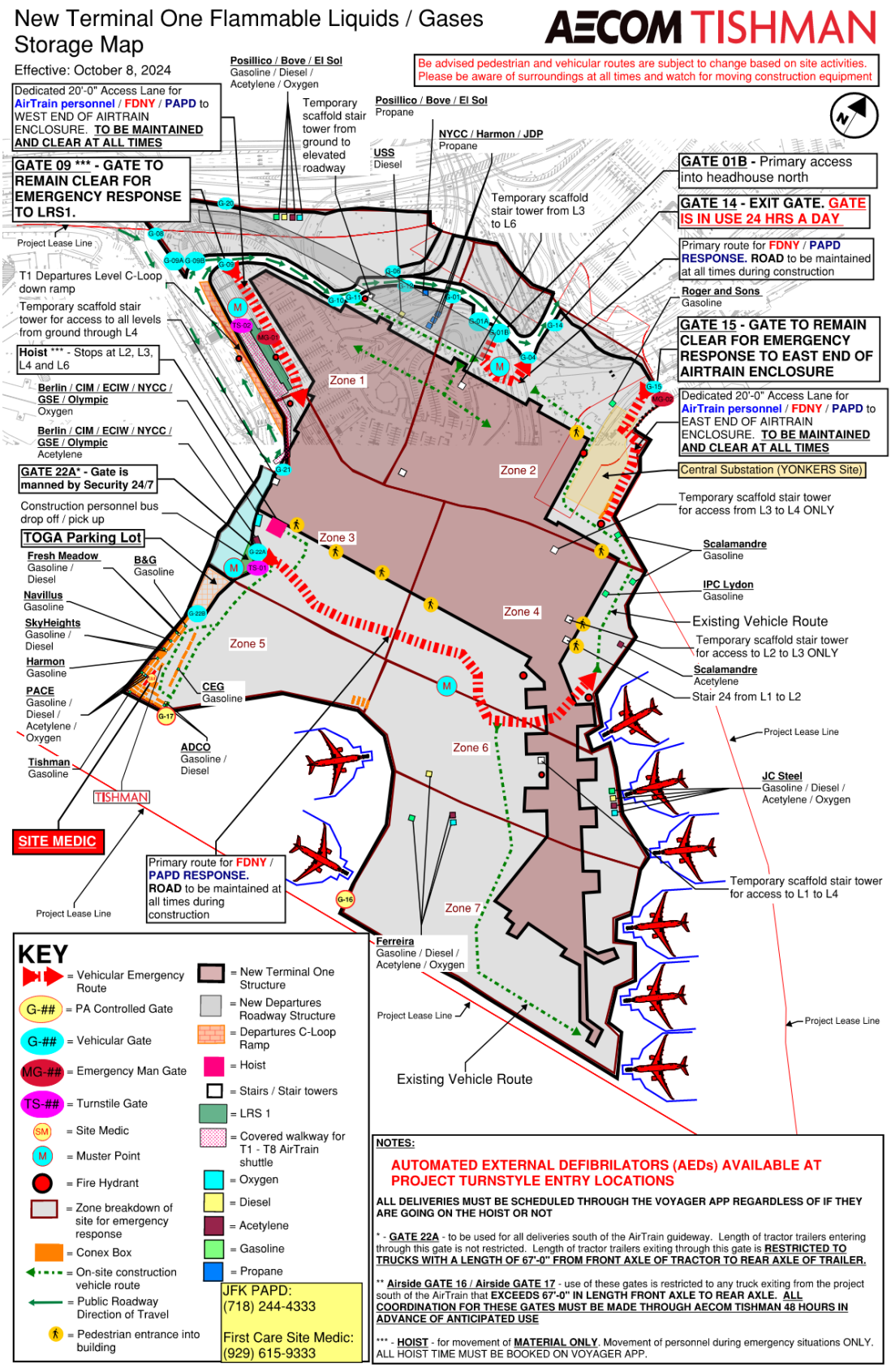
Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

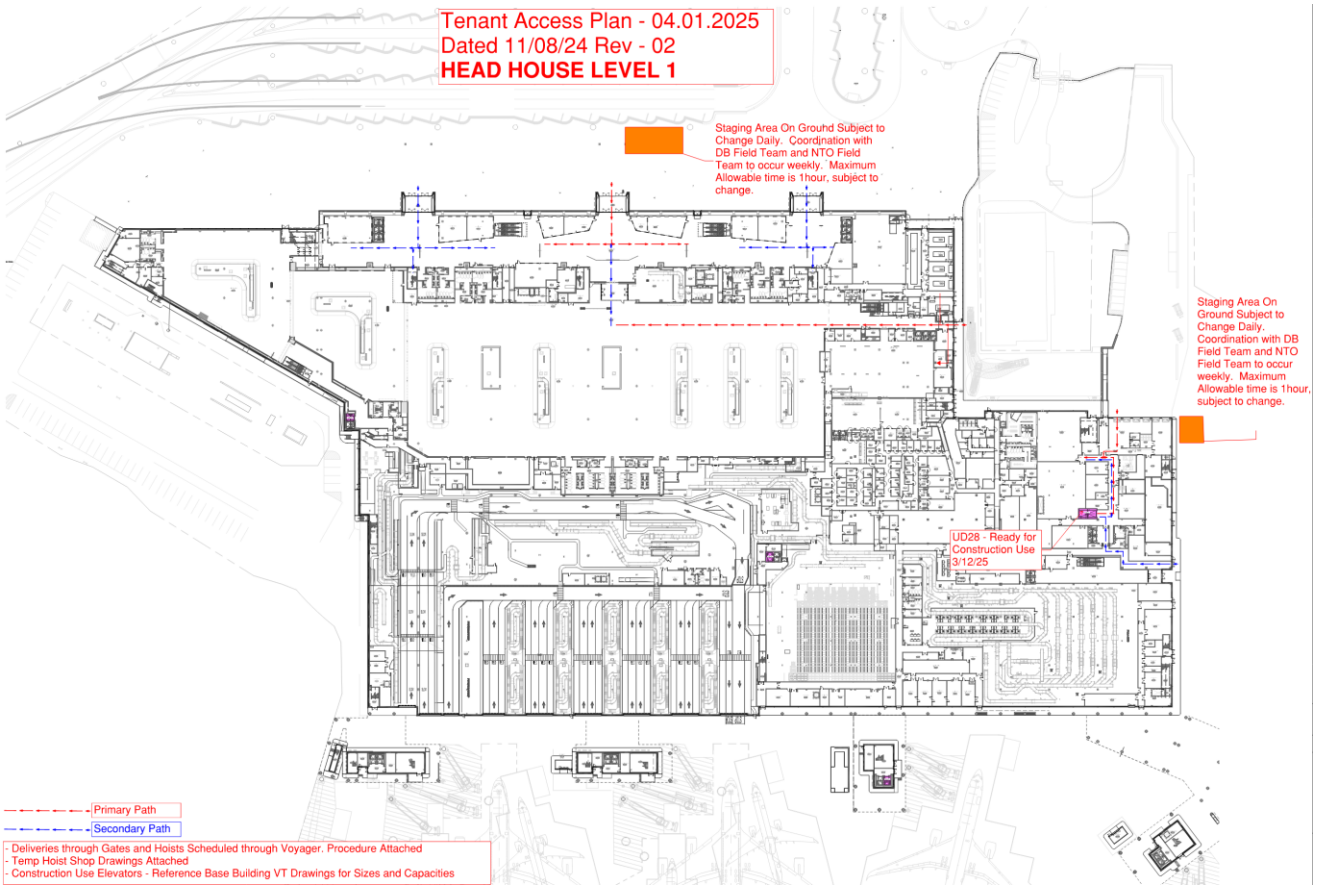


Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX F
PROJECT ACCESS AND DELIVERY PLAN



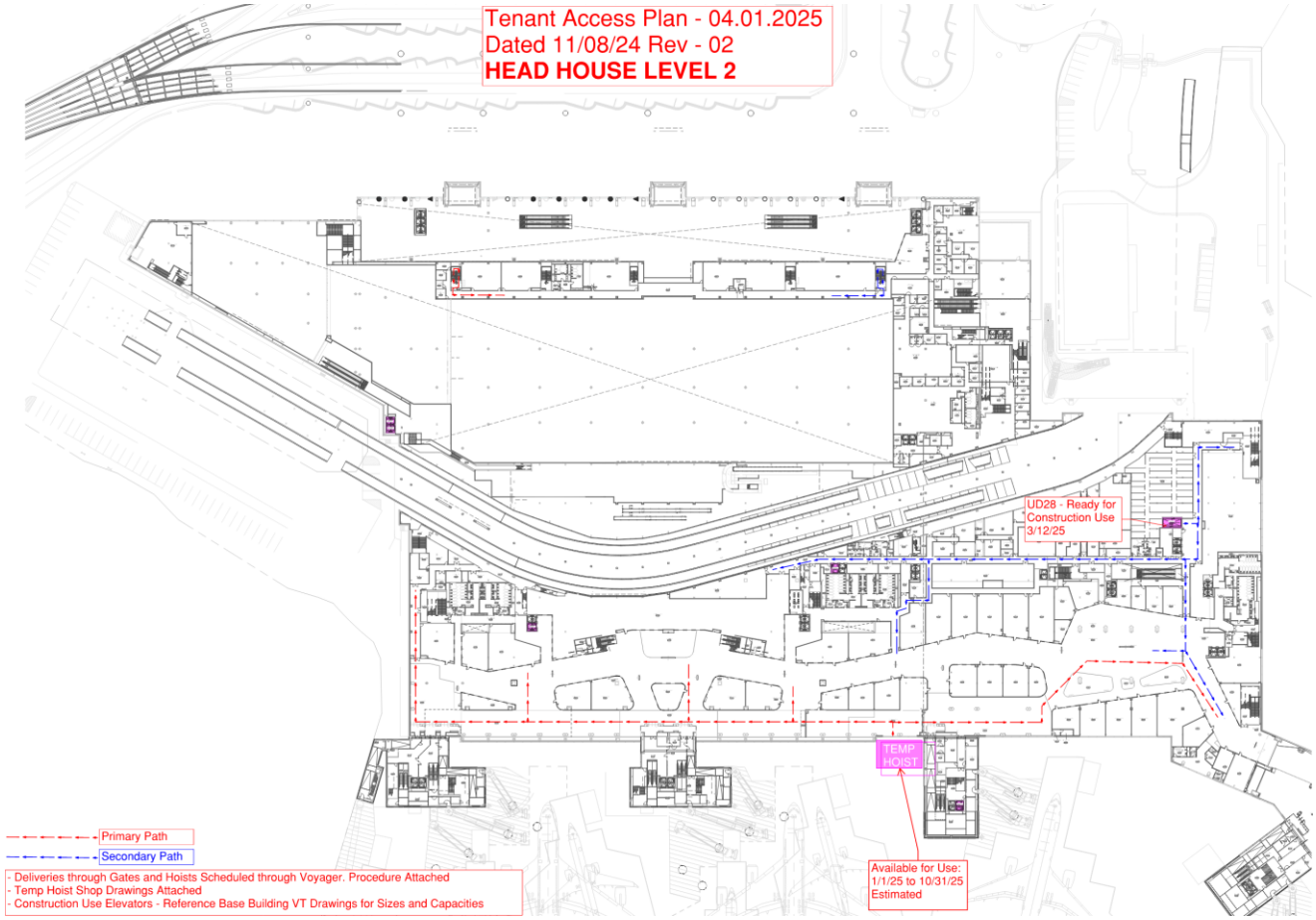
Hoist Cab Dimensions:

Exterior: 8’-2” x 20’-1” x 12’ high

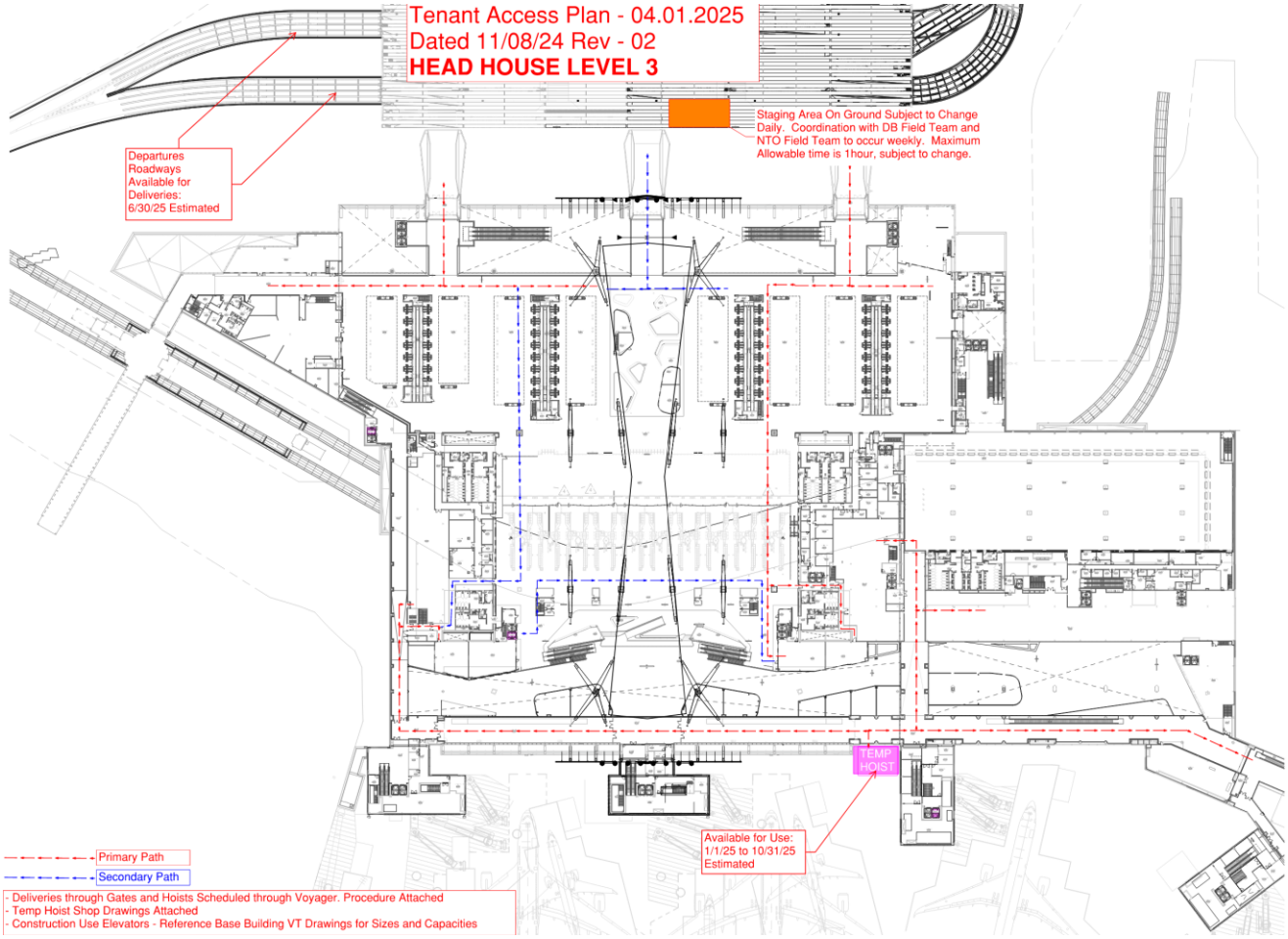
Interior Freight: 8’ x 21’

Interior: 5’-9” x 8’-8”

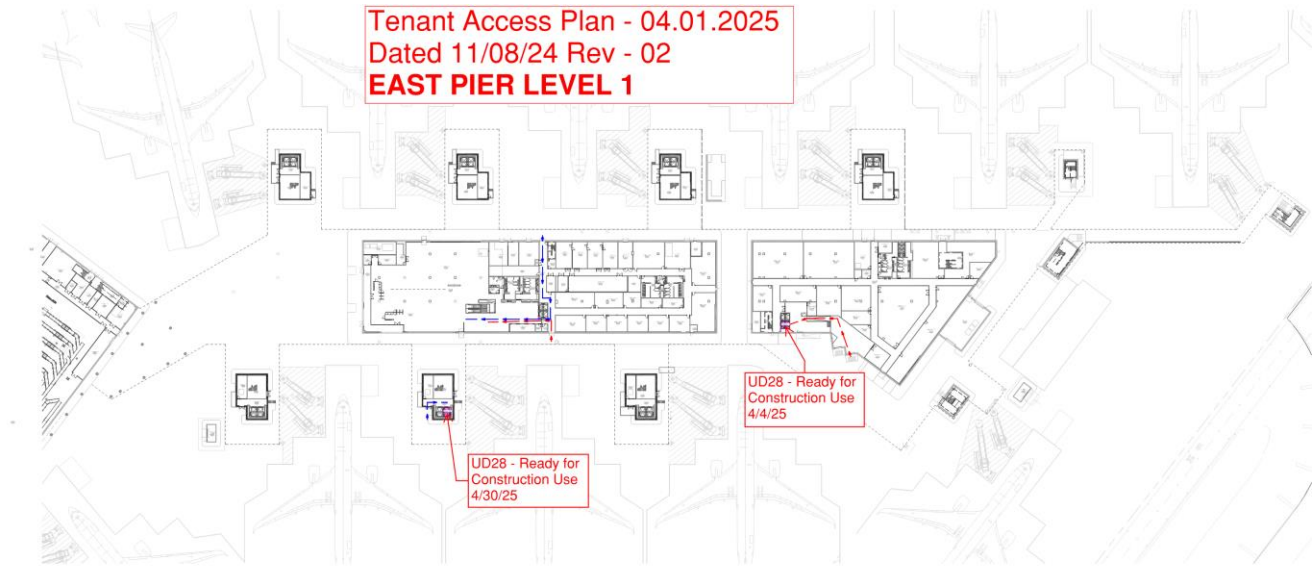
Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

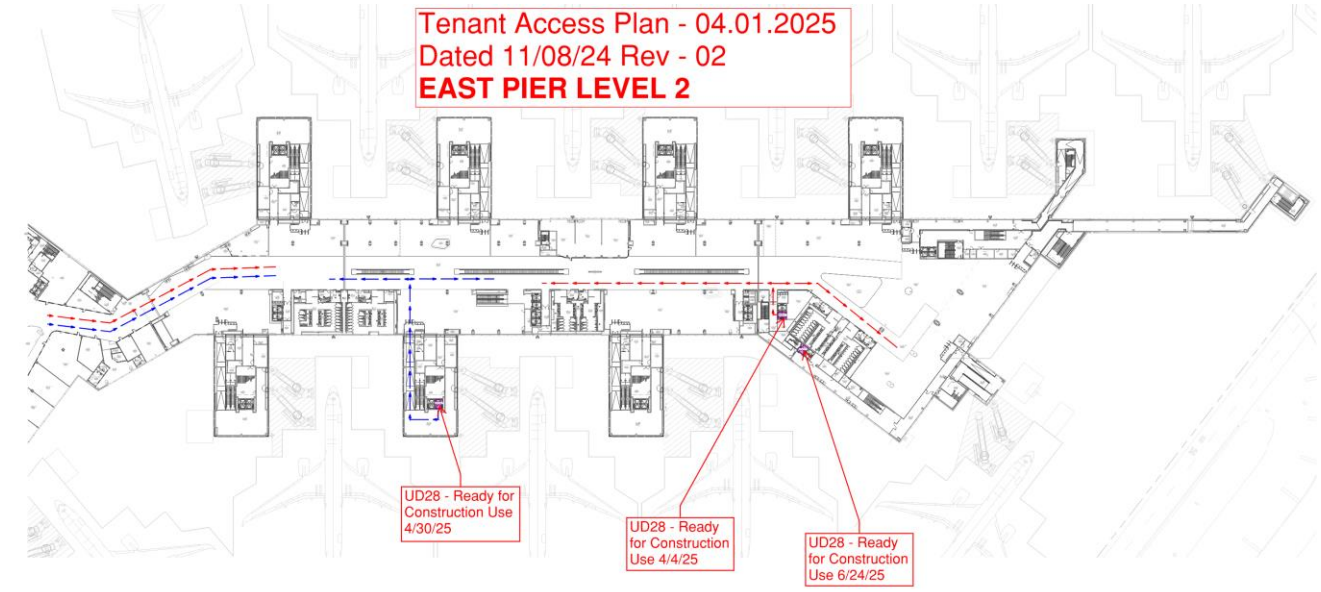


Primary Path

Secondary Path

- Deliveries through Gates and Hoists Scheduled through Voyager. Procedure Attached
- Temp Hoist Shop Drawings Attached
- Construction Use Elevators - Reference Base Building VT Drawings for Sizes and Capacities

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

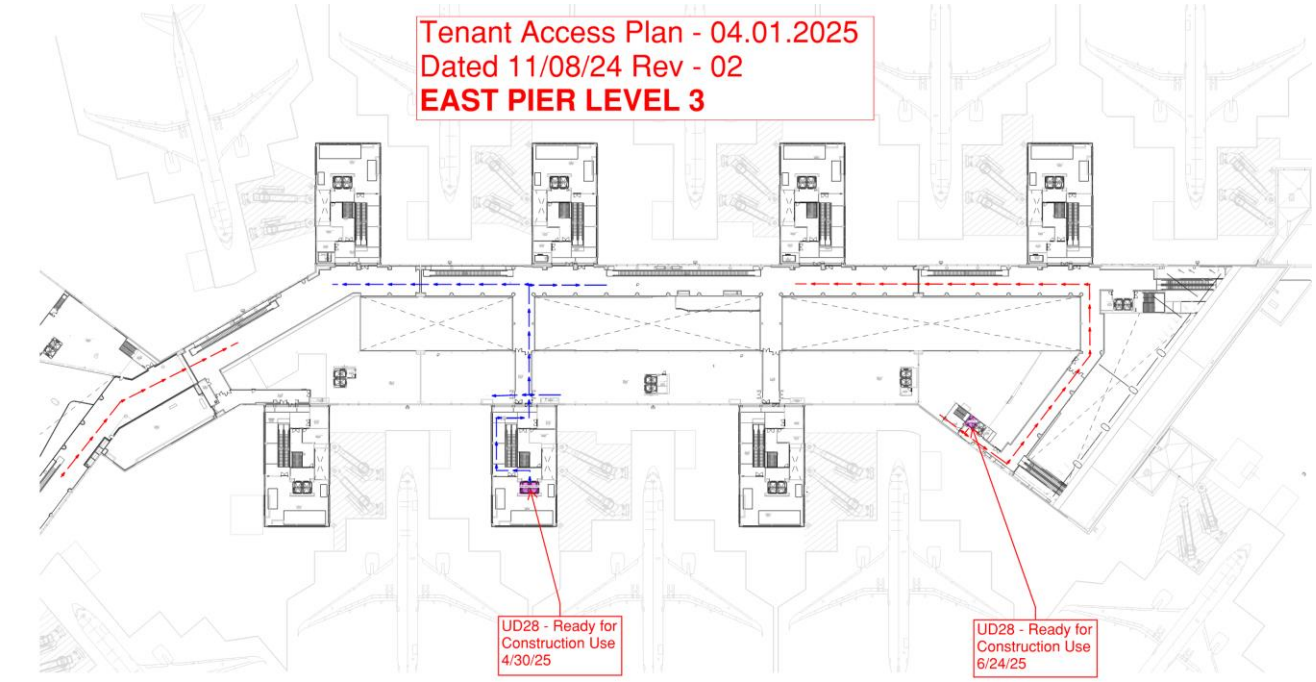


Primary Path

Secondary Path

- Deliveries through Gates and Hoists Scheduled through Voyager. Procedure Attached
- Temp Hoist Shop Drawings Attached
- Construction Use Elevators - Reference Base Building VT Drawings for Sizes and Capacities

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936



Primary Path
Secondary Path

- Deliveries through Gates and Hoists Scheduled through Voyager. Procedure Attached
- Temp Hoist Shop Drawings Attached
- Construction Use Elevators - Reference Base Building VT Drawings for Sizes and Capacities

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

VOYAGE CONTROL

Subcontractor Introduction

Mobile Device



If you're a first time Voyage Control user:

In this case, you can go to either the Android Google Play or Apple store, and find 'Voyage Control', download the app, etc. If prompted for the 3 digit code enter: JK1. Once you have the app installed, click on the '+' which is in the middle – right at the bottom of the screen to make your booking!

If you already have an account:

In this case, you will need to access **https://jfkt1.voyagecontrol.com** using the email address and password that you've used for other sites. If you forgot your password, you'll have to reset it. Once you log in to the website, you can now go back to the app, and you should be prompted for which job site you want to make a booking for.

Desktop Users



Log in at **https://jfkt1.voyagecontrol.com** (If you have already used Voyage Control on another site, you can use the same login credentials, otherwise, click on 'Sign Up' and follow the typical steps for creating a user account on a website.) To make a booking, click on '+ Schedule a delivery' on the left hand menu. Then submit your booking!

SUBCONTRACTOR ONE SHEET

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX G
EARLY SITE ACCESS (NOT SITE TOUR)

- Request access from NTO: date, time, and estimated duration
- Provide a Certificate of Insurance (COI), and name all ("Design Builder Entities") as "Additional Insureds" as well as provide an indemnitee (insurance exhibit to be provided separately)
- Provide individual SIDA credentials or SWAC (pending application)
- Proof of 30 Hour OSHA (Inspections) or 40 SST (Surveying)
- Enroll in OCIP as per program eligibility

Upon acceptance of the above, and confirmation of the site visit, the following will be required prior to access:

- Completion of Tishman Safety Training (Conducted daily at 07:15 on site)
- Adhere to all procedures – including emergencies
- Appropriate PPE
- Provide work plan inclusive of (JHAs)
- Advise requirements on site if any (power, storage, vehicle access)

Please note that no physical Work will be permitted (such as demolition, drilling, or coring) pending proof of the issuance by the Port Authority of NY & NJ of a conditional approval and permit to proceed with construction under the subject TAA.

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX H
INSURANCE REQUIREMENTS

OCIP Manual

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

APPENDIX I
DOCUMENT SUBMITTAL PROCEDURES

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

AIA® Document A102® – 2017

Standard Form of Agreement Between Owner and Contractor where the basis of payment is the Cost of the Work Plus a Fee with a Guaranteed Maximum Price

AGREEMENT made as of the Twenty Eighth day of April in the year 2025
(In words, indicate day, month and year.)

BETWEEN the Owner:

(Paragraph Deleted)

Korean Air Lines Co., Ltd.
260, Haneul-gil, Gangseo-gu
Seoul, Korea 07505
Republic of Korea

and the Contractor:
(Name, legal status, address and other information)

Holt Construction Corp.
50E Washington Ave
Pearl River, NY 10965
United States of America

for the following Project:
(Name, location and detailed description)
Korean Air Lines Lounge (KEJFK)
John F Kennedy, New Terminal One (JFK NTO)
Queens, NY 11430
United States Of America

The Architect and Owner Representative:
(Name, legal status, address and other information)
Architect:
Perkins & Will Architects P.C
1250 Broadway, Suite 200
New York City, NY, 10001
United States of America

Representative:
Blue Stone Management LLC
6060 Center Drive,
10th Floor, Los Angeles, California, 90045,
United States of America

The Owner and Contractor agree as follows.

ADDITIONS AND DELETIONS:
The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added necessary information and where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

The parties should complete A102™–2017, Exhibit A, Insurance and Bonds, contemporaneously with this Agreement. AIA Document A201™–2017, General Conditions of the Contract for Construction, is adopted in this document by reference. Do not use with other general conditions unless this document is modified.

Init.
/
AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB20AE1-A2CF-4435-82DF-5E765EB7A712

TABLE OF ARTICLES

1 THE CONTRACT DOCUMENTS

2 THE WORK OF THIS CONTRACT

3 RELATIONSHIP OF THE PARTIES

4 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION

5 CONTRACT SUM

6 CHANGES IN THE WORK

7 COSTS TO BE REIMBURSED

8 COSTS NOT TO BE REIMBURSED

9 DISCOUNTS, REBATES AND REFUNDS

10 SUBCONTRACTS AND OTHER AGREEMENTS

11 ACCOUNTING RECORDS

12 PAYMENTS

13 DISPUTE RESOLUTION

14 TERMINATION OR SUSPENSION

15 MISCELLANEOUS PROVISIONS

16 ENUMERATION OF CONTRACT DOCUMENTS

EXHIBIT A INSURANCE AND BONDS

ARTICLE 1 THE CONTRACT DOCUMENTS

The Contract Documents consist of this Agreement, Conditions of the Contract (General, Supplementary, and other Conditions), Drawings, Specifications, Assumptions and Contractor's Qualifications, Clarifications and Exclusions, incorporated Exhibits, Addenda issued prior to execution of this Agreement, other documents listed in this Agreement and Modifications issued after execution of this Agreement, all of which form the Contract, and are as fully a part of the Contract as if attached to this Agreement or repeated herein. The Contract represents the entire and integrated agreement between the parties hereto and supersedes prior negotiations, representations, or agreements, either written or oral. If anything in the other Contract Documents, other than a Modification, is inconsistent with this Agreement, this Agreement shall govern and the Assumptions and Qualifications on which the Guaranteed Maximum Price is based shall govern over any inconsistent term in the Contract Documents. An enumeration of the Contract Documents, other than a Modification, appears in Article 16.

ARTICLE 2 THE WORK OF THIS CONTRACT

The Contractor shall fully execute the Work described in the Contract Documents, except as specifically indicated in the Contract Documents to be the responsibility of others.

ARTICLE 3 RELATIONSHIP OF THE PARTIES

The Contractor covenants with the Owner to cooperate with the Architect and Owner's Representative, and exercise the Contractor's skill and judgment in furthering the interests of the Owner; to furnish efficient business

AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

administration and supervision; to furnish at all times an adequate supply of workers and materials; and to perform the Work in an expeditious and economical manner consistent with the Owner's interests. The Owner agrees to furnish and approve, in a timely manner, information required by the Contractor and to make payments to the Contractor in accordance with the requirements of the Contract Documents. The Parties acknowledge that the terms "trust and confidence" as set forth above, alone, do not establish the Contractor as a fiduciary of the Owner.

The Owner and Contractor entered into a **Letter of Intent**, agreed and executed on February 11 2025, including authorization to perform preconstruction services, and to negotiate in good faith a written contract (this Document) to carry out the Project (see Exhibit B for reference).

ARTICLE 4 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION

§ 4.1 The date of commencement of the Work shall be:
(Check one of the following boxes.)

[ ] The date of this Agreement.

[ ] A date set forth in a notice to proceed issued by the Owner.

[X] Established as follows:
(Insert a date or a means to determine the date of commencement of the Work.)

To be finalized in the GMP Amendment.

(Paragraph Deleted)

§ 4.2 The Contract Time shall be measured from the date of commencement of the Work.

§ 4.3 Substantial Completion

§ 4.3.1 Subject to adjustments of the Contract Time as provided in the Contract Documents, the Contractor shall achieve Substantial Completion of the entire Work:
(Check one of the following boxes and complete the necessary information.)

[ ] Not later than ( ) calendar days from the date of commencement of the Work.

[X] By the following date: To be finalized in the GMP amendment, current target is April 27, 2026.

§ 4.3.2 Subject to adjustments of the Contract Time as provided in the Contract Documents, if portions of the Work are to be completed prior to Substantial Completion of the entire Work, the Contractor shall achieve Substantial Completion of such portions by the following dates:

Portion of Work	Substantial Completion Date

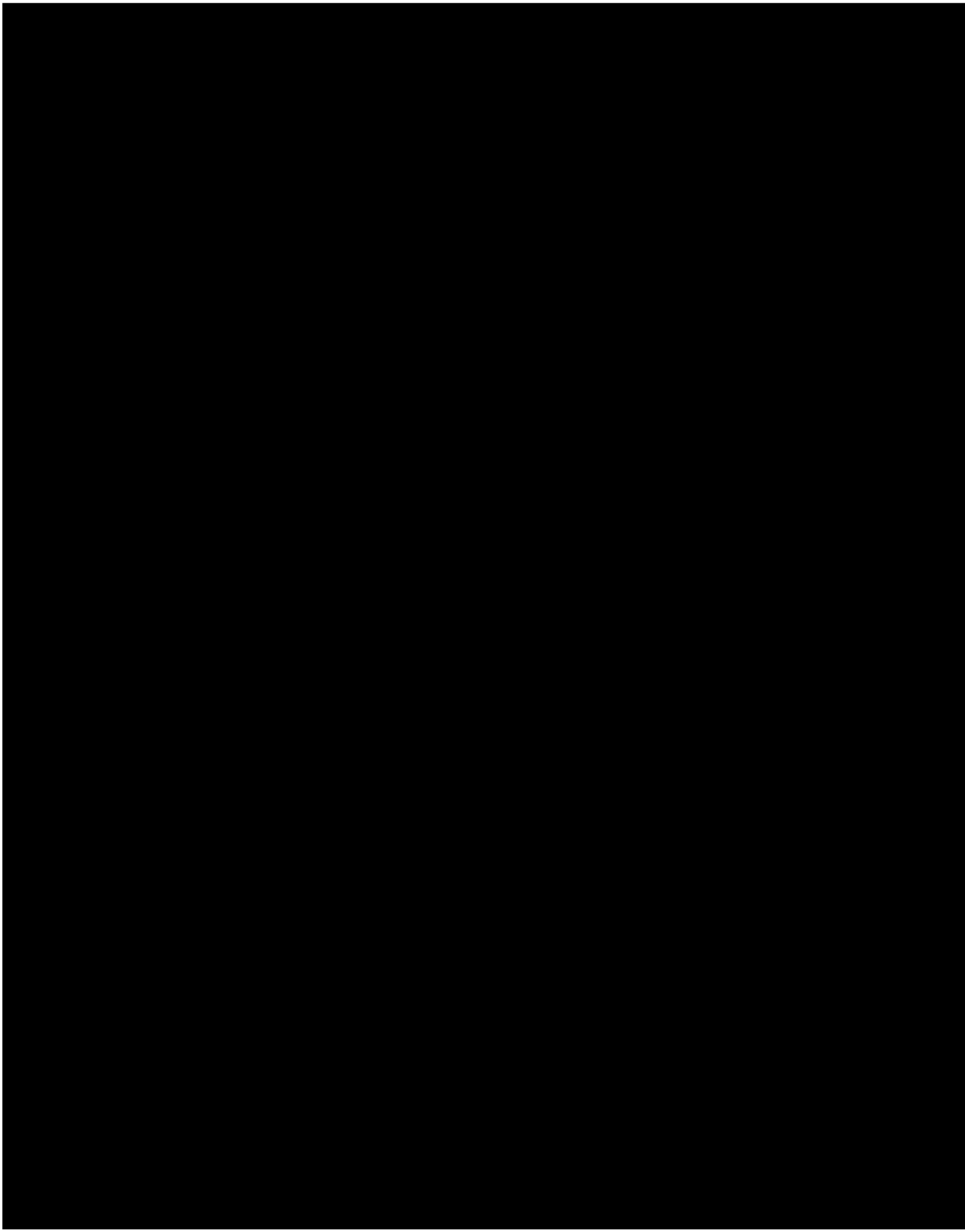
§ 4.3.3 If the Contractor fails to achieve Substantial Completion as provided in this Section 4.3, liquidated damages, if any, shall be as set forth in Section 5.1.6.

[redacted]

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A71Z

[redacted]

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

[redacted]

ARTICLE 6 CHANGES IN THE WORK

§ 6.1 Adjustments to the Guaranteed Maximum Price on account of changes in the Work may be determined by any of the methods listed in Article 7 of AIA Document A201™–2017, General Conditions of the Contract for Construction.

§ 6.2 Adjustments to subcontracts awarded on the basis of a stipulated sum shall be determined in accordance with Article 7 of A201–2017, as they refer to "cost" and "fee," and not by Articles 5, 7 and 8 of this Agreement. Adjustments to subcontracts awarded with the Owner's prior written consent on the basis of cost plus a fee shall be calculated in accordance with the terms of those subcontracts.

§ 6.3 In calculating adjustments to the Guaranteed Maximum Price, the terms "cost" and "costs" as used in Article 7 of AIA Document A201–2017 shall mean the Cost of the Work as defined in Article 7 of this Agreement and the term "fee" shall mean the Contractor's Fee as defined in Section 5.1.1 of this Agreement.

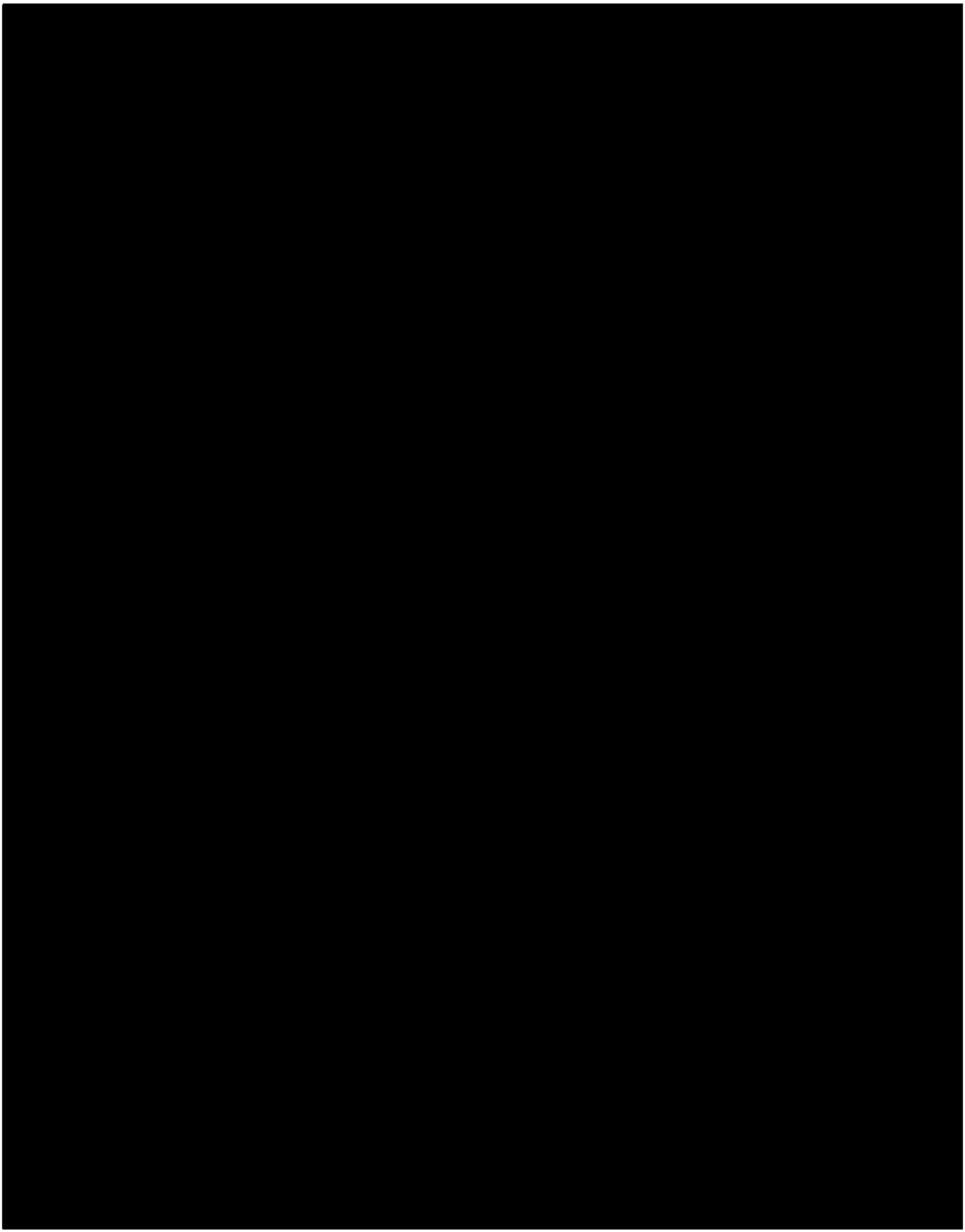
§ 6.4 If no specific provision is made in Article 5 for adjustment of the Contractor's Fee in the case of changes in the Work, or if the extent of such changes is such, in the aggregate, that application of the adjustment provisions of Article 5 will cause substantial inequity to the Owner or Contractor, the Contractor's Fee shall be equitably adjusted on the same basis that was used to establish the Fee for the original Work, and the Guaranteed Maximum Price shall be adjusted accordingly.

[redacted]

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

[redacted]

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

[redacted]

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

[redacted]

ARTICLE 8 COSTS NOT TO BE REIMBURSED

§ 8.1 The Cost of the Work shall not include the items listed below unless otherwise provided for in Contract Documents:

.1 Salaries and other compensation of the Contractor's personnel stationed at the Contractor's principal office or offices other than the site office, except as specifically provided in Section 7.2, or as may be provided in Article 15;

.2 Bonuses, profit sharing, incentive compensation, and any other discretionary payments, paid to anyone hired by the Contractor or paid to any Subcontractor or vendor, unless the Owner has provided prior approval as set forth in Section 7.2.6;

.3 Expenses of the Contractor's principal office and offices other than the site office;

.4 Overhead and general expenses;

.5 The Contractor's capital expenses, including interest on the Contractor's capital employed for the Work;

.6 Except as provided in Section 7.7.3 of this Agreement and except with respect to the use of the GC Contingency, costs due to the negligence of, or failure to fulfill a specific responsibility of the Contract by, the Contractor, Subcontractors, and suppliers, or anyone directly or indirectly employed by any of them or for whose acts any of them may be liable;

.7 Intentionally omitted; and

.8 Costs, other than costs included in Change Orders approved by the Owner, that would cause the Guaranteed Maximum Price to be exceeded.

ARTICLE 9 DISCOUNTS, REBATES AND REFUNDS

§ 9.1 Cash discounts obtained on payments made by the Contractor shall accrue to the Owner if (1) before making the payment, the Contractor included the amount to be paid, less such discount, in an Application for Payment and received payment from the Owner, or (2) the Owner has deposited funds with the Contractor with which to make payments; otherwise, cash discounts shall accrue to the Contractor. Trade discounts, rebates, refunds, and amounts received from sales of surplus materials and equipment shall accrue to the Owner, and the Contractor shall make provisions so that they can be obtained.

AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 08/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

§ 9.2 Amounts that accrue to the Owner in accordance with the provisions of Section 9.1 shall be credited to the Owner as a deduction from the Cost of the Work.

ARTICLE 10 SUBCONTRACTS AND OTHER AGREEMENTS

§ 10.1 Those portions of the Work that the Contractor does not customarily perform with the Contractor's own personnel shall be performed under subcontracts or other appropriate agreements with the Contractor. The Owner may designate specific persons from whom, or entities from which, the Contractor shall obtain bids. The Contractor shall obtain bids from Subcontractors, and from suppliers of materials or equipment fabricated especially for the Work, who are qualified to perform that portion of the Work in accordance with the requirements of the Contract Documents. The Contractor shall deliver such bids to the Owner's Representative and Owner with an indication as to which bids the Contractor intends to accept. The Owner then has the right to review the Contractor's list of proposed subcontractors and suppliers in consultation with the Owner's Representative and, subject to Section 10.1.1, to object to any subcontractor or supplier. Any advice of the Owner's Representative, or approval or objection by the Owner, shall not relieve the Contractor of its responsibility to perform the Work in accordance with the Contract Documents. The Contractor shall not be required to contract with anyone to whom the Contractor has reasonable objection.

§ 10.1.1 When a specific subcontractor or supplier (1) is recommended to the Owner by the Contractor; (2) is qualified to perform that portion of the Work; and (3) has submitted a bid that Contractor deems acceptable, but the Owner requires that another bid be accepted, then the Contractor may require that a Change Order be issued to adjust the Guaranteed Maximum Price by the difference between the bid of the person or entity recommended to the Owner by the Contractor and the amount of the subcontract or other agreement actually signed with the person or entity designated by the Owner.

§ 10.2 Subcontracts or other agreements shall conform to the applicable payment provisions of this Agreement, and shall not be awarded on the basis of cost plus a fee without the Owner's prior written approval. If a subcontract is awarded on the basis of cost plus a fee, the Contractor shall provide in the subcontract for the Owner to receive the same audit rights with regard to the Subcontractor as the Owner receives with regard to the Contractor in Article 11.

ARTICLE 11 ACCOUNTING RECORDS

The Contractor shall keep full and detailed records and accounts related to the Cost of the Work, and exercise such controls, as may be necessary for proper financial management under this Contract and to substantiate all costs incurred, by implementing the accounting and control systems generally followed by the Contractor in the area on projects of this nature. The Owner and the Owner's auditors shall, during regular business hours and upon reasonable notice, be afforded access to, and shall be permitted to audit and copy, the Contractor's records and accounts, including complete documentation supporting accounting entries, books, job cost reports, correspondence, instructions, drawings, receipts, subcontracts, Subcontractor's proposals, Subcontractor's invoices, purchase orders, vouchers, memoranda, and other data relating to this Contract. The Contractor shall preserve these records for a period of three years after final payment, or for such longer period as may be required by law.

ARTICLE 12 PAYMENTS

§ 12.1 Progress, Mobilization, Insurance and Logistics Payments

§ 12.1.1 Based upon Applications for Payment submitted to the Owner's Representative by the Contractor, and in the amount stated on Certificates for Payment issued by the Owner's Representative, the Owner shall make progress payments on account of the Contract Sum, to the Contractor, as provided below and elsewhere in the Contract Documents.

§ 12.1.1.1 Upon commencement of construction phase services, the Owner shall make a mobilization payment to the Contractor in the amount set forth in the Guaranteed Maximum Price Amendment. Such mobilization payment shall be paid within forty five (45) days after Owner's receipt of Contractor's invoice.

§ 12.1.1.2 Payment of insurance premiums shall be paid in full without retainage within thirty (30) days after receipt of Contractor's invoice, which shall be submitted upon commencement of construction services.

§ 12.1.1.3 Intentionally Omitted.

AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

§ 12.1.2 The period covered by each Application for Payment shall be one calendar month ending on the last day of the month, or as follows:

§ 12.1.3 Provided that an Application for Payment is received by the Owner's Representative not later than the 25th day of a month, the Owner shall make payment of the amount certified to the Contractor by the 30th day of the following month. If an Application for Payment is received by the Owner's Representative after the application date fixed above, payment of the amount certified shall be made by the Owner not later than forty five (45) days after the Owner's Representative receives the Application for Payment. Contractor's Application for Payment to the extent speaking of completed Work shall be deemed to mean completed and forecasted work. Further, if the AIA G702/G703 Application for Payment is used, the certification therein shall be deemed deleted and replaced with the following:

> "The undersigned Contractor certifies that to the best of the Contractor's knowledge, information, and belief the Work covered by this Application for Payment has been performed or completed in accordance with the Contract Documents, that the Contractor has paid or will pay subcontractors amounts due in accordance with the subcontract terms and conditions for Work for which previous Applications for Payment were issued and payments received from the Owner and that the current payment shown herein is now due."

(Federal, state or local laws may require payment within a certain period of time.)

§ 12.1.4 With each Application for Payment, the Contractor shall submit payrolls, petty cash accounts, receipted invoices or invoices with check vouchers attached, and any other evidence reasonably required in advance by the Owner, or Owner's Representative to demonstrate that payments already made or to be made by the Contractor on account of the Cost of the Work equal or exceed progress payments already received by the Contractor plus payrolls for the period covered by the present Application for Payment, less that portion of the progress payments attributable to the Contractor's Fee.

§ 12.1.5 Each Application for Payment shall be based on the most recent schedule of values submitted by the Contractor in accordance with the Contract Documents. The schedule of values shall allocate the entire Guaranteed Maximum Price among: (1) the various portions of the Work; (2) any contingency for costs that are included in the Guaranteed Maximum Price but not otherwise allocated to another line item or included in a Change Order; and (3) the Contractor's Fee.

§ 12.1.5.1 The schedule of values shall be prepared in such form and supported by such data to substantiate its accuracy as the Owner's Representative may require. The schedule of values shall be used as a basis for reviewing the Contractor's Applications for Payment.

§ 12.1.5.2 The allocation of the Guaranteed Maximum Price under this Section 12.1.5 shall not constitute a separate guaranteed maximum price for the Cost of the Work of each individual line item in the schedule of values.

§ 12.1.5.3 When the Contractor allocates costs from a contingency to another line item in the schedule of values, the Contractor shall submit supporting documentation to the Owner's Representative.

§ 12.1.6 Applications for Payment shall show the percentage of completion of each portion of the Work as of the end of the period covered by the Application for Payment. The percentage of completion shall be the lesser of (1) the percentage of that portion of the Work which has actually been or, as set forth in Section 12.1.3, forecasted to be completed; or (2) the percentage obtained by dividing (a) the expense that has actually been incurred by the Contractor on account of that portion of the Work and for which the Contractor has made payment or intends to make payment prior to the next Application for Payment, by (b) the share of the Guaranteed Maximum Price allocated to that portion of the Work in the schedule of values.

§ 12.1.7 In accordance with AIA Document A201–2017 and subject to other provisions of the Contract Documents, the amount of each progress payment shall be computed as follows:

AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

§ 12.1.7.1 The amount of each progress payment shall first include:

.1 That portion of the Guaranteed Maximum Price properly allocable to completed Work or forecasted to be completed as determined by multiplying the percentage of completion of each portion of the Work by the share of the Guaranteed Maximum Price allocated to that portion of the Work in the most recent schedule of values;

.2 That portion of the Guaranteed Maximum Price properly allocable to materials and equipment delivered and suitably stored at the site for subsequent incorporation in the completed construction or, if approved in writing in advance by the Owner, suitably stored off the site at a location agreed upon in writing;

.3 That portion of Construction Change Directives that the Owner's Representative determines, in the Owner's Representative's professional judgment, to be reasonably justified; and

.4 The Contractor's Fee, computed upon the Cost of the Work described in the preceding Sections 12.1.7.1.1 and 12.1.7.1.2 at the rate stated in Section 5.1.1 or, if the Contractor's Fee is stated as a fixed sum in that Section, an amount that bears the same ratio to that fixed-sum fee as the Cost of the Work included in Sections 12.1.7.1.1 and 12.1.7.1.2 bears to a reasonable estimate of the probable Cost of the Work upon its completion.

§ 12.1.7.2 The amount of each progress payment shall then be reduced by:

.1 The aggregate of any amounts previously paid by the Owner;

.2 The proven amount, if any, for Work that remains uncorrected and for which the Owner's Representative has previously withheld a Certificate for Payment as provided in Article 9 of AIA Document A201–2017;

.3 Any amount for which the Contractor does not intend to pay a Subcontractor or material supplier, unless the Work has been performed by others the Contractor intends to pay;

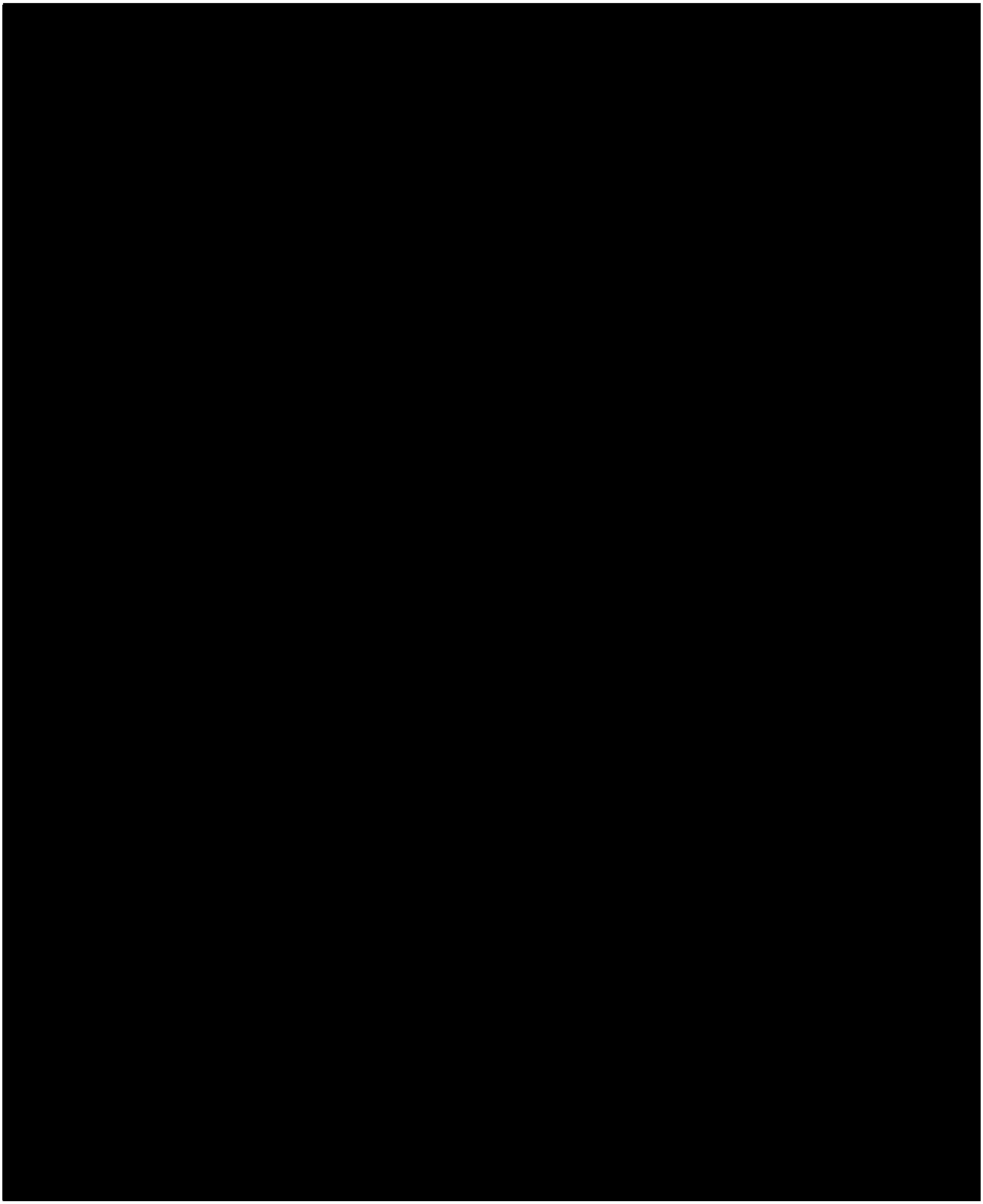
.4 For Work performed or defects discovered since the last payment application, any amount for which the Owner's Representative may withhold payment, or nullify a Certificate of Payment in whole or in part, as provided in Article 9 of AIA Document A201–2017;

.5 The shortfall, if any, indicated by the Contractor in the documentation required by Section 12.1.4 to substantiate prior Applications for Payment, or resulting from errors subsequently discovered by the Owner's auditors in such documentation; and

.6 Retainage withheld pursuant to Section 12.1.8.

[redacted]

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

[redacted]

ARTICLE 13 DISPUTE RESOLUTION

§ 13.1 Initial Decision Maker

The Owner's Representative will serve as Initial Decision Maker pursuant to Article 15 of AIA Document A201–2017, unless the parties appoint below another individual, not a party to the Agreement, to serve as Initial Decision Maker.

(If the parties mutually agree, insert the name, address and other contact information of the Initial Decision Maker, if other than the Owner's Representative.)

Amber Keenoy
Blue Stone Management, LLC
6060 Center Drive, 10th Floor
Los Angeles, California 90045
akeenoy@bsmemail.com

§ 13.2 Binding Dispute Resolution

For any Claim subject to, but not resolved by mediation pursuant to Article 15 of AIA Document A201–2017, the method of binding dispute resolution shall be as follows:

(Check the appropriate box.)

[X] Arbitration pursuant to Section 15 of AIA Document A201–2017

[ ] Litigation in a court of competent jurisdiction

Init.

AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

[ ] Other *(Specify)*

If the Owner and Contractor do not select a method of binding dispute resolution, or do not subsequently agree in writing to a binding dispute resolution method other than litigation, Claims will be resolved by litigation in a court of competent jurisdiction.

ARTICLE 14 TERMINATION OR SUSPENSION

§ 14.1 Termination

§ 14.1.1 The Contract may be terminated by the Owner or the Contractor as provided in Article 14 of AIA Document A201–2017.

§ 14.1.2 Termination by the Owner for Cause

§ 14.1.2.1 If the Owner terminates the Contract for cause as provided in Article 14 of AIA Document A201–2017, the amount, if any, to be paid to the Contractor under Article 14 of AIA Document A201–2017 shall not cause the Guaranteed Maximum Price to be exceeded, nor shall it exceed an amount calculated as follows:

.1 Take the Cost of the Work incurred by the Contractor to the date of termination plus those incurred to demobilize;

.2 Add the Contractor's Fee, computed upon the Cost of the Work to the date of termination at the rate stated in Section 5.1.1 or, if the Contractor's Fee is stated as a fixed sum in that Section, an amount that bears the same ratio to that fixed-sum Fee as the Cost of the Work at the time of termination bears to a reasonable estimate of the probable Cost of the Work upon its completion;

.3 Subtract the aggregate of previous payments made by the Owner; and

.4 Subtract the proven costs and direct, any and all damages incurred, or to be incurred, by the Owner under Article 14 of AIA Document A201–2017.

§ 14.1.2.2 The Owner shall also pay the Contractor fair compensation, either by purchase or rental at the election of the Owner, for any equipment owned by the Contractor that the Owner elects to retain and that is not otherwise included in the Cost of the Work under Section 14.1.2.1.1. To the extent that the Owner with Contractor's consent elects to take legal assignment of subcontracts and purchase orders (including rental agreements), the Contractor shall, as a condition of receiving the payments referred to in this Article 14, execute and deliver all such papers and take all such steps, including the legal assignment of such subcontracts and other contractual rights of the Contractor, as the Owner may reasonably require for the purpose of fully vesting in the Owner the rights and benefits of the Contractor under such subcontracts or purchase orders. The Owner hereby agrees to indemnify, defend and hold harmless the Contractor against all claims, costs and expenses related to those subcontracts and other contractual rights.

§ 14.1.3 Termination by the Owner for Convenience

If the Owner terminates the Contract for convenience in accordance with Article 14 of AIA Document A201–2017, then the Owner shall pay the Contractor a termination fee as follows:
(Insert the amount of or method for determining the fee, if any, payable to the Contractor following a termination for the Owner's convenience.)

The termination fee shall be calculated as the sum of (i) the Fee percentage set forth in Section 5.1.1 multiplied by the cost of Work actually put in place and demobilization costs.

§ 14.2 Suspension

The Work may be suspended by the Owner as provided in Article 14 of AIA Document A201–2017; in such case, the Guaranteed Maximum Price and Contract Time shall be increased as provided in Article 14 of AIA Document A201–2017, except that the term "profit" shall be understood to mean the Contractor's Fee as described in Article 5 and Section 6.4 of this Agreement.

Init.
/
AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712

ARTICLE 15 MISCELLANEOUS PROVISIONS

§ 15.1 Where reference is made in this Agreement to a provision of AIA Document A201–2017 or another Contract Document, the reference refers to that provision as amended or supplemented by other provisions of the Contract Documents.

§ 15.2 The Owner's representative:
(Name, address, email address and other information)

Amber Keenoy
Blue Stone Management, LLC
6060 Center Drive, 10th Floor
Los Angeles, California 90045
akeenoy@bsmemail.com

§ 15.3 The Contractor's representative:
(Name, address, email address and other information)

Thomas Aloi
Project Director
Holt Construction Corp.
50 East Washington Avenue
Pearl River, NY 10965
Email: taloi@holtcc.com

§ 15.4 Neither the Owner's nor the Contractor's representative shall be changed without ten days' prior notice to the other party.

§ 15.5 Insurance and Bonds

§ 15.5.1 The Owner and the Contractor shall purchase and maintain insurance as set forth in AIA Document A102™–2017, Standard Form of Agreement Between Owner and Contractor where the basis of payment is the Cost of the Work Plus a Fee with a Guaranteed Maximum Price, and elsewhere in the Contract Documents.

(Paragraph Deleted)

§ 15.6 Notice in electronic format, pursuant to Article 1 of AIA Document A201–2017, may be given in accordance with AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, if completed, or as otherwise set forth below:
(If other than in accordance with AIA Document E203–2013, insert requirements for delivering notice in electronic format such as name, title, and email address of the recipient and whether and how the system will be required to generate a read receipt for the transmission.)

The Parties agree that notices, which include Notice of Claims, may be given by hand delivery, by mail, by courier, or by electronic transmission.

§ 15.7 Other provisions:

The Contract Price as set forth herein is based on the tariffs, duties, and material costs in effect as of the date of the execution of this Agreement. If, at any time during the performance of the Work, there is an increase or decrease in the cost of materials, equipment, or goods due to changes in tariffs, duties, import/export restrictions, or other governmental actions beyond the Contractor's control, the Contract Price shall be equitably adjusted to reflect such increased or decreased costs.

Contractor shall provide documentation in a form sufficient to the Owner evidencing the increased or decreased costs, and the Owner agrees to compensate the Contractor for the difference in cost incurred. Alternatively, the

AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

Contractor agrees to compensate the Owner for the difference in reduced costs incurred. In addition, any delays resulting from compliance with new tariffs, duties, or regulatory changes shall entitle the Contractor to an equitable extension of time.

Nothing in this Agreement shall require the Contractor to absorb additional costs arising from unforeseen governmental actions affecting material pricing, and the Owner acknowledges the potential for price adjustments under such circumstances.

ARTICLE 16 ENUMERATION OF CONTRACT DOCUMENTS

§ 16.1 This Agreement is comprised of the following documents:

.1 AIA Document A102™–2017, Standard Form of Agreement Between Owner and Contractor

.2

.3 AIA Document A201™–2017, General Conditions of the Contract for Construction

.4

(Paragraph Deleted)

.5 Drawings

***See "Drawings and Documents List"**

Exhibit

Number	Title	Date

.6 Specifications

***See "Drawing and Documents List" Exhibit**

Section	Title	Date	Pages

.7 Addenda, if any:

Number	Date	Pages

Portions of Addenda relating to bidding or proposal requirements are not part of the Contract Documents unless the bidding or proposal requirements are also enumerated in this Article 16.

.8 Other Exhibits:
(Check all boxes that apply.)

[ ] AIA Document E204™–2017, Sustainable Projects Exhibit, dated as indicated below:
(Insert the date of the E204-2017 incorporated into this Agreement.)

Non-applicable

[ ] The Sustainability Plan:

Title	Date	Pages
Non-Applicable		

[X] Supplementary and other Conditions of the Contract:

Init.
/
AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Docusign Envelope ID: AEB26AE1-A2CF-4435-82DF-5E765EB7A712



This Agreement entered into as of the day and year first written above.

DocuSigned by:
Christopher Asaro
DBCB6A2688134A3...

OWNER *(Signature)*

Christopher Asaro President

(Printed name and title)

Signed by:
David Pacey
FC307A955D5F48D...

CONTRACTOR *(Signature)*

David Pacey EVP-Lounges

(Printed name and title)

AIA Document A102 – 2017. Copyright © 1920, 1925, 1951, 1958, 1961, 1963, 1967, 1974, 1978, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:09:25 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA40)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

DS CA 4/29/2025

AIA® Document A201® – 2017

Initial DP 4/29/2025

General Conditions of the Contract for Construction

for the following PROJECT:
(Name and location or address)

Korean Air Lines Lounge (KEJFK)
John F Kennedy, New Terminal One (JFK NTO)
Queens, NY
11430,
United States of America

THE OWNER:
(Name, legal status and address)

Korean Air Lines Co., Ltd.
260, Haneul-gil, Gangseo-gu
Seoul, Korea 07505
Republic of Korea

THE ARCHITECT AND OWNER REPRESENTATIVE:
(Name, legal status and address)

The Architect:
Perkins & Will Architects P.C
1250 Broadway, Suite 200
New York City, NY, 10001
United States of America

The Owner's Representative:
Blue Stone Management
LLC
6060 Center Drive, 10th Floor,
Los Angeles, California, 90045
United States of America

ADDITIONS AND DELETIONS:
The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added necessary information and where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

For guidance in modifying this document to include supplementary conditions, see AIA Document A503™, Guide for Supplementary Conditions.

TABLE OF ARTICLES

1 GENERAL PROVISIONS

2 OWNER

3 CONTRACTOR

4 ARCHITECT

5 SUBCONTRACTORS

6 CONSTRUCTION BY OWNER OR BY SEPARATE CONTRACTORS

7 CHANGES IN THE WORK

8 TIME

9 PAYMENTS AND COMPLETION

Init. /

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

10 PROTECTION OF PERSONS AND PROPERTY

11 INSURANCE AND BONDS

12 UNCOVERING AND CORRECTION OF WORK

13 MISCELLANEOUS PROVISIONS

14 TERMINATION OR SUSPENSION OF THE CONTRACT

15 CLAIMS AND DISPUTES

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

INDEX
(Topics and numbers in bold are Section headings.)

Acceptance of Nonconforming Work
9.6.6, 9.9.3, 12.3
Acceptance of Work
9.6.6, 9.8.2, 9.9.3, 9.10.1, 9.10.3, 12.3
Access to Work
3.16, 6.2.1, 12.1
Accident Prevention
10
Acts and Omissions
3.2, 3.3.2, 3.12.8, 3.18, 4.2.3, 8.3.1, 9.5.1, 10.2.5, 10.2.8, 13.3.2, 14.1, 15.1.2, 15.2
Addenda
1.1.1
Additional Costs, Claims for
3.7.4, 3.7.5, 10.3.2, 15.1.5
Additional Inspections and Testing
9.4.2, 9.8.3, 12.2.1, 13.4
Additional Time, Claims for
3.2.4, 3.7.4, 3.7.5, 3.10.2, 8.3.2, 15.1.6
Administration of the Contract
3.1.3, 4.2, 9.4, 9.5
Advertisement or Invitation to Bid
1.1.1
Aesthetic Effect
4.2.13
Allowances
3.8
Applications for Payment
4.2.5, 7.3.9, 9.2, 9.3, 9.4, 9.5.1, 9.5.4, 9.6.3, 9.7, 9.10
Approvals
2.1.1, 2.3.1, 2.5, 3.1.3, 3.10.2, 3.12.8, 3.12.9, 3.12.10.1, 4.2.7, 9.3.2, 13.4.1
Arbitration
8.3.1, 15.3.2, 15.4
ARCHITECT
4
Architect, Definition of
4.1.1
Architect, Extent of Authority
2.5, 3.12.7, 4.1.2, 4.2, 5.2, 6.3, 7.1.2, 7.3.4, 7.4, 9.2, 9.3.1, 9.4, 9.5, 9.6.3, 9.8, 9.10.1, 9.10.3, 12.1, 12.2.1, 13.4.1, 13.4.2, 14.2.2, 14.2.4, 15.1.4, 15.2.1
Architect, Limitations of Authority and Responsibility
2.1.1, 3.12.4, 3.12.8, 3.12.10, 4.1.2, 4.2.1, 4.2.2, 4.2.3, 4.2.6, 4.2.7, 4.2.10, 4.2.12, 4.2.13, 5.2.1, 7.4, 9.4.2, 9.5.4, 9.6.4, 15.1.4, 15.2
Architect's Additional Services and Expenses
2.5, 12.2.1, 13.4.2, 13.4.3, 14.2.4
Architect's Administration of the Contract
3.1.3, 3.7.4, 15.2, 9.4.1, 9.5
Architect's Approvals
2.5, 3.1.3, 3.5, 3.10.2, 4.2.7
Architect's Authority to Reject Work
3.5, 4.2.6, 12.1.2, 12.2.1
Architect's Copyright
1.1.7, 1.5
Architect's Decisions
3.7.4, 4.2.6, 4.2.7, 4.2.11, 4.2.12, 4.2.13, 4.2.14, 6.3, 7.3.4, 7.3.9, 8.1.3, 8.3.1, 9.2, 9.4.1, 9.5, 9.8.4, 9.9.1, 13.4.2, 15.2
Architect's Inspections
3.7.4, 4.2.2, 4.2.9, 9.4.2, 9.8.3, 9.9.2, 9.10.1, 13.4
Architect's Instructions
3.2.4, 3.3.1, 4.2.6, 4.2.7, 13.4.2
Architect's Interpretations
4.2.11, 4.2.12
Architect's Project Representative
4.2.10
Architect's Relationship with Contractor
1.1.2, 1.5, 2.3.3, 3.1.3, 3.2.2, 3.2.3, 3.2.4, 3.3.1, 3.4.2, 3.5, 3.7.4, 3.7.5, 3.9.2, 3.9.3, 3.10, 3.11, 3.12, 3.16, 3.18, 4.1.2, 4.2, 5.2, 6.2.2, 7, 8.3.1, 9.2, 9.3, 9.4, 9.5, 9.7, 9.8, 9.9, 10.2.6, 10.3, 11.3, 12, 13.3.2, 13.4, 15.2
Architect's Relationship with Subcontractors
1.1.2, 4.2.3, 4.2.4, 4.2.6, 9.6.3, 9.6.4, 11.3
Architect's Representations
9.4.2, 9.5.1, 9.10.1
Architect's Site Visits
3.7.4, 4.2.2, 4.2.9, 9.4.2, 9.5.1, 9.9.2, 9.10.1, 13.4
Asbestos
10.3.1
Attorneys' Fees
3.18.1, 9.6.8, 9.10.2, 10.3.3
Award of Separate Contracts
6.1.1, 6.1.2
Award of Subcontracts and Other Contracts for Portions of the Work
5.2
Basic Definitions
1.1
Bidding Requirements
1.1.1
Binding Dispute Resolution
8.3.1, 9.7, 11.5, 13.1, 15.1.2, 15.1.3, 15.2.1, 15.2.5, 15.2.6.1, 15.3.1, 15.3.2, 15.3.3, 15.4.1
Bonds, Lien
7.3.4.4, 9.6.8, 9.10.2, 9.10.3
Bonds, Performance, and Payment
7.3.4.4, 9.6.7, 9.10.3, 11.1.2, 11.1.3, 11.5
Building Information Models Use and Reliance
1.8
Building Permit
3.7.1
Capitalization
1.3
Certificate of Substantial Completion
9.8.3, 9.8.4, 9.8.5

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

Certificates for Payment
4.2.1, 4.2.5, 4.2.9, 9.3.3, 9.4, 9.5, 9.6.1, 9.6.6, 9.7, 9.10.1, 9.10.3, 14.1.1.3, 14.2.4, 15.1.4
Certificates of Inspection, Testing or Approval
13.4.4
Certificates of Insurance
9.10.2
Change Orders
1.1.1, 3.4.2, 3.7.4, 3.8.2.3, 3.11, 3.12.8, 4.2.8, 5.2.3, 7.1.2, 7.1.3, 7.2, 7.3.2, 7.3.7, 7.3.9, 7.3.10, 8.3.1, 9.3.1.1, 9.10.3, 10.3.2, 11.2, 11.5, 12.1.2
Change Orders, Definition of
7.2.1
CHANGES IN THE WORK
2.2.2, 3.11, 4.2.8, 7, 7.2.1, 7.3.1, 7.4, 8.3.1, 9.3.1.1, 11.5
Claims, Definition of
15.1.1
Claims, Notice of
1.6.2, 15.1.3
CLAIMS AND DISPUTES
3.2.4, 6.1.1, 6.3, 7.3.9, 9.3.3, 9.10.4, 10.3.3, 15, 15.4
Claims and Timely Assertion of Claims
15.4.1
Claims for Additional Cost
3.2.4, 3.3.1, 3.7.4, 7.3.9, 9.5.2, 10.2.5, 10.3.2, 15.1.5
Claims for Additional Time
3.2.4, 3.3.1, 3.7.4, 6.1.1, 8.3.2, 9.5.2, 10.3.2, 15.1.6
Concealed or Unknown Conditions, Claims for
3.7.4
Claims for Damages
3.2.4, 3.18, 8.3.3, 9.5.1, 9.6.7, 10.2.5, 10.3.3, 11.3, 11.3.2, 14.2.4, 15.1.7
Claims Subject to Arbitration
15.4.1
Cleaning Up
3.15, 6.3
Commencement of the Work, Conditions Relating to
2.2.1, 3.2.2, 3.4.1, 3.7.1, 3.10.1, 3.12.6, 5.2.1, 5.2.3, 6.2.2, 8.1.2, 8.2.2, 8.3.1, 11.1, 11.2, 15.1.5
Commencement of the Work, Definition of
8.1.2
Communications
3.9.1, 4.2.4
Completion, Conditions Relating to
3.4.1, 3.11, 3.15, 4.2.2, 4.2.9, 8.2, 9.4.2, 9.8, 9.9.1, 9.10, 12.2, 14.1.2, 15.1.2
COMPLETION, PAYMENTS AND
9
Completion, Substantial
3.10.1, 4.2.9, 8.1.1, 8.1.3, 8.2.3, 9.4.2, 9.8, 9.9.1, 9.10.3, 12.2, 15.1.2
Compliance with Laws
2.3.2, 3.2.3, 3.6, 3.7, 3.12.10, 3.13, 9.6.4, 10.2.2, 13.1, 13.3, 13.4.1, 13.4.2, 13.5, 14.1.1, 14.2.1.3, 15.2.8, 15.4.2, 15.4.3
Concealed or Unknown Conditions
3.7.4, 4.2.8, 8.3.1, 10.3
Conditions of the Contract
1.1.1, 6.1.1, 6.1.4
Consent, Written
3.4.2, 3.14.2, 4.1.2, 9.8.5, 9.9.1, 9.10.2, 9.10.3, 13.2, 15.4.4.2
Consolidation or Joinder
15.4.4
CONSTRUCTION BY OWNER OR BY SEPARATE CONTRACTORS
1.1.4, 6
Construction Change Directive, Definition of
7.3.1
Construction Change Directives
1.1.1, 3.4.2, 3.11, 3.12.8, 4.2.8, 7.1.1, 7.1.2, 7.1.3, 7.3, 9.3.1.1
Construction Schedules, Contractor's
3.10, 3.11, 3.12.1, 3.12.2, 6.1.3, 15.1.6.2
Contingent Assignment of Subcontracts
5.4, 14.2.2.2
Continuing Contract Performance
15.1.4
Contract, Definition of
1.1.2
CONTRACT, TERMINATION OR SUSPENSION OF THE
5.4.1.1, 5.4.2, 11.5, 14
Contract Administration
3.1.3, 4, 9.4, 9.5
Contract Award and Execution, Conditions Relating to
3.7.1, 3.10, 5.2, 6.1
Contract Documents, Copies Furnished and Use of
1.5.2, 2.3.6, 5.3
Contract Documents, Definition of
1.1.1
Contract Sum
2.2.2, 2.2.4, 3.7.4, 3.7.5, 3.8, 3.10.2, 5.2.3, 7.3, 7.4, 9.1, 9.2, 9.4.2, 9.5.1.4, 9.6.7, 9.7, 10.3.2, 11.5, 12.1.2, 12.3, 14.2.4, 14.3.2, 15.1.4.2, 15.1.5, 15.2.5
Contract Sum, Definition of
9.1
Contract Time
1.1.4, 2.2.1, 2.2.2, 3.7.4, 3.7.5, 3.10.2, 5.2.3, 6.1.5, 7.2.1.3, 7.3.1, 7.3.5, 7.3.6, 7, 7, 7.3.10, 7.4, 8.1.1, 8.2.1, 8.2.3, 8.3.1, 9.5.1, 9.7, 10.3.2, 12.1.1, 12.1.2, 14.3.2, 15.1.4.2, 15.1.6.1, 15.2.5
Contract Time, Definition of
8.1.1
CONTRACTOR
3
Contractor, Definition of
3.1, 6.1.2
Contractor's Construction and Submittal Schedules
3.10, 3.12.1, 3.12.2, 4.2.3, 6.1.3, 15.1.6.2
Contractor's Employees

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

2.2.4, 3.3.2, 3.4.3, 3.8.1, 3.9, 3.18.2, 4.2.3, 4.2.6, 10.2, 10.3, 11.3, 14.1, 14.2.1.1
Contractor's Liability Insurance
11.1
Contractor's Relationship with Separate Contractors and Owner's Forces
3.12.5, 3.14.2, 4.2.4, 6, 11.3, 12.2.4
Contractor's Relationship with Subcontractors
1.2.2, 2.2.4, 3.3.2, 3.18.1, 3.18.2, 4.2.4, 5, 9.6.2, 9.6.7, 9.10.2, 11.2, 11.3, 11.4
Contractor's Relationship with the Architect
1.1.2, 1.5, 2.3.3, 3.1.3, 3.2.2, 3.2.3, 3.2.4, 3.3.1, 3.4.2, 3.5.1, 3.7.4, 3.10, 3.11, 3.12, 3.16, 3.18, 4.2, 5.2, 6.2.2, 7, 8.3.1, 9.2, 9.3, 9.4, 9.5, 9.7, 9.8, 9.9, 10.2.6, 10.3, 11.3, 12, 13.4, 15.1.3, 15.2.1
Contractor's Representations
3.2.1, 3.2.2, 3.5, 3.12.6, 6.2.2, 8.2.1, 9.3.3, 9.8.2
Contractor's Responsibility for Those Performing the Work
3.3.2, 3.18, 5.3, 6.1.3, 6.2, 9.5.1, 10.2.8
Contractor's Review of Contract Documents
3.2
Contractor's Right to Stop the Work
2.2.2, 9.7
Contractor's Right to Terminate the Contract
14.1
Contractor's Submittals
3.10, 3.11, 3.12, 4.2.7, 5.2.1, 5.2.3, 9.2, 9.3, 9.8.2, 9.8.3, 9.9.1, 9.10.2, 9.10.3
Contractor's Superintendent
3.9, 10.2.6
Contractor's Supervision and Construction Procedures
1.2.2, 3.3, 3.4, 3.12.10, 4.2.2, 4.2.7, 6.1.3, 6.2.4, 7.1.3, 7.3.4, 7.3.6, 8.2, 10, 12, 14, 15.1.4
Coordination and Correlation
1.2, 3.2.1, 3.3.1, 3.10, 3.12.6, 6.1.3, 6.2.1
Copies Furnished of Drawings and Specifications
1.5, 2.3.6, 3.11
Copyrights
1.5, 3.17
Correction of Work
2.5, 3.7.3, 9.4.2, 9.8.2, 9.8.3, 9.9.1, 12.1.2, 12.2, 12.3, 15.1.3.1, 15.1.3.2, 15.2.1
Correlation and Intent of the Contract Documents
1.2
Cost, Definition of
7.3.4
Costs
2.5, 3.2.4, 3.7.3, 3.8.2, 3.15.2, 5.4.2, 6.1.1, 6.2.3, 7.3.3.3, 7.3.4, 7.3.8, 7.3.9, 9.10.2, 10.3.2, 10.3.6, 11.2, 12.1.2, 12.2.1, 12.2.4, 13.4, 14
Cutting and Patching
3.14, 6.2.5
Damage to Construction of Owner or Separate Contractors
3.14.2, 6.2.4, 10.2.1.2, 10.2.5, 10.4, 12.2.4
Damage to the Work
3.14.2, 9.9.1, 10.2.1.2, 10.2.5, 10.4, 12.2.4
Damages, Claims for
3.2.4, 3.18, 6.1.1, 8.3.3, 9.5.1, 9.6.7, 10.3.3, 11.3.2, 11.3, 14.2.4, 15.1.7
Damages for Delay
6.2.3, 8.3.3, 9.5.1.6, 9.7, 10.3.2, 14.3.2
Date of Commencement of the Work, Definition of
8.1.2
Date of Substantial Completion, Definition of
8.1.3
Day, Definition of
8.1.4
Decisions of the Architect
3.7.4, 4.2.6, 4.2.7, 4.2.11, 4.2.12, 4.2.13, 6.3, 7.3.4, 7.3.9, 8.1.3, 8.3.1, 9.2, 9.4, 9.5.1, 9.8.4, 9.9.1, 13.4.2, 14.2.2, 14.2.4, 15.1, 15.2
Decisions to Withhold Certification
9.4.1, 9.5, 9.7, 14.1.1.3
Defective or Nonconforming Work, Acceptance, Rejection and Correction of
2.5, 3.5, 4.2.6, 6.2.3, 9.5.1, 9.5.3, 9.6.6, 9.8.2, 9.9.3, 9.10.4, 12.2.1
Definitions
1.1, 2.1.1, 3.1.1, 3.5, 3.12.1, 3.12.2, 3.12.3, 4.1.1, 5.1, 6.1.2, 7.2.1, 7.3.1, 8.1, 9.1, 9.8.1, 15.1.1
Delays and Extensions of Time
3.2, 3.7.4, 5.2.3, 7.2.1, 7.3.1, 7.4, 8.3, 9.5.1, 9.7, 10.3.2, 10.4, 14.3.2, 15.1.6, 15.2.5
Digital Data Use and Transmission
1.7
Disputes
6.3, 7.3.9, 15.1, 15.2
Documents and Samples at the Site
3.11
Drawings, Definition of
1.1.5
Drawings and Specifications, Use and Ownership of
3.11
Effective Date of Insurance
8.2.2
Emergencies
10.4, 14.1.1.2, 15.1.5
Employees, Contractor's
3.3.2, 3.4.3, 3.8.1, 3.9, 3.18.2, 4.2.3, 4.2.6, 10.2, 10.3.3, 11.3, 14.1, 14.2.1.1
Equipment, Labor, or Materials
1.1.3, 1.1.6, 3.4, 3.5, 3.8.2, 3.8.3, 3.12, 3.13, 3.15.1, 4.2.6, 4.2.7, 5.2.1, 6.2.1, 7.3.4, 9.3.2, 9.3.3, 9.5.1.3, 9.10.2, 10.2.1, 10.2.4, 14.2.1.1, 14.2.1.2
Execution and Progress of the Work
1.1.3, 1.2.1, 1.2.2, 2.3.4, 2.3.6, 3.1, 3.3.1, 3.4.1, 3.7.1, 3.10.1, 3.12, 3.14, 4.2, 6.2.2, 7.1.3, 7.3.6, 8.2, 9.5.1, 9.9.1, 10.2, 10.3, 12.1, 12.2, 14.2, 14.3.1, 15.1.4
Extensions of Time
3.2.4, 3.7.4, 5.2.3, 7.2.1, 7.3, 7.4, 9.5.1, 9.7, 10.3.2, 10.4, 14.3, 15.1.6, 15.2.5

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes:
(3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

Failure of Payment
9.5.1.3, 9.7, 9.10.2, 13.5, 14.1.1.3, 14.2.1.2
Faulty Work
(See Defective or Nonconforming Work)
Final Completion and Final Payment
4.2.1, 4.2.9, 9.8.2, 9.10, 12.3, 14.2.4, 14.4.3
Financial Arrangements, Owner's
2.2.1, 13.2.2, 14.1.1.4
GENERAL PROVISIONS
1
Governing Law
13.1
Guarantees (See Warranty)
Hazardous Materials and Substances
10.2.4, 10.3
Identification of Subcontractors and Suppliers
5.2.1
Indemnification
3.17, 3.18, 9.6.8, 9.10.2, 10.3.3, 11.3
Information and Services Required of the Owner
2.1.2, 2.2, 2.3, 3.2.2, 3.12.10.1, 6.1.3, 6.1.4, 6.2.5,
9.6.1, 9.9.2, 9.10.3, 10.3.3, 11.2, 13.4.1, 13.4.2,
14.1.1.4, 14.1.4, 15.1.4
Initial Decision
15.2
Initial Decision Maker, Definition of
1.1.8
Initial Decision Maker, Decisions
14.2.4, 15.1.4.2, 15.2.1, 15.2.2, 15.2.3, 15.2.4, 15.2.5
Initial Decision Maker, Extent of Authority
14.2.4, 15.1.4.2, 15.2.1, 15.2.2, 15.2.3, 15.2.4, 15.2.5
Injury or Damage to Person or Property
10.2.8, 10.4
Inspections
3.1.3, 3.3.3, 3.7.1, 4.2.2, 4.2.6, 4.2.9, 9.4.2, 9.8.3,
9.9.2, 9.10.1, 12.2.1, 13.4
Instructions to Bidders
1.1.1
Instructions to the Contractor
3.2.4, 3.3.1, 3.8.1, 5.2.1, 7, 8.2.2, 12, 13.4.2
Instruments of Service, Definition of
1.1.7
Insurance
6.1.1, 7.3.4, 8.2.2, 9.3.2, 9.8.4, 9.9.1, 9.10.2, 10.2.5,
11
Insurance, Notice of Cancellation or Expiration
11.1.4, 11.2.3
Insurance, Contractor's Liability
11.1
Insurance, Effective Date of
8.2.2, 14.4.2
Insurance, Owner's Liability
11.2
Insurance, Property
10.2.5, 11.2, 11.4, 11.5
Insurance, Stored Materials
9.3.2
INSURANCE AND BONDS
11
Insurance Companies, Consent to Partial Occupancy
9.9.1
Insured loss, Adjustment and Settlement of
11.5
Intent of the Contract Documents
1.2.1, 4.2.7, 4.2.12, 4.2.13
Interest
13.5
Interpretation
1.1.8, 1.2.3, 1.4, 4.1.1, 5.1, 6.1.2, 15.1.1
Interpretations, Written
4.2.11, 4.2.12
Judgment on Final Award
15.4.2
Labor and Materials, Equipment
1.1.3, 1.1.6, 3.4, 3.5, 3.8.2, 3.8.3, 3.12, 3.13, 3.15.1,
5.2.1, 6.2.1, 7.3.4, 9.3.2, 9.3.3, 9.5.1.3, 9.10.2, 10.2.1,
10.2.4, 14.2.1.1, 14.2.1.2
Labor Disputes
8.3.1
Laws and Regulations
1.5, 2.3.2, 3.2.3, 3.2.4, 3.6, 3.7, 3.12.10, 3.13, 9.6.4,
9.9.1, 10.2.2, 13.1, 13.3.1, 13.4.2, 13.5, 14, 15.2.8,
15.4
Liens
2.1.2, 9.3.1, 9.3.3, 9.6.8, 9.10.2, 9.10.4, 15.2.8
Limitations, Statutes of
12.2.5, 15.1.2, 15.4.1.1
Limitations of Liability
3.2.2, 3.5, 3.12.10, 3.12.10.1, 3.17, 3.18.1, 4.2.6,
4.2.7, 6.2.2, 9.4.2, 9.6.4, 9.6.7, 9.6.8, 10.2.5, 10.3.3,
11.3, 12.2.5, 13.3.1
Limitations of Time
2.1.2, 2.2, 2.5, 3.2.2, 3.10, 3.11, 3.12.5, 3.15.1, 4.2.7,
5.2, 5.3, 5.4.1, 6.2.4, 7.3, 7.4, 8.2, 9.2, 9.3.1, 9.3.3,
9.4.1, 9.5, 9.6, 9.7, 9.8, 9.9, 9.10, 12.2, 13.4, 14, 15,
15.1.2, 15.1.3, 15.1.5
Materials, Hazardous
10.2.4, 10.3
Materials, Labor, Equipment and
1.1.3, 1.1.6, 3.4.1, 3.5, 3.8.2, 3.8.3, 3.12, 3.13, 3.15.1,
5.2.1, 6.2.1, 7.3.4, 9.3.2, 9.3.3, 9.5.1.3, 9.10.2,
10.2.1.2, 10.2.4, 14.2.1.1, 14.2.1.2
Means, Methods, Techniques, Sequences and
Procedures of Construction
3.3.1, 3.12.10, 4.2.2, 4.2.7, 9.4.2
Mechanic's Lien
2.1.2, 9.3.1, 9.3.3, 9.6.8, 9.10.2, 9.10.4, 15.2.8
Mediation
8.3.1, 15.1.3.2, 15.2.1, 15.2.5, 15.2.6, 15.3, 15.4.1,
15.4.1.1
Minor Changes in the Work
1.1.1, 3.4.2, 3.12.8, 4.2.8, 7.1, 7.4
MISCELLANEOUS PROVISIONS
13

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

Modifications, Definition of
1.1.1
Modifications to the Contract
1.1.1, 1.1.2, 2.5, 3.11, 4.1.2, 4.2.1, 5.2.3, 7, 8.3.1, 9.7, 10.3.2
Mutual Responsibility
6.2
Nonconforming Work, Acceptance of
9.6.6, 9.9.3, 12.3
Nonconforming Work, Rejection and Correction of
2.4, 2.5, 3.5, 4.2.6, 6.2.4, 9.5.1, 9.8.2, 9.9.3, 9.10.4, 12.2
Notice
1.6, 1.6.1, 1.6.2, 2.1.2, 2.2.2., 2.2.3, 2.2.4, 2.5, 3.2.4, 3.3.1, 3.7.4, 3.7.5, 3.9.2, 3.12.9, 3.12.10, 5.2.1, 7.4, 8.2.2 9.6.8, 9.7, 9.10.1, 10.2.8, 10.3.2, 11.5, 12.2.2.1, 13.4.1, 13.4.2, 14.1, 14.2.2, 14.4.2, 15.1.3, 15.1.5, 15.1.6, 15.4.1
Notice of Cancellation or Expiration of Insurance
11.1.4, 11.2.3
Notice of Claims
1.6.2, 2.1.2, 3.7.4, 9.6.8, 10.2.8, 15.1.3, 15.1.5, 15.1.6, 15.2.8, 15.3.2, 15.4.1
Notice of Testing and Inspections
13.4.1, 13.4.2
Observations, Contractor's
3.2, 3.7.4
Occupancy
2.3.1, 9.6.6, 9.8
Orders, Written
1.1.1, 2.4, 3.9.2, 7, 8.2.2, 11.5, 12.1, 12.2.2.1, 13.4.2, 14.3.1
OWNER
2
Owner, Definition of
2.1.1
Owner, Evidence of Financial Arrangements
2.2, 13.2.2, 14.1.1.4
Owner, Information and Services Required of the
2.1.2, 2.2, 2.3, 3.2.2, 3.12.10, 6.1.3, 6.1.4, 6.2.5, 9.3.2, 9.6.1, 9.6.4, 9.9.2, 9.10.3, 10.3.3, 11.2, 13.4.1, 13.4.2, 14.1.1.4, 14.1.4, 15.1.4
Owner's Authority
1.5, 2.1.1, 2.3.32.4, 2.5, 3.4.2, 3.8.1, 3.12.10, 3.14.2, 4.1.2, 4.2.4, 4.2.9, 5.2.1, 5.2.4, 5.4.1, 6.1, 6.3, 7.2.1, 7.3.1, 8.2.2, 8.3.1, 9.3.2, 9.5.1, 9.6.4, 9.9.1, 9.10.2, 10.3.2, 11.4, 11.5, 12.2.2, 12.3, 13.2.2, 14.3, 14.4, 15.2.7
Owner's Insurance
11.2
Owner's Relationship with Subcontractors
1.1.2, 5.2, 5.3, 5.4, 9.6.4, 9.10.2, 14.2.2
Owner's Right to Carry Out the Work
2.5, 14.2.2
Owner's Right to Clean Up
6.3
Owner's Right to Perform Construction and to Award Separate Contracts
6.1
Owner's Right to Stop the Work
2.4
Owner's Right to Suspend the Work
14.3
Owner's Right to Terminate the Contract
14.2, 14.4
Ownership and Use of Drawings, Specifications and Other Instruments of Service
1.1.1, 1.1.6, 1.1.7, 1.5, 2.3.6, 3.2.2, 3.11, 3.17, 4.2.12, 5.3
Partial Occupancy or Use
9.6.6, 9.9
Patching, Cutting and
3.14, 6.2.5
Patents
3.17
Payment, Applications for
4.2.5, 7.3.9, 9.2, 9.3, 9.4, 9.5, 9.6.3, 9.7, 9.8.5, 9.10.1, 14.2.3, 14.2.4, 14.4.3
Payment, Certificates for
4.2.5, 4.2.9, 9.3.3, 9.4, 9.5, 9.6.1, 9.6.6, 9.7, 9.10.1, 9.10.3, 14.1.1.3, 14.2.4
Payment, Failure of
9.5.1.3, 9.7, 9.10.2, 13.5, 14.1.1.3, 14.2.1.2
Payment, Final
4.2.1, 4.2.9, 9.10, 12.3, 14.2.4, 14.4.3
Payment Bond, Performance Bond and
7.3.4.4, 9.6.7, 9.10.3, 11.1.2
Payments, Progress
9.3, 9.6, 9.8.5, 9.10.3, 14.2.3, 15.1.4
PAYMENTS AND COMPLETION
9
Payments to Subcontractors
5.4.2, 9.5.1.3, 9.6.2, 9.6.3, 9.6.4, 9.6.7, 14.2.1.2
PCB
10.3.1
Performance Bond and Payment Bond
7.3.4.4, 9.6.7, 9.10.3, 11.1.2
Permits, Fees, Notices and Compliance with Laws
2.3.1, 3.7, 3.13, 7.3.4.4, 10.2.2
PERSONS AND PROPERTY, PROTECTION OF
10
Polychlorinated Biphenyl
10.3.1
Product Data, Definition of
3.12.2
Product Data and Samples, Shop Drawings
3.11, 3.12, 4.2.7
Progress and Completion
4.2.2, 8.2, 9.8, 9.9.1, 14.1.4, 15.1.4
Progress Payments
9.3, 9.6, 9.8.5, 9.10.3, 14.2.3, 15.1.4
Project, Definition of
1.1.4
Project Representatives

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

4.2.10
Property Insurance
10.2.5, 11.2
Proposal Requirements
1.1.1
PROTECTION OF PERSONS AND PROPERTY
10
Regulations and Laws
1.5, 2.3.2, 3.2.3, 3.6, 3.7, 3.12.10, 3.13, 9.6.4, 9.9.1, 10.2.2, 13.1, 13.3, 13.4.1, 13.4.2, 13.5, 14, 15.2.8, 15.4
Rejection of Work
4.2.6, 12.2.1
Releases and Waivers of Liens
9.3.1, 9.10.2
Representations
3.2.1, 3.5, 3.12.6, 8.2.1, 9.3.3, 9.4.2, 9.5.1, 9.10.1
Representatives
2.1.1, 3.1.1, 3.9, 4.1.1, 4.2.10, 13.2.1
Responsibility for Those Performing the Work
3.3.2, 3.18, 4.2.2, 4.2.3, 5.3, 6.1.3, 6.2, 6.3, 9.5.1, 10
Retainage
9.3.1, 9.6.2, 9.8.5, 9.9.1, 9.10.2, 9.10.3
Review of Contract Documents and Field Conditions by Contractor
3.2, 3.12.7, 6.1.3
Review of Contractor's Submittals by Owner and Architect
3.10.1, 3.10.2, 3.11, 3.12, 4.2, 5.2, 6.1.3, 9.2, 9.8.2
Review of Shop Drawings, Product Data and Samples by Contractor
3.12
Rights and Remedies
1.1.2, 2.4, 2.5, 3.5, 3.7.4, 3.15.2, 4.2.6, 5.3, 5.4, 6.1, 6.3, 7.3.1, 8.3, 9.5.1, 9.7, 10.2.5, 10.3, 12.2.1, 12.2.2, 12.2.4, 13.3, 14, 15.4
Royalties, Patents and Copyrights
3.17
Rules and Notices for Arbitration
15.4.1
Safety of Persons and Property
10.2, 10.4
Safety Precautions and Programs
3.3.1, 4.2.2, 4.2.7, 5.3, 10.1, 10.2, 10.4
Samples, Definition of
3.12.3
Samples, Shop Drawings, Product Data and
3.11, 3.12, 4.2.7
Samples at the Site, Documents and
3.11
Schedule of Values
9.2, 9.3.1
Schedules, Construction
3.10, 3.12.1, 3.12.2, 6.1.3, 15.1.6.2
Separate Contracts and Contractors
1.1.4, 3.12.5, 3.14.2, 4.2.4, 4.2.7, 6, 8.3.1, 12.1.2
Separate Contractors, Definition of
6.1.1
Shop Drawings, Definition of
3.12.1
Shop Drawings, Product Data and Samples
3.11, 3.12, 4.2.7
Site, Use of
3.13, 6.1.1, 6.2.1
Site Inspections
3.2.2, 3.3.3, 3.7.1, 3.7.4, 4.2, 9.9.2, 9.4.2, 9.10.1, 13.4
Site Visits, Architect's
3.7.4, 4.2.2, 4.2.9, 9.4.2, 9.5.1, 9.9.2, 9.10.1, 13.4
Special Inspections and Testing
4.2.6, 12.2.1, 13.4
Specifications, Definition of
1.1.6
Specifications
1.1.1, 1.1.6, 1.2.2, 1.5, 3.12.10, 3.17, 4.2.14
Statute of Limitations
15.1.2, 15.4.1.1
Stopping the Work
2.2.2, 2.4, 9.7, 10.3, 14.1
Stored Materials
6.2.1, 9.3.2, 10.2.1.2, 10.2.4
Subcontractor, Definition of
5.1.1
SUBCONTRACTORS
5
Subcontractors, Work by
1.2.2, 3.3.2, 3.12.1, 3.18, 4.2.3, 5.2.3, 5.3, 5.4, 9.3.1.2, 9.6.7
Subcontractual Relations
5.3, 5.4, 9.3.1.2, 9.6, 9.10, 10.2.1, 14.1, 14.2.1
Submittals
3.10, 3.11, 3.12, 4.2.7, 5.2.1, 5.2.3, 7.3.4, 9.2, 9.3, 9.8, 9.9.1, 9.10.2, 9.10.3
Submittal Schedule
3.10.2, 3.12.5, 4.2.7
Subrogation, Waivers of
6.1.1, 11.3
Substances, Hazardous
10.3
Substantial Completion
4.2.9, 8.1.1, 8.1.3, 8.2.3, 9.4.2, 9.8, 9.9.1, 9.10.3, 12.2, 15.1.2
Substantial Completion, Definition of
9.8.1
Substitution of Subcontractors
5.2.3, 5.2.4
Substitution of Architect
2.3.3
Substitutions of Materials
3.4.2, 3.5, 7.3.8
Sub-subcontractor, Definition of
5.1.2
Subsurface Conditions
3.7.4
Successors and Assigns

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

13.2
Superintendent
3.9, 10.2.6
Supervision and Construction Procedures
1.2.2, 3.3, 3.4, 3.12.10, 4.2.2, 4.2.7, 6.1.3, 6.2.4, 7.1.3, 7.3.4, 8.2, 8.3.1, 9.4.2, 10, 12, 14, 15.1.4
Suppliers
1.5, 3.12.1, 4.2.4, 4.2.6, 5.2.1, 9.3, 9.4.2, 9.5.4, 9.6, 9.10.5, 14.2.1
Surety
5.4.1.2, 9.6.8, 9.8.5, 9.10.2, 9.10.3, 11.1.2, 14.2.2, 15.2.7
Surety, Consent of
9.8.5, 9.10.2, 9.10.3
Surveys
1.1.7, 2.3.4
Suspension by the Owner for Convenience
14.3
Suspension of the Work
3.7.5, 5.4.2, 14.3
Suspension or Termination of the Contract
5.4.1.1, 14
Taxes
3.6, 3.8.2.1, 7.3.4.4
Termination by the Contractor
14.1, 15.1.7
Termination by the Owner for Cause
5.4.1.1, 14.2, 15.1.7
Termination by the Owner for Convenience
14.4
Termination of the Architect
2.3.3
Termination of the Contractor Employment
14.2.2

TERMINATION OR SUSPENSION OF THE CONTRACT
14
Tests and Inspections
3.1.3, 3.3.3, 3.7.1, 4.2.2, 4.2.6, 4.2.9, 9.4.2, 9.8.3, 9.9.2, 9.10.1, 10.3.2, 12.2.1, 13.4
TIME
8
Time, Delays and Extensions of
3.2.4, 3.7.4, 5.2.3, 7.2.1, 7.3.1, 7.4, 8.3, 9.5.1, 9.7, 10.3.2, 10.4, 14.3.2, 15.1.6, 15.2.5
Time Limits
2.1.2, 2.2, 2.5, 3.2.2, 3.10, 3.11, 3.12.5, 3.15.1, 4.2, 5.2, 5.3, 5.4, 6.2.4, 7.3, 7.4, 8.2, 9.2, 9.3.1, 9.3.3, 9.4.1, 9.5, 9.6, 9.7, 9.8, 9.9, 9.10, 12.2, 13.4, 14, 15.1.2, 15.1.3, 15.4
Time Limits on Claims
3.7.4, 10.2.8, 15.1.2, 15.1.3
Title to Work
9.3.2, 9.3.3
UNCOVERING AND CORRECTION OF WORK
12
Uncovering of Work
12.1
Unforeseen Conditions, Concealed or Unknown
3.7.4, 8.3.1, 10.3
Unit Prices
7.3.3.2, 9.1.2
Use of Documents
1.1.1, 1.5, 2.3.6, 3.12.6, 5.3
Use of Site
3.13, 6.1.1, 6.2.1
Values, Schedule of
9.2, 9.3.1
Waiver of Claims by the Architect
13.3.2
Waiver of Claims by the Contractor
9.10.5, 13.3.2, 15.1.7
Waiver of Claims by the Owner
9.9.3, 9.10.3, 9.10.4, 12.2.2.1, 13.3.2, 14.2.4, 15.1.7
Waiver of Consequential Damages
14.2.4, 15.1.7
Waiver of Liens
9.3, 9.10.2, 9.10.4
Waivers of Subrogation
6.1.1, 11.3
Warranty
3.5, 4.2.9, 9.3.3, 9.8.4, 9.9.1, 9.10.2, 9.10.4, 12.2.2, 15.1.2
Weather Delays
8.3, 15.1.6.2
Work, Definition of
1.1.3
Written Consent
1.5.2, 3.4.2, 3.7.4, 3.12.8, 3.14.2, 4.1.2, 9.3.2, 9.10.3, 13.2, 13.3.2, 15.4.4.2
Written Interpretations
4.2.11, 4.2.12
Written Orders
1.1.1, 2.4, 3.9, 7, 8.2.2, 12.1, 12.2, 13.4.2, 14.3.1

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

ARTICLE 1 GENERAL PROVISIONS

§ 1.1 Basic Definitions

§ 1.1.1 The Contract Documents

The Contract Documents are enumerated in the Agreement between the Owner and Contractor (hereinafter the Agreement) and consist of the Agreement, Conditions of the Contract (General, Supplementary and other Conditions), Drawings, Specifications, Addenda issued prior to execution of the Contract, Contractor's Assumptions, Qualifications, Exclusions and Clarifications (Basis of Estimate), other documents listed in the Agreement, and Modifications issued after execution of the Contract. A Modification is (1) a written amendment to the Contract signed by both parties, (2) a Change Order, (3) a Construction Change Directive, or (4) a written order for a minor change in the Work issued by the Architect. Unless specifically enumerated in the Agreement, the Contract Documents do not include the advertisement or invitation to bid, Instructions to Bidders, sample forms, other information furnished by the Owner in anticipation of receiving bids or proposals, the Contractor's bid or proposal, or portions of Addenda relating to bidding or proposal requirements. The Assumptions and Clarifications on which the Guaranteed Maximum Price is based shall govern over any inconsistent term in any of the Contract Documents.

§ 1.1.2 The Contract

The Contract Documents form the Contract for Construction. The Contract represents the entire and integrated agreement between the parties hereto and supersedes prior negotiations, representations, or agreements, either written or oral. The Contract may be amended or modified only by a Modification. The Contract Documents shall not be construed to create a contractual relationship of any kind (1) between the Contractor and the Architect or the Architect's consultants, (2) between the Owner and a Subcontractor or a Sub-subcontractor, (3) between the Owner and the Architect or the Architect's consultants, or (4) between any persons or entities other than the Owner and the Contractor. The Architect shall, however, be entitled to performance and enforcement of obligations under the Contract intended to facilitate performance of the Architect's duties.

§ 1.1.3 The Work

The term "Work" means the construction and services required by the Contract Documents, whether completed or partially completed, and includes all other labor, materials, equipment, and services provided or to be provided by the Contractor to fulfill the Contractor's obligations. The Work may constitute the whole or a part of the Project.

§ 1.1.4 The Project

The Project is the total construction of which the Work performed under the Contract Documents may be the whole or a part and which may include construction by the Owner and by Separate Contractors.

§ 1.1.5 The Drawings

The Drawings are the graphic and pictorial portions of the Contract Documents showing the design, location and dimensions of the Work, generally including plans, elevations, sections, details, schedules, and diagrams.

§ 1.1.6 The Specifications

The Specifications are that portion of the Contract Documents consisting of the written requirements for materials, equipment, systems, standards and workmanship for the Work, and performance of related services.

§ 1.1.7 Instruments of Service

Instruments of Service are representations, in any medium of expression now known or later developed, of the tangible and intangible creative work performed by the Architect and the Architect's consultants under their respective professional services agreements. Instruments of Service may include, without limitation, studies, surveys, models, sketches, drawings, specifications, and other similar materials.

§ 1.1.8 Initial Decision Maker

The Initial Decision Maker is the person identified in the Agreement to render initial decisions on Claims in accordance with Section 15.2. The Initial Decision Maker shall not show partiality to the Owner or Contractor and shall not be liable for results of interpretations or decisions rendered in good faith.

§ 1.1.9 "GMP" as used herein, refers to the Guaranteed Maximum Price, if applicable to these Contract Documents.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 1.2 Correlation and Intent of the Contract Documents

§ 1.2.1 The intent of the Contract Documents is to include all items necessary for the proper execution and completion of the Work by the Contractor. The Contract Documents are complementary, and what is required by one shall be as binding as if required by all; performance by the Contractor shall be required only to the extent consistent with the Contract Documents and reasonably inferable from them as being necessary to produce the indicated results.

§ 1.2.1.1 The invalidity of any provision of the Contract Documents shall not invalidate the Contract or its remaining provisions. If it is determined that any provision of the Contract Documents violates any law, or is otherwise invalid or unenforceable, then that provision shall be revised to the extent necessary to make that provision legal and enforceable. In such case the Contract Documents shall be construed, to the fullest extent permitted by law, to give effect to the parties' intentions and purposes in executing the Contract.

§ 1.2.2 Organization of the Specifications into divisions, sections and articles, and arrangement of Drawings shall not control the Contractor in dividing the Work among Subcontractors or in establishing the extent of Work to be performed by any trade.

§ 1.2.3 Unless otherwise stated in the Contract Documents, words that have well-known technical or construction industry meanings are used in the Contract Documents in accordance with such recognized meanings.

§ 1.3 Capitalization

Terms capitalized in these General Conditions include those that are (1) specifically defined, (2) the titles of numbered articles, or (3) the titles of other documents published by the American Institute of Architects.

§ 1.4 Interpretation

In the interest of brevity the Contract Documents frequently omit modifying words such as "all" and "any" and articles such as "the" and "an," but the fact that a modifier or an article is absent from one statement and appears in another is not intended to affect the interpretation of either statement.

§ 1.5 Ownership and Use of Drawings, Specifications, and Other Instruments of Service

§ 1.5.1 The Architect and the Architect's consultants shall be deemed the authors and owners of their respective Instruments of Service, including the Drawings and Specifications, and retain all common law, statutory, and other reserved rights in their Instruments of Service, including copyrights. The Contractor, Subcontractors, Sub-subcontractors, and suppliers shall not own or claim a copyright in the Instruments of Service. Submittal or distribution to meet official regulatory requirements or for other purposes in connection with the Project is not to be construed as publication in derogation of the Architect's or Architect's consultants' reserved rights.

§ 1.5.2 The Contractor, Subcontractors, Sub-subcontractors, and suppliers are authorized to use and reproduce the Instruments of Service provided to them, subject to any protocols established pursuant to Sections 1.7 and 1.8, solely and exclusively for execution of the Work. All copies made under this authorization shall bear the copyright notice, if any, shown on the Instruments of Service. The Contractor, Subcontractors, Sub-subcontractors, and suppliers may not use the Instruments of Service on other projects or for additions to the Project outside the scope of the Work without the specific written consent of the Owner, Architect, and the Architect's consultants.

§ 1.6 Notice

§ 1.6.1 Except as otherwise provided in Section 1.6.2, where the Contract Documents require one party to notify or give notice to the other party, such notice shall be provided in writing to the designated representative of the party to whom the notice is addressed and shall be deemed to have been duly served if delivered in person, by mail, by courier, or by electronic transmission if a method for electronic transmission is set forth in the Agreement.

§ 1.6.2 Notice of Claims as provided in Section 15.1.3 shall be provided in writing and shall be deemed to have been duly served only if delivered to the designated representative of the party to whom the notice is addressed by certified or registered mail, or by courier providing proof of delivery.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 1.7 Digital Data Use and Transmission

The parties shall agree upon protocols governing the transmission and use of Instruments of Service or any other information or documentation in digital form. The parties will use AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, to establish the protocols for the development, use, transmission, and exchange of digital data.

§ 1.8 Building Information Models Use and Reliance

Any use of, or reliance on, all or a portion of a building information model without agreement to protocols governing the use of, and reliance on, the information contained in the model and without having those protocols set forth in AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, and the requisite AIA Document G202™–2013, Project Building Information Modeling Protocol Form, shall be at the using or relying party's sole risk and without liability to the other party and its contractors or consultants, the authors of, or contributors to, the building information model, and each of their agents and employees.

§1.8.1 The Owner commits that it will have the Architect promptly deliver to the Contractor a full operable copy of the Architect's building and building system model(s) in order to facilitate the placement of the features, systems and components that will be supplied by the Contractor's personnel, suppliers and subcontractors.

ARTICLE 2 OWNER

§ 2.1 General

§ 2.1.1 The Owner is the person or entity identified as such in the Agreement and is referred to throughout the Contract Documents as if singular in number. The Owner shall designate in writing a representative who shall have express authority to bind the Owner with respect to all matters requiring the Owner's approval or authorization. Except as otherwise provided in Section 4.2.1, the Architect does not have such authority. The term "Owner" means the Owner or the Owner's authorized representative.

§ 2.1.2 The Owner shall furnish to the Contractor, within fifteen days after receipt of a written request, information necessary and relevant for the Contractor to evaluate, give notice of, or enforce mechanic's lien rights. Such information shall include a correct statement of the record legal title to the property on which the Project is located, usually referred to as the site, and the Owner's interest therein.

§ 2.2 Evidence of the Owner's Financial Arrangements

§ 2.2.1 Prior to commencement of the Work and upon written request by the Contractor, the Owner shall furnish to the Contractor reasonable evidence that the Owner has made financial arrangements to fulfill the Owner's obligations under the Contract. The Contractor shall have no obligation to commence the Work until the Owner provides such evidence. If commencement of the Work is delayed under this Section 2.2.1, the Contract Time shall be extended and the Contract Sum or GMP increased appropriately.

§ 2.2.2

Intentionally Omitted.

§ 2.2.3 After the Owner furnishes evidence of financial arrangements under this Section 2.2, the Owner shall not materially vary such financial arrangements without prior notice to the Contractor.

§ 2.2.4 Where the Owner has designated information furnished under this Section 2.2 as "confidential," the Contractor shall keep the information confidential and shall not disclose it to any other person. However, the Contractor may disclose "confidential" information, after seven (7) days' notice to the Owner, where disclosure is required by law, including a subpoena or other form of compulsory legal process issued by a court or governmental entity, or by court or arbitrator(s) order. The Contractor may also disclose "confidential" information to its employees, consultants, sureties, Subcontractors and their employees, Sub-subcontractors, and others who need to know the content of such information solely and exclusively for the Project and who agree to maintain the confidentiality of such information.

§ 2.3 Information and Services Required of the Owner

§ 2.3.1 Except for permits and fees that are the responsibility of the Contractor under the Contract Documents, including those required under Section 3.7.1, the Owner shall secure and pay for necessary approvals, easements,

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

assessments and charges required for construction, use or occupancy of permanent structures or for permanent changes in existing facilities.

§ 2.3.2 The Owner shall retain an architect lawfully licensed to practice architecture, or an entity lawfully practicing architecture, in the jurisdiction where the Project is located. That person or entity is identified as the Architect in the Agreement and is referred to throughout the Contract Documents as if singular in number.

§ 2.3.3 If the employment of the Architect terminates, the Owner shall employ a successor to whom the Contractor has no reasonable objection and whose status under the Contract Documents shall be that of the Architect.

§ 2.3.4 The Owner shall furnish surveys describing physical characteristics, legal limitations and utility locations for the site of the Project, and a legal description of the site. The Contractor shall be entitled to rely on the accuracy of information furnished by the Owner but shall exercise proper precautions relating to the safe performance of the Work.

§ 2.3.5 The Owner shall furnish information or services required of the Owner by the Contract Documents with reasonable promptness so as not to delay the progress of the Work. The Owner shall also furnish any other information or services under the Owner's control and relevant to the Contractor's performance of the Work with reasonable promptness after receiving the Contractor's written request for such information or services.

§ 2.3.6 Unless otherwise provided in the Contract Documents, the Owner shall furnish to the Contractor one copy of the Contract Documents for purposes of making reproductions pursuant to Section 1.5.2.

§ 2.4 Owner's Right to Stop the Work

If the Contractor fails to correct Work that is not in accordance with the requirements of the Contract Documents as required by Section 12.2 or repeatedly fails to carry out Work in accordance with the Contract Documents, the Owner may issue a written order to the Contractor to stop the affected portion of the Work, or any portion thereof, until the cause for such order has been eliminated; however, the right of the Owner to stop the Work shall not give rise to a duty on the part of the Owner to exercise this right for the benefit of the Contractor or any other person or entity, except to the extent required by Section 6.1.3.

§ 2.5 Owner's Right to Carry Out the Work

If the Contractor defaults or neglects to carry out the Work in accordance with the Contract Documents and fails within a ten-day period after receipt of notice from the Owner to commence and continue correction of such default or neglect with diligence and promptness, or provide a reasonable timetable for doing so, the Owner may, without prejudice to other remedies the Owner may have, correct such default or neglect. In such case an appropriate Change Order shall be issued deducting from the Guaranteed Maximum Price or if the Guaranteed Maximum Price has been paid by the Owner, from the Contract Sum, the reasonable cost of correcting such deficiencies, including Owner's reasonable expenses and reasonable compensation for the Architect's additional services made necessary by such default, neglect or failure. Such action by the Owner and amounts charged to the Contractor are both subject to prior approval of the Architect and the Owner's Representative. If neither the balance of the Guaranteed Maximum Price nor current and future payments are sufficient to cover such amounts, the Contractor shall pay the difference to the Owner. If the Contractor disagrees with the actions of the Owner or the Architect, or the amounts claimed as costs to the Owner, the Contractor may file a Claim pursuant to Article 15.

ARTICLE 3 CONTRACTOR

§ 3.1 General

§ 3.1.1 The Contractor is the person or entity identified as such in the Agreement and is referred to throughout the Contract Documents as if singular in number. The Contractor shall be lawfully licensed, if required in the jurisdiction where the Project is located. The Contractor shall designate in writing a representative who shall have express authority to bind the Contractor with respect to all matters under this Contract. The term "Contractor" means the Contractor or the Contractor's authorized representative.

§ 3.1.2 The Contractor shall perform the Work in accordance with the Contract Documents.

§ 3.1.3 The Contractor shall not be relieved of its obligations to perform the Work in accordance with the Contract Documents either by activities or duties of the Architect in the Architect's administration of the Contract, or by tests,

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

inspections or approvals required or performed by persons or entities other than the Contractor, except for such activities or duties assumed by Owner under the Contract Documents.

§ 3.2 Review of Contract Documents and Field Conditions by Contractor

§ 3.2.1 Execution of the Contract by the Contractor is a representation that the Contractor has visited the site, become generally familiar with the visually observable conditions of the site under which the Work is to be performed, and correlated personal observations with requirements of the Contract Documents.

§ 3.2.2 Because the Contract Documents are complementary, the Contractor shall, before starting each portion of the Work, carefully study and compare the various Contract Documents relative to that portion of the Work, as well as the information furnished by the Owner pursuant to Section 2.3.4, shall take field measurements of any existing conditions related to that portion of the Work, and shall observe any conditions at the site affecting it. These obligations are for the purpose of facilitating coordination and construction by the Contractor and are not for the purpose of discovering errors, omissions, or inconsistencies in the Contract Documents; however, the Contractor shall promptly report to the Architect any errors, inconsistencies or omissions discovered by or made known to the Contractor as a request for information in such form as the Architect may require. It is recognized that the Contractor's review is made in the Contractor's capacity as a contractor and not as a licensed design professional, unless otherwise specifically provided in the Contract Documents.

§ 3.2.3 The Contractor is not required to ascertain that the Contract Documents are in accordance with applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, but the Contractor shall promptly report to the Architect any nonconformity discovered by or made known to the Contractor as a request for information in such form as the Architect may require.

§ 3.2.4 If the Contractor believes that additional cost or time is involved because of clarifications or instructions the Architect issues in response to the Contractor's notices or requests for information pursuant to Sections 3.2.2 or 3.2.3, the Contractor shall submit Claims as provided in Article 15. If the Contractor fails to perform the obligations of Sections 3.2.2 or 3.2.3, the Contractor shall pay such costs and damages to the Owner, subject to Section 15.1.7, as would have been avoided if the Contractor had performed such obligations. If the Contractor performs those obligations, the Contractor shall not be liable to the Owner or Architect for damages resulting from errors, inconsistencies or omissions in the Contract Documents, for differences between field measurements or conditions and the Contract Documents, or for nonconformities of the Contract Documents to applicable laws, statutes, ordinances, codes, rules and regulations, and lawful orders of public authorities and the Contractor shall be entitled to make Claims for any rework required pursuant to Article 15.

§ 3.3 Supervision and Construction Procedures

§ 3.3.1 The Contractor shall supervise and direct the Work, using the Contractor's best skill and attention. The Contractor shall be solely responsible for, and have control over, construction means, methods, techniques, sequences, and procedures, and for coordinating all portions of the Work under the Contract. If the Contract Documents give specific instructions concerning construction means, methods, techniques, sequences, or procedures, the Contractor shall evaluate the jobsite safety thereof and shall be solely responsible for the jobsite safety of such means, methods, techniques, sequences, or procedures. If the Contractor determines that such means, methods, techniques, sequences or procedures may not be safe, the Contractor shall give timely notice to the Owner, Owner's Representative and Architect, and shall propose alternative means, methods, techniques, sequences, or procedures. The Architect shall evaluate the proposed alternative solely for conformance with the design intent for the completed construction. Unless the Architect objects to the Contractor's proposed alternative, the Contractor shall perform the Work using its alternative means, methods, techniques, sequences, or procedures. If the Contractor is instructed to proceed with the required means, methods, techniques, sequences or procedures without acceptance of changes proposed by the Contractor, the Owner shall be solely responsible for any loss or damage arising from those Owner-required means, methods, techniques, sequences or procedures and shall provide the Contractor additional Contract Time, reimbursement of all costs and an increase in the Contract Sum and the GMP sufficient to provide relief for all attendant impacts and costs incurred.

§ 3.3.2 The Contractor shall be responsible to the Owner for acts and omissions of the Contractor's employees, Subcontractors and their agents and employees, and other persons or entities performing portions of the Work for, or on behalf of, the Contractor or any of its Subcontractors.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 3.3.3 The Contractor shall be responsible for inspection of portions of Work already performed to determine that such portions are in proper condition to receive subsequent Work.

§ 3.4 Labor and Materials

§ 3.4.1 Unless otherwise provided in the Contract Documents, the Contractor shall provide and pay for labor, materials, equipment, tools, construction equipment and machinery, water, heat, utilities, transportation, and other facilities and services necessary for proper execution and completion of the Work, whether temporary or permanent and whether or not incorporated or to be incorporated in the Work.

§ 3.4.2 Except in the case of minor changes in the Work approved by the Architect in accordance with Section 3.12.8 or ordered by the Architect in accordance with Section 7.4, the Contractor may make substitutions only with the consent of the Owner or Owner's Representative, after evaluation by the Architect or Owner's Representative and in accordance with a Change Order or Construction Change Directive.

§ 3.4.3 The Contractor shall enforce strict discipline and good order among the Contractor's employees and other persons carrying out the Work. The Contractor shall not permit employment of unfit persons or persons not properly skilled in tasks assigned to them.

§ 3.5 Warranty

§ 3.5.1 The Contractor warrants to the Owner that materials and equipment furnished under the Contract will be of good quality and new unless the Contract Documents require or permit otherwise for a period of one (1) year following Substantial Completion. The Contractor further warrants for such one (1) year period that the Work will conform to the requirements of the Contract Documents and will be free from defects, except for those inherent in the quality of the Work the Contract Documents require or permit. Work, materials, or equipment not conforming to these requirements may be considered defective. The Contractor's warranty excludes remedy for damage or defect caused by abuse, alterations to the Work not executed by the Contractor, improper or insufficient maintenance, improper operation, or normal wear and tear and normal usage. If required by the Architect, the Contractor shall furnish satisfactory evidence as to the kind and quality of materials and equipment. Other than the foregoing warranty, Contractor makes no other warranty, representation or guaranty and assumes no other responsibility or liability for defective Work. Longer term warranties that may be required by the Contract Documents shall be provided directly by the relevant subcontractor, vendor or manufacturer directly to Owner and Contractor shall have no responsibility for such extended warranties. Contractor's rights to payment and reimbursement of Costs of the Work do not cease at any time and are expressly available to Contractor for Work performed under this Section.

Longer term warranties for specifications required by the Contract Documents and to be provided by relevant subcontractors, vendors, or manufacturers directly to the Owner will be identified and formalized in an Addendum to this
Contract.

§ 3.5.2 All material, equipment, or other special warranties required by the Contract Documents shall be issued in the name of the Owner, or shall be transferable to the Owner, and shall commence in accordance with Section 9.8.4.

§ 3.6 Taxes

The Contractor shall pay sales, consumer, use and similar taxes for the Work provided by the Contractor that are legally enacted when bids are received or negotiations concluded, whether or not yet effective or merely scheduled to go into effect.

§ 3.7 Permits, Fees, Notices and Compliance with Laws

§ 3.7.1. Unless otherwise provided in the Contract Documents, the Contractor shall be responsible for pick-up of the building permit Owner will secure and pay for other permits, fees, licenses, and inspections by government agencies necessary for proper execution and completion of the Work other than those required to be obtained by a trade contractor or subcontractor and that are customarily secured after execution of the Contract and legally required at the time bids are received or negotiations concluded.

§ 3.7.2 The Contractor shall comply with and give notices required by current applicable laws, statutes, ordinances, codes, rules and regulations, and lawful orders of public authorities applicable to performance of the Work that pertain to construction means and methods as opposed to design.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 3.7.3 If the Contractor performs Work knowing it to be contrary to applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, the Contractor shall assume appropriate responsibility for such Work and shall bear the costs attributable to correction.

§ 3.7.4 Concealed or Unknown Conditions

If the Contractor encounters conditions at the site that are (1) subsurface or otherwise concealed physical conditions that differ materially from those indicated in the Contract Documents or (2) physical conditions that differ materially from those known to the Contractor to exist and generally recognized by the Contractor as inherent in construction activities of the character provided for in the Contract Documents, in the relevant location, the Contractor shall promptly provide notice to the Owner, Owner's Representative and the Architect before conditions are disturbed and in no event later than 14 days after first observance of the conditions. The Architect will promptly investigate such conditions and, if the Architect determines that they differ materially and cause an increase or decrease in the Contractor's cost of, or time required for, performance of any part of the Work, will recommend that an equitable adjustment be made in the Contract Sum or Contract Time, or both. If the Architect determines that the conditions at the site are not materially different from those indicated in the Contract Documents and that no change in the terms of the Contract is justified, the Architect shall promptly notify the Owner, Owner's Representative and Contractor within seven (7) days of the Contractor's notification under this Section, stating the reasons. If the Owner and Contractor cannot agree on an adjustment in the Contract Sum, GMP or Contract Time, the adjustment shall be referred to the Initial Decision Maker for an initial determination, subject to further proceedings pursuant to Article 15. If either party disputes the Architect's determination or recommendation, that party may submit a Claim as provided in Article 15.

§ 3.7.5 If, in the course of the Work, the Contractor encounters human remains or recognizes the existence of burial markers, archaeological sites or wetlands not indicated in the Contract Documents, the Contractor shall immediately suspend any operations that would affect them and shall notify the Owner, Owner's Representative and Architect. Upon receipt of such notice, the Owner shall promptly take any action necessary to obtain governmental authorization required to resume the operations. The Contractor shall continue to suspend such operations until otherwise instructed by the Owner but shall continue with all other operations that do not affect those remains or features. Requests for adjustments in the Contract Sum and Contract Time arising from the existence of such remains or features may be made as provided in Article 15.

§ 3.8 Allowances

§ 3.8.1 The Contractor shall include in the Contract Sum all allowances stated in the Contract Documents. Items covered by allowances shall be supplied for such amounts and by such persons or entities as the Owner may direct, but the Contractor shall not be required to employ persons or entities to whom the Contractor has reasonable objection.

§ 3.8.2 Unless otherwise provided in the Contract Documents,

.1 allowances shall cover the cost to the Contractor of materials and equipment delivered at the site and all required taxes, less applicable trade discounts;

.2 Contractor's costs for unloading and handling at the site, labor, installation costs, overhead, profit, and other expenses contemplated for stated allowance amounts shall be included in the Contract Sum but not in the allowances; and

.3 whenever costs are more than or less than allowances, the Contract Sum shall be adjusted accordingly by Change Order. The amount of the Change Order shall reflect (1) the difference between actual costs and the allowances under Section 3.8.2.1 and (2) changes in Contractor's costs under Section 3.8.2.2.

.4 prior to utilizing any allowance as a funding source, the Contractor shall provide notice to the Owner that includes (i) description of the scope, (ii) either formal pricing or an estimated cost to perform the Work, (iii) notice of intent to fund this Work from an allowance, including the allowance number as identified in Exhibit E, and (iv) Owner's or Owner Representative's approval to proceed.

§ 3.8.3 Materials and equipment under an allowance shall be selected by the Owner with reasonable promptness.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 3.9 Superintendent

§ 3.9.1 The Contractor shall employ a competent superintendent and necessary assistants who shall be in attendance at the Project site during performance of the Work. The superintendent shall represent the Contractor, and communications given to the superintendent shall be as binding as if given to the Contractor.

§ 3.9.2 The Contractor, as soon as practicable after award of the Contract, shall notify the Owner, Owner's Representative and Architect of the name and qualifications of a proposed superintendent. Within 14 days of receipt of the information, the Architect may notify the Contractor, stating whether the Owner or the Architect (1) has reasonable objection to the proposed superintendent or (2) requires additional time for review. Failure of the Owner's Representative to provide notice within the 14-day period shall constitute notice of no reasonable objection.

§ 3.9.3 The Contractor shall not employ a proposed superintendent to whom the Owner, Owner's Representative or Architect has made reasonable and timely objection. The Contractor shall not change the superintendent without the Owner's consent, which shall not unreasonably be withheld or delayed.

§ 3.10 Contractor's Construction and Submittal Schedules

§ 3.10.1 The Contractor, promptly after being awarded the Contract, shall submit for the Owner's, Owner's Representative and Architect's information a Contractor's construction schedule for the Work. The schedule shall contain detail appropriate for the Project, including (1) the date of commencement of the Work, interim schedule milestone dates, and the date of Substantial Completion; (2) an apportionment of the Work by construction activity; and (3) the time required for completion of each portion of the Work. The schedule shall provide for the orderly progression of the Work to completion and shall not exceed time limits current under the Contract Documents. The schedule shall be revised at appropriate intervals as required by the conditions of the Work and Project.

§ 3.10.2 The Contractor, promptly after being awarded the Contract and thereafter as necessary to maintain a current submittal schedule, shall submit a submittal schedule for the Architect's and Owner's Representative approval. The Architect's or Owner's Representative approval shall not be unreasonably delayed or withheld. The submittal schedule shall (1) be coordinated with the Contractor's construction schedule, and (2) allow the Architect reasonable time to review submittals. If the Contractor fails to submit a submittal schedule, or fails to provide submittals in accordance with the approved submittal schedule, the Contractor shall not be entitled to any increase in Contract Sum or extension of Contract Time based on the time required for review of submittals.

§ 3.10.3 The Contractor shall perform the Work in general accordance with the most recent schedules submitted to the Owner, Owner's Representative and Architect.

§ 3.11 Documents and Samples at the Site

The Contractor shall make available, at the Project site, the Contract Documents, including Change Orders, Construction Change Directives, and other Modifications, in good order and marked currently to indicate field changes and selections made during construction, and the approved Shop Drawings, Product Data, Samples, and similar required submittals. These shall be in electronic form or paper copy, available to the Architect, Owner's Representative and Owner, and delivered to the Owner's Representative for submittal to the Owner upon completion of the Work as a record of the Work as constructed.

§ 3.12 Shop Drawings, Product Data and Samples

§ 3.12.1 Shop Drawings are drawings, diagrams, schedules, and other data specially prepared for the Work by the Contractor or a Subcontractor, Sub-subcontractor, manufacturer, supplier, or distributor to illustrate some portion of the Work.

§ 3.12.2 Product Data are illustrations, standard schedules, performance charts, instructions, brochures, diagrams, and other information furnished by the Contractor to illustrate materials or equipment for some portion of the Work.

§ 3.12.3 Samples are physical examples that illustrate materials, equipment, or workmanship, and establish standards by which the Work will be judged.

§ 3.12.4 Shop Drawings, Product Data, Samples, and similar submittals are not Contract Documents. Their purpose is to demonstrate how the Contractor proposes to conform to the information given and the design concept expressed

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

in the Contract Documents for those portions of the Work for which the Contract Documents require submittals. Review by the Architect is subject to the limitations of Section 4.2.7. Informational submittals upon which the Architect is not expected to take responsive action may be so identified in the Contract Documents. Submittals that are not required by the Contract Documents may be returned by the Architect without action.

§ 3.12.5 The Contractor shall review for compliance with the Contract Documents, and submit to the Architect and Owner's Representative, Shop Drawings, Product Data, Samples, and similar submittals required by the Contract Documents, in accordance with the submittal schedule approved by the Architect or Owner's Representative or, in the absence of an approved submittal schedule, with reasonable promptness and in such sequence as to cause no delay in the Work or in the activities of the Owner or of Separate Contractors.

§ 3.12.6 By submitting Shop Drawings, Product Data, Samples, and similar submittals, the Contractor represents to the Owner, Owner's Representative and Architect that the Contractor has (1) reviewed them, (2) determined and verified materials, field measurements and field construction criteria related thereto, or will do so, and (3) checked and coordinated the information contained within such submittals with the requirements of the Work and of the Contract Documents.

§ 3.12.7 The Contractor shall perform no portion of the Work for which the Contract Documents require submittal and review of Shop Drawings, Product Data, Samples, or similar submittals, until the respective submittal has been approved by the Architect.

§ 3.12.8 The Work shall be in accordance with approved submittals except that the Contractor shall not be relieved of responsibility for deviations from the requirements of the Contract Documents by the Architect's approval of Shop Drawings, Product Data, Samples, or similar submittals, unless the Contractor has specifically notified the Owner's Representative and Architect of such deviation at the time of submittal and (1) the Architect has given written approval to the specific deviation as a minor change in the Work, or (2) a Change Order or Construction Change Directive has been issued authorizing the deviation. The Contractor shall not be relieved of responsibility for errors or omissions in Shop Drawings, Product Data, Samples, or similar submittals, by the Architect's approval thereof.

§ 3.12.9 The Contractor shall direct specific attention, in writing or on resubmitted Shop Drawings, Product Data, Samples, or similar submittals, to revisions other than those requested by the Architect on previous submittals. In the absence of such notice, the Architect's approval of a resubmission shall not apply to such revisions.

§ 3.12.10 The Contractor shall not be required to provide professional services that constitute the practice of architecture or engineering unless such services are specifically required by the Contract Documents for a portion of the Work or unless the Contractor needs to provide such services in order to carry out the Contractor's responsibilities for construction means, methods, techniques, sequences, and procedures. The Contractor shall not be required to provide professional services in violation of applicable law.

§ 3.12.10.1 If professional design services or certifications by a design professional related to systems, materials, or equipment are specifically required of the Contractor by the Contract Documents, the Owner and the Architect will specify all performance and design criteria that such services must satisfy. The Contractor shall be entitled to rely upon the adequacy and accuracy of the performance and design criteria provided in the Contract Documents. The Contractor shall cause such services or certifications to be provided by an appropriately licensed design professional, whose signature and seal shall appear on all drawings, calculations, specifications, certifications, Shop Drawings, and other submittals prepared by such professional. Shop Drawings, and other submittals related to the Work, designed or certified by such professional, if prepared by others, shall bear such professional's written approval when submitted to the Architect. The Owner and the Architect shall be entitled to rely upon the adequacy and accuracy of the services, certifications, and approvals performed or provided by such design professionals, provided the Owner and Architect have specified to the Contractor the performance and design criteria that such services must satisfy. Pursuant to this Section 3.12.10, the Architect will review and approve or take other appropriate action on submittals only for the limited purpose of checking for conformance with information given and the design concept expressed in the Contract Documents.

§ 3.12.10.2 If the Contract Documents require the Contractor's design professional to certify that the Work has been performed in accordance with the design criteria, the Contractor shall furnish such certifications to the Architect at the time and in the form specified by the Architect.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 3.13 Use of Site
The Contractor shall confine operations at the site to areas permitted by applicable laws, statutes, ordinances, codes, rules and regulations, lawful orders of public authorities, and the Contract Documents and shall not unreasonably encumber the site with materials or equipment.

§ 3.14 Cutting and Patching
§ 3.14.1 The Contractor shall be responsible for cutting, fitting, or patching required to complete the Work or to make its parts fit together properly. All areas requiring cutting, fitting, or patching shall be restored to the condition existing prior to the cutting, fitting, or patching, unless otherwise required by the Contract Documents.

§ 3.14.2 The Contractor shall not damage or endanger a portion of the Work or fully or partially completed construction of the Owner or Separate Contractors by cutting, patching, or otherwise altering such construction, or by excavation. The Contractor shall not cut or otherwise alter construction by the Owner or a Separate Contractor except with written consent of the Owner and of the Separate Contractor. Consent shall not be unreasonably withheld. The Contractor shall not unreasonably withhold, from the Owner or a Separate Contractor, its consent to cutting or otherwise altering the Work.

§ 3.15 Cleaning Up
§ 3.15.1 The Contractor shall keep the premises and surrounding area free from accumulation of waste materials and rubbish caused by operations under the Contract. At completion of the Work, the Contractor shall remove waste materials, rubbish, the Contractor's tools, construction equipment, machinery, and surplus materials from and about the Project.

§ 3.15.2 If the Contractor fails to clean up as provided in the Contract Documents, the Owner may do so and the Owner shall be entitled to deduct the reasonable cost of doing so from the Guaranteed Maximum Price.

§ 3.16 Access to Work
The Contractor shall provide the Owner, Owner's Representative and Architect with access to the Work in preparation and progress wherever located.

§ 3.17 Royalties, Patents and Copyrights
The Contractor shall pay all royalties and license fees specifically identified in the Contract Documents as the Contractor's responsibility. The Contractor shall defend suits or claims for infringement of copyrights and patent rights and shall hold the Owner harmless from loss on account thereof, but shall not be responsible for defense or loss when a particular design, process, or product of a particular manufacturer or manufacturers is required by the Contract Documents, or where the copyright violations are contained in Drawings, Specifications, or other documents prepared by the Owner or Architect. However, if an infringement of a copyright or patent is discovered by, or made known to, the Contractor, the Contractor shall be responsible for the loss unless the information is promptly furnished to the Architect.

§ 3.18 Indemnification
§ 3.18.1 To the fullest extent permitted by law, the Contractor shall indemnify and hold harmless the Owner and Owner's employees from and against claims, damages, losses, and expenses, including but not limited to attorneys' fees, arising out of or resulting from performance of the Work, provided that such claim, damage, loss, or expense is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Work itself), but only to the extent caused by the negligent acts or omissions of the Contractor, a Subcontractor, anyone directly or indirectly employed by them, or anyone for whose acts they may be liable, regardless of whether or not such claim, damage, loss, or expense is caused in part by a party indemnified hereunder. Such obligation shall not be construed to negate, abridge, or reduce other rights or obligations of indemnity that would otherwise exist as to a party or person described in this Section 3.18.

§ 3.18.2 In claims against any person or entity indemnified under this Section 3.18 by an employee of the Contractor, a Subcontractor, anyone directly or indirectly employed by them, or anyone for whose acts they may be liable, the indemnification obligation under Section 3.18.1 shall not be limited by a limitation on amount or type of damages, compensation, or benefits payable by or for the Contractor or a Subcontractor under workers' compensation acts, disability benefit acts, or other employee benefit acts.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

ARTICLE 4 ARCHITECT

§ 4.1 General

§ 4.1.1 The Architect is the person or entity retained by the Owner pursuant to Section 2.3.2 and identified as such in the Agreement.

§ 4.1.2 Duties, responsibilities, and limitations of authority of the Architect as set forth in the Contract Documents shall not be restricted, modified, or extended without written consent of the Owner, Contractor, and Architect. Consent shall not be unreasonably withheld.

§ 4.2 Administration of the Contract

§ 4.2.1 The Owner's Representative will provide administration of the Contract as described in the Contract Documents and will be an Owner's representative during construction until the date the Owner's Representative issues the final Certificate for Payment. The Architect will have authority to act on behalf of the Owner only to the extent provided in the Contract Documents.

§ 4.2.2 The Architect will visit the site at intervals appropriate to the stage of construction, or as otherwise agreed with the Owner, to become generally familiar with the progress and quality of the portion of the Work completed, and to determine in general if the Work observed is being performed in a manner indicating that the Work, when fully completed, will be in accordance with the Contract Documents. However, the Architect will not be required to make exhaustive or continuous on-site inspections to check the quality or quantity of the Work. The Architect will not have control over, charge of, or responsibility for the construction means, methods, techniques, sequences or procedures, or for the safety precautions and programs in connection with the Work, since these are solely the Contractor's rights and responsibilities under the Contract Documents.

§ 4.2.3 On the basis of the site visits, the Architect will keep the Owner reasonably informed about the progress and quality of the portion of the Work completed, and promptly report to the Owner (1) known deviations from the Contract Documents, (2) known deviations from the most recent construction schedule submitted by the Contractor, and (3) defects and deficiencies observed in the Work. The Architect will not be responsible for the Contractor's failure to perform the Work in accordance with the requirements of the Contract Documents. The Architect will not have control over or charge of, and will not be responsible for acts or omissions of, the Contractor, Subcontractors, or their agents or employees, or any other persons or entities performing portions of the Work.

§ 4.2.4 Communications

The Owner and Contractor shall include the Architect in all communications that relate to or affect the Architect's services or professional responsibilities. The Owner shall promptly notify the Architect of the substance of any direct communications between the Owner and the Contractor otherwise relating to the Project. Communications by and with the Architect's consultants shall be through the Architect. Communications by and with Subcontractors and suppliers shall be through the Contractor. Communications by and with Separate Contractors shall be through the Owner. The Contract Documents may specify other communication protocols.

§ 4.2.5 Based on the Owner's Representative evaluations of the Contractor's Applications for Payment, the Owner's Representative will review and certify the amounts due the Contractor and will issue Certificates for Payment in such amounts.

§ 4.2.6 The Architect has authority to reject Work that does not conform to the Contract Documents. Whenever the Architect considers it necessary or advisable, the Architect will have authority to require inspection or testing of the Work in accordance with Sections 13.4.2 and 13.4.3, whether or not the Work is fabricated, installed or completed. However, neither this authority of the Architect nor a decision made in good faith either to exercise or not to exercise such authority shall give rise to a duty or responsibility of the Architect to the Contractor, Subcontractors, suppliers, their agents or employees, or other persons or entities performing portions of the Work.

§ 4.2.7 The Architect will review and approve, or take other appropriate action upon, the Contractor's submittals such as Shop Drawings, Product Data, and Samples, but only for the limited purpose of checking for conformance with information given and the design concept expressed in the Contract Documents. The Architect's action will be taken in accordance with the submittal schedule approved by the Architect or, in the absence of an approved submittal schedule, with reasonable promptness while allowing sufficient time in the Architect's professional

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

judgment to permit adequate review but in no event later than seven (7) days. Review of such submittals is not conducted for the purpose of determining the accuracy and completeness of other details such as dimensions and quantities, or for substantiating instructions for installation or performance of equipment or systems, all of which remain the responsibility of the Contractor as required by the Contract Documents. The Architect's review of the Contractor's submittals shall not relieve the Contractor of the obligations under Sections 3.3, 3.5, and 3.12. The Architect's review shall not constitute approval of safety precautions or of any construction means, methods, techniques, sequences, or procedures. The Architect's approval of a specific item shall not indicate approval of an assembly of which the item is a component.

§ 4.2.8 The Owner's Representative will prepare Change Orders and Construction Change Directives, and may order minor changes in the Work as provided in Section 7.4. The Architect will investigate and make determinations and recommendations regarding concealed and unknown conditions as provided in Section 3.7.4.

§ 4.2.9 The Architect and Owner's Representative will conduct inspections to determine the date or dates of Substantial Completion and the date of final completion; issue Certificates of Substantial Completion pursuant to Section 9.8; receive and forward to the Owner, for the Owner's review and records, written warranties and related documents required by the Contract and assembled by the Contractor pursuant to Section 9.10; and issue a final Certificate for Payment pursuant to Section 9.10.

§ 4.2.10 If the Owner, Owner's Representative and Architect agree, the Architect will provide one or more Project representatives to assist in carrying out the Architect's responsibilities at the site. The Owner shall notify the Contractor of any change in the duties, responsibilities and limitations of authority of the Project representatives.

§ 4.2.11 The Architect will interpret and decide matters concerning performance under, and requirements of, the Contract Documents on written request of either the Owner or Contractor. The Architect's response to such requests will be made in writing within any time limits agreed upon or otherwise with reasonable promptness.

§ 4.2.12 Interpretations and decisions of the Architect will be consistent with the intent of, and reasonably inferable from, the Contract Documents and will be in writing or in the form of drawings. When making such interpretations and decisions, the Architect will endeavor to secure faithful performance by both Owner and Contractor, will not show partiality to either, and will not be liable for results of interpretations or decisions rendered in good faith.

§ 4.2.13 The Architect's decisions on matters relating to aesthetic effect will be final if consistent with the intent expressed in the Contract Documents.

§ 4.2.14 The Architect will review and respond to requests for information about the Contract Documents. The Architect's response to such requests will be made in writing within any time limits agreed upon or otherwise with reasonable promptness. If appropriate, the Architect will prepare and issue supplemental Drawings and Specifications in response to the requests for information.

ARTICLE 5 SUBCONTRACTORS

§ 5.1 Definitions

§ 5.1.1 A Subcontractor is a person or entity who has a direct contract with the Contractor to perform a portion of the Work at the site. The term "Subcontractor" is referred to throughout the Contract Documents as if singular in number and means a Subcontractor or an authorized representative of the Subcontractor. The term "Subcontractor" does not include a Separate Contractor or the subcontractors of a Separate Contractor.

§ 5.1.2 A Sub-subcontractor is a person or entity who has a direct or indirect contract with a Subcontractor to perform a portion of the Work at the site. The term "Sub-subcontractor" is referred to throughout the Contract Documents as if singular in number and means a Sub-subcontractor or an authorized representative of the Sub-subcontractor.

§ 5.2 Award of Subcontracts and Other Contracts for Portions of the Work

§ 5.2.1 Unless otherwise stated in the Contract Documents, the Contractor, as soon as practicable after award of the Contract, shall notify the Owner and Architect of the persons or entities proposed for each principal portion of the Work, including those who are to furnish materials or equipment fabricated to a special design. Within 14 days of receipt of the information, the Architect may notify the Contractor whether the Owner or the Architect (1) has

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

reasonable objection to any such proposed person or entity or (2) requires additional time for review. Failure of the Architect to provide notice within the 14-day period shall constitute notice of no reasonable objection.

§ 5.2.2 The Contractor shall not contract with a proposed person or entity to whom the Owner or Architect has made reasonable and timely objection. The Contractor shall not be required to contract with anyone to whom the Contractor has made reasonable objection.

§ 5.2.3 If the Owner, Owner's Representative or Architect has reasonable objection to a person or entity proposed by the Contractor, the Contractor shall propose another to whom the Owner, Owner's Representative or Architect has no reasonable objection. If the proposed but rejected Subcontractor was reasonably capable of performing the Work, the Contract Sum and Contract Time shall be increased or decreased by the difference, if any, occasioned by such change, and an appropriate Change Order shall be issued before commencement of the substitute Subcontractor's Work. However, no increase in the Contract Sum or Contract Time shall be allowed for such change unless the Contractor has acted promptly and responsively in submitting names as required.

§ 5.2.4 The Contractor shall not substitute a Subcontractor, person, or entity for one previously selected if the Owner, Owner's Representative or Architect makes reasonable objection to such substitution.

§ 5.3 Subcontractual Relations

By appropriate written agreement, the Contractor shall require each Subcontractor, to the extent of the Work to be performed by the Subcontractor, to be bound to the Contractor by terms of the Contract Documents, and to assume toward the Contractor all the obligations and responsibilities, including the responsibility for safety of the Subcontractor's Work that the Contractor, by these Contract Documents, assumes toward the Owner, Owner's Representative and Architect. Each subcontract agreement shall preserve and protect the rights of the Owner, Owner's Representative and Architect under the Contract Documents with respect to the Work to be performed by the Subcontractor so that subcontracting thereof will not prejudice such rights, and shall allow to the Subcontractor, unless specifically provided otherwise in the subcontract agreement, the benefit of all rights, remedies, and redress against the Contractor that the Contractor, by the Contract Documents, has against the Owner. Where appropriate, the Contractor shall require each Subcontractor to enter into similar agreements with Sub-subcontractors. The Contractor shall make available to each proposed Subcontractor, prior to the execution of the subcontract agreement, copies of the Contract Documents to which the Subcontractor will be bound, and, upon written request of the Subcontractor, identify to the Subcontractor terms and conditions of the proposed subcontract agreement that may be at variance with the Contract Documents. Subcontractors will similarly make copies of applicable portions of such documents available to their respective proposed Sub-subcontractors.

§ 5.4 Contingent Assignment of Subcontracts

§ 5.4.1 Each subcontract agreement for a portion of the Work is assigned by the Contractor to the Owner, provided that

.1 assignment is effective only after termination of the Contract by the Owner for cause pursuant to Section 14.2 and only for those subcontract agreements that the Owner accepts by notifying the Subcontractor and Contractor; and

.2 assignment is subject to the prior rights of the surety, if any, obligated under bond relating to the Contract.

When the Owner accepts the assignment of a subcontract agreement, the Owner assumes the Contractor's rights and obligations under the subcontract.

§ 5.4.2 Upon such assignment, if the Work has been suspended for more than 30 days, the Subcontractor's compensation shall be equitably adjusted for increases in cost resulting from the suspension.

§ 5.4.3 Upon assignment to the Owner under this Section 5.4, the Owner may further assign the subcontract to a successor contractor or other entity. If the Owner assigns the subcontract to a successor contractor or other entity, the Owner shall nevertheless remain legally responsible for all of the successor contractor's obligations under the subcontract.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 5.4.4 The Owner hereby agrees to indemnify, defend and hold harmless the Contractor against all claims, costs and expenses related to those subcontracts and other contractual rights that occur or are related to such period of performance after date of assignment.

ARTICLE 6 CONSTRUCTION BY OWNER OR BY SEPARATE CONTRACTORS

§ 6.1 Owner's Right to Perform Construction and to Award Separate Contracts

§ 6.1.1 The term "Separate Contractor(s)" shall mean other contractors retained by the Owner under separate agreements. The Owner reserves the right to perform construction or operations related to the Project with the Owner's own forces, and with Separate Contractors retained under Conditions of the Contract substantially similar to those of this Contract, including those provisions of the Conditions of the Contract related to insurance and waiver of subrogation.

§ 6.1.2 When separate contracts are awarded for different portions of the Project or other construction or operations on the site, the term "Contractor" in the Contract Documents in each case shall mean the Contractor who executes each separate Owner-Contractor Agreement.

§ 6.1.3 The Owner shall provide for coordination of the activities of the Owner's own forces and of each Separate Contractor with the Work of the Contractor, who shall cooperate with them. The Contractor shall participate with any Separate Contractors and the Owner in reviewing their construction schedules. The Contractor shall make any revisions to its construction schedule deemed necessary after a joint review and mutual agreement. The construction schedules shall then constitute the schedules to be used by the Contractor, Separate Contractors, and the Owner until subsequently revised.

§ 6.1.4 Unless otherwise provided in the Contract Documents, when the Owner performs construction or operations related to the Project with the Owner's own forces or with Separate Contractors, the Owner or its Separate Contractors shall have the same obligations and rights that the Contractor has under the Conditions of the Contract, including, without excluding others, those stated in Article 3, this Article 6, and Articles 10, 11, and 12.

§ 6.2 Mutual Responsibility

§ 6.2.1 The Contractor shall afford the Owner and Separate Contractors reasonable opportunity for introduction and storage of their materials and equipment and performance of their activities, and shall connect and coordinate the Contractor's construction and operations with theirs as required by the Contract Documents.

§ 6.2.2 If part of the Contractor's Work depends for proper execution or results upon construction or operations by the Owner or a Separate Contractor, the Contractor shall, prior to proceeding with that portion of the Work, promptly notify the Architect and Owner's Representative of apparent discrepancies or defects in the construction or operations by the Owner or Separate Contractor that would render it unsuitable for proper execution and results of the Contractor's Work.

§ 6.2.3 The Contractor shall reimburse the Owner for costs the Owner incurs that are payable to a Separate Contractor because of the Contractor's delays, improperly timed activities or defective construction. The Owner shall be responsible to the Contractor for costs the Contractor incurs because of a Separate Contractor's delays, improperly timed activities, damage to the Work or defective construction.

§ 6.2.4 The Contractor shall promptly remedy damage that the Contractor wrongfully causes to completed or partially completed construction or to property of the Owner or Separate Contractor as provided in Section 10.2.5.

§ 6.2.5 The Owner and each Separate Contractor shall have the same responsibilities for cutting and patching as are described for the Contractor in Section 3.14.

§ 6.3 Owner's Right to Clean Up

If a dispute arises among the Contractor, Separate Contractors, and the Owner as to the responsibility under their respective contracts for maintaining the premises and surrounding area free from waste materials and rubbish, the Owner may clean up and the Owner's Representative will allocate the cost among those responsible as provided in Section 3.15.2.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

ARTICLE 7 CHANGES IN THE WORK

§ 7.1 General

§ 7.1.1 Changes in the Work may be accomplished after execution of the Contract, and without invalidating the Contract, by Change Order, Construction Change Directive or order for a minor change in the Work, subject to the limitations stated in this Article 7 and elsewhere in the Contract Documents.

§ 7.1.2 A Change Order shall be based upon agreement among the Owner, Contractor, Owner's Representative and Architect. A Construction Change Directive requires agreement by the Owner, Owner's Representative and Architect and may or may not be agreed to by the Contractor. An order for a minor change in the Work may be issued by the Architect alone.

§ 7.1.3 Changes in the Work shall be performed under applicable provisions of the Contract Documents. The Contractor shall proceed promptly with changes in the Work, unless otherwise provided in the Change Order, Construction Change Directive, or order for a minor change in the Work.

§ 7.2 Change Orders

§ 7.2.1 A Change Order is a written instrument prepared by the Owner's Representative and signed by the Owner, Owner's Representative, Contractor, and Architect stating their agreement upon all of the following:

.1 The change in the Work;
.2 The amount of the adjustment, if any, in the Contract Sum; and
.3 The extent of the adjustment, if any, in the Contract Time.

§ 7.3 Construction Change Directives

§ 7.3.1 A Construction Change Directive is a written order prepared by the Owner's Representative, Architect and signed by the Owner and Architect, directing a change in the Work prior to agreement on adjustment, if any, in the Contract Sum or Contract Time, or both. The Owner may by Construction Change Directive, without invalidating the Contract, order changes in the Work within the general scope of the Contract consisting of additions, deletions, or other revisions, the Contract Sum and Contract Time being adjusted accordingly.

§ 7.3.2 A Construction Change Directive shall be used in the absence of total agreement on the terms of a Change Order.

§ 7.3.3 If the Construction Change Directive provides for an adjustment to the Contract Sum, the adjustment shall be based on one of the following methods:

.1 Mutual acceptance of a lump sum properly itemized and supported by sufficient substantiating data to permit evaluation;
.2 Unit prices stated in the Contract Documents or subsequently agreed upon;
.3 Cost to be determined in a manner agreed upon by the parties and a mutually acceptable fixed or percentage fee; or
.4 As provided in Section 7.3.4.

§ 7.3.4 If the Contractor does not respond promptly or disagrees with the method for adjustment in the Contract Sum, the Owner's Representative shall determine the adjustment on the basis of reasonable expenditures and savings of those performing the Work attributable to the change, including, in case of an increase in the Contract Sum, an amount for overhead and profit as set forth in the Agreement, or if no such amount is set forth in the Agreement, a reasonable amount. In such case, and also under Section 7.3.3.3, the Contractor shall keep and present, in such form as the Owner's Representative may prescribe, an itemized accounting together with appropriate supporting data. Unless otherwise provided in the Contract Documents, costs for the purposes of this Section 7.3.4 shall include all Cost of the Work and the following:

.1 Costs of labor, including applicable payroll taxes, fringe benefits required by agreement or custom, workers' compensation insurance, and other employee costs approved by the Owner's Representative;
.2 Costs of materials, supplies, and equipment, including cost of transportation, whether incorporated or consumed;
.3 Rental costs of machinery and equipment, exclusive of hand tools, whether rented from the Contractor or others;

Init.
/
AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

.4 Costs of premiums for all bonds and insurance, permit fees, and sales, use, or similar taxes, directly related to the change; and

.5 Costs of supervision and field office personnel directly attributable to the change.

§ 7.3.5 If the Contractor disagrees with the adjustment in the Contract Time and/or the Guaranteed Maximum Price, the Contractor may make a Claim in accordance with applicable provisions of Article 15.

§ 7.3.6 Upon receipt of a Construction Change Directive, the Contractor shall promptly proceed with the change in the Work involved and advise the Architect and Owner's Representative of the Contractor's agreement or disagreement with the method, if any, provided in the Construction Change Directive for determining the proposed adjustment in the Contract Sum or Contract Time provided that such disagreement only pertains to the method of the proposed adjustment, and not Contractor's entitlement to any adjustment.

§ 7.3.7 A Construction Change Directive signed by the Contractor indicates the Contractor's agreement therewith, including adjustment in Contract Sum and Contract Time or the method for determining them. Such agreement shall be effective immediately and shall be recorded as a Change Order.

§ 7.3.8 The amount of credit to be allowed by the Contractor to the Owner for a deletion or change that results in a net decrease in the Contract Sum shall be actual net cost as confirmed by the Owner's Representative. When both additions and credits covering related Work or substitutions are involved in a change, the allowance for overhead and profit shall be figured on the basis of net increase, if any, with respect to that change. If Contractor does not agree to the amount of such net increase or decrease, Contractor shall not be obligated to proceed with the deletion or change unless and until a mutually acceptable means of determining such amount is agreed upon by Owner and Contractor.

§ 7.3.9 Pending final determination of the total cost of a Construction Change Directive to the Owner, the Contractor may request payment for Work completed under the Construction Change Directive in Applications for Payment. The Owner's Representative will make an interim determination for purposes of monthly certification for payment for those costs and certify for payment the amount that the Owner's Representative determines, in the Owner's Representative professional judgment, to be reasonably justified. The Owner's Representative interim determination of cost shall adjust the Contract Sum on the same basis as a Change Order, subject to the right of either party to disagree and assert a Claim in accordance with Article 15.

§ 7.3.10 When the Owner and Contractor agree with a determination made by the Owner's Representative concerning the adjustments in the Contract Sum and Contract Time, or otherwise reach agreement upon the adjustments, such agreement shall be effective immediately and the Owner's Representative will prepare a Change Order. Change Orders may be issued for all or any part of a Construction Change Directive.

§ 7.4 Minor Changes in the Work

The Architect may order minor changes in the Work that are consistent with the intent of the Contract Documents and do not involve an adjustment in the Contract Sum or an extension of the Contract Time. The Architect's order for minor changes shall be in writing. If the Contractor believes that the proposed minor change in the Work will affect the Contract Sum or Contract Time, the Contractor shall notify the Architect and Owner's Representative and shall not proceed to implement the change in the Work. If the Contractor performs the Work set forth in the Architect's order for a minor change without prior notice to the Architect and Owner's Representative that such change will affect the Contract Sum or Contract Time, the Contractor waives any adjustment to the Contract Sum or extension of the Contract Time.

ARTICLE 8 TIME

§ 8.1 Definitions

§ 8.1.1 Unless otherwise provided, Contract Time is the period of time, including authorized adjustments, allotted in the Contract Documents for Substantial Completion of the Work.

§ 8.1.2 The date of commencement of the Work is the date established in the Agreement.

§ 8.1.3 The date of Substantial Completion is the date certified by the Owner's Representative in accordance with Section 9.8.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

§ 8.1.4 The term "day" as used in the Contract Documents shall mean calendar day unless otherwise specifically defined.

§ 8.2 Progress and Completion

§ 8.2.1 Time limits stated in the Contract Documents are of the essence of the Contract. By executing the Agreement, the Contractor confirms that the Contract Time is a reasonable period for performing the Work.

§ 8.2.2 The Contractor shall not knowingly, except by agreement or instruction of the Owner in writing, commence the Work prior to the effective date of insurance required to be furnished by the Contractor and Owner.

§ 8.2.3 The Contractor shall proceed expeditiously with adequate forces and shall achieve Substantial Completion within the Contract Time.

§ 8.3 Delays and Extensions of Time

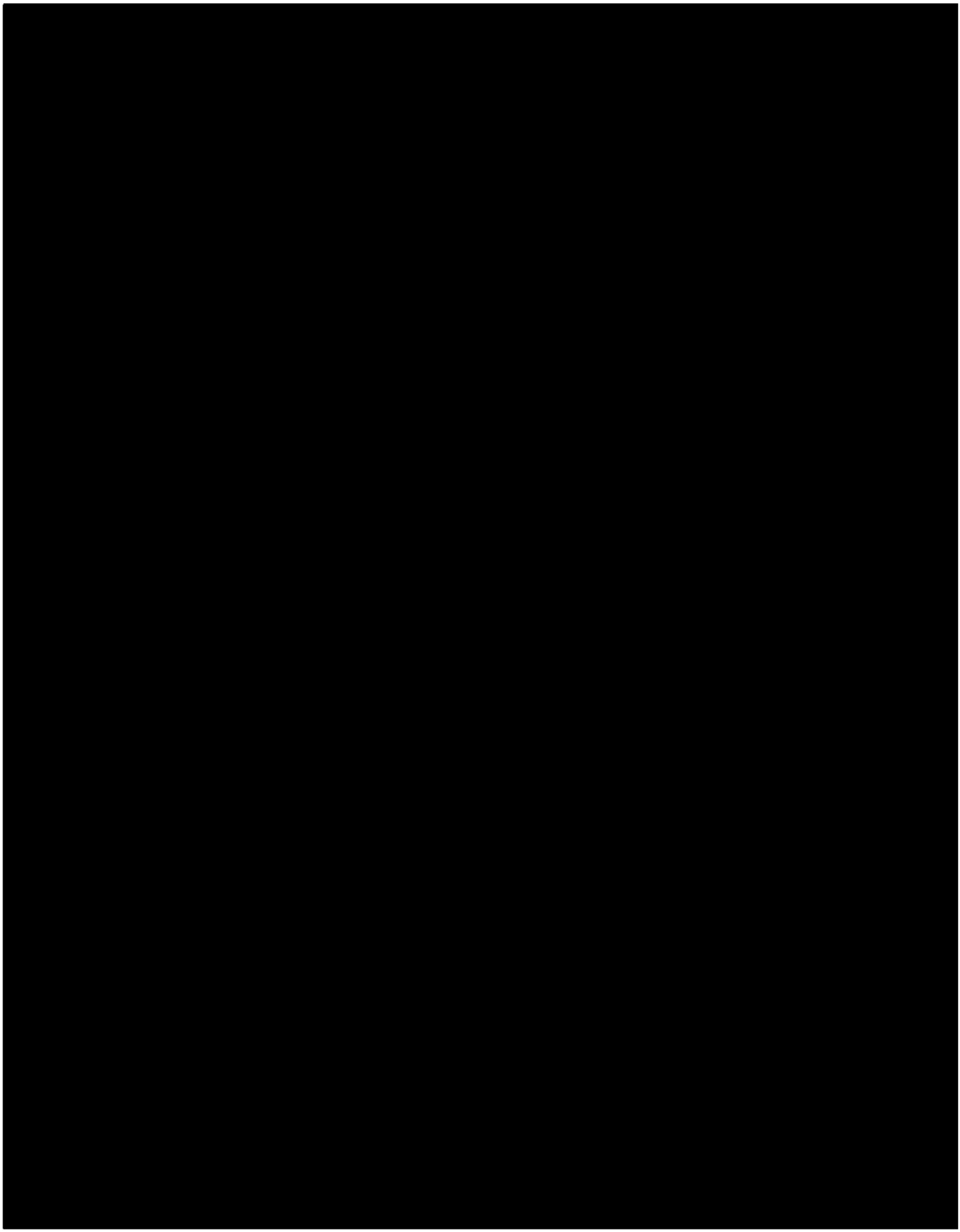
§ 8.3.1 If the Contractor is delayed at any time in the commencement or progress of the Work by (1) an act or neglect of the Owner or Architect, of an employee of either, or of a Separate Contractor; (2) by changes ordered in the Work; (3) by labor disputes, fire, war, terrorism, incidence of disease or other illness that reaches outbreak, epidemic, endemic and/or pandemic proportions or other causes affecting the area in which the Project is located and/or the Contractor's labor and/or supply chain, unusual delay in deliveries, unavoidable casualties, adverse weather conditions documented in accordance with Section 15.1.6.2, or other causes beyond the Contractor's control; (4) by delay authorized by the Contract Documents or by the Owner pending mediation and binding dispute resolution; or (5) by other causes that the Contractor asserts, and the Architect or Owner's Representative determines, justify delay, then the Contract Time shall be extended and the Contract Sum or GMP shall be increased for such reasonable time and costs as arise out of or relate to such cause.

§ 8.3.2 Claims relating to time shall be made in accordance with applicable provisions of Article 15.

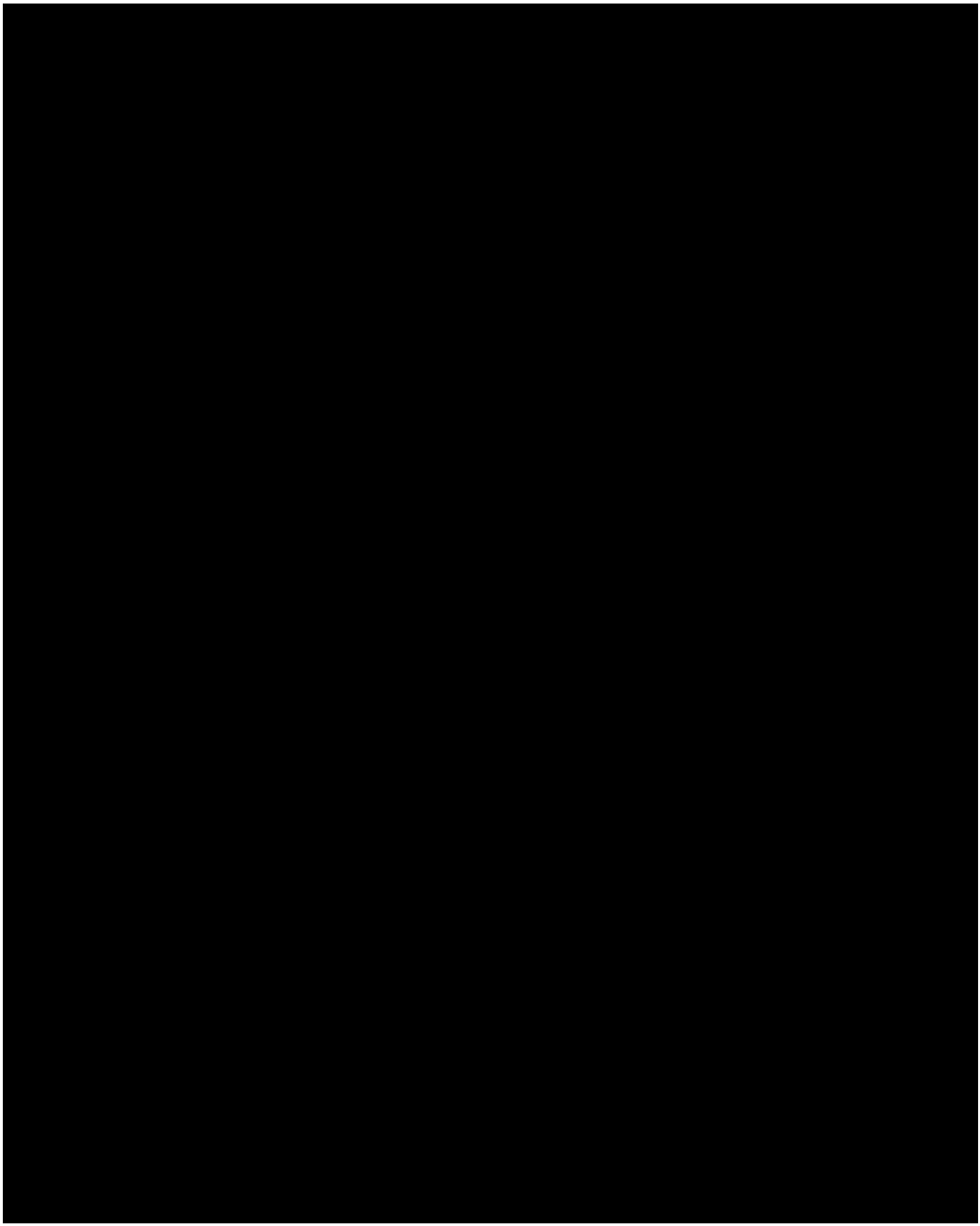
§ 8.3.3 This Section 8.3 does not preclude recovery of damages for delay by either party under other provisions of the Contract Documents.

[redacted]

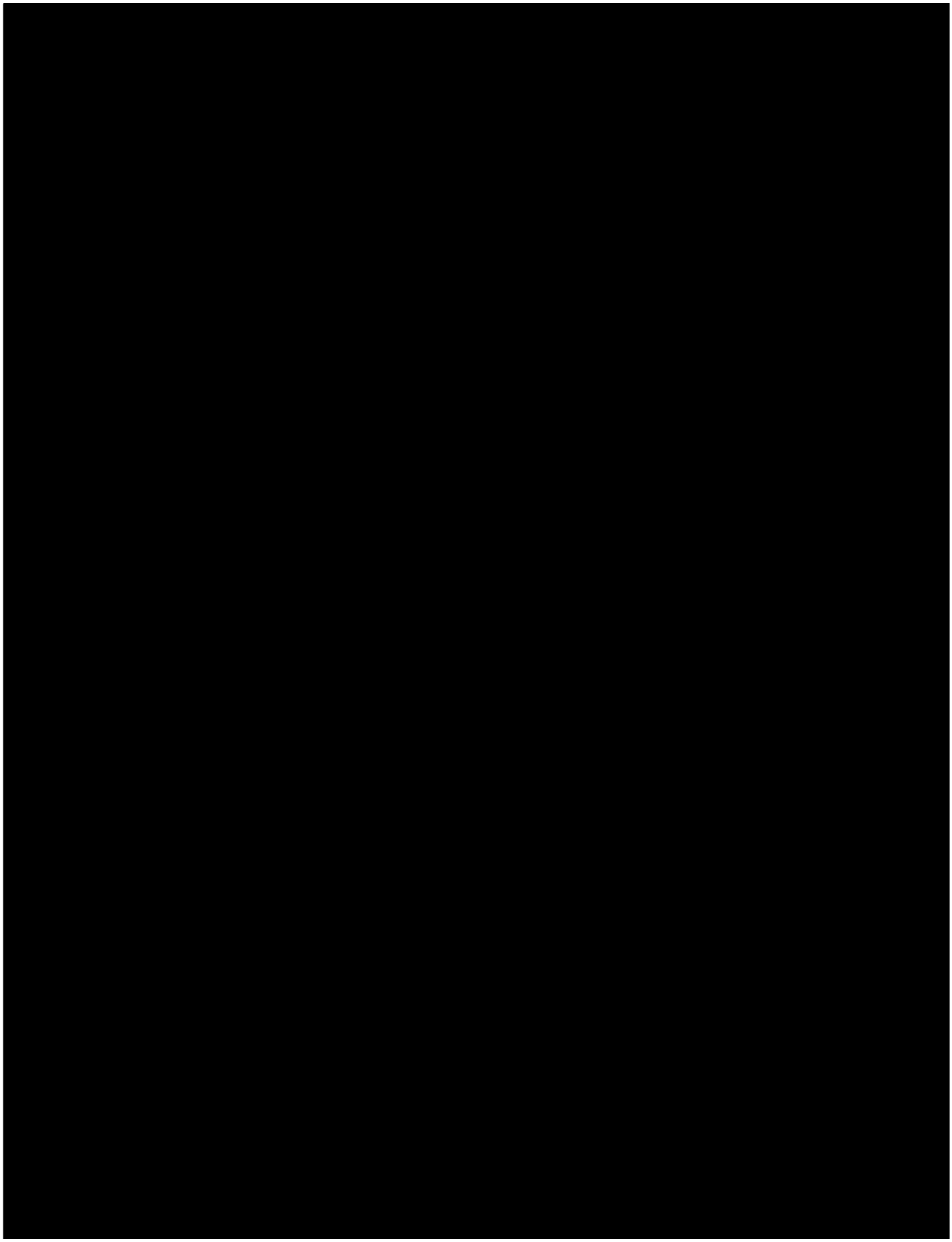
Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB



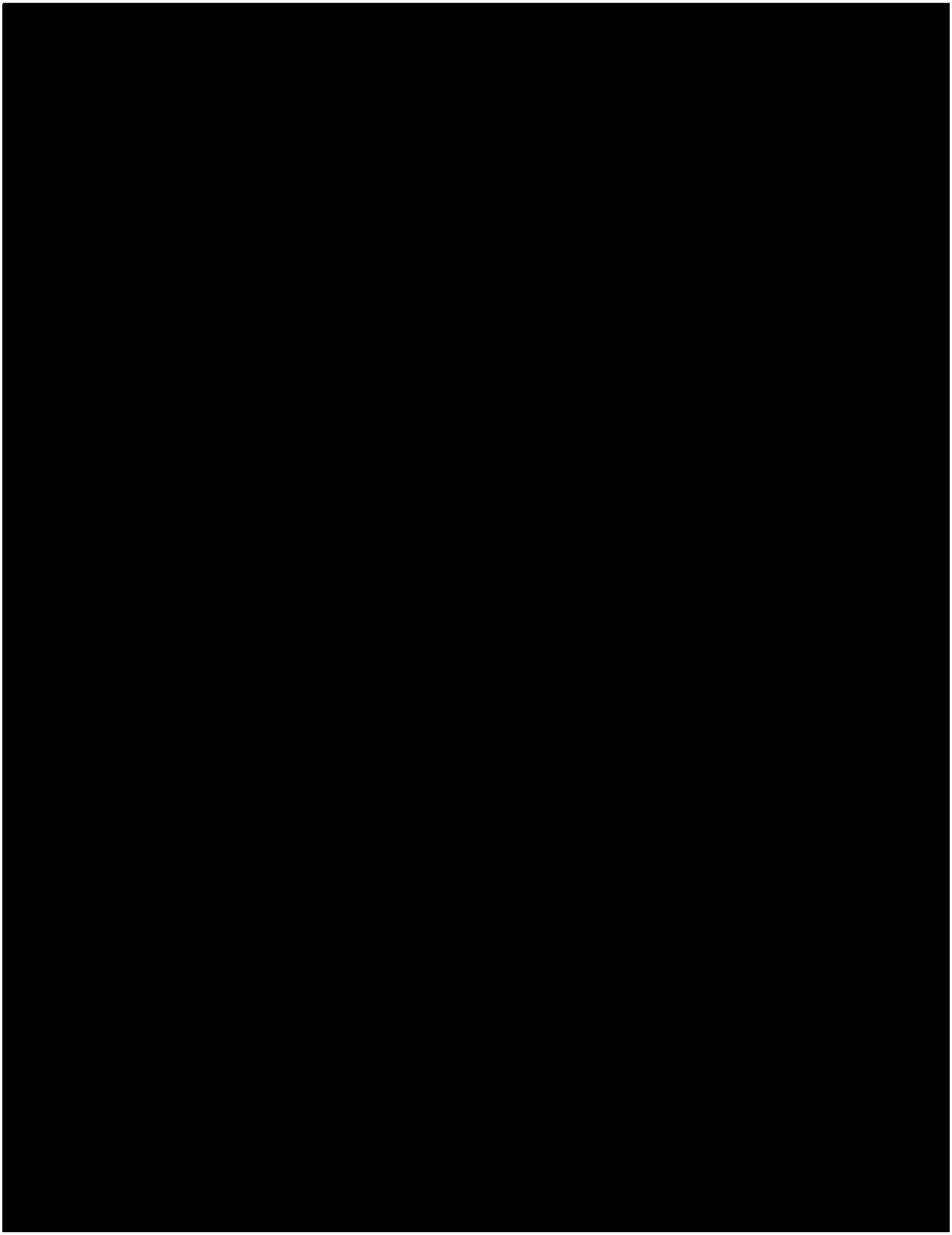
Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB



Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB



ARTICLE 10 PROTECTION OF PERSONS AND PROPERTY

§ 10.1 Safety Precautions and Programs

The Contractor shall be responsible for initiating, maintaining, and supervising all safety precautions and programs in connection with the performance of the Contract.

§ 10.2 Safety of Persons and Property

§ 10.2.1 The Contractor shall take reasonable precautions for safety of, and shall provide reasonable protection to prevent damage, injury, or loss to

.1 employees on the Work and other persons who may be affected thereby;

.2 the Work and materials and equipment to be incorporated therein, whether in storage on or off the site, under care, custody, or control of the Contractor, a Subcontractor, or a Sub-subcontractor; and

.3 other property at the site or adjacent thereto, such as trees, shrubs, lawns, walks, pavements, roadways, structures, and utilities not designated for removal, relocation, or replacement in the course of construction.

§ 10.2.2 The Contractor shall comply with, and give notices required by applicable laws, statutes, ordinances, codes, as required by current law, rules and regulations, and lawful orders of public authorities, bearing on safety of persons or property or their protection from damage, injury, or loss.

§ 10.2.3 The Contractor shall implement, erect, and maintain, as required by existing conditions and performance of the Contract, reasonable safeguards for safety and protection, including posting danger signs and other warnings against hazards; promulgating safety regulations; and notifying the owners and users of adjacent sites and utilities of the safeguards.

§ 10.2.4 When use or storage of explosives or other hazardous materials or equipment, or unusual methods are necessary for execution of the Work, the Contractor shall exercise utmost care and carry on such activities under supervision of properly qualified personnel.

§ 10.2.5 The Contractor shall promptly remedy damage and loss (other than damage or loss insured under property insurance required by the Contract Documents) to property referred to in Sections 10.2.1.2 and 10.2.1.3 caused in whole or in part by the Contractor, a Subcontractor, a Sub-subcontractor, or anyone directly or indirectly employed by any of them, or by anyone for whose acts they may be liable and for which the Contractor is responsible under Sections 10.2.1.2 and 10.2.1.3. The Contractor may make a Claim for the cost to remedy the damage or loss to the extent such damage or loss is attributable to acts or omissions of the Owner or Architect Owner's Representative or anyone directly or indirectly employed by either of them, or by anyone for whose acts either of them may be liable, and not attributable to the fault or negligence of the Contractor. The foregoing obligations of the Contractor are in addition to the Contractor's obligations under Section 3.18.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 10.2.6 The Contractor shall designate a responsible member of the Contractor's organization at the site whose duty shall be the prevention of accidents. This person shall be the Contractor's superintendent unless otherwise designated by the Contractor in writing to the Owner and Owner's Representative.

§ 10.2.7 The Contractor shall not permit any part of the construction or site to be loaded so as to cause damage or create an unsafe condition.

§ 10.2.8 Injury or Damage to Person or Property

If either party suffers injury or damage to person or property because of an act or omission of the other party, or of others for whose acts such party is legally responsible, notice of the injury or damage, whether or not insured, shall be given to the other party within a reasonable time not exceeding 21 days after discovery. The notice shall provide sufficient detail to enable the other party to investigate the matter.

§ 10.2.9 In the event the Contractor identifies activities or conditions during performance of the Work or at the Project, which, in the Contractor's good faith opinion, pose an unreasonable risk of bodily injury or property damage, whether immediate or in the future, the Contractor shall have the right to immediately take steps to protect its personnel and Subcontractors and stop Work and remove its personnel from the affected area. However, it is understood that the Contractor shall not be deemed to have assumed any obligation to identify such risks. In taking action as provided under this paragraph, the Contractor shall be entitled to an increase in the Contract Time and an equitable adjustment to the Contract Sum and/or GMP for any additional costs and/or time lost as a consequence thereof.

§ 10.3 Hazardous Materials and Substances

§ 10.3.1 The Contractor is responsible for compliance with any requirements included in the Contract Documents regarding hazardous materials or substances. If the Contractor encounters a hazardous material or substance not addressed in the Contract Documents and if reasonable precautions will be inadequate to prevent foreseeable bodily injury or death to persons resulting from a material or substance, including but not limited to asbestos or polychlorinated biphenyl (PCB), encountered on the site by the Contractor, the Contractor shall, upon recognizing the condition, immediately stop Work in the affected area and notify the Owner and Owner's Representative, and Architect of the condition.

§ 10.3.2 Upon receipt of the Contractor's notice, the Owner shall obtain the services of a licensed laboratory to verify the presence or absence of the material or substance reported by the Contractor and, in the event such material or substance is found to be present, to cause it to be rendered harmless. Unless otherwise required by the Contract Documents, the Owner shall furnish in writing to the Contractor, Owner's Representative and Architect the names and qualifications of persons or entities who are to perform tests verifying the presence or absence of the material or substance or who are to perform the task of removal or safe containment of the material or substance. The Contractor and the Architect will promptly reply to the Owner in writing stating whether or not either has reasonable objection to the persons or entities proposed by the Owner. If either the Contractor, Owner's Representative or Architect has an objection to a person or entity proposed by the Owner, the Owner shall propose another to whom the Contractor and the Architect have no reasonable objection. When the material or substance has been rendered harmless, Work in the affected area shall resume upon written agreement of the Owner and Contractor. By Change Order, the Contract Time shall be extended appropriately and the Contract Sum shall be increased by the amount of the Contractor's reasonable additional costs of shutdown, delay, and start-up.

§ 10.3.3 To the fullest extent permitted by law, the Owner shall indemnify and hold harmless the Contractor, Subcontractors, Architect, Architect's consultants, Owner's Representative and agents and employees of any of them from and against claims, damages, losses, and expenses, including but not limited to attorneys' fees, arising out of or resulting from performance of the Work in the affected area if in fact the material or substance presents the risk of bodily injury or death as described in Section 10.3.1 and has not been rendered harmless, provided that such claim, damage, loss, or expense is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Work itself), except to the extent that such damage, loss, or expense is due to the fault or negligence of the party seeking indemnity.

§ 10.3.4 The Owner shall not be responsible under this Section 10.3 for hazardous materials or substances the Contractor brings to the site unless such materials or substances are required by the Contract Documents. The Owner shall be responsible for hazardous materials or substances required by the Contract Documents, except to the extent of the Contractor's fault or negligence in the use and handling of such materials or substances.

Init.
/
AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 10.3.5 The Contractor shall reimburse the Owner for the cost and expense the Owner incurs (1) for remediation of hazardous materials or substances the Contractor brings to the site and negligently handles, or (2) where the Contractor fails to perform its obligations under Section 10.3.1, except to the extent that the cost and expense are due to the Owner's fault or negligence.

§ 10.3.6 If, without negligence on the part of the Contractor, the Contractor is held liable by a government agency for the cost of remediation of a hazardous material or substance solely by reason of performing Work as required by the Contract Documents, the Owner shall indemnify and reimburse the Contractor for all cost and expense thereby incurred. However, if it is not caused by the Owner's fault, the Owner is not liable for such compensation

§ 10.4 Emergencies

In an emergency affecting safety of persons or property, the Contractor shall act, at the Contractor's discretion, to prevent threatened damage, injury, or loss. Additional compensation or extension of time claimed by the Contractor on account of an emergency shall be determined as provided in Article 15 and Article 7.

ARTICLE 11 INSURANCE AND BONDS

§ 11.1 Contractor's Insurance and Bonds

§ 11.1.1 The Contractor shall purchase and maintain insurance of the types and limits of liability, containing the endorsements, and subject to the terms and conditions, as described in the Agreement or elsewhere in the Contract Documents. The Contractor shall purchase and maintain the required insurance from an insurance company or insurance companies lawfully authorized to issue insurance in the jurisdiction where the Project is located. The Owner shall be named as an additional insured under the Contractor's commercial general liability policy or as otherwise described in the Contract Documents.

§ 11.1.2 The Contractor shall provide surety bonds of the types, for such penal sums, and subject to such terms and conditions as required by the Contract Documents. The Contractor shall purchase and maintain the required bonds from a company or companies lawfully authorized to issue surety bonds in the jurisdiction where the Project is located.

§ 11.1.3 Upon the request of any person or entity appearing to be a potential beneficiary of bonds covering payment of obligations arising under the Contract, the Contractor shall promptly furnish a copy of the bonds or shall authorize a copy to be furnished.

§ 11.1.4 Notice of Cancellation or Expiration of Contractor's Required Insurance. Within three (3) business days of the date the Contractor becomes aware of an impending or actual cancellation or expiration of any insurance required by the Contract Documents, the Contractor shall provide notice to the Owner of such impending or actual cancellation or expiration. Upon receipt of notice from the Contractor, the Owner shall, unless the lapse in coverage arises from an act or omission of the Owner, have the right to stop the Work until the lapse in coverage has been cured by the procurement of replacement coverage by the Contractor. The furnishing of notice by the Contractor shall not relieve the Contractor of any contractual obligation to provide any required coverage.

§ 11.2 Owner's Insurance

§ 11.2.1 The Owner shall purchase and maintain insurance of the types and limits of liability, containing the endorsements, and subject to the terms and conditions, as described in the Agreement or elsewhere in the Contract Documents. The Owner shall purchase and maintain the required insurance from an insurance company or insurance companies lawfully authorized to issue insurance in the jurisdiction where the Project is located.

§ 11.2.2 Failure to Purchase Required Property Insurance/Builder's Risk Insurance. If the Contractor fails to purchase and maintain the required property insurance, with all of the coverages and in the amounts described in the Agreement or elsewhere in the Contract Documents, the Contractor shall inform the Owner in writing prior to commencement of the Work. Upon receipt of notice from the Contractor, the Owner may delay commencement of the Work and may obtain insurance that will protect the interests of the Owner, Contractor, Subcontractors, and Sub-Subcontractors of all tiers in the Work. When the failure to provide coverage has been cured or resolved, the Contract Sum, GMP and Contract Time shall be equitably adjusted. In the event the Contractor fails to procure coverage, the Contractor waives all rights against the Owner to the extent the loss to the Contractor would have been covered by the insurance to have been procured by the Contractor. The cost of the insurance shall be charged to the

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Contractor by a Change Order, if Contractor included the cost of obtaining Builder's Risk Insurance within its GMP and failed to procure such coverage. If the Contractor does not provide written notice, and the Owner is damaged by the failure or neglect of the Contractor to purchase or maintain the required insurance, the Contractor shall reimburse the Owner for all reasonable costs and damages attributable thereto.

§ 11.2.3 Notice of Cancellation or Expiration of Contractor's Required Builder's Risk Insurance. Within three (3) business days of the date the Contractor becomes aware of an impending or actual cancellation or expiration of any Builder's Risk Insurance required by the Contract Documents, the Contractor shall provide notice to the Owner of such impending or actual cancellation or expiration. Unless the lapse in coverage arises from an act or omission of the Owner: (1) the Owner, upon receipt of notice from the Contractor, shall have the right to stop the Work until the lapse in coverage has been cured by the procurement of replacement coverage by either the Owner or the Contractor; and (2) the Contractor waives all rights against the Owner to the extent any loss to the Contractor would have been covered by the insurance had it not expired or been cancelled. If the Owner purchases replacement coverage, the cost of the insurance shall be charged to the Contractor by an appropriate Change Order. The furnishing of notice by the Contractor shall not relieve the Contractor of any contractual obligation to provide required insurance.

§ 11.3 Waivers of Subrogation

§ 11.3.1 The Owner and Contractor waive all rights against (1) each other and any of their subcontractors, sub-subcontractors of all tiers, agents, and employees, each of the other; (2) the Owner's Representative, Architect and Architect's consultants; and (3) Separate Contractors, if any, and any of their subcontractors, sub-subcontractors of all tiers, agents, and employees, for damages caused by fire, or other causes of loss, to the extent those losses are covered by property insurance required by the Agreement or other property insurance applicable to the Project, except such rights as they have to proceeds of such insurance. The Owner or Contractor, as appropriate, shall require similar written waivers in favor of the individuals and entities identified above from the Owner's Representative, Architect, Architect's consultants, Separate Contractors, subcontractors, and sub-subcontractors. The policies of insurance purchased and maintained by each person or entity agreeing to waive claims pursuant to this section 11.3.1 shall not prohibit this waiver of subrogation. This waiver of subrogation shall be effective as to a person or entity (1) even though that person or entity would otherwise have a duty of indemnification, contractual or otherwise, (2) even though that person or entity did not pay the insurance premium directly or indirectly, or (3) whether or not the person or entity had an insurable interest in the damaged property.

§ 11.3.2 If during the Project construction period the Owner insures properties, real or personal or both, at or adjacent to the site by property insurance under policies separate from those insuring the Project, or if after final payment property insurance is to be provided on the completed Project through a policy or policies other than those insuring the Project during the construction period, to the extent permissible by such policies, the Owner waives all rights in accordance with the terms of Section 11.3.1 for damages caused by fire or other causes of loss covered by this separate property insurance.

§ 11.4 Loss of Use, Business Interruption, and Delay in Completion Insurance

The Owner, at the Owner's option, may purchase and maintain insurance that will protect the Owner against loss of use of the Owner's property, or the inability to conduct normal operations, due to fire or other causes of loss. The Owner waives all rights of action against the Contractor, Owner's Representative and Architect for loss of use of the Owner's property, due to fire or other hazards however caused.

§11.5 Adjustment and Settlement of Insured Loss

§ 11.5.1 A loss insured under the property insurance required by the Agreement shall be adjusted by the Owner as fiduciary and made payable to the Owner as fiduciary for the insureds, as their interests may appear, subject to requirements of any applicable mortgagee clause and of Section 11.5.2. The Owner shall pay the Owner's Representative, Architect and Contractor their just shares of insurance proceeds received by the Owner, and by appropriate agreements the Architect and Contractor shall make payments to their consultants and Subcontractors in similar manner.

§ 11.5.2 Prior to settlement of an insured loss, the Owner shall notify the Contractor of the terms of the proposed settlement as well as the proposed allocation of the insurance proceeds. The Contractor shall have 14 days from receipt of notice to object to the proposed settlement or allocation of the proceeds. If the Contractor does not object, the Owner shall settle the loss and the Contractor shall be bound by the settlement and allocation. Upon receipt, the

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Owner shall deposit the insurance proceeds in a separate account and make the appropriate distributions. Thereafter, if no other agreement is made or the Owner does not terminate the Contract for convenience, the Owner and Contractor shall execute a Change Order for reconstruction of the damaged or destroyed Work in the amount allocated for that purpose. If the Contractor timely objects to either the terms of the proposed settlement or the allocation of the proceeds, the Owner may proceed to settle the insured loss, and any dispute between the Owner and Contractor arising out of the settlement or allocation of the proceeds shall be resolved pursuant to Article 15. Pending resolution of any dispute, the Owner may issue a Construction Change Directive for the reconstruction of the damaged or destroyed Work.

ARTICLE 12 UNCOVERING AND CORRECTION OF WORK

§ 12.1 Uncovering of Work

§ 12.1.1 If a portion of the Work is covered contrary to the Architect's request or to requirements specifically expressed in the Contract Documents, it must, if requested in writing by the Architect, be uncovered for the Architect's examination and be replaced at the Contractor's expense without change in the Contract Time.

§ 12.1.2 If a portion of the Work has been covered that the Architect has not specifically requested to examine prior to its being covered, the Architect or Owner's Representative may request to see such Work and it shall be uncovered by the Contractor. If such Work is in accordance with the Contract Documents, the Contractor shall be entitled to an equitable adjustment to the Contract Sum, GMP, and Contract Time as may be appropriate. If such Work is not in accordance with the Contract Documents, the costs of uncovering the Work, and the cost of correction, shall be at the Contractor's expense.

§ 12.2 Correction of Work

§ 12.2.1 Before Substantial Completion

The Contractor shall promptly correct Work rejected by the Architect or Owner's Representative or failing to conform to the requirements of the Contract Documents, discovered before Substantial Completion and whether or not fabricated, installed or completed. Costs of correcting such rejected Work, including additional testing and inspections, the cost of uncovering and replacement, and compensation for the Architect's services and expenses made necessary thereby, shall be at the Contractor's expense.

§ 12.2.2 After Substantial Completion

§ 12.2.2.1 In addition to the Contractor's obligations under Section 3.5, if, within one year after the date of Substantial Completion of the Work or designated portion thereof or after the date for commencement of warranties established under Section 9.9.1, or by terms of any applicable special warranty required by the Contract Documents, any of the Work is found to be not in accordance with the requirements of the Contract Documents, the Contractor shall correct it promptly after receipt of notice from the Owner to do so, unless the Owner has previously given the Contractor a written acceptance of such condition. The Owner shall give such notice promptly after discovery of the condition. During the one-year period for correction of Work, if the Owner fails to notify the Contractor and give the Contractor an opportunity to make the correction, the Owner waives the rights to require correction by the Contractor and to make a claim for breach of warranty. If the Contractor fails to correct nonconforming Work within a reasonable time during that period after receipt of notice from the Owner, Owner's Representative or Architect, the Owner may correct it in accordance with Section 2.5.

§ 12.2.2.2 The one-year period for correction of Work shall be extended with respect to portions of Work first performed after Substantial Completion by the period of time between Substantial Completion and the actual completion of that portion of the Work.

§ 12.2.2.3 The one-year period for correction of Work shall not be extended by corrective Work performed by the Contractor pursuant to this Section 12.2.

§ 12.2.3 The Contractor shall remove from the site portions of the Work that are not in accordance with the requirements of the Contract Documents and are neither corrected by the Contractor nor accepted by the Owner.

§ 12.2.4 The Contractor shall bear the cost of correcting destroyed or damaged construction of the Owner or Separate Contractors, whether completed or partially completed, caused by the Contractor's correction or removal of Work that is not in accordance with the requirements of the Contract Documents.

Init.
/
AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 12.2.5 Nothing contained in this Section 12.2 shall be construed to establish a period of limitation with respect to other obligations the Contractor has under the Contract Documents. Establishment of the one-year period for correction of Work as described in Section 12.2.2 relates only to the specific obligation of the Contractor to correct the Work, and has no relationship to the time within which the obligation to comply with the Contract Documents may be sought to be enforced, nor to the time within which proceedings may be commenced to establish the Contractor's liability with respect to the Contractor's obligations other than specifically to correct the Work.

§ 12.3 Acceptance of Nonconforming Work

If the Owner prefers to accept Work that is not in accordance with the requirements of the Contract Documents, the Owner may do so instead of requiring its removal and correction, in which case the Contract Sum will be reduced as appropriate and equitable. Such adjustment shall be effected whether or not final payment has been made.

ARTICLE 13 MISCELLANEOUS PROVISIONS

§ 13.1 Governing Law

The Contract shall be governed by the law of the place where the Project is located, excluding that jurisdiction's choice of law rules. If the parties have selected arbitration as the method of binding dispute resolution, the Federal Arbitration Act shall govern Section 15.4.

§ 13.2 Successors and Assigns

§ 13.2.1 The Owner and Contractor respectively bind themselves, their partners, successors, assigns, and legal representatives to covenants, agreements, and obligations contained in the Contract Documents. Except as provided in Section 13.2.2, neither party to the Contract shall assign the Contract as a whole without written consent of the other. If either party attempts to make an assignment without such consent, that party shall nevertheless remain legally responsible for all obligations under the Contract.

§ 13.2.2 The Owner may, without consent of the Contractor, assign the Contract to a lender providing construction financing for the Project, if the lender assumes the Owner's rights and obligations under the Contract Documents. The Contractor shall execute all consents reasonably required to facilitate the assignment.

§ 13.3 Rights and Remedies

§ 13.3.1 Duties and obligations imposed by the Contract Documents and rights and remedies available thereunder shall be in addition to and not a limitation of duties, obligations, rights, and remedies otherwise imposed or available by law, except where inconsistent with the Contract Documents, in which case the Contract Documents shall prevail.

§ 13.3.2 No action or failure to act by the Owner, Architect, Owner's Representative or Contractor shall constitute a waiver of a right or duty afforded them under the Contract, nor shall such action or failure to act constitute approval of or acquiescence in a breach thereunder, except as may be specifically agreed upon in writing.

§ 13.4 Tests and Inspections

§ 13.4.1 Tests, inspections, and approvals of portions of the Work shall be made as required by the Contract Documents and by applicable laws, statutes, ordinances, codes, rules, and regulations or lawful orders of public authorities. Unless otherwise provided, the Contractor shall make arrangements for such tests, inspections, and approvals with an independent testing laboratory or entity acceptable to the Owner, or with the appropriate public authority, and shall bear all related costs of tests, inspections, and approvals. The Contractor shall give the Architect timely notice of when and where tests and inspections are to be made so that the Architect may be present for such procedures. The Owner shall bear costs of tests, inspections, or approvals that do not become requirements until after bids are received or negotiations concluded. The Owner shall directly arrange and pay for tests, inspections, or approvals where building codes or applicable laws or regulations so require.

§ 13.4.2 If the Architect, Owner, Owner's Representative or public authorities having jurisdiction determine that portions of the Work require additional testing, inspection, or approval not included under Section 13.4.1, the Architect will, upon written authorization from the Owner, instruct the Contractor to make arrangements for such additional testing, inspection, or approval, by an entity acceptable to the Owner, and the Contractor shall give timely notice to the Architect of when and where tests and inspections are to be made so that the Architect may be present for such procedures. Such costs, except as provided in Section 13.4.3, shall be at the Owner's expense.

Init.
/
AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

§ 13.4.3 If procedures for testing, inspection, or approval under Sections 13.4.1 and 13.4.2 reveal failure of the portions of the Work to comply with requirements established by the Contract Documents, all costs made necessary by such failure, including those of repeated procedures and compensation for the Architect's services and expenses, shall be at the Contractor's expense.

§ 13.4.4 Required certificates of testing, inspection, or approval shall, unless otherwise required by the Contract Documents, be secured by the Contractor and promptly delivered to the Architect.

§ 13.4.5 If the Architect is to observe tests, inspections, or approvals required by the Contract Documents, the Architect will do so promptly and, where practicable, at the normal place of testing.

§ 13.4.6 Tests or inspections conducted pursuant to the Contract Documents shall be made promptly to avoid unreasonable delay in the Work.

§ 13.5 Interest

Payments due and unpaid under the Contract Documents shall bear interest from the date payment is due at the rate the parties agree upon in the AIA A102-2017, or in the absence thereof, at the legal rate prevailing from time to time at the place where the Project is located.

§ 13.7 Confidentiality

The Contractor and all Subcontractors shall keep confidential all Contract Documents and any information acquired from the Owner's employees and Owner's representatives or from inspection of the Owner's property relating to the Owner's designs, business plans, business opportunities and/or financial or other confidential information. The Contractor and all Subcontractors shall not use or share any imagery or photography of the Project with any parties other than the Owner, Architect, and Owner's Representatives prior to the formal public inauguration of the completed Project and without the Owner's prior
(Paragraph Deleted)

approval.

ARTICLE 14 TERMINATION OR SUSPENSION OF THE CONTRACT

§ 14.1 Termination by the Contractor

§ 14.1.1 The Contractor may terminate the Contract if the Work is stopped for a period of 30 consecutive days through no act or fault of the Contractor, a Subcontractor, a Sub-subcontractor, their agents or employees, or any other persons or entities performing portions of the Work, for any of the following reasons:

.1 Issuance of an order of a court or other public authority having jurisdiction that requires all Work to be stopped;

.2 An act of government, such as a declaration of national emergency, that requires all Work to be stopped;

.3 Because the Owner's Representative has not issued a Certificate for Payment and has not notified the Contractor of the reason for withholding certification as provided in Section 9.4.1, or because the Owner has not made payment on a Certificate for Payment within the time stated in the Contract Documents;

.4 The Owner has failed to furnish to the Contractor reasonable evidence as required by Section 2.2;or

.5 The Owner has failed to secure or maintain insurance required of the Owner by the Contract Documents.

§ 14.1.2 The Contractor may terminate the Contract if, through no act or fault of the Contractor, a Subcontractor, a Sub-subcontractor, their agents or employees, or any other persons or entities performing portions of the Work, repeated suspensions, delays, or interruptions of the entire Work by the Owner as described in Section 14.3, constitute in the aggregate more than 30 percent of the total number of days scheduled for completion, or 120 days in any 365-day period, whichever is less.

§ 14.1.3 If one of the reasons described in Section 14.1.1 or 14.1.2 exists, the Contractor may, upon seven days' notice to the Owner, Owner's Representative and Architect, terminate the Contract and recover from the Owner payment for Work executed, as well as reasonable overhead and profit on Work not executed, demobilization costs, and costs incurred by reason of such termination.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

§ 14.1.4 If the Work is stopped for a period of 60 consecutive days through no act or fault of the Contractor, a Subcontractor, a Sub-subcontractor, or their agents or employees or any other persons or entities performing portions of the Work because the Owner has repeatedly failed to fulfill the Owner's obligations under the Contract Documents with respect to matters important to the progress of the Work, the Contractor may, upon seven additional days' notice to the Owner, Owner's Representative and the Architect, terminate the Contract and recover from the Owner as provided in Section 14.1.3.

§ 14.2 Termination by the Owner for Cause

§ 14.2.1 The Owner may terminate the Contract if the Contractor

- .1 repeatedly refuses or fails to supply enough properly skilled workers or proper materials;
- .2 persistently fails to make payment to Subcontractors or suppliers in accordance with the respective agreements between the Contractor and the Subcontractors or suppliers;
- .3 repeatedly disregards applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of a public authority; or
- .4 otherwise is guilty of substantial breach of a provision of the Contract Documents.

§ 14.2.2 When any of the reasons described in Section 14.2.1 exist, and upon certification by the Architect that sufficient cause exists to justify such action, the Owner may, without prejudice to any other rights or remedies of the Owner and after giving the Contractor and the Contractor's surety, if any, seven days' notice, terminate employment of the Contractor and may, if the Contractor fails to commence and diligently pursue a cure during such seven (7) day period subject to any prior rights of the surety:

- .1 Exclude the Contractor from the site and take possession of all materials, equipment, tools, and construction equipment and machinery thereon owned by the Contractor;
- .2 Accept assignment of subcontracts pursuant to Section 5.4; and
- .3 Finish the Work by whatever reasonable method the Owner may deem expedient. Upon written request of the Contractor, the Owner shall furnish to the Contractor a detailed accounting of the costs incurred by the Owner in finishing the Work.

§ 14.2.3 When the Owner terminates the Contract for one of the reasons stated in Section 14.2.1, the Contractor shall not be entitled to receive further payment until the Work is finished.

§ 14.2.4 If the unpaid balance of the Contract Sum exceeds costs of finishing the Work, including compensation for the Architect's services and expenses made necessary thereby, and other damages incurred by the Owner and not expressly waived, such excess shall be paid to the Contractor. If such costs and damages exceed the unpaid balance, the Contractor shall pay the difference to the Owner. The amount to be paid to the Contractor or Owner, as the case may be, shall be certified by the Initial Decision Maker, upon application, and this obligation for payment shall survive termination of the Contract.

§ 14.3 Suspension by the Owner for Convenience

§ 14.3.1 The Owner may, without cause, order the Contractor in writing to suspend, delay or interrupt the Work, in whole or in part for such period of time as the Owner may determine.

§ 14.3.2 The Contract Sum and Contract Time shall be adjusted for increases in the cost and time caused by suspension, delay, or interruption under Section 14.3.1. Adjustment of the Contract Sum shall include profit. No adjustment shall be made to the extent

- .1 that performance is, was, or would have been, so suspended, delayed, or interrupted, by another cause for which the Contractor is responsible; or
- .2 that an equitable adjustment is made or denied under another provision of the Contract.

§ 14.4 Termination by the Owner for Convenience

§ 14.4.1 The Owner may, at any time, terminate the Contract for the Owner's convenience and without cause. In the event the Owner terminates for its convenience whether (i) pursuant to this Section 14.4 or (ii) pursuant to any other provision of the Contract Documents, the provisions of Section 14.4.4, will also apply to the termination and shall also survive the termination.

§ 14.4.2 Upon receipt of notice from the Owner of such termination for the Owner's convenience, the Contractor shall

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

.1 cease operations as directed by the Owner in the notice;
.2 take actions necessary, or that the Owner may direct, for the protection and preservation of the Work; and
.3 except for Work directed to be performed prior to the effective date of termination stated in the notice, terminate all existing subcontracts and purchase orders and enter into no further subcontracts and purchase orders.

§ 14.4.3 In case of such termination for the Owner's convenience, the Owner shall pay the Contractor for Work properly executed including profit and fee; costs incurred by reason of the termination, including costs attributable to termination of Subcontracts; demobilization, and the termination fee, if any, set forth in the Agreement.

§ 14.4.4 In the event of a termination for the Owner's convenience all rights and title to all work product of the Contractor shall revert to, or remain with, the Contractor and the Owner agrees to refrain from using any of the Contractor's work product, bidders and/or Subcontractors and suppliers in connection with the Project. Notwithstanding any provisions of the Contract Documents concerning fees payable upon such a termination, the Owner hereby agrees that if the Contractor has prepared its bid packages and bidders lists, the entire fee shall be payable at the termination and shall be calculated by multiplying the fee percentage by the Project budget.

ARTICLE 15 CLAIMS AND DISPUTES

§ 15.1 Claims

§ 15.1.1 Definition

A Claim is a demand or assertion by one of the parties seeking, as a matter of right, payment of money, a change in the Contract Time, or other relief with respect to the terms of the Contract. The term "Claim" also includes other disputes and matters in question between the Owner and Contractor arising out of or relating to the Contract. The responsibility to substantiate Claims shall rest with the party making the Claim. This Section 15.1.1 does not require the Owner to file a Claim in order to impose liquidated damages in accordance with the Contract Documents.

§ 15.1.2 Time Limits on Claims

The Owner and Contractor shall commence all Claims and causes of action against the other and arising out of or related to the Contract, whether in contract, tort, breach of warranty or otherwise, in accordance with the requirements of the binding dispute resolution method selected in the Agreement and within the period specified by applicable law. The Owner and Contractor waive all Claims and causes of action not commenced in accordance with this Section 15.1.2.

§ 15.1.3 Notice of Claims

§ 15.1.3.1 Claims by either the Owner or Contractor, where the condition giving rise to the Claim is first discovered prior to expiration of the period for correction of the Work set forth in Section 12.2.2, shall be initiated by notice to the other party and to the Initial Decision Maker with a copy sent to the Owner's Representative, if the Architect is not serving as the Initial Decision Maker. Claims by either party under this Section 15.1.3.1 shall be initiated within 21 days after occurrence of the event giving rise to such Claim or within 21 days after the claimant first recognizes the condition giving rise to the Claim, whichever is later.

§ 15.1.3.2 Claims by either the Owner or Contractor, where the condition giving rise to the Claim is first discovered after expiration of the period for correction of the Work set forth in Section 12.2.2, shall be initiated by notice to the other party. In such event, no decision by the Initial Decision Maker is required.

§ 15.1.4 Continuing Contract Performance

§ 15.1.4.1 Pending final resolution of a Claim, except as otherwise agreed in writing or as provided in Section 9.7 and Article 14, the Contractor shall proceed diligently with performance of the Work provided the Owner continues to make payments in accordance with the Contract Documents.

§ 15.1.4.2 The Contract Sum and Contract Time shall be adjusted in accordance with the Initial Decision Maker's decision, subject to the right of either party to proceed in accordance with this Article 15. The Owner's Representative will issue Certificates for Payment in accordance with the decision of the Initial Decision Maker.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936
Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

§ 15.1.5 Claims for Additional Cost

If the Contractor wishes to make a Claim for an increase in the Contract Sum or GMP, notice as provided in Section 15.1.3 shall be given before proceeding to execute the portion of the Work that is the subject of the Claim. Prior notice is not required for Claims relating to an emergency endangering life or property arising under Section 10.4.

§ 15.1.6 Claims for Additional Time

§ 15.1.6.1 If the Contractor wishes to make a Claim for an increase in the Contract Time, notice as provided in Section 15.1.3 shall be given. The Contractor's Claim shall include an estimate of cost and of probable effect of delay on progress of the Work. In the case of a continuing delay, only one Claim is necessary.

§ 15.1.6.2 If adverse weather conditions are the basis for a Claim for additional time, such Claim shall be documented by data substantiating that weather conditions were abnormal for the period of time, could not have been reasonably anticipated, and had an adverse effect on the scheduled construction.

[redacted]

§ 15.2 Initial Decision

§ 15.2.1 Claims, excluding those where the condition giving rise to the Claim is first discovered after expiration of the period for correction of the Work set forth in Section 12.2.2 or arising under Sections 10.3, 10.4, and 11.5, shall be referred to the Initial Decision Maker for initial decision. The Owner's Representative will serve as the Initial Decision Maker, unless otherwise indicated in the Agreement. Except for those Claims excluded by this Section 15.2.1, an initial decision shall be required as a condition precedent to mediation of any Claim. If an initial decision has not been rendered within 30 days after the Claim has been referred to the Initial Decision Maker, the party asserting the Claim may demand mediation and binding dispute resolution without a decision having been rendered. Unless the Initial Decision Maker and all affected parties agree, the Initial Decision Maker will not decide disputes between the Contractor and persons or entities other than the Owner.

§ 15.2.2 The Initial Decision Maker will review Claims and within ten days of the receipt of a Claim take one or more of the following actions: (1) request additional supporting data from the claimant or a response with supporting data from the other party, (2) reject the Claim in whole or in part, (3) approve the Claim, (4) suggest a compromise, or (5) advise the parties that the Initial Decision Maker is unable to resolve the Claim if the Initial Decision Maker lacks sufficient information to evaluate the merits of the Claim or if the Initial Decision Maker concludes that, in the Initial Decision Maker's sole discretion, it would be inappropriate for the Initial Decision Maker to resolve the Claim.

§ 15.2.3 In evaluating Claims, the Initial Decision Maker may, but shall not be obligated to, consult with or seek information from either party or from persons with special knowledge or expertise who may assist the Initial Decision Maker in rendering a decision. The Initial Decision Maker may request the Owner to authorize retention of such persons at the Owner's expense.

§ 15.2.4 If the Initial Decision Maker requests a party to provide a response to a Claim or to furnish additional supporting data, such party shall respond, within ten days after receipt of the request, and shall either (1) provide a response on the requested supporting data, (2) advise the Initial Decision Maker when the response or supporting data will be furnished, or (3) advise the Initial Decision Maker that no supporting data will be furnished. Upon

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

Docusign Envelope ID: F31C054F-E0D1-412B-A5C2-14C081F69936

Docusign Envelope ID: 2D18ABB7-6B62-4243-92B2-0D3E7CA924CB

receipt of the response or supporting data, if any, the Initial Decision Maker will either reject or approve the Claim in whole or in part.

§ 15.2.5 The Initial Decision Maker will render an initial decision approving or rejecting the Claim, or indicating that the Initial Decision Maker is unable to resolve the Claim. This initial decision shall (1) be in writing; (2) state the reasons therefor; and (3) notify the parties and the Owner's Representative, if the Architect is not serving as the Initial Decision Maker, of any change in the Contract Sum or Contract Time or both. The initial decision shall be final and binding on the parties but subject to mediation and, if the parties fail to resolve their dispute through mediation, to binding dispute resolution.

§ 15.2.6 Either party may file for mediation of an initial decision at any time, subject to the terms of Section 15.2.6.1.

§ 15.2.6.1 Either party may, within 30 days from the date of receipt of an initial decision, demand in writing that the other party file for mediation. If such a demand is made and the party receiving the demand fails to file for mediation within 30 days after receipt thereof, then both parties waive their rights to mediate or pursue binding dispute resolution proceedings with respect to the initial decision.

§ 15.2.7 In the event of a Claim against the Contractor, the Owner may, but is not obligated to, notify the surety, if any, of the nature and amount of the Claim. If the Claim relates to a possibility of a Contractor's default, the Owner may, but is not obligated to, notify the surety and request the surety's assistance in resolving the controversy.

§ 15.2.8 If a Claim relates to or is the subject of a mechanic's lien, the party asserting such Claim may proceed in accordance with applicable law to comply with the lien notice or filing deadlines.

§ 15.3 Mediation

§ 15.3.1 Claims, disputes, or other matters in controversy arising out of or related to the Contract, except those waived as provided for in Sections 9.10.4, 9.10.5, and 15.1.7, shall be subject to mediation as a condition precedent to binding dispute resolution.

§ 15.3.2 The parties shall endeavor to resolve their Claims by mediation which, unless the parties mutually agree otherwise, shall be administered by the American Arbitration Association in accordance with its Construction Industry Mediation Procedures in effect on the date of the Agreement. A request for mediation shall be made in writing, delivered to the other party to the Contract, and filed with the person or entity administering the mediation. The request may be made concurrently with the filing of binding dispute resolution proceedings but, in such event, mediation shall proceed in advance of binding dispute resolution proceedings, which shall be stayed pending mediation for a period of 60 days from the date of filing, unless stayed for a longer period by agreement of the parties or court order. If an arbitration is stayed pursuant to this Section 15.3.2, the parties may nonetheless proceed to the selection of the arbitrator(s) and agree upon a schedule for later proceedings.

§ 15.3.3 Either party may, within 30 days from the date that mediation has been concluded without resolution of the dispute or 60 days after mediation has been demanded without resolution of the dispute, demand in writing that the other party file for binding dispute resolution. If such a demand is made and the party receiving the demand fails to file for binding dispute resolution within 60 days after receipt thereof, then both parties waive their rights to binding dispute resolution proceedings with respect to the initial decision.

§ 15.3.4 The parties shall share the mediator's fee and any filing fees equally. The mediation shall be held in the place where the Project is located, unless another location is mutually agreed upon. Agreements reached in mediation shall be enforceable as settlement agreements in any court having jurisdiction thereof.

§ 15.4 Arbitration

§ 15.4.1 If the parties have selected arbitration as the method for binding dispute resolution in the Agreement, any Claim subject to, but not resolved by, mediation shall be subject to arbitration which, unless the parties mutually agree otherwise, shall be administered by the American Arbitration Association in accordance with its Construction Industry Arbitration Rules in effect on the date of the Agreement. The Arbitration shall be conducted in the place where the Project is located, unless another location is mutually agreed upon. A demand for arbitration shall be made in writing, delivered to the other party to the Contract, and filed with the person or entity administering the

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)

arbitration. The party filing a notice of demand for arbitration must assert in the demand all Claims then known to that party on which arbitration is permitted to be demanded.

§ 15.4.1.1 A demand for arbitration shall be made no earlier than concurrently with the filing of a request for mediation, but in no event shall it be made after the date when the institution of legal or equitable proceedings based on the Claim would be barred by the applicable statute of limitations. For statute of limitations purposes, receipt of a written demand for arbitration by the person or entity administering the arbitration shall constitute the institution of legal or equitable proceedings based on the Claim.

§ 15.4.2 The award rendered by the arbitrator or arbitrators shall be final, and judgment may be entered upon it in accordance with applicable law in any court having jurisdiction thereof.

§ 15.4.3 The foregoing agreement to arbitrate and other agreements to arbitrate with an additional person or entity duly consented to by parties to the Agreement, shall be specifically enforceable under applicable law in any court having jurisdiction thereof.

§ 15.4.4 Consolidation or Joinder

§ 15.4.4.1 Subject to the rules of the American Arbitration Association or other applicable arbitration rules, either party may consolidate an arbitration conducted under this Agreement with any other arbitration to which it is a party provided that (1) the arbitration agreement governing the other arbitration permits consolidation, (2) the arbitrations to be consolidated substantially involve common questions of law or fact, and (3) the arbitrations employ materially similar procedural rules and methods for selecting arbitrator(s).

§ 15.4.4.2 Subject to the rules of the American Arbitration Association or other applicable arbitration rules, either party may include by joinder persons or entities substantially involved in a common question of law or fact whose presence is required if complete relief is to be accorded in arbitration, provided that the party sought to be joined consents in writing to such joinder. Consent to arbitration involving an additional person or entity shall not constitute consent to arbitration of any claim, dispute or other matter in question not described in the written consent.

§ 15.4.4.3 The Owner and Contractor grant to any person or entity made a party to an arbitration conducted under this Section 15.4, whether by joinder or consolidation, the same rights of joinder and consolidation as those of the Owner and Contractor under this Agreement.

§ 15.4.4.4 Arbitration, at the Contractor's election, may include Subcontractors to Contractor that Contractor deems relevant to the matter in dispute and upon Contractor's request, the Arbitrator shall decide all or a particular portion of a dispute between the Contractor and a Subcontractor and, as Contractor may request, the Arbitrator shall speak to the extent to which the Arbitrator's decisions regarding a dispute between Contractor and Owner and the dispute between Contractor and Subcontractor are inter-related.

AIA Document A201 – 2017. Copyright © 1911, 1915, 1918, 1925, 1937, 1951, 1958, 1961, 1963, 1966, 1970, 1976, 1987, 1997, 2007 and 2017. All rights reserved. "The American Institute of Architects," "American Institute of Architects," "AIA," the AIA Logo, and "AIA Contract Documents" are trademarks of The American Institute of Architects. This document was produced at 20:14:36 ET on 04/28/2025 under Order No.4104247092 which expires on 06/30/2025, is not for resale, is licensed for one-time use only, and may only be used in accordance with the AIA Contract Documents® Terms of Service. To report copyright violations, e-mail docinfo@aiacontracts.com.
User Notes: (3B9ADA3E)